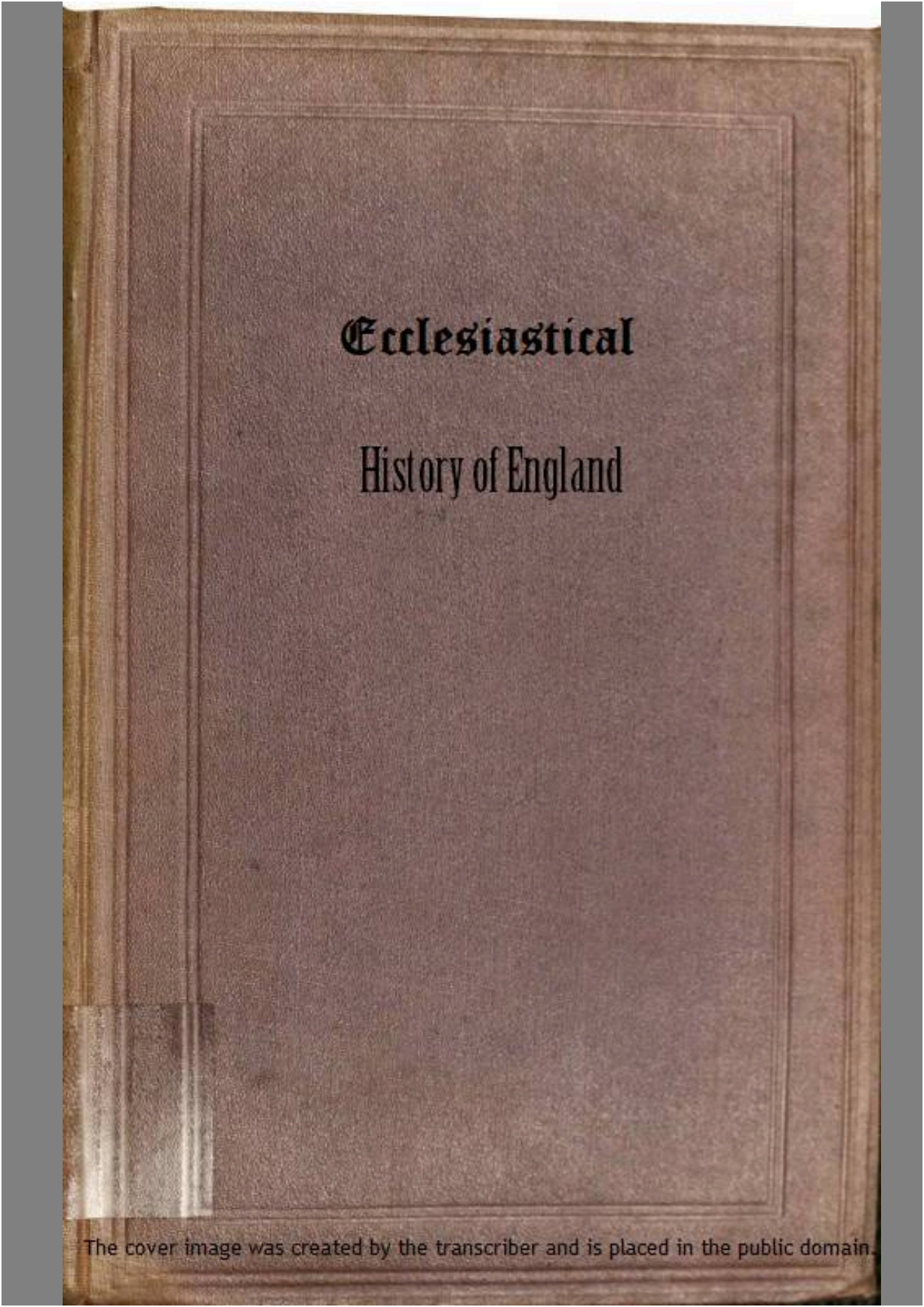


Ecclesiastical
History of England



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Ecclesiastical

HISTORY OF ENGLAND,

ECCLESIASTICAL
HISTORY OF ENGLAND,

FROM THE OPENING OF THE LONG PARLIAMENT TO THE DEATH OF OLIVER CROMWELL.

BY
JOHN STOUGHTON.

VOLUME I.
THE CHURCH OF THE CIVIL WARS.



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English literature includes valuable histories of the Church, some of them prominently exhibiting whatever relates to Anglicanism, others almost exclusively describing the developments of Puritanism. In such works the ecclesiastical events of the Civil Wars and of the Commonwealth may be found described with considerable, but not with sufficient fullness. Many persons wish to know more respecting those times. The book now published is designed to meet this wish, by telling the ecclesiastical part of England's story at that eventful period with less of incompleteness. In doing so, the object is not to give prominence to any single ecclesiastical party to the disadvantage of others in that respect; but to point out the circumstances of all, and the spirit of each, to trace their mutual relations, and to indicate the influence which they exerted upon one another. The study of original authorities, researches amongst State Papers and other MS. collections, together with enquiries pursued by the aid of historical treasures of all kinds in the British Museum, have brought to light many fresh illustrations of the period under review; and the author, whilst endeavouring to make use of the results so obtained, has reached the conclusion, that the only method by which a satisfactory account of a single religious denomination can be given, is by the exhibition of it in connexion with all the rest.

His purpose has been carefully to ascertain, and honestly to state the truth, in reference both to the nature of the events, and the characters of the persons introduced in the following chapters. He is by no means indifferent to certain principles, political, ecclesiastical, and theological, which were involved in the great controversy of the seventeenth century. As will appear in this narrative, his faith in these is strong and unwavering: nor does he fail

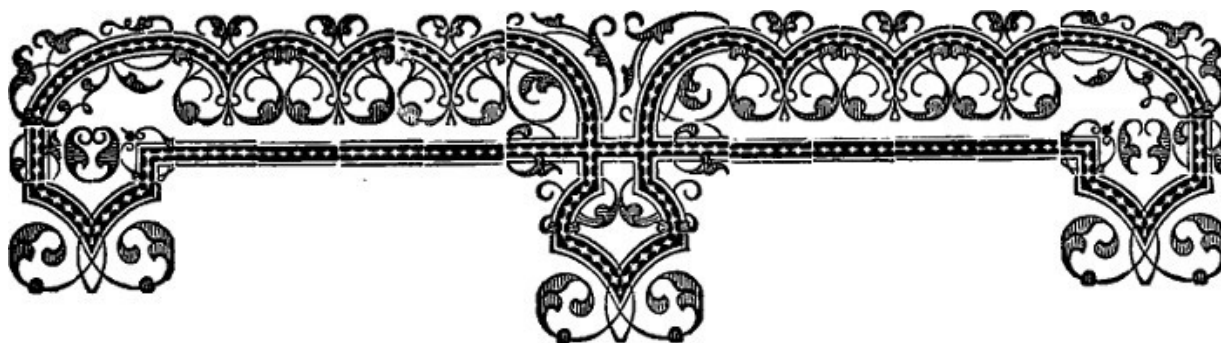
to recognize the bearing of certain things which he has recorded, upon certain other things occurring at this very moment; but he cannot see why private opinions and public events should stand in the way of an impartial statement of historical facts, or a righteous judgment of historical characters. For the principles which a man holds remain exactly the same, whatever may have been the past incidents or the departed individuals connected with their history. Happily, a change is coming over historical literature in this respect; persons and opinions are now being distinguished from each other, and it is seen, that advocates on the one side of a great question were not all perfectly good, and that those on the other side were not all thoroughly bad. The writer has sought to do honour to Christian faith, devotion, constancy, and love wherever he has found them, and never in any case to varnish over the hateful opposite of these noble qualities. And he will esteem it a great reward to be, by the blessing of God, in any measure the means of promoting what is most dear to his heart, the cause of truth and charity amongst Christian Englishmen.

The plan of the work, and the various aspects under which the public affairs, the principal actors, and the private religious life of England from the opening of the Long Parliament to the death of Oliver Cromwell are exhibited, may be discovered at a glance, by any one who will take the trouble to run over the table of contents.

Many defects which have escaped the Author will doubtless be noticed by his critics, and in this respect he ventures to throw himself upon their candour and generosity. One omission, however, may be explained. The theological literature of the period needs to be studied at large, for the purpose of making apparent the grounds upon which different bodies of Christians based their respective beliefs. Most ecclesiastical historians fail to exhibit those grounds. The Author is fully aware of this deficiency in his own case; but it is his hope, should Divine Providence spare his life, to be enabled, in some humble degree, to supply that deficiency at a future time.

He begs gratefully to acknowledge the valuable assistance rendered him by the Very Reverend the Dean of Westminster, in what relates to Westminster Abbey and the Universities—by Mr. John Bruce, F.S.A., for information and advice on several curious points—and by Mr. Clarence Hopper, who has collated with the originals, almost all the extracts from State Papers. Nor can he omit thankfully to notice the special facilities

afforded him for consulting the large collection of Commonwealth pamphlets in the British Museum, and the polite attention and help which he has received from gentlemen connected with Sion College and with Dr. Williams' Library. He has also had other helpers in his own house—helpers very dear to him, whom he must not name.



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CORRIGENDA.

VOL. I.

Page	Line	
114	29	<i>for</i> Simon <i>read</i> Symonds.
192	note	<i>for</i> Horton <i>read</i> Hopton.
207	1	<i>insert</i> Bishops.
210	7	<i>for</i> in 1646. He died <i>read</i> He died in 1646,
215	19	<i>for</i> Rauthaus <i>read</i> Rathhaus.
453	22	<i>for</i> condition <i>read</i> erudition.
521	heading	<i>for</i> Denominations <i>read</i> Demonstrations.

VOL. II.

125 } 127 }	headings	<i>read</i> Sir Harry Vane.
133	7	<i>for</i> Naylor <i>read</i> Nayler.
146	3	<i>the word</i> been <i>is dropped into line</i> 4.
151	31	<i>for</i> Bordura <i>read</i> Bodurda.
262	note	<i>for</i> according <i>read</i> accordingly.
361	heading	<i>for</i> Fox and Cromwell <i>read</i> Fox's Disciples.
409	10	<i>for</i> Isaac <i>read</i> Isaak.
427	1 & 13	<i>for</i> Francis <i>read</i> Frances.



INTRODUCTION.

On the third of November, 1640, at nine o'clock in the forenoon, the Earl Marshal of England came into the outer room of the Commons' House, accompanied by the Treasurer of the King's Household and other officers. When the Chancery crier had made proclamation, and the clerk of the Crown had called over the names of the returned knights, citizens, burgesses, and barons of the Cinque-ports; and after his Lordship had sworn some threescore members, and made arrangements for swearing the rest, he departed to wait upon his Majesty, who, about one o'clock, came in his barge from Whitehall to Westminster stairs. There the lords met him. Thence on foot marched a procession consisting of servants and officers of state.^[1]

The King, so accompanied, passed through Westminster Hall and the Court of Requests to the Abbey, where a sermon was preached by the Bishop of Bristol. The King's Majesty, arrayed in his royal robes, ascended the throne. The Prince of Wales sat on his left hand: on the right stood the Lord High Chamberlain of England and the Earl of Essex, bearing the cap; and the Earl Marshal and the Earl of Bath bearing the sword of state occupied the left. Clarence, in the absence of Garter, and also the gentleman of the black rod, were near the Earl Marshal. The Earl of Cork, Viscount Willmott, the Lord Newburgh, and the Master of the Rolls, called by writ as assistants, "sat on the inside of the wool-sacks;" so did the Lord Chief Justices, Lord Chief Baron, and the rest of the judges under them. "On the outside of the woolsack" were four Masters of Chancery, the King's two ancient Serjeants, the Attorney-General, and three of the puisne Serjeants. To the Lords Spiritual and Temporal, apparelled in their robes, and seated in their places, and to the House of Commons, assembled below the bar, his Majesty delivered an address, declaring the cause of summoning this

parliament. Then the Lord Keeper Finch made a speech; after which, the Commons having chosen William Lenthall, of Lincoln's Inn, as Speaker, that gentleman, being approved with the usual ceremonies, added another oration, in which he observed: "I see before my eyes the Majesty of Great Britain, the glory of times, the history of honour, Charles I. in his forefront, placed by descent of ancient kings, settled by a long succession, and continued to us by a pious and peaceful government. On the one side, the monument of glory, the progeny of valiant and puissant princes, the Queen's most excellent Majesty. On the other side, the hopes of posterity, the joy of this nation, those olive-branches set around your tables, emblems of peace to posterity. Here shine those lights and lamps placed in a mount, which attend your Sacred Majesty as supreme head, and borrow from you the splendour of their government."

Thus opened the Long Parliament; knowing what followed, we feel a strange interest in these quaint items extracted from State Papers and Parliamentary Journals.^[2] With such ceremonies Charles I. once more sat down on the throne of his fathers; and once more, too, clothed in lawn and rochet, the prelates occupied their old benches. Great was their power: Laud, Archbishop of Canterbury, might be said to discharge the functions of Prime Minister; Juxon, Bishop of London, clasped the Lord Treasurer's staff; and Williams, Bishop of Lincoln, had some years before held the great seal. They and their reverend brethren sat as co-equals with scarlet-robed and coroneted barons. They represented the stately and ancient Church of England, in closest union with the senate and the throne; suggesting, as to the relations of ecclesiastical and civil power, questions, which are as ancient as mediæval times, and as modern as our own. Thus too again the Commons' Speaker, in florid diction congratulated the monarch on the prosperity of his realms. That day can never be forgotten. Outwardly the Church, like the State, looked strong; but an earthquake was at hand, destined to overturn the foundations of both. To understand the crisis in reference to the Church we must look a little further back.^[3]

The Anglo-Catholic and Puritan parties stood face to face in the National Church, at the opening of the Long Parliament. They had existed from the time of the Reformation.

Anglo-Catholics, while upholding with reverence the three creeds of Christendom, did not maintain any particular doctrines as distinctive of

their system. Neither did they, though their peculiarities were chiefly ecclesiastical, propound any special theory of Church and State. Under Queen Elizabeth they maintained theological opinions different from those which they upheld under Charles the First. At the former period they were Calvinists. Before the civil wars they became Arminians. Preaching upon the controversy was forbidden; and Bishop Morley, on being asked "what Arminians held," wittily replied, "the best bishoprics and deaneries in England!"^[4]

Whereas in reference to doctrine there was change, in reference to ecclesiastical principles there was progress. The constitution of the Protestant Church of England being based on Acts of Parliament, and the supremacy of the Crown in all matters "touching spiritual or ecclesiastical jurisdiction"^[5] being recognized as a fundamental principle of the Reformation—the dependence of the Church upon the civil power appeared as soon as the great ecclesiastical change took place. The Act of Uniformity in the first year of Elizabeth was passed by the lay Lords alone—all the Bishops who were present dissented—and the validity of the consecration of the first Protestant Archbishop had to be ratified by a parliamentary statute.^[6]

Of the successive High Commissions—which formed the great spiritual tribunals of the land—the majority of the Commissioners were laymen.^[7] The Anglo-Catholics of Elizabeth's reign were obliged to accept this state of things, and sometimes to bow before their royal mistress, as if she had been possessed of an absolute super-episcopal rule.^[8] Yet gradually they shewed a jealousy of parliamentary interference, and rose in the assertion of their authority and the exercise of their power. Whitgift availed himself of the lofty spiritual prerogatives of the Crown to check the Commons in what he deemed their intrusive meddlings with spiritual affairs.^[9] He strove to lift the Parliamentary yoke from the neck of the Church, and to place all ecclesiastical matters in the hands of Convocation. He preferred canons to statutes, and asked for the royal confirmation of the first rather than the second. But, after Whitgift and under the Stuarts, Church power made considerable advances. Anglo-Catholics, under the first James and the first Charles, took higher ground than did their fathers. Their dislike of Parliaments went beyond what Whitgift had dared to manifest. The doctrine

of the divine origin of Episcopacy, which was propounded by Bancroft, when Whitgift's chaplain, probably at Whitgift's suggestion, certainly with his concurrence—though it startled some English Protestants as a novelty, and roused the anger of a Puritan privy councillor jealous of the Queen's supremacy,^[10] became a current belief of the Stuart Anglicans. At the same time the power of Convocation was widely stretched, as will be seen in the business of the famous canons of 1640. The encroachments of the High Commission upon the jurisdiction of the Civil Courts, and the liberties of the subject, produced complaints in everybody's mouth, and served, as much as anything, to bring on the great catastrophe. What is now indicated in a few words will receive proof and illustration hereafter.

Looking at changes in the doctrine and at progress in the policy of Anglo-Catholics, perhaps, on the whole, the persons intended by that denomination may be best described as distinguished by certain principles or sentiments, rather than by any organic scheme of dogma or polity. They formed a school of thought which bowed to the decisions of the past, craved Catholic unity, elevated the episcopal office, exalted Church authority, suspected individual opinion, gave prominence to social Christianity, delighted in ceremonial worship and symbolism, attached great importance to order and uniformity, and sought the mysterious operations of divine grace through material channels. The Anglo-Catholic spirit in most respects, as might be expected, appears more shadowy and in less power amongst the Bishops connected with the Reformation than amongst those who succeeded.^[11] Parker, Whitgift, and Laud represent stages of advancement in this point of view. But from the very foundation of the Reformed Church of England this spirit, in a measure, manifested itself, and in no respect, perhaps, so much as in reverence for early patristic teaching. No one can be surprised that such tendencies remained with many who withdrew allegiance from the Pope, and renounced the grosser corruptions of Rome. It is a notable fact that out of 9,400 ecclesiastics, at the accession of Elizabeth, less than 200 left their livings.^[12] Many evaded the law under shelter of powerful patrons, or escaped through the remoteness and poverty of their cures. And it cannot be believed that, of those who positively conformed, all or nearly all became real Protestants.

The divines of this school, drawn towards the Fathers by their venerable antiquity, their sacramental tone and their reverence for the episcopate, did

not miss in them doctrinal tendencies accordant with their own. Even the Calvinistic Anglican of an earlier period could turn to the pages of Augustine and of other Latin Fathers, and find there nourishment for belief in Predestination, and Salvation by faith. But the Arminian still more easily found his own ideas of Christianity in Chrysostom, Clement of Alexandria, and other Eastern oracles. The Greek Fathers were favourites with the Anglican party of the seventeenth century. Whether the study of that branch of literature was the cause or the effect of the Arminian tendencies of the day—whether a taste for the learning and rhetoric of the great writers of Byzantium and Alexandria paved the way for the adoption of their creed, or sympathies with that creed led to the opening of their long neglected folios, may admit of question. Certainly the formation of theological beliefs is always a subtle process, and is subject to so many influences that, in the absence of conclusive evidence, it is hazardous confidently to pronounce a judgment.

The fairest side of Stuart-Anglicanism presents itself in the writings of Dr. Donne, and Bishop Andrewes. In the first of these great preachers there is a strong "patristic leaven,"—a lofty enforcement of church claims, a deep reverence for virginity, and an inculcation of the doctrine of the Real presence—such as we notice in the writings of the Fathers before the schoolmen had crystallized the feeling of an earlier age into the hard dogma of Transubstantiation. But there are also in some of his quaint and beautiful sermons statements of Christian truth, resembling the theology of Augustine; and at the same time, from the very bent of his genius, he was led to illustrate practical duty in many edifying ways. As to Bishop Andrewes, his "Greek Devotions" present him as a man of great spirituality; and we are not surprised to learn that he spent five hours every day in prayer and meditation. The formality of method in his celebrated manual, the quaintness of his diction, and his artificial but ingenious arrangement of petition and praise are offensive to modern taste; and, it must be allowed, his catholic *animus* is betrayed every now and then, so as to shock Protestant sensibilities; yet there are Protestants who still use these Devotions, and find in them helps to communion with God, aids to self-examination, and impulses to a holy life. On turning to his sermons, we discover expressed in his sententious eloquence (which has been rather too much condemned for pedantry and alliteration) doctrinal statements respecting the Atonement and Justification by Faith, quite in harmony with

evangelical opinions. Though not a Calvinist, he was free from Pelagian tincture. Andrewes, Donne and others, however, are not—any more than the Fathers—to be judged by extracts. A few passages do not accurately convey their pervading sentiments. Orthodox and evangelical in occasional statements of doctrine, still they are thoroughly sacramentarian and priestly in spirit. And, no doubt, their works, especially those of Andrewes, contributed in a great degree to foster that kind of religion which so much distressed, alarmed, and irritated the Puritans at the opening of the Civil War.

The admirable George Herbert, too, had strong Anglo-Catholic sympathies, on their poetical and devotional side. His hymns and prayers are in harmony with his holy quiet life, and may be compared to a strain of music such as he drew from his lute or viol, or to a deep-toned cathedral antiphony, in response to notes struck by an angel choir.

The type of character formed under such culture partook largely of a mediæval spirit. The saints of the Church were cherished models. The festivals of the Church were seasons for joy, its fasts for sorrow. The liturgy of the Church stereotyped the expressions of devotion, almost as much in its private as in its public exercise. The ministers of the Church were regarded more as priests than teachers, and their spiritual counsel and consolations were sought with a feeling, not foreign to that in which Romanists approach the confessional. The sacraments of the Church were received with awe, if not with trembling, as the mystic vehicles of salvation; and the whole History of the Church, its persecution and prosperity, its endurance and achievements, its conflicts and victories, were connected in the minds of such persons with the ancient edifices in which they worshipped. The cathedral and even many village choirs told them of "the glorious company of the Apostles," "the goodly fellowship of the prophets," and "the noble army of martyrs," and "the Holy Church throughout all the world." They loved to see those holy ones carved in stone and emblazoned in coloured glass. A dim religious light was in harmony with their grave and subdued temper. The lofty Gothic roof, the long-drawn aisle, the fretted vault, and the pavement solemnly echoing every footfall, had in their eyes a mysterious charm. The external, the visible, and the symbolic, more exalted their souls than anything abstract, argumentative, and doctrinal: yet, though their understanding and reason had little exercise, it must not be forgotten,

that, through imagination and sensibility awakened by material objects, these worshippers might rise into the regions of the sublime and infinite, the eternal and divine.

Such religion existed in the reign of Charles I. amongst the dignitaries of the Church. Occupying prebendal houses in a Cathedral close, they found nourishment for their devotion in "the service of song," as they occupied the dark oak stalls of the Minster choir. It was also cherished in the Universities. Heads of houses, professors, and fellows carried much of the Anglican feeling with them, as they crossed the green quadrangle, to morning and evening prayer. Town rectors and rural incumbents would participate in the same influence. Devout women, in oriel-windowed closets, also would kneel down, under its inspiration, to repeat passages in the Prayer book, or in Bishop Andrewes' devotions. And some English noblemen, free from courtly vice, would embody the nobler principles of the system. Yet, probably, the larger number of religious people in England were of a different class.

The following extract from a letter, belonging to the early part of the year 1641, giving an account of the death of the Lady Barbara Viscountess Fielding, affords an idea of Anglican piety in the last hour of life, more vivid than any general description:—

"About twelve of the clock this Thursday, the day of her departure, Dr. More being gone, I went to her, and by degrees told her of the danger she was in, upon which she seemed as it were to recollect herself, and desired me to deal plainly with her, when I told her Dr. More's judgment of her, for which she gave me most hearty thanks, saying this was a favour above all I had ever done her, &c.; and when she had, in a most comfortable manner, given me hearty thanks, she desired me to spend the time she had to live here, with her in praises and prayers to Almighty God for her, desiring me not to leave her, but to pray for her, when she could not, and was not able to pray for herself, and not to forsake her until I had commended her soul to God her Creator. After which, some time being spent in praising God for her creation, redemption, preservation hitherto, &c., we went to prayers, using in the first place the form appointed by our Church (a form she most highly admired), and then we enlarged ourselves, when she added thirty or forty holy ejaculations;—then I read unto her divers of David's Psalms, after which we went to prayers again; then she desired the company to go

out of the room, when she made a relation of some particulars of her life to me (being then of perfect judgment), desiring the absolution our Church had appointed, before which nurses and others were called in, and all kneeling by her, she asked pardon of all she had offended there, and desired me to do the like for her to those that were not there; and when I had pronounced the absolution, she gave an account of her faith, and then after some ejaculations she praised Almighty God that He had given her a sight of her sins, giving Him most humble thanks that He had given her time to repent, and to receive the Church's absolution; and then she prayed in a very audible voice, that God would be pleased to be merciful to this our distressed Church of England for Jesus Christ his sake. After this she only spoke to my Lord, having spoken to her father, Sir J. Lambe, two or three hours before, and then at last of all, she only said, 'Lord Jesus, receive my soul;' but this was so weakly, that all heard it not, nor did I plainly, but in some sort guessed by what I heard of it."^[13]

But the Anglo-Catholicism of the Stuart age presented other aspects. In a multitude of cases, ritual worship degenerated into mere ceremonialism. An ignorant peasantry, who could neither read nor write, and who were destitute of all that intellectual stimulus which, in a thousand ways, now touches the most illiterate, would derive little benefit from reading liturgical forms, unaccompanied by instructive preaching—against which, in the Puritan form, the abettors of the system were much prejudiced. Though the prayers and offices of the Church of England be incomparably beautiful, experience is sufficient to show that, familiar with their repetition, the thoughtless and demoralized, being quite out of sympathy with their spirit, fail to discern their excellence. And, when it is remembered, that the Book of Sports, instituted by King James, was the rule and the reward for Sabbath observance; that after service in the parish church (not otherwise), the rustics were encouraged to play old English games on the village green, to dance around the May-pole, or to shoot at butts; we ask what could be the result, but religious formalism scarcely distinguishable from the lowest superstition? Should it be pleaded, that a pious and exemplary clergyman would impart life to what might otherwise have been dead forms, and restrain what otherwise would have been riotous excess; it may be replied, that a very considerable number of the holders of livings were not persons of that description; they sank to the level of their parishioners, and had no power to lift their parishioners to a level higher than their own.

The sympathies of the Church were with the people in their amusements; a circumstance which contributed to the strong popular reaction in favour of the Church, when Charles II. was restored. In the reign of Charles I. the wakes, or feasts, intended to celebrate the dedication of churches had degenerated into intemperate and noisy gatherings, and were, on that account, brought by the Magistrates under the notice of the Judges. But the Archbishop of Canterbury and the Bishop of Bath and Wells, backed by the King, came to the rescue. The complaints were attributed to Puritan "humourists." Alleged disorders were denied. The better sort of clergy in the diocese of Bath and Wells,—seventy-two in number, likened to the Septuagint interpreters, "who agreed so soon in the translation of the Old Testament,"—came together, and declared that these wakes were fit to be continued for a memorial of the dedication of churches, for the civilizing of the people, for lawful recreation, for composing differences, for increase of love and amity, for the relief of the poor, and for many other reasons.^[14]

The charge has been brought against the high Churchmen of that day, that they were *papistically* inclined. If by this term be meant any disposition to uphold the Papacy, and to acknowledge the authority of the Bishop of Rome over other Churches, even though modified by a charter of liberties like the Gallican, the charge is unfair. A distinct national establishment was always contended for by those who were suspected of the strongest papal leanings. They advocated an authority not derived from any foreign potentate, but, as they conceived, of immediate divine origin, and this authority they considered to be entitled to uncontrolled jurisdiction within the shores of the four seas. They wished for a Pope—to use the current language of the times—"not at Rome but at Lambeth." A reconciliation with the Church of Rome not involving submission, might have been agreeable to some of the party; yet, it must be acknowledged that, in solemn conclave, the Anglicans accused the Romanists of idolatry.^[15] If, however, by *papistic* be meant a tendency to Catholic worship, and so ultimately to Romish conformity, then may the imputation be supported by facts. The history of Christendom shews that the Church gradually passed from its primitive simplicity to the corruptions of the papacy; that ante-Nicene innovations, with post-Nicene developments and traditionalism, were stepping-stones in the transition. The process, on a wide scale, requires many centuries for its accomplishment; but partially and in individual cases a few years may

suffice for the experiment. Ecclesiastical annals, from Constantine to Hildebrand, may be epitomized in a brief chronology. Movements may rapidly pass through stages, like those of the Nicene and Mediæval. And sharp speaking, in order to maintain a certain ecclesiastical position against Rome, may immediately precede, and in fact, herald the approach of pilgrims to the very gate of the seven-hilled city.^[16] What has occurred within our own time in individual instances, was likely to occur, to a large extent, in the first half of the seventeenth century.

Mediæval sympathies, at the period now under our review, are obvious not only in the rigorous enforcement of fasting and abstinence,^[17] which had continued ever since the Reformation, but in certain monastic tendencies, and in slurs cast on the reformers. A document, prepared in 1633—no doubt under the influence of Laud—by Secretary Windebank, for the direction of Judges of assize, urged obedience to the proclamation for the better observance of Lent and fish-days, because their neglect had become very common, probably in many cases on Puritan grounds.^[18] Monastic tendencies, about the same time, appeared in the famous Monastery at Gidding, in Huntingdonshire. While the devotions of the pious family there excited the admiration of Isaak Walton,—in whose account of it is reflected the more spiritual phase of the proceeding,—the superstitions, mingled with better things, provoked the severest animadversions of Puritan contemporaries,^[19] who wondered at nothing more than, that in a settled Church government, Bishops could permit "such a foundation so nearly complying with Popery." In connection with this may be mentioned the preface to the new statutes for the University of Oxford, published in Convocation, which "disparaged King Edward's times and government, declaring, that the discipline of the University was then discomposed and troubled by that King's injunctions, and the flattering novelty of the age, and that it did revive and flourish again in Queen Mary's days, under the government of Cardinal Pole, when by the much-to-be-desired felicity of those times, an inbred candour supplied the defect of statutes."^[20]

In the sixteenth century, and far into the seventeenth, intolerance, inherited from former ages, infected more or less all religious parties. Few saw civil liberty to be a social right, which justice claimed for the whole community, whatever might be the ecclesiastical opinions of individuals. This position of affairs shewed how little dependent is spiritual despotism

upon any particular theological system, and how it can graft itself upon one theory as well as upon another; for, while under Elizabeth persecution allied itself to Calvinism, in the first two of the Stuart reigns, Arminianism—at that time in Holland wedded to liberty of conscience—appeared in England embracing a form of merciless oppression. But, though without special theological affinities, intolerance certainly shewed kinship to certain forms of ecclesiastical rule. It fondly clung to prelacy before the Civil War. The relation in which subsequently it appeared to other Church organizations will be disclosed hereafter. Whitgift and Bancroft, inheriting intolerance from their predecessors, persecuted Nonconformists. They silenced and deprived many; whilst others they excommunicated and cast into prison. The Anglican Canon Law—which must be distinguished from the Papal Canon Law^[21]—remained a formidable engine of tyranny in the hands of those disposed to use it for that purpose. That law, of course, claimed to be not law for Episcopalians alone but for the people at large, who were treated altogether as subject to Episcopal rule; and neither creed nor worship inconsistent with canonical regulations could be tolerated for a moment. Only one Church was allowed in England; and for those who denied its apostolicity, objected to its government, disapproved of its rites and observances, or affirmed other congregations to be lawful churches, there remained the penalty of excommunication, with all its alarming consequences.^[22]

Anglicanism allowed no exercise of private judgment, but required everybody to submit to the same standard of doctrine, worship, and discipline. Moderate Puritans were to be broken in, and Nonconformists "harried out of the land." It might seem a trifle that people should be fined for not attending parish churches; but imprisonment and exile for nonconformity struck most Englishmen as a stretch of injustice perfectly intolerable.^[23]

Ecclesiastical Courts, not only consistory and commissary, but branching out into numerous forms, carried on actively and continuously the administration of canon law after the Reformation. Discipline was, perhaps, not much less maintained after that event than before.^[24] Such activity continued throughout the reigns of Elizabeth, James, and Charles; and so late as 1636 the Archdeacon of Colchester held forty-two sessions at four different towns during that single year. The object of the canon law and the

ecclesiastical courts being *pro morum correctione et salute animæ*, immoralities such as the common law did not punish as crimes, came within the range of their authority, together with all sorts of offences against religion and the Church. The idea was to treat the inhabitants of a parish as members of the Anglican Church, and to exercise a vigilant and universal discipline by punishing them for vice, heresy, and schism. Intemperance and incontinence are offences very frequently noticed in the records of Archidiaconal proceedings in the latter part of the sixteenth and the early part of the seventeenth centuries, suggesting a very unfavourable idea of public morals at that time; and a long catalogue also appears of charges touching all kinds of misconduct. Some appear very strange,—such as hanging up linen in a church to dry; a woman coming to worship in man's apparel; a girl sitting in the same pew with her mother, and not at the pew door, to the great offence of many reverent women; and matrons being churched without wearing veils. Others relate to profaning Sundays and holidays, setting up maypoles in church time, and disturbing and even reviling the parish ministers. Certain of them point distinctly to Puritan and Nonconformist behaviour, such as refusing to stand and bow when the creed was repeated, and to kneel at particular parts of divine service. Brownists are specifically mentioned, and extreme anti-sacramental opinions are described.

The method of proceeding *ex officio* was by the examination of the accused on his oath, that he might so convict himself if guilty, and if innocent, justify himself by compurgation^[25]—a method, it may be observed, totally opposed to the criminal jurisprudence of our common law, and one which became increasingly offensive in proportion to the increase of national attachment to the English Constitution on the side of popular freedom. Though, as we look at the moral purpose of these institutions, and the cognizance they took of many vicious and criminal irregularities of conduct which did not come under the notice of civil magistrates, we are quite disposed to do justice to the motives in which the courts originated, and to admit that in the rude life of the middle ages they might possess some advantages—we must see, looking at them altogether, that they became the ready instruments of intolerance when great differences in religious opinion had appeared; that they were certain, in Puritan esteem, to attach odium to the old system of Church discipline; and that they were completely out of harmony with the modern spirit of Protestant civilization.

In the Tudor and Stuart days, there also existed two tribunals of a character which it is difficult in the nineteenth century to understand. The High Commission Court was doubtless intended to promote and consolidate the Reformation on Anglo-Catholic principles, by exterminating Popery on the one hand, and checking Puritanism on the other. According to the terms of the Act of Uniformity, Elizabeth and her successors had power given them "to visit, reform, redress, order, correct and amend all such errors, heresies, schisms, abuses, contempts, offences and enormities whatsoever, which, by any manner of spiritual authority or jurisdiction, ought, or may be lawfully reformed, ordered, redressed, corrected, restrained or amended." Her Majesty became invested with authority to correct such heresies of the clergy as had been adjudged to be so by the authority of the canonical Scripture, or by the first four general councils, or any of them, or by any other general council, or by the High Court of Parliament, with the assent of the clergy in convocation.^[26] Many Commissions were successively issued by the Queen.^[27] Neal gives an abstract of that one which was issued in the month of December, 1583. After reciting the Act of Supremacy, the Act of Uniformity, the Act for the assurance of the Queen's powers over all states, and the Act for reforming certain disorders touching ministers of the Church, her Majesty named forty-four commissioners, of whom twelve were bishops, some were privy councillors, lawyers, and officers of state, the rest deans, archdeacons, and civilians. They were authorized to enquire respecting heretical opinions, schisms, absence from church, seditious books, contempts, conspiracies, false rumours, and slanderous words, besides offences, such as adultery, punishable by ecclesiastical laws. In the first clause command is given to enquire, "as well by the oaths of twelve good and lawful men, as also by witnesses, and all *other means and ways you can devise*."^[28] With this power of enormous latitude, instituting enquiry over vague offences, was connected a power of punishment, qualified by the word "lawful," and by reference "to the power and authority limited and appointed by the laws, ordinances, and statutes of the realm." Liberty was given to examine suspected persons "on their corporal oath"—in fact, the *ex officio* oath.^[29] Any three of the members had authority to execute the commission.^[30]

The Court so constituted extended its range, and increased its activity, and pressed beyond the boundaries of statute law, so as to become, in the

reign of Charles the First, a means of arbitrary government intolerable to the country.

Records of the Court are still preserved in the State Paper Office,^[31] shewing the modes of proceeding, the charges of which the Commissioners took cognizance, and the punishments they pronounced upon the convicted. Counsel for office—counsel for defendants—appearance and oath to answer articles—appearance, and delivering in of certificate—orders for defendants to give in answers—motion for permission to put in additional articles—commissions decreed for taking answers and examining witnesses—commissions brought in and depositions of witnesses published—and orders for taxation of costs—are forms of expression and notices of proceeding very frequent in these old Books. Some of them conveyed, no doubt, terrible meanings to the parties accused. We meet also with "suppressions of motion," "agreements for subduction of articles," petitions to be admitted in "*formâ pauperis*," and reference of causes to the Dean of Arches. Collecting together heads of accusation, we find the following in the list—holding heretical opinions, contempt of ecclesiastical laws, seditious preaching, scandalous matter in sermons, using invective speeches unfit for the pulpit, nonconformity, publishing fanatical pamphlets, profane speeches, schism, blasphemy, raising new doctrines, preaching after deposition, and simoniacal contracts. Descending to minute particulars, we discover such items as these:—"locking the church door, and impounding the archdeacons, officials, and clergy," in the exercise of ecclesiastical jurisdiction; wearing hats in church; counting money on the communion-table; saying, "A ploughman was as good as a priest," and asking, "What good do bishops in Ireland?;" profane acts endangering parish edifices; praying that young Prince Charles might not be brought up in popery; and submission performed in a slight and contemptuous manner.^[32] Entries of fines and imprisonment frequently occur.

It should be stated that occasionally other religious offences are noticed in these volumes, such as possessing a Romish breviary, and refusing the oath of allegiance. Enquiries also appear, as to persons who secreted young ladies "going to the nunneries beyond seas." There are, too, monitions "to bring to the office popish stuff and books."^[33] But such instances are few compared with those relating to Puritans. Also now and then occur cases of flagrant clerical immorality, acts of violence, and of criminal behaviour.^[34]

But it was the persecution, the intolerance, the irritating control over so many persons and things, and the harsh treatment, and severe sentences of this absorbing jurisdiction, emulating as it did the worst ecclesiastical tribunals of the middle ages, and of Roman Catholic countries, that so roused the wrath of our forefathers against it.

It is very curious, after inspecting the records of the High Commission, to open Dr. Featley's *Clavis*, and there to find sermons, preached by him at Lambeth before the Commissioners, on such subjects as "The bruised reed and smoking flax," and "The still small voice,"—sermons filled with the mildest and gentlest sentiments. More curious, to light on other discourses in the same volume, bearing the very appropriate titles of "Pandora's box," and "The lamb turned into a lion." But for the knowledge we have of the preacher and of the contents of his discourses, we should suppose the former titles were ironical hits, and the latter outspoken truths. They are neither; but are chosen, it is plain, with perfect simplicity. ^[35]

The Star Chamber is commonly associated in the minds of Englishmen with the High Commission Court. Unfettered by the verdict of juries, not guided by statute law, and irresponsible to other tribunals, it claimed an indefinable jurisdiction over all sorts of misdemeanours—"holding for honourable that which pleased, and for just that which profited." Though not a constituted ecclesiastical court, like the High Commission, bishops as privy councillors sat amongst its judges, and it took cognizance of religious publications. Whilst the High Commission confined its penalties to deprivation, imprisonment, and fines, the favourite punishments of the Star Chamber were whipping, branding, cutting ears, and slitting noses. The barbarous treatment of Leighton, Prynne, Burton, and Bastwick, will shortly be noticed.

These two arbitrary courts, which, in spite of their difference, were almost invariably linked together in the thoughts of our countrymen, concentrated on themselves an amount of public indignation equal to the fury of the French against the Bastille; and at last, like that prison, they fell amidst the execrations of a people whose patience had been exhausted by such prolonged iniquities. ^[36]

Nor was it only the intolerance of the Church which exasperated the people, its secular intermeddling did so likewise. Before the Reformation

Churchmen had held the highest offices in the State, indeed, had controlled all civil affairs; and Laud was now imitating the Cardinals of an earlier age. But the English Reformation had shaken off from itself the civil power of the Church; laymen, not the clergy, now claimed to guide the helm. The Puritanism of the seventeenth century, and the civil war which grew out of it, were practical protests against the attempts of Charles, Strafford, and Laud to revive what the Reformation in this country had destroyed. The modern spirit of civilization was seen rebelling against the intrusion of the spiritual on the secular power. It was a stage in the great European conflict which ended in the French Revolution; it was an assault upon a system which has now expired everywhere except in the city of Rome.

As was only consistent, the party supporting ecclesiastical intolerance also supported civil despotism. Never since the English Constitution had grown up were the liberties of the people so threatened as during the earlier part of the seventeenth century. The two checks on the tyranny of the Crown, the aristocracy and the Church, had long been enfeebled—the aristocracy by the wars of the Roses; the Church by the loss of independence at the Reformation. The nobles of England had wasted their strength in the fifteenth century; the Church of England had prostrated herself before the throne in the sixteenth. Neither of them had now the power, any more than they had now the will, to defend popular freedom against the invasions of regal prerogative. It is true, that the same causes, which weakened them as the possible friends of the people, weakened them also as actual friends of the Sovereign. What they did for the Crown in the Civil Wars, was far less than they might have done at an earlier period: even as what remained in their power to accomplish on behalf of popular rights was far less. But the malign aspect of the Church, then the chief power next the throne, towards the nation at large, and the Commons in particular, was most manifest and most alarming at the epoch under consideration. Old English liberties indeed had never been extinguished. The spirit of English self-government asserted under the house of Lancaster, though seemingly held in abeyance in the times of the Tudors, so far from expiring, had come out with renewed youth in the days of the Stuarts, through the parliamentary career of those eminent statesmen who formed the vanguard of the Commonwealth army. But against the illustrious Sir John Eliot, with his noble compeers, High Church contemporaries stood in defiant hostility. That kings are the fountains of all power; that they reign "by the grace of

God," in the sense of divine right; that they are feudal lords—the soil their property, and the people their slaves—were doctrines upheld by sycophants of the Court, and endorsed and defended by doctors of the Church. Dr. Sibthorpe, a notorious zealot for passive obedience and non-resistance, monstrosly declared, "If princes command anything, which subjects may not perform, because it is against the laws of God, or of nature, or impossible; yet subjects are bound to undergo the punishment, without either resisting, or railing, or reviling; and so to yield a passive obedience where they cannot exhibit an active one. I know no other case, but one of those three wherein a subject may excuse himself with passive obedience, but in all other he is bound to active obedience."^[37] Another preacher of the same class, Dr. Manwaring, was brought before Parliament for maintaining, "That his Majesty is not bound to keep and observe the good laws and customs of this realm; and that his royal will and command in imposing loans, taxes, and other aids upon his people, without common consent in Parliament, doth so far bind the consciences of the subjects of this kingdom, that they cannot refuse the same without peril of eternal damnation."^[38]

The Church of the middle ages had commonly thrown its shield over subjects against the oppression of rulers: but in contrast with this, the Anglo-Catholic Church of the Stuart times stood in closest league with Government for purposes the most despotic. The tyranny of Buckingham in 1624, with his forced loans, became insupportable, and the obloquy of it all—alas for the Church of England!—fell largely upon its dignitaries, because favour had been strongly shown to the policy of that arrogant minister by such men as Sibthorpe and Manwaring. Strafford went beyond Charles in imperious despotism; and Strafford found in Archbishop Laud not only a helper in his "thorough" policy, but an example of even more violent measures, and a counsellor instigating him to still greater lengths.^[39]

Besides all this intolerance and oppression, it must be acknowledged that there was in the ministry of the Church of England a large amount of ungodliness and immorality. To believe that all the charges of clerical viciousness and criminality were true, would be to imbibe Puritan prejudice; whilst, on the other hand, to believe that all were false, would betray a strong tincture of High Church partiality; so much could not have been boldly affirmed, and generally believed, without a large substratum of fact. But more of this hereafter.

Rigid ceremonialism, desecration of the Sabbath, sympathy with Roman Catholicism, fondness for imitating popish practices, cruel intolerance, alliance with unconstitutional rule, and the immorality of clergymen, will serve to explain what gave such force to the antagonistic puritan feeling which surged up so fearfully in 1640. The Church had become thoroughly unpopular amongst the middle and lower classes in London and other large places; in short, with that portion of the people, which in the modern age of civilization, must and will carry the day. They did not then, with all their fondness for theological controversy, care so much for any abstract idea of Church polity as for the actual working of ecclesiastical machinery, and the character and conduct of ecclesiastical men before their eyes. It was not any Presbyterian or Independent theory, as opposed to the Episcopalian system of the Church of England, that swept the nation along its fiery path in the dread assault which levelled the Episcopal establishment; but it was the indignation aroused by corruption, immorality, and intolerance, which kindled the blazing war-torch destined to burn to the ground both temple and throne. Had the Church of England been at that time a liberal and purely Protestant Church, and its rulers wise, moderate, and charitable men; whatever might have been the influence of ecclesiastical dogmas, its fate must have been far different from what it actually became.

The person who carried Anglo-Catholicism to its greatest excess, and who, by other unpopular proceedings, did more than anybody else, to alienate from the State religion a large proportion of his fellow-countrymen, was William Laud. Ritualism ran riot under the rule of this famous prelate. Alienated from the theology of Augustine, but relishing the sacerdotalism of Chrysostom, he delighted in a gorgeous worship such as accorded with the Byzantine liturgy, and was penetrated with that reverence for the priesthood and the Eucharist which the last of the Greek orators, in his flights of rhetoric, did so much to foster. Whatever might be the extravagances in Byzantium, they were nearly, if not quite, paralleled when Archbishop Laud held unchecked sway. A church was consecrated by throwing dust or ashes in the air.^[40] The napkin covering the Eucharistic elements was carefully lifted up, reverently peeped under, and then solemnly let fall again: all which performances were accompanied by repeated lowly obeisances before the altar. This ceremony was quite as childish and far less picturesque than the dramatic doings in the Greek Church, when choristers

aped angels by fastening to their shoulders wings of gauze.^[41] Into cathedrals, churches, and chapels, were also introduced pictures, images, crucifixes, and candles, which, with the aid of surplices and copes,^[42] bowing, crossing, and genuflections, produced a spectacle which might be taken for a meagre imitation of the mass. Had not public opinion, which was beginning to be a mighty power, checked such proceedings, there can be no doubt they would speedily have reached such lengths, that an English parish church would have differed scarcely at all from a Roman Catholic chapel.^[43]

Laud's size was in the inverse ratio of his activity—for he had the name of "the little Archbishop," though his capacities for work were of gigantic magnitude. His influence extended everywhere, over everybody, and everything, small as well as great—like the trunk of an elephant, as well suited to pick up a pin as to tear down a tree. His articles of visitation traversed the widest variety of particulars, descending through all conceivable ecclesiastical and moral contingencies, down to the humblest details of village life. Churchwardens were asked, "Doth your minister preach standing, and with his hat off? Do the people cover their heads in the Church, during the time of divine service, unless it be in case of necessity, in which case they may wear a nightcap or coif?" These functionaries were also required to state, how many physicians, chirurgeons, or midwives there might be in the neighbourhood; how long they had used the office, and by what authority; and how they demeaned themselves, and of what skill they were accounted in their profession.^[44] A report of the state of his province he presented to the King year by year.^[45] Every bishopric passed under his review, and the substance of the information he obtained and digested, affords a bird's-eye view of the religious condition of each diocese, in the Archbishop's estimation. Oxford, Salisbury, Chichester, Hereford, Exeter, Ely, Peterborough, and Rochester, were in a tolerably fair condition, although furnishing matter here and there for some complaint. But in his own see of Canterbury there were many refractory persons, and divers Brownists and other separatists, especially about Ashford and Maidstone, who were doing harm, "not possible to be plucked up on the sudden."^[46] London occasioned divers complaints of nonconformity. Factious and malicious pamphlets were circulated, Puritans were insolent, and curates and lecturers were "convented." From Lincoln came complaints, that

parishioners wandered from church to church, and refused to come up to the altar rail at the holy communion; Buckingham and Bedfordshire also abounded in refractory people. Norwich had several factious men: Bridge and Ward are named, and it is said there was more of disorder in Ipswich and Yarmouth than in the cathedral city. Lecturers were abundant, and catechising neglected. In the diocese of Bath and Wells, lectures were put down in market towns, and afternoon sermons were changed into catechetical exercises. Popish recusants appeared fewer than before, and altogether the bishop had put things in marvellous order.

As Laud's eye—that ferret-like eye, which under its arched brow, looks with cunning vigilance from Vandyke's canvas—ran over his whole province, and his busy pen recorded what he learned, he sent to the Inns of Court—the benchers having betrayed Puritan tendencies—and insisted upon surplice and hood, and the whole service prescribed for the occasion being used in chapel before sermon. He claimed rights of ecclesiastical visitation in the two universities, and inspected cathedrals and churches, as to their improvements and repairs; condescending even to order the removal of certain seats employed for the wives of deans and prebendaries, and directing them to sit upon movable benches, or chairs.^[47]

English residents in Holland;^[48] chaplains of regiments amongst the Presbyterian Dutch; Protestant refugees in this country; and the ecclesiastical affairs of Scotland, all came under his vigilant notice, and within his tenacious grasp.^[49]

In his own diocese and province^[50] Laud's hand fell heavily on those beneath his sway. "All men," it is remarked, "are overawed, so that they dare not say their soul is their own." The clergy of his cathedral muttered their dissatisfaction. Reports circulated that they were "a little too bold with him;" and his remedy was, "If upon inquiry I do find it true, I shall not forget that nine of the twelve prebends are in the king's gift, and order the commission of my visitation; or alter it accordingly."^[51] Dean and prebendaries were soon humbled under such discipline.

In court and country, in Church and State, Laud, next to the Earl of Strafford, must be considered to have been the most powerful minister in England.^[52] Pledged to a thorough policy of arbitrary kingship, he helped in all things his royal master, and his able fellow-councillor. When Strafford

was in Ireland as Lord Lieutenant, the Archbishop was the great power at home behind the throne. "He is the man," said courtiers, when they would point out the most favourable medium for approaching royalty.^[53] His own power availed for the province of Canterbury; by the help of his archiepiscopal brother, Neil of York, it sufficed for all England. Such a man, so bigoted, so imperious, and so marvellously active, was sure to make many more foes than friends. He had also ways, altogether his own, of making enemies. As he himself tells us, he kept a ledger, in which he preserved a strict account of the theological and ecclesiastical bias of clergymen, for the guidance of his royal master in the distribution of patronage. O and P were the letters at the heads of two lists. On the *Orthodox* all favours were showered. From those favours all *Puritans* were excluded.^[54]

The Anglicanism of Laud was dear to Charles I. for two reasons. First, it harmonized with his own despotic principles. The King had been, ever since he assumed the crown, working out a problem in which the direst mischief was involved—whether it were not possible for an English sovereign, without casting away constitutional forms, to grasp at absolute dominion, to make the Commons a mere council for advice, or a Court to register decrees, rather than an integral branch of the Legislature; and, while conceding to them the office of filling the country's purse, to claim and exercise an independent power of managing the strings. He disliked parliaments, if they exercised their rights. "They are of the nature of cats," said he, "they ever grow curst with age, so that if you will have good of them, put them off handsomely when they come to any age, for young ones are ever most tractable."^[55] His remedy for troublesome parliaments was dissolution. He preferred ship money to legal taxation: Anglicanism, from its maintenance of the Divine right of Kings, favoured his views in this respect, and divines of that stamp were after his own heart. But there was a second reason why Charles was drawn towards Laud. It would be unjust to the King to represent him merely as a politician. Grave, cold, reserved and haughty—qualities indicated in the countenance which the pencil of Vandyke has made familiar to us all—he was also a man of sincere religious feeling; but that feeling appears in harmony with his natural character. Stately ceremonialism, court-like prelacy, priestly *hauteur*, and a frigid creed corresponded even more with the idiosyncrasy of the man than with

the prejudices of the monarch. From a youth he had shown a leaning towards the Roman Catholic form of worship, and this tendency had been nourished by the education received from his father. "I have fully instructed them," King James observed in a letter touching his sons, "so as their behaviour and service shall, I hope, prove decent, and agreeable to the purity of the primitive Church, and yet as near the Roman form as can lawfully be done, for it hath ever been my way to go with the Church of Rome *usque ad aras*." ^[56]

As we proceed in our review of parties, we feel the difficulty of defining the boundary between them. The majority of divines were thoroughly Anglican or thoroughly Puritan; yet a great many had only partial sympathies with the one or the other. Nor did they form a class of their own. In no sense were they party men, except so far as they were prepared to support episcopacy and defend the Common Prayer. Amongst these may be mentioned Dr. Jackson, sometime vicar of Newcastle, (afterwards Dean of Peterborough,) known in his own time as an exemplary parish priest, and very popular with the poor, relieving their wants "with a free heart, a bountiful hand, a comfortable speech, and a cheerful eye;" better known in our day as the author of a goodly row of theological works, including discourses on the Apostles' Creed. ^[57] He was a decided Arminian, and a rather High Churchman. Bishop Horne acknowledged a large debt to Dean Jackson, and Southey ranks him in the first class of English divines. ^[58] But his writings present strong attractions for those who have no High Church sympathies, because the reasonings and contemplations of such a man rise far above sectarian levels, and are suited to enrich and edify the whole Church of God. Dr. Christopher Sutton, prebendary of Westminster, the learned author of two admirable practical treatises, "Learn to Live" and "Learn to Die,"—in which patristic taste and a special regard for the Greek Fathers appear in connection with a highly devout spirit—is another theologian of the same period and the same class, in whom, with some Anglican elements, others of a Puritan cast are combined. The well-known Bishop Hall is a still more striking example of the Puritan divine united with the Anglican ecclesiastic.

If Puritanism cared for antiquity it would be possible to make out for it a lineage extending back to the first ages of Christendom. As soon as the Church betrayed symptoms of backsliding, persons arose, jealous for her

honour, who recalled her erring children to paths of pristine purity. When, boasting of numbers, the many who were predominant relaxed severity of discipline, and conformed to the world in various ways—a few zealous Novations and Donatists set up a standard of reform. In some cases they proceeded at the expense of charity, and in a narrow spirit; but they aimed ultimately at restoring what they deemed primitive communion. At a later period the name, and some of the ecclesiastical sympathies of the Puritans, were anticipated by the *Cathari*: and in the Lollards and Wickliffites of England, we may trace the spiritual ancestors of the men who revolutionized the Church in the seventeenth century. Several of our Reformers went beyond their brethren in ideas of reform; and in the reign of Elizabeth—particularly amongst those who returned from the continent, where they had been brought into close fellowship with Zwinglians and other advanced Protestants—there were persons holding opinions substantially the same with those adopted by Puritans under Charles I.; and those who had no doctrinal tenets or ecclesiastical preferences to separate them from their contemporaries, but had become somewhat distinguished by objections to certain forms, and more so by superior religiousness and spirituality of life, were, on that account, reproached by laxer men as bigoted precisians. As was natural, this treatment drove such persons into the arms of others who had embraced distinctive views of polity, between which and the strict habits of these new allies there existed obvious harmony. The anti-hierarchical temper of Puritanism, and its presumed favourableness to the broad principles and popular spirit of the British constitution secured for it, on that side, countenance from such as were far from adopting its religious principles. Leicester and Walsingham looked on it with some favour as a counterpoise to prelatical arrogance, if not for other reasons. Burleigh shielded the persecuted from the violence of the High Commission. Raleigh defended the cause in Parliament. Connection with these politicians gave political significance to a movement originating entirely in spiritual impulses.

Whenever any vigorous revival of religious life occurs, a tendency to "irregular proceedings" will be sure to appear in the movement party. Accordingly, one peculiarity of the early Protestants is seen in a love of meeting together for Christian culture and edification, apart from the formalities of established worship. The proceedings of these good people were such as would be now pronounced intensely Low Church. One

neighbour conferred with another, and "did win and turn his mind with persuasive talk." "To see their travels," exclaimed our old martyrologist, "their earnest seeking, their burning zeal, their readings, their watchings, their sweet assemblies, their love and concord, their godly living, their faithful marrying with the faithful, may make us now, in these days of our free profession, to blush for shame."

Somewhat resembling those meetings in the commencement of Henry VIII.'s reign were the prophesyings in the time of Elizabeth. A number of junior divines, present on these occasions, delivered in the order of seniority discourses on a portion of scripture appointed for the day, and then an elder brother, of learning, experience, and influence, reviewed what had been advanced, and terminated the engagement by prayer. Some of Elizabeth's bishops favourably regarded this practice as good discipline for preachers, and as affording edification to the people. Grindal incurred the royal displeasure for not putting down these prophesyings, for her Majesty would tolerate no innovations in the Established Church. Nor did she look with favour on popular preaching at all. Theological questions she reserved to be investigated by her learned divines. Only moral duties, the most elementary truths of Christianity, and the worship of God, belonged in her opinion to the people in general. "The liberty of prophesying," indeed, in those days so much resembled the liberty of the press—preachers so often spoke as the tribunes of the people, bringing divers public questions within the range of pulpit criticism, that the Queen had political as well as religious objections to the freedom of such orators.^[59] To check Puritan tendencies, uniformity was pressed with rigour; The Queen assumed the initiative in the proceeding. Pilkington, Bishop of Durham, disliked the cap and surplice. Grindal, Bishop of London, was reluctant to force the prescribed habits. Even Archbishop Parker was slow in the business. At length the Queen's zeal carried all before it; Parker and his commission set to work, and shewed no want of earnestness. Aylmer, when he succeeded Grindal in the see of London, though once a friend to the Puritans, made up for his predecessor's lukewarmness by a rigorous suppression of all Nonconformity;^[60] and Whitgift, tolerant in his Cambridge days, showed himself a stern persecutor when he became Primate, and Archbishop Bancroft went beyond them all. The minutest ceremonies were enforced; clerical garments, odious because of their Popish fashion, were imposed.^[61]

Such things were held by one party to be in themselves indifferent, and by the other party to involve a grave dereliction of Protestant principle. Yet the former imposed these things upon the latter. What was only excused by the imposer as an affair in itself of little moment, except for the sake of uniformity, was condemned by victims of the imposition as a perilous concession to superstitious ceremonialism. The cause of conscience on the one side came into collision with the cause of order on the other; part of the zeal manifested against Puritanism no doubt proceeded from a desire to gratify the Queen and prevent her from favouring Popery, and therefore originated in Protestant policy, but the policy was very short-sighted, and its injustice was equalled by its folly. Able, faithful, and learned ministers were silenced. In London especially, where Puritan ministers were numerous, multitudes of quiet steady citizens, with no love for schism, were alienated from the Established Church, and a long account of persecution began to be kept, which, when produced at the day of reckoning, had to be paid in the endurance of similar sufferings.

The strong leaven of Puritanism in the reign of Elizabeth fermented in different ways. It produced the memorable controversies between Cartwright and Whitgift, and between Travers and Hooker: curiously enough, in both cases, the combatants were unequally matched; Cartwright being a much abler man than Whitgift, and Hooker vastly surpassing Travers. In the first of these polemical encounters, the Puritan maintained the exclusive authority of Scripture against the Anglican, who appealed to the Fathers: and in his opposition to prelacy, the Puritan developed views of Church government, hereafter to be noticed, which the Presbyterians of the seventeenth century for a while, and in a measure, succeeded in practically carrying out. We see the battle between Travers and Hooker fought on a wider field, including points of doctrine as well as matters of polity. The Puritan contended for the Scriptural authority of Church government, while the Churchman, looking more to the spirit than the letter of God's law and holy order, sought to lay the corner-stones of ecclesiastical polity in general principles. Beyond this difference, as preachers at the Temple where Travers was Lecturer and Hooker was Master, they presented rather dissimilar phases of theological doctrine; for it was said "the forenoon sermon spoke Canterbury, and the afternoon sermon Geneva." The preachers could not agree upon Predestination.^[62] They had not precisely the same idea of Justification by faith. And further still—and in an age

when the Popish controversy excited such deep feeling, the difference was of great consequence,—Hooker maintained, that the Church of Rome, though not a pure and perfect Church, was a true one, so far that such as live and die in its communion, upon repenting of their sins of ignorance, may be saved; but Travers said, that the Church of Rome is no true Church at all, so that such as live and die therein, holding justification in part by works, cannot, according to the Scriptures, be regarded as saved. Whatever now may be thought of this latter teaching, most Churchmen then would agree with Hooker, most Puritans with Travers.

Puritanism opened its lips in parliament. An effort was made in 1584 to curtail the power of bishops, to supersede or control canon law by common law, to give the people a share in the election of ministers, and to erect an eldership which, conjointly with the clergy, should manage the spiritual affairs of a parish. Attempts also were made at Sabbath reform; but the whole of this Puritanical movement was stopped by the Queen. Whitgift wrote to his royal mistress, condemning the interference of Parliament with ecclesiastical matters, and advising that whatever alterations were made in the Church should come in form of canon law from the clergy by *her Majesty's authority*. In this business we recognize an anticipation of the subsequent relative position of parties. Anglicanism stood on the side of prerogatives claimed by the Crown, Puritanism on the side of power claimed by Parliament.^[63]

With the Anglican change of doctrine came a change in Puritan controversy. Under Elizabeth, both parties in the Church of England were Calvinistic in their creed. When High Churchmen in the reign of James I. adopted Arminian views, this naturally excited the opposition of Low Churchmen, and the battle which had before been waged against caps and canons assumed a character of higher importance, and discussions were carried on involving creeds.

The Puritans were the champions of predestination, and *identified* it with the doctrine of salvation by grace. Whether right or wrong in this respect, it is necessary that such an identification in their minds should be remembered, for the just appreciation of their character and conduct. They did not consider themselves as contending for mere abstractions, but for truths of the highest practical moment to the interests of mankind: and certainly many of their opponents in their anti-Calvinistic zeal shewed little

sympathy with Evangelical sentiments, and contented themselves too generally with a hard, dry, Nicene orthodoxy, coupled with strong ritualistic predilections. There may certainly be found not a little of powerful moral teaching, like Chrysostom's, amongst the Anglican divines of that day, and a firm inculcation of such views as he held on the person of Christ; but there is a lack, as in his case, of that teaching which exalts the atoning work of the Redeemer, and the regenerating and sanctifying agency of the Holy Spirit. The Calvinistic decisions of the Synod of Dort—whither King James sent English representatives—did not at all allay the furiousness of the controversy: and if, in consequence of the Court instructions of 1622, "that no preacher under a bishop or dean should meddle with the dispute,"^[64] the flame here and there might smoulder, assuredly the fire was by no means extinguished. It may be added, that many excellent men in the Church of England, who were far from embracing the theory of government espoused by Cartwright and Travers, and who considered as trifles the habits and ceremonies against which the earlier Puritans so earnestly protested, nevertheless joined with all their heart in opposing the doctrinal tenets of the Anglicans. Hence arose the distinction between doctrinal and ecclesiastical Puritans. To Puritans of both kinds James I. had a strong antipathy. Though at one time a sturdy Calvinist, he abandoned the system when it became a Puritan badge, but his most intense dislike fell on the ecclesiastical peculiarities of the party. When once he had come across the border, he identified Presbyterianism with republicanism, declaring that a kirk and a monarchy could no more agree than God and the Devil; and with a coarse insolence and vulgar spite, far more intolerable to his subjects than the temper of Elizabeth in her most imperious proceedings—for the two sovereigns were of totally different natures—the Scotch King of England declared, "I will harry the Puritans out of the land, or worse."

We have already noticed the prayer-meetings and the prophesyings of the sixteenth century. Puritan lectureships, proceeding from the same spirit, were very much in advance of the other associations. They sprung from a desire to promote spiritual edification by means extraneous to the old parochial system, and in fact they practically anticipated the popular rights of election, and the principles of ecclesiastical voluntaryism taught at the present day. The lectureships depended on the free contributions of the people, who exercised the privilege of choosing as their lecturer the man whose doctrines and manner of life they approved. As parochial duties did

not attach to the office, the lecturers were relieved of certain ceremonies, and, consequently, such ministers as felt Puritan scruples preferred to minister in this more limited capacity. The origin of the institution is obscure. It was first legally recognized by the Act of Uniformity at the Restoration; but a Friday evening lecture existed in the parish of St. Michael Royal as early as the year 1589. Whatever might be the exact nature of the beginning, the extensive progress of lectureships is apparent in the seventeenth century. The lecturers stood somewhat in the same relation to parish priests as the friars of the middle ages to the secular clergy, and, like them, they exercised large popular influence; like them too, they received large popular contributions; and also like them, in some cases, they were found in painful rivalry and collision with parochial incumbents.

Another form of Puritan activity appeared in the institution of a body of trustees for the purchase of impropriations, with a view to secure as many livings as possible for ministers of Puritan opinions—a proceeding closely imitated in recent times by religious laymen, who buy advowsons for Evangelical clergymen. Fuller, who, in his own droll style, tells us of the twelve trustees, that four were "divines to persuade men's consciences; four lawyers to draw all conveyances; and four citizens who commanded rich coffers"—goes on to observe what incredibly large sums were advanced in a short time, and that it was verily believed, "if not obstructed in their endeavours, within fifty years, rather purchases than money would have been wanting."[\[65\]](#)

Puritans disliked ceremonies. Earnest as to the spirit of worship, they cared little—often not enough—about forms. These men did not study, and could but imperfectly understand, the æsthetics of religion—as some people now call that which relates to seemly and expressive modes of divine service, dictated by propriety, common sense, and good taste. But beyond this, and chiefly, they had conscientious scruples respecting observances, to which, no doubt, with equal conscientiousness, the rulers of the Church attached importance. If conscience, on the one side, had been content to practice and not impose; conscience, on the other side, would have been saved the pain of resistance, if not the trouble of protest. The two parties were ever coming into dogged antagonism—prelates, zealous for uniformity, and Puritans as zealous against it. The latter, if ministers, would not wear the surplice, or read the whole liturgy; if people, they would not

recite the creed after the minister, nor repeat the responses in the Litany and after the Ten Commandments; they would sit when they ought to stand, or stand when they ought to kneel, or remain erect when they ought to bow; ministers would preach when they were required to catechise; people wanted lecturers when they had only rectors or curates. Rather than yield in these matters they would suffer anything. Their oppressors called them "proud," "self-conceited," "malapert," "puffed up by popular vogue," "indiscreet," "hollow pillars of Puritanism."^[66] They retorted that Popery was overflowing the land, and they prayed that the Spirit of the Lord would lift up a standard against it.

To repress these disorders, articles of visitation were drawn up more carefully than ever, with an increase of minuteness and stringency; and these were sent to churchwardens and sidesmen. But the power of spiritual courts, and episcopal and archidiaconal authority were set at nought by Puritan Protestants. It was asserted by some of the stiffer sort that bishops have no right to hold visitations without express commission under the great seal, or to tender articles unless made by Convocation and ratified by Parliament. People were advised to keep the visitation articles "for waste paper, or to stop mustard-pots." Citations to spiritual courts should be disregarded, it was said, unless the courts were held by royal patent and the processes were in the King's name. "Depart without more ado," advised these hasty disposers of ecclesiastical law; "if they excommunicate you it is void—you may go to Church notwithstanding. If all subjects will take this course, they will soon shake off the prelates' tyranny and yoke of bondage, under which they groan through their own defaults and cowardice."^[67]

Such was the spirit shown by some; but in many cases the ecclesiastical powers could not be so trifled with, and Puritans suffered fines and imprisonment. Rather than endure this injustice many preferred exile; some retired to Holland; others to the shores of New England. Six-score passengers, it was reported, were going out in two ships, and six hundred more were prepared to follow. Such swarms of emigrants alarmed their neighbours, who complained of the decrease of the king's people, the overthrow of trade, and the augmented number of those who were disaffected towards episcopacy.^[68] But the drain went on, the Puritans saying, "The sun of heaven doth shine as comfortably in other places; the sun of righteousness much brighter; better to go and dwell in Goshen, find

it where we can, than tarry in the midst of such an Egyptian darkness as is falling on this land."^[69] This was in the spirit of Dante, who, when an exile from his beloved home on the Arno, asked, "Shall I not everywhere behold the light of the sun and of the stars?—Shall I not everywhere under Heaven be able to enjoy the most delightful truths?"

Baxter has embodied the sentiment in one of his hymns:—

"All countries are my Father's lands,
Thy sun, Thy love doth shine on all;
We may in all lift up pure hands,
And with acceptance on Thee call.

"No walls, nor bars, can keep Thee out,
None can confine a holy soul;
The street of heaven it walks about,
None can its liberty control."

Such men were not likely to be subdued by persecution; they had caught a spirit which all the violence in the world could not crush; and the only results of that violence were the increase of their own constancy, surrounded by the honours of spiritual heroism, and the infamy which will for ever rest on the memory of their cruel oppressors.

It must not be supposed that their cause was unpatronized by men of influence, or their case unheard in the halls of Parliament. They had friends amongst the noble; and patriotic tongues were eloquent on their behalf in the House of Commons. Though for a while protest did not avail against their persecution, in the end it bore for the persecutors bitter fruit. It made way for the exposure and chastisement of their guilt, and was neither forgotten nor found to be ineffective, when, in the dispensations of a righteous Providence, a day of retribution came.

Puritanism was a reaction against Anglicanism. It was an assertion of the right of private judgment against Church decisions, of the exclusive authority of Scripture against tradition, and of the simplicity of worship against elaborate ceremonialism. The intense horror of Popery felt by the Puritans was deepened by the papistic practices of the Anglicans. The strict observance of the Sabbath was made still more strict by the publication of the "Book of Sports," and by the practical depreciation of the Lord's day through the immense importance attached to Church festivals. The

defection of the High Church party from the Evangelical creed, and still more from the evangelical spirit of the Reformers, riveted closely the attachment of the Puritans to the articles and homilies, as distinguished from the liturgy and rubric; and made them more full and earnest in exhibiting the freedom of salvation through the atonement of Jesus Christ, and the new birth of the Spirit of God. Also the working out of Arminian principles in unevangelical ways drove the Puritans into sharper and more rigid forms of Calvinistic speculation. But, happily for the fame of the latter, they were led, by the persecution they suffered, to connect themselves with the friends of political liberty; and thus to share in the honour belonging to the noble band of patriots, who, not without some mistakes but with a wisdom and heroism—which it would be idle to question and unthankful to forget—secured for us those national privileges which distinguish Englishmen from the rest of Europe.

Taking Andrewes and Donne as exponents of Anglican theology, the reader may take Bolton and Sibbs as representatives of Puritan teaching. Their works were exceedingly popular with the Evangelicals of Charles I.'s reign. In rough leather binding they might have been seen on the humble library shelf of the yeoman's house, or in his hands well thumbed, as he sat in his window-seat or walked in his little garden. "The Four Last Things" led many to prepare for the future life; and "The Bruised Reed" became honoured as the chief means of Richard Baxter's conversion. The tone of piety in these men partook of a glow and ardour which made their spiritual life, at times, appear like a rapture, and rendered their death "a perfect euthanasia." "By the wonderful mercies of God," said Bolton, "I am as full of comfort as my heart can hold, and feel nothing in my soul but Christ, with whom I heartily desire to be." Asked by a friend in his last moments on a sharp December day, "Do you feel much pain?" "Truly no," he replied, "the greatest pain I feel is your cold hand." If, to use a figure of Coleridge, the Cross shines dimly in certain Anglican authors, that Cross is all-radiant in Puritan theology. If, in the one case, the cloudy pillar hovers in the neighbourhood of the promised land without entering it, in the other, it conducts those who follow its guidance straight into a land flowing with milk and honey.

Let it not be supposed that the doctrinal Puritans in Stuart times were perpetually preaching, or writing on doctrinal subjects; or that they had the

least sympathy with the sectaries. Thomas Adams is an eminent doctrinal Puritan of that age, but no sermons can be more eminently practical than his; they are the furthest removed from Antinomian tendencies. He is ever combating the vices around him, and insisting upon a solid scriptural morality; whilst his allusions to Brownists are caustic enough to have satisfied, in that respect, the taste of the most decided Anglican.

Puritanism was not so much a creed, or a code, as a life. Though a reaction, the movement was no superficial phenomenon thrown up by the chafing together of obstinate minds on opposite sides. The causes were some of them ancient, and all of them deep. It is possible even that peculiarities of race and blood might have somewhat to do with the strong sympathies of the middle and lower classes, in a simple and unostentatious kind of religious worship. The plain and sturdy nature of the Anglo-Saxon was still pure, in a multitude of cases, from Norman admixture in those ranks of society where Puritanism most prevailed; and the Anglo-Saxon had ever shown himself unfriendly to that ecclesiastical pomp of architecture and glittering ritual which delighted the Norman. Traditional opinions and sentiments, opposed to the spirit of Romanism, had been handed down through the middle ages, from one generation to another of the English commonalty in their homesteads and cottages; and, probably, as those opinions and sentiments had contributed to the outbursts of Lollardism, and helped on the cause of the Reformation, so also they ministered to the later development of principles, proceeding further in the same direction. Beyond all doubt, the Puritan under James was the religious son and heir of the reformer under Elizabeth; he inherited, and expressed more boldly and more truly, his father's spirit. Puritanism came only as the second stage in a progress of which the Reformation was the first. Such an impulse as Protestantism could not be resisted—set, as it was from the beginning, decidedly in the direction of change beyond what the compromise under the Tudors allowed. The pent-up waters of Protestantism found a vent through Puritanism. Besides, the persecutions under Mary rendered Rome more hateful to Englishmen during the last half of the sixteenth century than during the first; the children who heard of the Smithfield fires were more exasperated even than the parents who saw them, and they hated with a bitter hatred everything in the Church which, in their opinion, pointed Romewards. The Puritan reaction against Popery is to be regarded as also aided by its alliance with the reactions, moral and political, against

despotism; freedom appeared to the Puritan not merely as something expedient, and to be desired for temporal ends, but as a heaven-born right, a gift of God, which it was man's duty to claim and assert, in the face of earth and hell: and thus kindred forces bore toward the same point. Puritanism, moreover, presented a strong attraction to religious minds of a certain class. Multitudes were sinners of a coarse type, and wanted something infinitely stronger than forms, ceremonies, orthodox abstractions, and moral advice to put things right between their souls and God, and to give them holiness and peace. The Puritan exhibition of the love of God in Christ, of the wonders of redemption, and of the abounding mercy of Heaven through the Cross for the chief of sinners, supplied just what such persons required. Nor to these alone, but to numbers beside, not coarse-minded transgressors, the full, clear, and unmixed manifestation of the Gospel plan of saving the lost came as the most blessed and welcome of messages. And finally, in enumerating the causes of Puritanism, devout minds, at all in sympathy with it, will assuredly include that mighty wind which "bloweth where it listeth."

Being in some respects a reaction, I may venture to observe, it had in it what all reactions have—much onesidedness. It betrayed narrow views of many subjects, straining at trifles, magnifying unimportant points, and not seeing that the avoidance of superstition in one quarter is no security against being overtaken by it in another. There also often occurred a want of charity in judging other people, and those who did not adopt the Puritan type were in danger of being put down as publicans and sinners. Puritans were also prone to use irritating language to their opponents, and shewed at times little of that meekness and gentleness, the want of which they bitterly condemned in others.^[70] They were intolerant,—with the exception of a few separatists,—and cannot be regarded as having understood the principles of religious liberty. They asserted freedom on their own behalf, but if they could have had the power, they would have imposed their own peculiarities on all their fellow-countrymen. They were too apt to be rigid and precise in their methods of theology, and to take "tithe of mint, anise, and cummin," though not so as to be unmindful of "the weightier matters of the law." Their scruples as to liturgical forms were carried to excess, and they evinced a want of that kind of taste which marked the Anglican churchman by excluding, as Jeremy Taylor says, "the solemn melody of the organ, and the raptures of warbling and sweet voices out of cathedral

choirs."^[71] And finally, they did not sufficiently recognize the need of providing innocent and healthy recreations for the people. Man was regarded by them as a creature made to work and worship, but hardly to play. Some Anglicans were ascetic, but they were gleesome at times, and conceded, if they did not enjoin, rather uproarious amusement in connection with their festivals. They had their fast-days and lenten seasons, but they had also the merry feasts of Christmas and Easter, Whitsuntide and Michaelmas. They went daily to church, were fond of the Prayer Book and oratory, but they had no objection to revels, masques, May-poles, and village games. These sudden transitions from what was grave to what was gay, and this mixing up of things sacred with things trifling, had a hurtful effect, and the religion thus fostered closely approached that of France and Italy. Hence the Puritans rushed to the extreme of putting down many manly sports, and discouraging national pastimes, which, purified from immorality, were adapted to promote national vigour, cheerfulness, and good fellowship. While, however, they abolished church festivals they appointed holidays of another kind, and had relaxations of their own, hereafter to be recounted. Yet the restraints they placed upon society in the day of their power were such, perhaps, as more than any thing else tended to alienate from them the sympathies of a large portion of their fellow-countrymen. The broken May-pole and deserted village green had no small share in bringing about some of the worst resentments of the Restoration.

Blind homage is no honour. To acknowledge the defects of Puritanism gives all the more force to an exhibition of its excellencies. There clung around it the imperfections of humanity, but it had in it a germ of lasting life, a divine element of grace and power.



CHAPTER I.

We meet with statements, on the authority of Lord Clarendon, to the effect that the members of the Long Parliament "were almost to a man for episcopal government," and "had no mind to make any considerable alteration in Church or State."^[72] On the other hand, we are told that at the beginning, "the party in favour of presbyterian government was very strong in the House of Commons, and that they were disposed to be contented with no less than the extirpation of bishops."^[73] Neither statement conveys a correct idea of this remarkable assembly.

Let us enter St. Stephen's chapel after the ceremony described in our Introduction, and see for ourselves.

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Dressed mostly in short cloaks, and wearing high-crowned hats, grave-looking men were seated on either side the speaker's chair, which was occupied by William Lenthall, a person of dignified aspect, arrayed in official robes, as represented by the picture in the National Portrait Gallery. Behind the chair were the Royal arms, and above it was the grand Gothic window, rendered familiar to us by old quaint woodcuts. The mace lay on the table by which the clerks of the House sat, busy with books and papers; and it may be stated, once for all, that the forms of the House were rigidly observed, during the memorable war of words through which this history will conduct the reader.

Denzil Holles, younger son of John, first Earl of Clare, sat for Dorchester. Foremost amongst those afterwards known as Presbyterian leaders, his influence in part was owing to his rank, and early court associations—for he had been on terms of intimacy with the King—but still more his power proceeded from the firm and somewhat fiery decision of his views, as well as from a reputation for integrity and honour, which raised him above the suspicion of self-interest or of factious animosity. Even in the days of James, he had resisted the encroachments of prerogative; and, in the reign of Charles, he had, through his adherence to the same course, been not only mulcted in a large fine, but imprisoned during the Royal pleasure.^[74]

Glynne, Recorder of London, and a Member for the City, was also ultimately a decided Presbyterian; and the same may be said of Maynard, who represented the borough of Totness. In the same class may be included Sir Benjamin Rudyard, member for Wilton, and Surveyor of His Majesty's Court of Wards and Liveries, an accomplished gentleman, "an elegant scholar," and a frequent speaker. In earlier parliaments he had hotly debated religious questions, though he was conspicuous for loyal protestations as sincere as they were fervid. At first he advocated some qualified form of episcopal superintendence, but, from the opening of the Long Parliament, he condemned existing prelacy, and thus prepared himself for adopting presbyterian tenets.

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All these, and others less known, were from the first not only doctrinal but ecclesiastical Puritans, and were inspired by an intense detestation of Popery, and of everything which they believed paved the way to it. Beyond them, we find another group of men further advanced in the path of Church politics.

Few have been more unfairly represented than Sir Harry Vane the younger, member for Hull. Though son of the Comptroller of His Majesty's household, and brought up at Court, he was, when a youth, reported to the King as "grown into dislike of the discipline and ceremonies of the Church of England." Not long after this, it was stated in a letter, that he had left his father, (old Sir Harry Vane,) his mother, and his country, and that fortune which his father would have left him, and for conscience' sake was gone to New England.^[75] There he became Governor of Massachusetts, and, in that capacity, carried out the principles of religious toleration with a consistency and an equity so unique, as to offend many of the colonists, who, while advocates of religious freedom, persecuted, through mistaken fears, a sincerely religious woman, only because she was obstinate and fanatical. Returned to England, young Vane became not only member of the Short Parliament, but received knighthood from Charles I., and joined Sir W. Russel in the Treasurership of the Navy—a proceeding which indicated at the time something of a conciliatory disposition on both sides. With a philosophical temperament of the imaginative cast, and with strong religious tendencies in a mystical

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direction; smitten also with the charms of Plato's republic, and longing for the realization of his ideal within the shores of England, Vane seemed to many of his sober-minded contemporaries an enthusiast and a visionary; yet it would be difficult to disprove the testimony of Ludlow, that "he was capable of managing great affairs—possessing, in the highest perfection, a quick and ready apprehension, a strong and tenacious memory, a profound and penetrating judgment, a just and noble eloquence, with an easy and graceful manner of speaking. To these were added a singular zeal and affection for the good of the Commonwealth, and a resolution and courage not to be shaken or diverted from the public service."^[76] Probably no man, at the beginning of the Long Parliament, so thoroughly grasped or could so well advocate the principles of religious liberty as Sir Harry Vane. There he sat in old St. Stephen's, with a refined expression of countenance, most pleasant and prepossessing; a person, says Clarendon, "of unusual aspect, which made men think there was somewhat in him of extraordinary."^[77]

Nathaniel Fiennes, Lord Say and Sele's son, who represented Banbury, also held rank in the vanguard of religious liberty. Educated at Geneva—where also Vane had spent some of his early years—he had imbibed in some degree the spirit of that renowned little republic; and his opposition to the ecclesiastical establishment of his native country was, on his entering public life, soon roused by the working out of Anglo-Catholic principles. He agreed with Vane in his broad views of freedom, and when the Presbyterian and Independent parties assumed a definite form, he took his place with the latter. Clarendon admits his "good stock of estimation in the House of Commons," his superior "parts of learning and nature," and speaks of his being "a great manager in the most secret designs from the beginning."^[78]

Another individual there—according to the report of a courtly young gentleman, Sir Philip Warwick—wore a suit which seemed made by a country tailor; his linen was plain, and not very clean; a speck or two of blood stained his little band, which, very uncourtier-like, was not much larger than his collar; his hat had no hat-band, and his sword stuck close to his side. The man appeared of good stature, but his countenance looked swollen and reddish, and his voice sounded sharp and untunable; but he spoke with fervour, and much to the vexation of the royalist observer, this shabby-looking member

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was "very much hearkened unto." "Pray who is that man, that sloven who spake just now?" said Lord Digby—one who *then* took the patriotic side—to another, John Hampden,—who afterwards died for it.—"That sloven whom you see before you hath no ornament of speech; that sloven, I say, if we should ever come to a breach with the King, which God forbid, in such a case I say, that sloven will be the greatest man in England." The speaker was the sloven's cousin, and, with the intuitive perception of a kindred mind, saw in that rough piece of humanity some of the rarest elements of power which this world has ever felt.

Oliver Cromwell began his parliamentary career in 1628, as member for Huntingdon. In the Long Parliament he represented Cambridge, being returned by a majority of only one. As early as 1628 he distinguished himself in a debate respecting the pardon of certain religious delinquents, by charging some leading Churchmen with Popery; and though we can see nothing in his speeches but a rough, rude energy, they were jerked out by his untunable voice in such a fashion that they were remembered and talked of when many eloquent orations had glided into oblivion. His house at Huntingdon afforded a refuge to persecuted Nonconformist ministers. At St. Ives he achieved an unequalled reputation for "piety and self-denying virtue." And at Ely—whence he had now come to London, over bad roads in the foggy month of November, travelling on horseback in humble style—at Ely, dwelling at the glebe house, near St. Mary's Churchyard, he maintained the same character and influence, though there he suffered dreadfully from hypochondria. In part it rose from seeing his brethren forsake their native country to seek their bread among strangers, or to live in a howling wilderness.

Oliver St. John, member for Totness, was on terms of friendship with Oliver Cromwell, more so in the later than in the earlier portion of his history. Eminent for qualities such as help to make the good lawyer and the useful statesman, there hung round his ways a mystery—the effect of reticence and moroseness—which impaired his influence, and gave him the name of "the dark-lantern man!" At first chiefly known in a legal and political capacity, as time advanced, and events rolled into ecclesiastical channels, he became active in religious affairs, and took a foremost place amongst political independents.

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Sir Arthur Haselrig represented Leicestershire. He had married the sister of Lord Brook, and probably shared in what were considered the extreme ecclesiastical opinions of that nobleman. What these opinions were will be seen as we proceed, together with the course which the Leicestershire baronet took, as well on State as on Church questions. He, at an early period of the Long Parliament, showed himself decidedly opposed to Episcopacy, and ultimately became a thorough Republican. With much warm-heartedness and generosity, he had also the rashness and prejudice which are the dark shadows of such virtues, so that his enemies said he had "more will than wit," and gave him the nickname of "hare-brained."

But far more influential at first than any of these were other men whom we must describe.

Of the Parliamentary leaders, the most renowned and influential at the commencement of the struggle was John Pym. That "grave and religious gentleman"—1640, November.—burgess for the good town of Tavistock—appeared as conspicuously in religious business as in that which was strictly political. His countenance had a lion-like dignity, and, with a touch of melancholy in eyes and lips, there blended an expression of invincible firmness, while his shaggy mane-like hair, disarranged, as he spoke with tremendous energy, were in keeping with the rest of his majestic appearance. For eight and twenty years he had struggled against the policy of King, Court, and Church. Wise in council, and eloquent in speech, though quaint and tedious in the style of his oratory—a trifling drawback, however, in that age—he stood forward the most formidable antagonist with whom the High Church party had to deal. So closely at one time did John Pym connect Church and State—in this respect widely differing from Sir Harry Vane—that in 1628, he declared, "It belongs to the duty of a Parliament to establish true religion and to punish false; we must know what Parliaments have done formerly in religion. Our Parliaments have confirmed General Councils."^[79] This now would be called a thoroughly Erastian style of speaking. It proceeded on the theory of the Church being subject to the State, and in this view many of the ecclesiastical reformers of that age were *practically* agreed, however diversified their notions of Church government might be. Pym, though never a Nonconformist, but simply professing himself "a faithful son of the Protestant religion," from the beginning of his career opposed the spirit and

proceedings of Anglican prelacy; and as to the questions affecting Episcopacy, he at last acted with those who sought its overthrow. He had a large share in calling the Long Parliament, as he prepared the petition for that purpose, and went to York to present it to the King. After the writs had been issued, Pym and others proceeded on an electioneering crusade, urging the voters to support representatives who would maintain the liberties of their country, then so threatened and imperilled. As popular opinion counted him the author of the Long Parliament, so common consent assigned to him the position of its leader.

Next to John Pym comes John Hampden—the illustrious member for Buckinghamshire, universally known for his resistance of ship-money, and for his brief but brilliant military career. His religious character and the part he took in ecclesiastical affairs have, however, been much overlooked; yet, in early life, as the friend of Sir John Eliot, he had followed that single-minded and unflinching patriot in his noble resistance of ecclesiastical as well as regal despotism, and was one of the leaders of the advanced party which sought to promote reforms in Church and State. In 1629 he was engaged in preparing bills for enlarging the liberty of hearing the Word of God, and for preventing corruption in the collation to benefices, headships, fellowships, and scholarships in Colleges, besides other measures of less importance in a similar direction. "He was," says Clarendon, "not a man of many words, and rarely began the discourse, or made the first entrance upon any business that was assumed; but a very weighty speaker, and after he had heard a full debate, and observed how the House was like to be inclined, took up the argument, and shortly, and clearly, and craftily, so stated it, that he commonly conducted it to the conclusion he desired; and if he found he could not do that, he never was without the dexterity to divert the debate to another time, and to prevent the determining anything in the negative which might prove inconvenient in the future."^[80] All this, when stripped of its manifest unfairness, means neither more nor less than that this persistent enemy of ship-money must have been also a skilful parliamentary tactician, possessing a rare insight into men and motives. His modesty and moderation are acknowledged even by this prejudiced historian; and the rapid progress of his opinions on ecclesiastical affairs made him what the same authority truly calls, "a root-and-branch man"—a fact which, though

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doubted by one of his biographers, is correctly maintained by another.^[81] His high intellectual forehead, his delicately chiselled features, his eyes so calmly looking you through, his lips of compressed firmness, with a kind of melancholy presentiment imprinted on his whole face—betoken a man born to a great but sad destiny; and we do not wonder at the confidence he inspired, whether he appealed to the patriotism of his tenantry and neighbours in the old family mansion down in Buckinghamshire, at the back of the Chiltern hills, or stood up to address the grave assembly in St. Stephen's Chapel, Westminster.^[82] Perhaps it is right here to mention a man of a very different stamp, who sat near these illustrious statesmen and acted with them. Henry Marten, member for Berks—and, after his father's death, renowned through the county for his hospitable entertainments in the vale of "White Horse"—was as gay and humorous, and as fond of fun as the other two were serious and dignified. Nor can it be denied that he seems to have been as licentious as they were virtuous—as "far from a Puritan as light from darkness," and as destitute of religious faith as they were diligent in its cultivation. Strongly republican, he steadily opposed the Court policy, and, perhaps through religious indifference, became tolerant of the religious opinions of others. He belongs to a considerable class of men who from political feeling are attached to ecclesiastical reformers, and who join with them in aspirations after the widest liberty, though incapable of entering into their loftier purposes. Marten's name does not occur in the early ecclesiastical debates of the Long Parliament, but he is found afterwards in connection with political Independents.

John Selden, member for the University of Oxford, must not be dropped out of this roll. Merely to mention his name is to suggest the idea of marvellous learning. His reputation—now exalted by distance of time, and widened by the flow of ages—reached in his own day almost surprising magnitude, and must have imparted immense authority to his opinions. Those opinions, in reference to Church affairs, were what are commonly called Erastian. In the early conflicts of Puritanism, Selden fought in its ranks against the domineering spirit of prelacy, though no Puritan himself, and not having any objection to bishops, provided they were kept in subjection to the State.^[83] His strength in public affairs seems to have shewn itself more in the way of opposition than in constructive skill. If he did not positively help to pull down Episcopacy he hindered the setting up

of Presbyterianism. Nor should it be forgotten that, student-like, he preferred his library to the arena of debate, and notwithstanding his sacrifices at one time to liberty, he had too great a love of ease—if we are to believe Clarendon, who knew and admired him^[84]—to take much trouble in guiding the helm of public affairs.

Anecdotes are related serving to shew that even after the opening of the Long Parliament, the reformers had not definitely made up their minds as to what should be done. One "fine evening," Nathaniel Fiennes, after dining at Pym's lodgings with Mr. Hyde, afterwards Lord Clarendon, rode out with him on horseback "in the fields between Westminster and Chelsea." Hyde, in the course of conversation, asked Fiennes, "what government do you mean to introduce if the existing constitution of the Church were altered?" To this he replied "there will be time enough to think of that;" but he "assured him, and wished him to remember what he said, that if the King resolved to defend the bishops, it would cost the kingdom much blood, and would be the occasion of as sharp a war as had ever been in England; for that there was so great a number of good men who resolved to lose their lives before they would ever submit to that government."^[85] These words were uttered in the summer of 1641, when the Long Parliament had been sitting seven or eight months. At an earlier period, Sir Philip Warwick—the Court gentleman who quizzed Cromwell's clothes—met the rough-looking man in the lobby of the House, and wished to know what the real objects of his party were. "I can tell you," he bluntly replied, "what I would *not* have, if I cannot what I *would*." We are convinced that Cromwell spoke the truth in relation to his views of both the political and ecclesiastical changes on the brink of which the nation stood. Changes hovered not in the distance but at hand, and amongst them some which must modify the ecclesiastical establishment; but how far, looking at the different opinions of the country, reform ought to be carried, did not at once appear. Some few had republican theories—for example, Vane and Marten—and possibly at an early period they contemplated the overthrow of the monarchy, and with it the Episcopal Church. The latter of these gentlemen blurted out as much, with regard to monarchy, only two days after Fiennes' talk with Hyde, intimating his design to employ certain persons up to a certain point, and then to use them "as they had used

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others." But there is no solid ground for believing that the greater number of the reformers had at first any further object than that of effectually curbing kingly prerogative in the state, and bringing down the pomp and pride of episcopacy in the Church. The course which they actually pursued shaped itself according to the discipline of circumstances. Their views widened as they went along. As is often the case in times of change, these reformers in the end were forced to seek more than they originally imagined. First denied the little which might have contented them, they felt prompted to a further struggle, and naturally claimed more and more: it was but the story of the Sybil, with her books, repeated once again. Easy is it to point out apparent inconsistencies in the career of men so influenced, and plausible too are the charges against them of concealment, treachery, and breach of faith; but an impartial consideration of facts, and honest views of human nature, will lead to conclusions at once more favourable and more just. The truth is, that the members of the Long Parliament were not theorists intent on working out some perfect ideal, but practical men who looked at things as they were, and with upright intentions endeavoured to mend them as best they could. They aimed at reforming institutions much in the same plodding way as that in which their fathers had founded and reared those institutions. The opening of the States General in France presents in this respect a contrast to the opening of the Long Parliament in England; the brilliant theoristic Frank cannot be confounded with the sober, practical Saxon. The defiance or treachery of opponents filled our religious patriots of the seventeenth century with alarm, drove them to take up a higher position than they at first assumed, and to encamp themselves behind more formidable entrenchments than it then entered into their minds to raise.

Another class in the House of Commons requires attention. Many were favourably disposed to the Church of England, advocating a moderate episcopacy and approving the use of the Common Prayer, with a few alterations. They had no liking for Presbyterian schemes of government, much less for a congregational polity. Their sympathies went with the Church of their fathers, the Church of the Reformation, the Church which was built over the ashes of Ridley, Latimer, and Cranmer. They cannot be called Anglican Catholics; but they were to the heart English Churchmen. Despising the mummeries of Laud, and not liking the instructions of his school, then so common in parish churches—these persons loved the old Gothic and ivy-mantled edifices where they had been baptized and married,

and by whose altars their parents slept under quaint old monuments, which touched their hearts whenever they worshipped within the walls. They wished to see the Church of England reformed, not overturned.

Lucius Carey, Viscount Falkland, member for Newport, stood among the chief of this description. His early fate, as well as his high esteem for John Hampden, must ever link their names in affecting companionship. For a time they fought a common battle. What Hampden said at the commencement of the strife about bishops and Anglican High Churchism we do not know; but we know what Falkland said, and shall have occasion to record some of his words, which for fiery sharpness against prelatical assumptions were not surpassed by the speeches of any Puritan. Attempts had been made to bring him over to Popery, which had led to his reading the Fathers and pursuing the controversy for himself.^[86] Thus skilled in the knowledge of the whole question, the result of his studies was not only an aversion to the finished system of Popery, but a healthful horror of all those insinuating principles and practices which lead to it. A sounder Protestant did not tread the floor of the House than Viscount Falkland. Virtuous and brave, with honour unimpeachable, and with patriotism unsuspected, he wins our heart, even though we lament the course he ultimately pursued. His full-length character, drawn by Clarendon, true and faithful no doubt, though the hand of friendship laid on the colours, inspires the reader with admiration and love: but we are somewhat startled at what the historian says of the *physique* of his honoured friend: his stature low, his motion not graceful, his aspect far from inviting, with a voice so untuned that none could expect music from that tongue, he was so uncomely that "no man was less beholden to nature for its recommendation into the world." The portrait of Falkland, by Vandyke, hardly confirms this unfavourable description of his appearance by Clarendon, though even there, in spite of cavalier silk and slashed doublet, ample collar tassel-tyed, and flowing locks, the face of the young nobleman wears a somewhat rustic simplicity, albeit, tinged with an expression of sincere good-nature.

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A chief place amongst Church reformers during the first few months of the Long Parliament must be assigned to Sir Edward Dering. He represented the

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Kentish yeomen, the majority of whom had been driven into Puritanism by the Anglo-Catholic zeal of Laud; and he expressed the predominant feeling of the county, when he quaintly said, "he hoped Laud would have more grace, or no grace at all." Chairman of a sub-committee for religion, and a frequent and ardent speaker, he gathered round him the sympathies of the party opposed to the government, and was hailed by the citizens of London with "God bless your worship!" while the people—who in those days gathered about the doors of the House of Commons, as crowds do still, to cheer their favourite members—pointed to him as the man of the day, exclaiming, "There goes Sir Edward Dering!" This he tells us himself—an indication of his egotism. Vanity, no doubt, and weakness mixed themselves with his impetuous but persistent pursuit of an object, of which many laughable examples are furnished in the story of his life.^[87] Impetuous and rash, flexible to flattery, neither firm nor courageous under opposition, he was, nevertheless, amiable, well-meaning, patriotic, gentlemanly, and even chivalrous. He could reason with force, and declaim with eloquence, being no less fervent in his religious affections than in his political sentiments. The comely person of the Kentish baronet aided his popularity, and so did his genial manners, in spite of his hasty temper.^[88]

Posthumous fame is often not at all in proportion to contemporary influence. Sir Edward Dering is now by many forgotten, and, even John Pym, perhaps, does not hold the place in history which he did in life; yet, in the early days of the Long Parliament, these persons were more conspicuous in debate, and had more weight with the populace than John Hampden or Oliver Cromwell.

Amongst the class at first favourable to extensive ecclesiastical reforms was also that mercurial royalist, Lord Digby, who represented Dorsetshire, and afterwards became Earl of Bristol. He soon diverged very far from his early compatriots, and played a part which must always affix dishonour to his name, whatever opinion may be formed of the cause he espoused.

All the persons now mentioned acted together in ecclesiastical affairs, more or less intimately, at the opening of Parliament. Those who came nearest to one another in opinion had meetings for conference. Pym, Hampden, Fiennes, and Vane the younger, with some liberal noblemen of the Upper House, were wont to assemble at Broughton Castle, Oxfordshire, the seat of Lord

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Say, Fiennes' father, and at Tawsley, in Northamptonshire, the mansion of Sir Richard Knightley, father-in-law to Hampden. A story is related—not a very likely one—that in certain old stone-walled and casemated rooms, shown in the castle, the worthies^[89] used to meet lest they should be detected; and, which is more probable, that a printing-press, established in the mansion by Sir Richard's father, was applied to their purposes. Perhaps about the same time, meetings of a similar kind were also held at Kensington, in the noble mansion of Lord Holland, one of the statesmen who took part in these conferences. There were gatherings in Gray's Inn Lane, too, whither reports came up from the country, and whence intelligence was distributed amongst the city patriots. After the opening of Parliament, Pym's lodgings at Westminster became a place of rendezvous, at least for a select few. But though these consultations so far obtained amongst certain chiefs, it must not be supposed that there existed a large organized party, resembling the phalanx which till of late years used compactly to follow some great leader. The two parties into which the House of Commons fell did by no means distinctly divide at first. How, on ecclesiastical questions they formed, and took up their position, will be seen as we proceed.

Certainly there can be traced nothing like an organized party for defending the Church. The King and the bishops, with many of the nobility and a number of the people, were sincerely attached to the Establishment, and were prepared to admit only slight changes in its constitution. In the House of Commons, however, where its battle had to be fought, and its fate decided, there did not appear any strong alliance, or any distinct advocacy in its favour. It is surprising that in the early debates, when so many voices fiercely proclaimed its corruptions, so few made themselves heard in its defence. No chivalrous spirit stepped forward to resist the band of assailants. The tide flowed in. Not one strong man attempted to build a breakwater.

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Edward Hyde, who did so much for the Church of England at the Restoration, did little for it in this crisis of its fate. It is true he was a young man, and without great influence, but he shewed no heroism on its behalf; indeed, heroism was foreign to his nature. What he attempted he himself describes, and that the reader will discover to be paltry enough.

In the Upper House were the bishops, who might naturally be esteemed as guardians and defenders of the Church in the hour of need. But there were none of them possessed of that statesman-like ability, without which it would have been impossible to preserve the Episcopal Establishment in the shock of revolution. Laud, no doubt, had great talents and abundant courage, but the blunders he had made in driving the ship on to the rocks, gave no hope that he would have skill enough to pilot the ship off, even if granted the opportunity. But he had not even the opportunity. Hardly did the Long Parliament open when his indignant enemies thrust him from the helm. The conduct of other bishops had only served to strip them of the last chance of saving their order. The best on the bench shared in the obloquy brought on all by the intolerance and corruption of the worst, while none of them possessed the mental and moral calibre necessary for dealing with those huge difficulties amidst which the Church of England had now been dashed.

Puritans too, it should be remembered, sat in the Upper as well as in the Lower House. Amongst them may be numbered Devereux, Earl of Essex; Seymour, Earl of Hertford; Rich, Earl of Warwick; Rich, Earl of Holland; Viscount Say and Sele, Viscount Mandeville, Baron Wharton, Greville, Lord Brook, and others. Some of these will appear in the following pages, and of them in general we may observe that they did not lack astuteness, courage, and power. Anglicanism might be stronger in the House of Lords than in the House of Commons; but Puritanism, on the whole, appeared stronger than Anglicanism even there.

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One man alone could be found capable of doing aught to preserve the Church in this hour of her adversity. Could Lord Strafford have carried out his thorough policy, had he been left free to pursue his course, had no *coup d'etat* come in the way to arrest his daring ambition, and crush his despotic projects; he might, with his subtle brain, brave heart, and iron hand, have defeated the patriots once more, and so have saved the Anglican Establishment awhile. Another dissolution, or some arbitrary arrests, would, for a season, have crushed Pym and his party. That, however, was not to be.



CHAPTER II.

Shortly after the opening of Parliament, Pym met Hyde in Westminster Hall, and showed unmistakeably, by his conversation, the course which he intended to pursue. "They must now," he told him, "be of another temper than they were the last Parliament; that they must not only sweep the house clean below, but must pull down all the cobwebs which hung in the top and corners, that they might not breed dust, and so make a foul house hereafter. But they had now an opportunity to make their country happy, by removing all grievances, and pulling up the causes of them by the roots, if all men would do their duties."^[90]

On the 6th of November, the Commons, in pursuance of precedent, appointed a grand Committee of religion,^[91] consisting of the whole House, to meet every Monday afternoon, at two o'clock. The next morning came a petition from Mrs. Bastwick, and another from Mrs. Burton, on behalf of their husbands—"close prisoners in remote islands"—after having stood in the pillory, and lost their ears, by a Star Chamber sentence. Immediately upon this, another petition followed from John Brown, on behalf of his master, Mr. Prynne—"close prisoner in the Isle of Jersey"—who also had suffered mutilation by authority of the same tribunal. Scarcely had this arrived when another appeared from John Lilburne—"close prisoner in the Fleet"—also under Star Chamber condemnation. A fifth was read from Alexander Leighton, complaining of his sentence by the same court, in pursuance of which he had been whipped, slashed in the nose, branded on both cheeks, and deprived of his ears, and then closely imprisoned.^[92]

The presentation of these petitions produced an impression most adverse to the Church. The offences of the prisoners had been the publishing of books, which virulently assailed prelacy, superstitious worship, and ecclesiastical despotism. The tone in some of these writings is quite indefensible, and scarcely to be excused,^[93] and had they been passed over in silence, sympathy might have turned towards those assailed; but after the liberty of

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the Press had been violated, and a merciless punishment had been inflicted on the assailants, the tide of popular feeling ran in their favour, and they were honoured as martyrs in their country's cause.

The House of Commons at once overrode the authority of the Star Chamber, and sent for the prisoners. Even in the pillory, and the prison, Burton and Prynne had received testimonies of sympathy, and now their return to London was a perfect ovation. They arrived on the 28th of November, and were "nearly three hours in passing from Charing Cross to their lodging in the city, having torches carried to light them." The parish churches had rung merry peals as the liberated prisoners reached town after town, and their escort into London consisted of a hundred coaches, some with six horses, and two thousand horsemen, with sprigs of rosemary in their hats—"those on foot being innumerable."^[94] Afterwards the House resolved that the proceedings against these sufferers had been illegal and unjust—that their fines should be remitted—that they were to be restored to liberty, and that their persecutors should make reparation for the injuries they had inflicted.^[95] Prynne—when vacancies in Parliament occurred through the secession of royalist members—was elected to a seat; and thenceforth in the Long Parliament his mutilated ears became constant mementoes of Star Chamber cruelty, stimulating resistance to arbitrary government, if not provoking retaliation for past offences. And here it may be noticed that many members on the patriotic side had suffered from the despotic doings of past years. Hampden, Holles, Selden, Strode, Sir Harbottle Grimston, Long, and Hobart had all been in prison, and some also had paid fines.^[96] They would have been more or less than human if their memories had not aroused indignation against the despotism of the King and his ministers. Such members seated on the opposition benches, backed by a majority, were enough to make the hearts of courtiers quail.

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Not only did Pym's spirit pervade the House, and manifest itself in these early proceedings, but his voice was heard enumerating the main grievances in Church and State. Scarcely had the session of the Commons commenced, when—according to the Puritan habit of the times—he denounced the encouragement given to Papists, because their principles were incompatible with other religions, and because with them laws had no authority, nor oaths

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any obligation, seeing that the Bishop of Rome could dispense with both. He complained further of their being allowed offices of trust in the Commonwealth, of their free resort to Court, and of their having a Nuncio in England, even as they had a congregation of Cardinals in Italy. It would be unreasonable to apply to a statesman maintaining these views in the seventeenth century, a standard of opinion belonging to the nineteenth, and also it is unnecessary to expose the fallacies which underlie such specious coverings. We must admit that there were special circumstances then existing, and recent facts in fresh remembrance—some of them will be hereafter seen—which rendered the position of the friends of freedom very different from what it is now. Though principles of righteousness and charity are immutable, the recollection of old evils just escaped, and the apprehension of new perils just at hand, may well be pleaded in excuse of measures then adopted for self-preservation. The fear of the restoration of Popery at that period cannot be pronounced an idle apprehension. The Reformation was young. Rome was busy. The Queen was a Papist. Roman Catholics were in favour at Court. Anglo-Catholicism unconsciously was opening the gates to the enemy. And further, in connection with this speech by Pym, it is only fair to quote what he said on another occasion:—"He did not desire any new laws against Popery, or any rigorous courses in the execution of those already in force; he was far from seeking the ruin of their persons or estates, only he wisht they might be kept in such a condition as should restrain them from doing hurt."^[97]

From the subject of Popery, Pym turned at once to Anglican innovations, which he regarded as the bridge leading to it. He pointed out the maintenance of Popish tenets in books and sermons, together with the practice of Popish ceremonies in worship—which he compared to the dry bones in Ezekiel, coming together, and being covered with sinews, flesh, and skin; to be afterwards filled with breath and life. First the form and finally the spirit of the old apostacy were creeping over the Church of England, and the corpse buried at the Reformation even how seemed rising from the grave. The speaker proceeded to complain of the discouragement shown to Protestantism by prosecuting scrupulous persons for things indifferent—such as not coming to the altar rails to receive the communion,^[98] preaching lectures on Sunday afternoons, and using other Catechisms than

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that in the prayer book. This part of Pym's speech concluded with a notice of alarming encroachments made by ecclesiastical jurisdiction. Accused persons were fined and punished without law. A *jure divino* authority was claimed for Episcopal order and proceedings, and articles were contrived and published, pretending to have the force of canon laws, which the orator declared was an effect of great presumption and boldness, not only in the bishops, but in their archdeacons, officials, and chancellors, who thus assumed a kind of synodical authority. Such injunctions might well partake, in name, with "that part of the common law which is called the extravagants."^[99] This last charge referred to what had been done in the late convocation.

Other speakers followed Pym, and all adopted the same tone. Sir Benjamin Rudyard complained of disturbances made on account of trifles, "where to place a metaphor or an altar," and of families ruined for not dancing on Sundays; and he asked what would become of the persecutors when the master of the house should return and find them beating their fellow-servants? These inventions were but sieves for the devil's purposes, made to winnow good men. They were meant to worry diligent preachers, for such only were vexed after this fashion. So it came to pass that, under the name of *Puritan*, all religion was branded, and under a few hard words against Jesuits, all Popery was countenanced; whoever squared his actions by any rule, either divine or human, he was a *Puritan*; whoever would be governed by the King's laws, he was a *Puritan*; he that would not do what other men would have him to do, was a *Puritan*. The masterpiece of the enemy was to make the truly religious suspected of the whole kingdom.^[100]

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Sir John Holland, member for Castle Rising, also insisted on ecclesiastical grievances. Bagshaw, Culpeper, and Grimston proceeded in a similar strain. Even Lord Digby complained of prelates, convocations, and canons, the last being "a covenant against the King for bishops and the hierarchy."

Perhaps there is not on record another great debate in which such unanimity found expression, and such volleys of grape-shot rattled into a regiment of abuses.

No question, however, affecting the fundamental principles of the Establishment was at present raised; but the corruptions which had covered

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and choked it were unsparingly threatened. Towards them nothing but indignation was shown.

When the debate had closed with the appointment of a Committee to prepare a remonstrance, the House, well knowing that the right way to obtain a blessed issue was to implore the divine assistance, resolved to desire the Lords to join with them in requesting his Majesty to allow so holy a preparation, and, further, to appoint a general fast.

What the next day witnessed is most memorable for its political consequences, yet it also involved ecclesiastical results of the greatest importance. The Earl of Strafford, though suffering from the gout to which he was a martyr, had hastened to London, and reached it on the 10th of November; fully comprehending the state of affairs, and meditating measures for stopping the tide of revolution. People believed he had a project for accusing the patriots of a share in the Scotch invasion; and that, failing other schemes, there remained the old expedient of dissolving Parliament.

The Earl, the morning after his arrival in London, went down to the House and took his seat; being received with all the "expressions of honour and observance, answerable to the dignity of his place, and the esteem and credit which he had with the King as the chief Minister of State. But this day's sun was not fully set before his power and greatness received such a diminution as gave evident symptoms of his approaching ruin."[\[101\]](#)

His fellow-counsellor and trusty adherent, Archbishop Laud, moved that from a Committee of the two Houses, to be held that afternoon, he and four other bishops might be spared their attendance, on account of a meeting of Convocation. The Prime Minister and the Archbishop left the House, little dreaming of what would happen before sunset on that November day.

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Pym had heard of Strafford's arrival. Knowing the man, regarding his return as ominous, and with a keen eye piercing into the heart of his policy, he felt that he must grapple with him at once. Not merely for himself had it come to be a question of life or death, but all reform in Church and State depended on an immediate defeat of Strafford. If suffered to do what he pleased but for another day, he might render all the work of the last few months abortive, and bring back absolutism in triumph. Men said of him,

"he had much more of the oak than the willow about his heart." To bend the oak was impossible, and therefore Pym resolved to cut it down. Another such instance of timely sternness there is not in English history.

Twelve years before, at Greenwich,—when Strafford, faithless to his party, thought of accepting a coronet,—1640, November. Pym had said to him, "You are going to leave us, but I will never leave you while your head is upon your shoulders." Did those words cross the mind of the patriotic statesman as he passed through the lobby to take his accustomed seat on the morning of the most memorable day of his life? Suddenly he rose, looked round on the well-filled benches, and said he had matter great importance to bring forward. "Let the strangers' room be cleared," he went on to ask, "and the outer doors be locked, and the keys laid on the clerk's table." This done, breathless silence followed. Before the Parliament of England, now sitting in secret conclave, Pym spoke out boldly what was in his heart. The kingdom had fallen into a miserable condition. "Waters of bitterness" were flowing through the land; he must enquire, he said, "from what fountain? what persons they are who have so far insinuated themselves into the royal affections, as to be able to pervert His Majesty's excellent judgment, to abuse his name, and apply his authority to support their own corrupt designs?"

Pym's speech occupied some hours in delivery. In the midst of it came interruption. With the usual formalities, a message arrived from the House of Lords, touching the conference to which the Archbishop had referred that morning. Though the message itself could not at first have been contrived with a view of getting at the secret, about which outside curiosity had risen to fever heat; yet it might have been sent at that moment, with the hope of worming out what His Majesty's Commons were doing within locked doors. But the messengers, as they walked slowly up to the clerk's table, making their measured obeisances, were none the wiser for their visit. Pym, suspecting some other object than the professed one, had them quickly dispatched with the answer, "that as the House was engaged on very weighty business it could not meet the Lords just then." At the same time, he managed to "give such advertisement to some of the Lords," that their House might be kept from rising till his project should be fully accomplished.

The messengers dismissed, the doors re-locked, the buzz of conversation hushed, Pym resumed, and at length ended his speech by demanding that Strafford should be impeached. The demand found "consent from the whole House;" nor in all the debate did one person offer to stop the torrent of condemnation by any favourable testimony respecting the Earl. Lord Falkland only counselled that time should be taken to digest the accusation. Pym immediately replied such delay would blast all hopes, for Strafford, hearing of their intentions, "would undoubtedly procure the Parliament to be dissolved."

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The House at once appointed a committee of seven to draw up the charges. They retired, and soon returned with their report. The House at once solemnly resolved to impeach the Earl at the bar of the Lords.

The clock had struck four. The doors were thrown open. "The leader of the Commons issued forth, and followed by upwards of three hundred of the members, crossed over in the full sight of the assembled crowd, to the Upper House." Standing at the bar, with the retinue of members pressing round, Pym, in the name of the Commons, accused Strafford of high treason. [\[102\]](#)

Strafford's seat was empty. The Commons withdrew. After consideration of the message by the peers, the Lord-keeper acknowledged its receipt, gave credit for due care taken in the business, and promised a further answer. The Earl was sitting at Whitehall with the King. Swift as the wind, tidings of the impeachment began to travel, and reached the accused amongst the first. He had been out-manœuvred. While preparing for an attack on the enemy's camp he found his own citadel assailed, stormed, taken. Still dauntless, he coolly remarked, "I will go and look mine accusers in the face." Then going to the court gate he took coach, and drove to the House. Advancing to the threshold, he "rudely" demanded admission. James Maxwell, keeper of the Black Rod, opened the door. His lordship, with a "proud glouming countenance," made towards his seat as well as his lameness would allow. He sat down, heard [\[103\]](#) what was going on, and, in spite of orders to withdraw, "kept his confidence and his place till it raised a vehement redoubling of the former scorn, and occasioned the Lord-keeper to tell him

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that he must withdraw, and to charge the gentleman usher that he would look well to him."[\[104\]](#)

The proud minister found himself detained in the lobby of the House in which once his word had been law.

The Lords debated further on the message of the Commons, and came to the conclusion that the Earl, for this accusation of high treason, should be committed to the safe custody of the gentleman usher, and be sequestered from coming to Parliament until he cleared himself. Called in, he was commanded to kneel at the bar. Completely vanquished, he did so on the very spot where his great antagonist an hour before had stood a conqueror. He now had formal information of the charge brought up by Pym, and was taken into custody. Master Black Rod, proud of his business, required his prisoner to deliver up his sword, and told a waiting-man to carry it. As the prisoner retired, all gazed, but no man "capped to him before whom, that morning, the greatest of England would have stood discovered."[\[105\]](#) Discourteous speeches followed—for an English mob has little pity for fallen greatness—and, to add to his humiliation, when at last, amidst the bustle, the Earl found his carriage, Master Maxwell insolently remarked, "Your lordship is my prisoner, and must go in my coach."

That day sealed Strafford's fate; the only impediment in the patriot's path lay crushed. Now Pym could do his will, and carry out some great reform in Church and State. It was time.

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"The strong man armed kept his palace, and his goods were in peace. But now a stronger than he came upon him and overcame him, and took from him all his armour, wherein he trusted, and divided his spoils."

To some readers, there may appear little or no connection between Pym's death-wrestle with Wentworth, and the overturning of the Episcopal Church, the setting up of Presbyterianism, and what followed; yet really without that death-wrestle the things which happened afterwards appear impossibilities.

When Strafford had been in the Tower a month, Laud was impeached, and followed his friend into the custody of James Maxwell.[\[106\]](#)

On the 17th November, a public fast took place, when the House of Commons assembled in the Church of St. Margaret, Westminster, and continued in divine worship for *seven hours*.^[107]

A few days after the fast^[108] the Commons, according to precedent, received the Holy Communion, and also according to precedent resolved that none should sit in the House who did not partake of the Sacrament.^[109] A measure of policy was connected with their piety on this occasion, which from its having been misunderstood has led to a misapprehension of the whole proceeding. The fact of its having been resolved that all should participate in the Lord's Supper has been cited as a proof that the members were all attached to the Church of England;^[110] but Rapin^[111] adopts the subtle theory that, bent upon assailing the Bishops, the Commons resolved on this communion, to save themselves from being suspected of Presbyterianism,—as in the reign of Henry V., the Commons prefaced their assault on the clergy by passing a Bill for burning heretics, to save themselves from being suspected of heresy. Yet amidst these speculations upon the subject, the real purpose of the House—beyond its following a precedent and gratifying religious feelings—is frankly expressed in the Journal to have been the discovery of papists amongst the members. The committee who reported on the subject conceived that some confession of faith and a renunciation of the Pope should be required from such as were suspected of popery. At the same time two members of the House were directed to convey to the Dean of Westminster a desire that "the elements might be consecrated upon a communion-table, standing in the church, according to the rubric, and to have the table removed from the altar."^[112]

The Long Parliament, in its early sittings, occupied much time in hearing Puritan petitions. Such petitions came from sufferers under ecclesiastical oppression; from people dissatisfied with Anglican clergymen; from individuals scandalized at ceremonial innovations; and from different counties praying for redress of grievances in Church and State. The latter petitions were brought up to town by troops of horsemen. Such documents, accompanied by the denunciations of members who presented them, occasioned searching inquiries into Anglican superstition and intolerance. Persons alleged that communion-tables were set altar-wise;

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that anthems and organs were superseding plain and proper psalm-singing; that wax candles were burnt in churches in honour of our Lady; that copes of white satin were worn by ministers; that boys with lighted torches went in procession and bowed to the altar; and that Puritans were roughly handled for refusing to make a like obeisance. Further, such persons declared "flat Popery" had been preached, as well as performed; transubstantiation, confession, and absolution, being doctrines maintained in Anglican pulpits.^[113] Cases were brought up of clergymen unrighteously suspended for refusing to read the "Book of Sports," and for similar offences. The private gossip of the day touching church matters reached the House through members anxious to stimulate their partizans. Though such reports appear undignified enough in senatorial speeches, they are welcome to the historian, because indicative of the staple talk round firesides in those boisterous days. Alderman Pennington told how an archdeacon's son had said, "God take the Parliament for a company of Puritanical factious fellows, who would wiredraw the King for money, when a Spanish don would lend him two millions. The King would never have quiet until he had taken off twenty or more of their heads." In petitions, according to the Diurnals, very odd references occurred to the sayings and doings of High Churchmen. One declared "the Commissaries were the suburbs of heaven, and the High Commission the Archangels, and that to preach twice a day, or to say any prayers but the Common Prayers, was a damnable sin." Moreover, the same newspaper states, that a minister in Shoreditch stood charged with preaching on the man who went down to Jericho—saying, the King was the man, the Scots the thieves, the Protestant the priest, the formal Protestant the Levite, and the Papist the Good Samaritan.^[114] Another, being asked how he could maintain by Scripture the turning of the communion-table altar-wise, replied, "the times were turned, and it was fit the tables should be turned also."

A petition came from a churchwarden cited and punished for not prosecuting parishioners who refused to stand while hearing the creed, to bow at the name of Jesus, to kneel at public prayer, and to sit uncovered during sermon time. These breaches of prescribed ecclesiastical decorum were taken as proofs of Puritan irreverence; but when Puritans were threatened in consequence with legal penalties, such acts appeared to them to be full of heroic virtue.

The growth of popery formed a fruitful topic of quaint declamation. The approach of any great personage, it was said, may be known by the sumpter mules sent on before. And when the Pope travels, altars, copes, pictures, and images precede his progress. High Church ceremonies announced the coming Mass. Clerical tricks of this description prepared for the revival of papal domination. Resistance had provoked persecution. Fire had come out of the bramble, and devoured the cedars of Lebanon. [\[115\]](#)

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Stories, too, were told of a parsonage worth three hundred a year, where not even a poor curate remained to read prayers, catechise children, or bury the dead; and of a vicarage, where the nave of the church had been pulled down, the lead sold, the bells profaned, the chancel made into a dog-kennel, and the steeple turned into a pigeon-house. [\[116\]](#)

The debate of the 14th and 15th of December, on the canons, was conducted in the same spirit as other proceedings. Convocation had met in April, at the opening of the Short Parliament; one of the first measures adopted being an imposition on the clergy of six subsidies of four shillings in the pound for six years. Canons had then been prepared, relative to the regal power for suppressing popery, also against Socinianism and sectaries, and further, for preventing Puritan innovations and for promoting uniformity. While discussions on these subjects were proceeding, Parliament had been dissolved, but Convocation had unconstitutionally determined as a royal synod, to persevere sitting until it should be dissolved by the King's writ. [\[117\]](#) Some of the clerical body had protested against this procedure, but the King, with the opinion of certain judges, had confirmed it, and Convocation, then acting as a synod under royal sanction, had completed the new canons. [\[118\]](#)

Parliament poured out vials of wrath on all these canons. They included protests against popery—the third being for the suppression of its growth, and the seventh charging the Church of Rome with "idolatry committed in the mass for which all popish altars were demolished," but the Puritans overlooked or regarded all this as only a pretence for covering assaults upon themselves. To have done so seems to us unfair, though considering the character of the men framing the canons, with whom members of the House of Commons

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were well acquainted, everybody must believe the authors of the new laws hated Puritanism more than Popery. The truth is, Anglicanism, though thoroughly opposed to papal supremacy, and to some of the dogmas and superstitions of Rome, fostered sympathy with much of the faith and worship characteristic of that church, while it had not a breath of kindness for Puritan sentiments. Such a state of things drove the two parties wide as the poles asunder, and we cannot wonder that on the question of the canons the House of Commons, revolting at Anglo-Catholicism, read all which Convocation had done in the light of those well-known principles by which Convocation was actuated. Whatever the bishops and clergy there, might honestly say about popish ceremonies and the idolatry of the mass, they were chiefly bent on crushing the Puritans, and accordingly the Puritans grappled with the Anglicans as in a struggle for life. Matter enough existed in these new laws to provoke destructive criticism. The first propounded the divine right of kings, and claimed for them powers inconsistent with the English constitution. The canon against sectaries was extremely intolerant, and was so ingeniously contrived as to turn statutes for suppressing popery against all sorts of nonconforming Protestants.

No one, however, of this ill-fated assembly's enactments had to run the gauntlet, like the canon relative to the *et cetera* oath.^[119] It speedily sank under torrents of argument and invective, ridicule, and satire. Also, the prolonging of convocation as a synod, after the dissolution of Parliament, incurred condemnation as wholly illegal; the canons were pronounced invalid; and the entire proceedings subversive of the laws of the realm.^[120]

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Heylyn declares that the *et cetera* was introduced in the draft to avoid tautology, and that the enumeration was to be perfected before engrossment, but the king hastened its being printed, and so occasioned the mischief.—*Heylyn's Life of Laud*, 444.

Archbishop Laud had to bear, in no small measure, the odium of the new ecclesiastical measures. Doubtless, he had a leading hand in their origin, but it is also a fact, that before the opening of the Long Parliament, he wrote by His Majesty's command to the bishops of his province, to suspend the operation of the article respecting the *et cetera* oath.^[121] And when the House had been sitting a little more than three weeks, after Pym, Culpeper,

Grimston, and Digby, had attacked this unpopular clerical legislation, and when a still more distinct and violent assault was seen to be approaching, the Archbishop wrote a letter to Selden, member of a committee for enquiry upon the subject, requesting that the "unfortunate canons" might be suffered to die quietly, without blemishing the Church, which had too many enemies both at home and abroad.^[122]

The vote of the House of Commons administered a blow to Convocation from which it could not recover. That assembly, indeed, again appeared as the twin sister of the new Parliament. Representatives of the province of Canterbury met on the 3rd November, the day on which the Lords and Commons assembled. The usual formalities having been observed, a sermon preached, and a prolocutor chosen—Archbishop Laud addressed the clergy in Henry the Seventh's chapel, in a manner which shewed that he heard the sound of the brewing storm, and had sense enough to discern the impending danger. So had others of the assembly. Accordingly, some one proposed in the Lower House, that "they should endeavour according to the Levitical law to cover the pit which they had opened, and to prevent the designs of their adversaries by condemning the obnoxious canons." But the majority, not willing to be condemned till formally accused, heeded not this warning; yet the members avoided giving further provocation, and, feeble themselves, they only watched the proceedings of their parliamentary neighbours. When the resolution of the Commons was passed it paralyzed them. The Upper House did not meet again after Christmas, nor the Lower after the following February.^[123] The assembly of the Convocation of York had been prevented by the death of the Archbishop, and the new writ issued came to nothing.

1640, November.

Here we shall pause for a moment to watch other forces coming into play.



CHAPTER III.

Two ideas of Church reform evolved themselves: one already indicated,—that of separating from simple primitive Episcopacy all prelatical assumptions,—and another, which amounted to a decided revolution in the Church, including the extinction of Episcopacy altogether. While the former rose out of reverence for the Reformation under Elizabeth, combined with disgust at the history of prelatical rule,—the latter had a deeper and wider cause.

When Episcopacy strove to maintain itself in England, after the shock given to ecclesiastical power in the days of Henry VIII. and Edward VI., Presbyterianism made good its position at Geneva under Calvin, and at Edinburgh under Knox. The connexion between the two cities and the two Reformers, and between them both and our own country, everybody knows. The exiles who had found a home, not only on the shores of the beautiful Lake Lemman, but also on the scarcely less beautiful banks of the Lake of Zurich, brought with them, when they returned home after the Marian persecution, strong Presbyterian predilections. Calvin, also, exercised a direct influence on some of the English Reformers; and the system of John Knox, in such close neighbourhood as the north of the Tweed, could not fail to affect those who were studying the question, "what ought to be the Church of the future?"

Indications of Presbyterian sentiments in the England of Elizabeth are very numerous.^[124] They wrought within the Episcopal establishment without producing a severance. Cartwright was a Presbyterian. He contended for the abolition of archbishops, and archdeacons, and would retain only bishops or presbyters to preach the word and pray, and deacons to take care of the poor. Every Church, by which he meant a "certain flock," was to be governed by its own ministers and presbyters, and these were not to be created by civil authority, but chosen by popular election. The directory of government, found in the study of that eminent Puritan after his death, said to be composed by Travers, is in perfect harmony with this Presbyterian scheme. Certain

clerical meetings, under the auspices of Cartwright and Travers, took a decided synodical shape.^[125] This element continued in the Church under the Stuarts, notwithstanding the efforts of bishops to extinguish it.^[126]

Certain Puritans of a Presbyterian turn, formally separated themselves from the Establishment so early as 1567, and met together for Nonconformist worship in Plumber's Hall.^[127] An organized Presbytery appears at Wandsworth in 1572,—in the Channel Islands, where the Government of England could not reach it, the system was fully established in 1577; and Presbyterian classes may be traced in Cheshire and Lancashire, Warwick and Northampton, during the last few years of the Tudor dynasty. Organized Presbyterianism is seen but faintly in the early part of the seventeenth century, but Presbyterianism, as a sentiment within the Established Church, is distinctly visible. Nonconformity of another kind was also on the increase at this period. Churches of the Independent and Baptist order may be discovered in Tudor times, but they became more apparent and numerous in the days of the Stuarts. Their rise and progress will be afterwards described.

Presbyterianism.

How Puritanism glided into a state of separation, and the nonconformist in the Church became a dissenter outside its pale, is curiously illustrated in the Records of the Church assembling in Broadmead, Bristol. In those records is a story of a certain zealous lady of that city named Kelly.^[128] "She kept a grocer's shop in High Street, between the Builders' Inn and the High Cross," and that she might bear a testimony against superstitious observances, "she would keep open her shop on Christmas Day, and sit sewing in the face of the sun, and in the sight of all men." Afterwards, when she heard a clergyman she did not like at the parish church, "away she went forth before them all, and said she would hear no more, and never did." Puritan emigrants to New England embarked at Bristol, and would abide with Mrs. Hazzard "if they waited for a wind." Women actually sought to be confined in the parish of a Puritan clergyman, to avoid the ceremonies of "churching and crossing." "The consciences of the good people began to be very weary." Then "it pleased the Lord to stir up some few of the professors of this city to lead the way out of Babylon." "Five persons began to go further, and scrupled to hear common prayer, even four men and one woman." So that in the year 1640, those five persons met together at Mrs. Hazzard's house, "at the upper

1640.

end of Broad Street, in Bristol, and came to a holy resolution to separate from the worship of the world and times they lived in, and that they would go no more to it."^[129] In this case, we see how dissatisfaction with the Established Church gradually led to positive separation, and how extremely feeble, in some instances, was the commencement of organized dissent. But the spirit working in the way just indicated, slowly, and without much notice, came suddenly and boldly on the surface, soon after the Long Parliament had opened.

Though the incumbents of the metropolis were almost all High Churchmen, there were many Puritan lecturers in the city with strong Presbyterian sympathies, supported by wealthy citizens, and in high repute with the multitude. Amongst them, Dr. Cornelius Burgess is a very noticeable man—already mentioned as the fast-day preacher—who, in connection with a lectureship at St. Paul's, held other Church preferment. To him and his brother lecturers may be ascribed the inspiration of much intense public feeling against prelatical assumptions, and against Episcopacy itself,^[130] out of which arose an extraordinary memorial, which has attained no small notoriety under the name of the *Root and Branch* petition.

Presbyterianism.

This petition complained that the offices and jurisdictions of archbishops were the same as in the papal community, "little change thereof being made, except only the head from whence it was derived;" that there was great conformity of the English Church to the Church of Rome in vestures, postures, ceremonies, and administrations; that the liturgy, for the most part, is framed out of the Romish Breviary, Ritual, and the Mass Book; and that the forms of ordination and consecration were drawn from the Romish pontifical.^[131] Whoever prepared this document, it was soon submitted to Mr. Bagshawe, of the Inner Temple, member for Southwark, who had obtained great popularity by his lectures against the temporalities of bishops—lectures which brought on him the displeasure of Laud. But Bagshawe, though zealous for the reform of Episcopacy, did not desire to see it abolished. He therefore declined to take charge of the petition, when Mr. John White, his fellow-burgess for Southwark—afterwards the famous chairman of the committee for scandalous ministers—arranged its delivery to the Commons, not however by his own hands, but through Alderman

Pennington, a citizen well known for his extreme dislike to the Episcopal Bench.^[132]

A still more effective agency on the Presbyterian side appeared in London at the same time.

1633.

Scotland had silently fostered the Presbyterianism of England for many years. Head quarters for that polity had been there established. In the neighbourhood of the Highlands, synods found even a kindlier soil and a more congenial climate than under the shadow of the Alps. True to its old French sympathies, Scotland did not follow the example of reformation set in England or in Germany; it eschewed Saxon examples, and adopted that form of Protestantism which had been embraced by such of the Gallic nation as had seceded from Rome, and which bore the impress of the piety and genius of one of the most illustrious sons of France. Edinburgh, during the ministry of Knox, saw as complete a work accomplished as Geneva had witnessed during the ministry of Calvin. Episcopacy was thoroughly rooted out, and the attempts under Charles I. to replant it only exasperated the husbandmen of the vineyard, and made them love the more what they counted "trees of the Lord's right hand planting." Presbyterianism became doubly dear to Scotchmen when the grandson of Mary sought to destroy that, which, in the days of his grandmother, their forefathers had cultivated with toil and tears. To make the matter worse, when Charles went to Scotland in 1633, and took with him Laud, then Bishop of London, everything seemed to be done which was likely to arouse Scotch prejudices against episcopal order and the English liturgy. Instead of reducing the Anglican ceremonies to as simple a form as possible, the most elaborate pomp of worship appeared in Holyrood Chapel. The *Dreadnought*, a good ship, well victualled, "appointed to guard the narrow seas," was engaged to transport from Tilbury Hope to the Firth of Forth, twenty-six musical gentlemen of the Royal Chapel at Whitehall, with their goods and paraphernalia to perform the cathedral service, so as to impress the Presbyterians of Edinburgh.^[133] A more thorough mistake could not have been made in a city where even the sight of a surplice and the reading of the common prayer, a few years afterwards, occasioned the world-known episode of "Jenny Geddes and her wonderful Folding Stool."

Presbyterianism.

The attempt to impose Episcopacy and its associations on Presbyterian Scotland provoked a Covenant war, and roused a determination in the hearts of her sons to carry Presbyterianism over the border, and to make the two countries one pure Kirk. How the strong Presbyterianism on the other side the Tweed re-inforced what was comparatively weak at first on this side the border,—how the Scotch made the system amongst Englishmen what it became,—how, like a loadstone, it attracted and brought together the scattered particles of Presbyterian sentiments throughout England,—how the Church of the North greatly augmented the mass of Puritanism in the South, and welded it for a while into form somewhat like its own, will appear as this narrative proceeds.

Meanwhile some passing notice must be taken of the enthusiasm of the Scotch army in support of Presbyterianism, and it cannot better be done than in the words of a worthy minister who visited the camp, and whose *naïve* and graphic notes on other subjects, we shall have frequent occasion to use.

"It would have done you good," the writer says, "to have cast your eyes athwart our brave and rich hill as oft as I did, with great contentment and joy; for I (quothe the wren) was there among the rest, being chosen preacher by the gentlemen of our Shyre, who came late with my Lord of Eglintoun. I furnished to half-a-dozen of good fellows muskets and picks, and to my boy a broadsword. I carried myself, as the fashion was, a sword, and a couple of Dutch pistols at my saddle; but I promise, for the offence of no man, except a robber in the way; for it was our part alone to pray and preach for the encouragement of our countrymen, which I did to my power most cheerfully." The troops were commanded by noblemen; the captains, for the most part, were landed proprietors; and the lieutenants, experienced soldiers, who had been employed in the wars of Gustavus Adolphus. The colours flying at the entrance of each captain's tent bore the Scottish arms, with the motto, 'For Christ's Crown and Covenant,' in golden letters. There were some companies of Highlanders, "souple fellows, with their playds, targes, and dirlachs." But the soldiers were mostly stout young ploughmen, who increased in courage and experience daily; "the sight of the nobles and their beloved pastors daily raised their hearts; the good sermons and prayers, morning and evening, under the roof of heaven, to which their drums did

call them for bells; the remonstrances very frequent of the goodness of their cause; of their conduct hitherto, by a hand clearly divine; also Leslie's skill and fortune made them all so resolute for battle as could be wished. We were feared that emulation among our nobles might have done harm, when they should be met in the fields, but such was the wisdom and authority of that old, little, crooked soldier, that all, with one incredible submission, from the beginning to the end, gave over themselves to be guided by him, as if he had been great Solymán. Certainly the obedience of our nobles to that man's advices was as great as their forbears wont to be to their King's commands." He further adds: "Had you lent your ear in the morning, or especially at even, and heard in the tents the sound of some singing psalms, some praying, and some reading scripture, ye would have been refreshed. For myself, I never found my mind in better temper than it was all that time frae I came from home, till my head was again homeward; for I was as a man who had taken my leave from the world, and was resolved to die in that service without return."^[134]

The writer of this description was Robert Baillie, and he, in company with two other distinguished clergymen, Alexander Henderson and Robert Blair, visited London just as the "Root and Branch" petition was being prepared. They came with a commission from Scotland, under the broad seal of the Northern Parliament, to settle the quarrel which had led to the encampment of the covenant army—a quarrel in which the Puritans and the Long Parliament took part with the Scotch against the King and his Bishops. Three noblemen, three barons and three burgesses were commissioned for the same purpose. With the treaty of peace there was to be the payment of the Scotch troops by the English nation. The clerical commissioners hoped that there would follow the inauguration of goodly presbyteries throughout the fair land of the South, an object which was dearer to them than any political alliance, or than any amount of money.

Presbyterianism.

On Monday morning, November 16th, long before dawn, after spending their Sabbath in the little town of Ware, the three clergymen started for London. They had travelled from Edinburgh on horseback, surprised at the inns, seeming to them "like palaces," which they thought accounted for exorbitant charges for coarse meals. In the dark they trotted forth from Ware, all well, "horse

1640, November.

and men, with divers merchants, and their servants on little nags," the road "extremely foul and deep;" and by sunrise that cold morning,—as the light woke up the slumbering city, as the smoke rose through the quaint chimneys from ten thousand hearths,—the three presbyters entered the metropolis.^[135] They lodged in the city close to London Stone,^[136] in a house which was wont to be inhabited by the Lord Mayor, or by one of the Sheriffs. St. Antholin's (or St. Anthony's) Church, connected with the mansion by a gallery, became their place of worship. There they soon had throngs as great as at their own communions, and daily the crowds increased to hear Mr. Henderson, so that "from the first appearance of day to the shutting in the light, the church was never empty." The lodgings by London Stone became the scene of many an earnest conference, and there Baillie wrote the letters and journals which afford us such an insight into public proceedings and religious life in London during that eventful winter.

The Scotch Commissioners soon saw the famous petition, from "the town of London, and a world of men, for the abolition of bishops and deans and all their appurtenances," and were consulted about the time of its presentation.^[137] They seem to have recommended delay, till Parliament should pull down "Canterbury and some prime bishops;" and Convocation should be visited with a *præmunire* for its illegal canons; and preachers have further opportunity of preparing the people to root out Episcopacy. "Huge things," Baillie told his friends, were working in England. God's mighty hand was raising a joyful harvest from long sown tears, but the fruit was scarcely ripe.

The tide of excitement could not be stayed. The London petitioners had not more desire, but they had less patience than the prudent ministers. On the 11th of December, as Baillie tells us, the honest citizens, in their best apparel and in a very modest way, went to the House of Commons, and sent in two aldermen with the document, bearing 15,000 signatures. It was well received. They who brought it were desired to go in peace, and Alderman Pennington laid the huge scroll upon the table.

Presbyterianism.

Another petition, prepared at the same time,^[138] came under Baillie's notice, who speaks of it as drawn up by the well-affected clergy for the overthrow of the bishops, and posted

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through the land for signatures, and as likely to be returned in a fortnight, with "a large remonstrance." "At that time," he exultingly adds, "the root of Episcopacy will be assaulted with the strongest blast it ever felt in England. Let your hearty prayers be joined with mine, and of many millions, that the breath of the Lord's nostrils may join with the endeavours of weak men to blow up that old gourd^[139] wicked oak." Whether the Presbyterian Commissioner had been misinformed respecting the Petition and Remonstrance, or whether the paper had undergone alterations after its first issue, this is certain, that when presented to the House on the 23rd January, it differed materially from that of "the Root and Branch," inasmuch as it prayed not for the subversion, but only for the reform of Episcopacy. It contained the names of seven hundred beneficed clergymen. Other petitions had been brought to the House. On the 12th of January several arrived, and that from Kent may be taken as a sample, in which the government of the Church of England by Archbishops, Bishops, Deans, and Archdeacons, was deplored as dangerous to the Commonwealth, and it was earnestly prayed that this hierarchial power might be totally abrogated, if the wisdom of the House should find it could not be maintained by God's word, and to His glory.^[140]

Petitions afterwards flowed in on the other side from Wales, Lancashire, Staffordshire, and other counties.^[141] High Churchmen talked about the way in which the Puritans and Presbyterians got up these documents. The signatures were fictitious. People were cajoled into writing their names—intended for one purpose, they were perverted for another. Such things might not be altogether without truth. But we are safe in believing, if tricks were played by one party they were played by the other also; and as at present, so then, whatever was done by either faction came in for an unmerciful, and often unrighteous, share of criticism from exasperated opponents.^[142]

While petitioners were busy, and the House of Commons had enough to do to hear their grievances, and debates were earnest, and two potent principles were embodied in the strife, the King watched it all with alarm for Episcopacy rather than with any apprehensions for his own personal safety. For his subjects were loyal and dutiful, and, according to Baillie, "feared his frown." He summoned both Houses of Parliament to Whitehall, on the 25th

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January, 1641, and, after professing willingness to concur in the reformation of the Church, added the following characteristic sentences: "I will show you some *rubs*, and must needs take notice of some very strange (I know not what term to give them) petitions given in the names of divers counties, against the present established Government, and of the great threatenings against the bishops, that they will make them to be but cyphers, or, at least, their voices to be taken away. Now I must tell you, that I make a great difference between reformation and alteration of Government, though I am for the former, I cannot give way to the latter. If some of them have overstretched their power, I shall not be unwilling these things should be redressed and reformed—nay, further, if upon serious debate you shall show me that bishops have some temporal authority inconvenient to the State, I shall not be unwilling to desire them to lay it down. But this must not be understood, that I shall in any way consent that their voices in Parliament should be taken away; for in all the times of my predecessors since the Conquest, and before, they have enjoyed it, and I am bound to maintain them in it as one of the fundamental constitutions of this kingdom."^[143]

After petitions from the people, consultations with the Scotch, cautions from the Crown, and preparatory proceedings in the House, the grand debate came on respecting the "Root and Branch" Petition. The debate lasted throughout the 8th and 9th of February, 1641. In the course of it, the mercurial royalist, Lord Digby, observed, he had reason to believe that some aimed at a total extirpation of Episcopacy, yet, whilst opposing such extreme views, he was for clipping the wings of the prelates; and, though condemning the Petition, he thought no people had ever been more provoked than England of late years, by the insolence and exorbitance of the bishops. "For my part," declared he, "I profess I am inflamed with the sense of them, so that I find myself ready to cry out with the loudest of the 15,000, "down with them, down with them, even to the ground!" Let us not, however," he added, "destroy bishops, but make bishops such as they were in primitive times." The independent Nathaniel Fiennes opposed Episcopal rule, maintaining that until the Church Government of the country could "be framed of another twist," and more assimilated to that of the commonwealth, the ecclesiastical would be no good neighbour to the civil: for as with children afflicted with the rickets, all nourishment goes to the upper parts, so in the rickety condition of the Church, while the hierarchy became monstrously

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enlarged, the lower clergy pined away. Bishoprics, deaneries, and chapels, he compared to wasters in a wood. The official Sir Benjamin Rudyard condemned bishops unsparingly, yet advocated episcopal superintendence: and afterwards the learned Mr. Bagshawe pedantically distinguished between Episcopacy primitive *in statu puro*, and Episcopacy *in statu corrupto*, pleading, at the same time, for a thorough reformation of abuses, and an alteration of Ecclesiastical government into a Presbyterian form. Sir Harbottle Grimstone also asked for a diminution of prelatical power.

The speakers who carried the greatest weight in this debate were Pym and Falkland. We have only a faint echo of the words delivered by the former. They were to the effect that he thought it was not the intention of the House to abolish either Episcopacy or the Book of Common Prayer, but rather to reform both, so far as they gave offence; and if that improvement could be effected with the concurrence of the King, Parliament would accomplish a very acceptable work, such as had never been done since the Reformation.^[144] Falkland's speech is fully reported. Very severe upon the conduct of the bishops generally, he made exceptions, and expressed himself content to take away what he said begot the mischief, such as judging wills and marriages, and having votes in Parliament. He denied the divine right, but would allow the human expediency of Episcopal rank. His opinion was, "that we should not root up this ancient tree, as dead as it appears, till we have tried whether by this, or the like lopping of the branches, the sap which was unable to feed the whole may not serve to make what is left both grow and flourish. And, certainly, if we may at once take away both the inconveniences of bishops and the inconveniences of no bishops, this course can only be opposed by those who love mutation for mutation's sake."

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The only person who boldly defended Episcopacy, and spoke in an Anglican tone, was Mr. Pleydell, member for Wootton Bassett. "Sir," said he, addressing Mr. Speaker, "there is as much beyond truth as on this side it, and would we steer a right course we must be sure to keep the channel, lest we fall from one extreme to another, from the dotage of superstition to the frenzy of profaneness, from bowing to idols to worship the calves of our own imagination." This honest gentleman lamented libellous pamphlets, Puritan

1641, Feb.

sermons, irreverence in churches, and the like; called himself a dutiful son of his distressed mother, the Church of England; pleaded for referring matters of doctrine to learned divines; and declared that to venture on any alteration was to run a risk, the consequences of which no man could foresee.^[145]

A scene unnoticed by our historians, but brought to light by the careful examination of Sir Symonds D'Ewes' journal, occurred during the debate.^[146] Alderman

Petitions.

Pennington, Member for London, vindicated the character of the anti-Episcopal petitioners, and maintained that in obtaining signatures there "was no course used to rake up hands, for if that had been done, 15,000 might have mounted to fifteen times 15,000." Then Sir John Strangways, Member for Weymouth, offered a few words in favour of Episcopacy, observing that "if we made parity in the Church, we must at last come to a parity in the Commonwealth, and that the bishops were one of the three estates of the kingdom, and had a voice in Parliament." Upon this Cromwell rose, and declared that "he knew no reason of those suppositions and inferences which the gentleman had made that last spoke." At this point some interruption occurred, and divers members "called him to the bar." After which Pym and Holles referred to the orders of the House, that if a gentleman said anything objectionable, he might explain himself in his place. D'Ewes followed this up by saying, "to call a member to the bar is the highest and most supreme censure we can exercise within these walls, for it is rending away a part from our body, because if once a member amongst us is placed at yonder bar, he ceaseth to be a member." He then moved, that if this offence of calling to the bar should be repeated, the offender should be well fined. Cromwell, who thus appears to have already become obnoxious to the Church party, must have still more annoyed his interrupter, when he proceeded to observe, "He did not understand why the gentleman that last spake (before the interruption) should make an inference of parity from the Church to the Commonwealth, nor that there was any necessity of the great revenues of bishops. He was more convinced, touching the irregularity of bishops, than even before; because, like the Roman hierarchy, they would not endure to have their condition come to a trial."^[147] This debate resulted in the petition being referred to a Committee which had been appointed to prepare subjects to be submitted to the House

—the House reserving to itself the main point of Episcopacy, which was to be afterwards taken into consideration. The speeches had shewn a remarkable coincidence of opinion as to the necessity of abridging prelatial power and Church influence; but they had also brought out discordant views in relation to Episcopacy itself, though few at present advocated its total abolition. As yet, it did not seem wise to the Commons to decide one way or the other on this important point, or to entrust the consideration of the question to a Committee; but as we look at the general complexion of the debate, together with the terms of the resolution, the exceptive clause would appear simply to mean that Parliament was not yet prepared to abolish Episcopacy.^[148]

The Committee divided the grievances complained of into nineteen heads, of which the principal were the inequality of benefices, the claim of the hierarchy to be a divine institution, the assumption of an exclusive power to ordain, the temporal power of the bishops, the holding of pluralities, and the scandalous lives of the Clergy.^[149] The challenge of the divine right of Episcopacy, though it seems to have come very near to the subject excepted in the resolution, was pronounced to be a proper point for enquiry; and a long and minute discussion followed, in which texts of Scripture and passages from the Fathers were cited and canvassed. It was voted at length that the "challenge of the divine right of Episcopacy is a question fit to be presented;"—the Committee in this respect indicating a desire that the House would proceed to discuss the point reserved, and also shewing by the tenor of their private conference, the strong Presbyterian element then at work amongst them. All the nineteen particulars were examined, and evidence collected respecting each—especially that which bore upon the conduct of scandalous bishops, whose speeches and quotations of Scripture are given at length, some in an incredible strain of impious levity. The Committee sat from the 10th to the 19th February. No formal discussion of the abstract question about the divine right of Episcopacy immediately followed the report of the Committee; but the influence of the report probably told upon the House, and prepared for an attack upon the bishops, which was made in the month of May.

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CHAPTER IV.

Whilst the Commons were receiving Puritan petitions, the Lords were presented with others of a different kind. The presence in the Upper House of Anglican bishops and noblemen, encouraged the Church party to make complaints to them of Puritan irreverence and interruption; and these complaints indicated very plainly, how the revolution of affairs had emboldened certain individuals to commit some very unseemly acts.^[150] At the same time, the gracious reception given by the peers to anti-Puritan memorials manifested a temper quite different from that which prevailed in the Lower House. Yet there was not altogether wanting on the part of their lordships a disposition to make some small concession to Puritan demands, with the view of saving the Church of England from changes of a more serious nature. Hence, in the early spring, they appointed a committee to consider the subject of innovations. This committee was empowered to consult with any divines whom they might wish to select; and when the selection had been made, a theological sub-committee was formed.^[151]

*Lords' Committee
on Innovations.*

Williams, Bishop of Lincoln, and Dean of Westminster, became convener of this committee of divines, and he presided over all the meetings. Though possessed of considerable knowledge and ability, and of an active turn of mind, this remarkable person had not the qualities necessary for ecclesiastical statesmanship in troubled times such as those in which his lot was thrown. His whole history supports the opinion that selfish policy formed the guiding star of his life; and there is little doubt that a key to such of his proceedings as favoured Puritanism may be found in his remark that "the Puritans were many, and strong sticklers; and if his Majesty would but give private orders to his ministers to connive a little at their party, and shew them some indulgence, it might, perhaps, mollify them a little, and make them more pliant, though he did not promise that they would be trusty long to any government."^[152] Williams cannot be honoured for any high moral or religious principle; he was very much of a time-server, and fondly loved popularity; indeed his whole history is in keeping with the keen and

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cunning expression of his handsome countenance seen in that portrait of him, with black hat and close ruff, which hangs in the dining-room of the Westminster Deanery.

We can believe what his biographer says respecting his management of the Committee:—

*Lords' Committee
on Innovations.*

"The Bishop had undertaken a draught for regulating the government ecclesiastical, but had not finished it. The sudden and quiet dispatch of all that was done already was attributed to the Chairman's dexterity, who could play his prize at all weapons, dally with crooked humours, and pluck them straight; bring all stragglers into his own pound, and never drive them in; foresee a tempest of contradiction the best that ever I knew, and scatter it before it could rise; and won all his adversaries insensibly into a compliance before they were aware. To this day they of the Nonconformists that survive, and were present, will tell you that they admired two things in him, in their phrase—his courtesy and his cunning."
[\[153\]](#)

The members met for a week in the Jerusalem Chamber, and were daily entertained by the hospitable Dean. This circumstance Fuller could not record without the witticism, that it was "the last course of all public episcopal treatments—whose guests may now even put up their knives, seeing soon after the voider was called for, which took away all bishops' lands, and most of English hospitality."
[\[154\]](#)

Just as Williams was summoning the divines to meet together to enquire into innovations since the Reformation, and to "examine the degrees and perfections of the Reformation itself," Laud wrote down in his diary, "This Committee will meddle with doctrine as well as ceremonies, and will prove the national synod of England to the great dishonour of the Church, and what else may follow upon it, God knows."
[\[155\]](#)

Though Laud was wrong in the importance which he attached to this mixed conclave, he was right enough in concluding that it would meddle with doctrines as well as ceremonies. This appeared very early; for it is alleged in the memoranda prepared for the Committee that there were some ministers who preached justification by works, the efficacy of penance, confession, and absolution, and the sacrificial character of the Lord's supper; that prayers for the dead

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were used, and monastic vows defended; also, "that the whole gross substance of Arminianism was avowed, and original sin absolutely denied:" and together with these notices of Romanist tendencies on the one hand, there appear references to Socinianism on the other. The introduction of these charges could not but lead to doctrinal controversy, and rumours soon got abroad that changes in the theological standards of the Church were under consideration.^[156]

The ceremonial innovations complained of were more numerous than the doctrinal. They included turning the holy table altar-wise; bowing to the east; the use of candlesticks upon the altar, so called; the construction of a canopy over it, with curtains on each side; the display of crucifixes and images upon the parafront or altar-cloth; reading some parts of the morning service at the table, when the communion is not celebrated; the employment of credence tables; the introduction of an offertory distinct from giving alms to the poor; and "singing the 'Te Deum' in prose, after a cathedral church way, in divers parochial churches where the people have no skill in such music." The last of the practices here enumerated might seem to occasion censure only on the ground of unfitness and want of taste, such as High Churchmen would disapprove; but all the other particulars in the paper, of which we have given only specimens, demonstrate that Puritan, if not Presbyterian pens were employed in drawing it up. Another proof of this circumstance is found in the reference to "standing up at the hymns in the church, and always at 'Gloria Patri.'" The finding fault with that shews the extreme length to which the Puritans went in their objections; and it is curious to observe, that standing up to sing, which was in the seventeenth century complained of as an innovation upon the reformed discipline of the Church, is now an almost universal practice in all communities of English Christians.^[157] A memorandum follows—which might have proceeded from the Episcopal portion of the Committee—to the effect that two sermons should be preached in all cathedral and collegiate churches on Sundays and holydays, and that there should be at least one lecture a week; but, again, Puritan influence appears in the expression of a desire that music should be arranged with less curiosity, and that no "ditties" should be "framed by private men."

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on Innovations.*

In reference to the Prayer Book, suggestions to the number of thirty-five occur, of which the following may be mentioned: expunging the names of some departed saints from the calendar; the disuse of apocryphal lessons; omitting the Benedicite; the making some discreet rubric to take away the scandal of signing the cross in baptism, or the abolition of that sign altogether; the enlargement of the Catechism; and certain changes in the Marriage^[158] and Burial Services, and also in that for the Visitation of the Sick,—changes of a kind such as have been commonly proposed by those who advocate a revision of the Prayer Book.^[159]

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A proposal for reforming the Episcopate which was volunteered by Williams, and was submitted by him on his own responsibility, without success, to the House of Lords,^[160] does not belong to the schemes of the Committee. It went no further than to propose that bishops should preach every Sunday under penalty for default; that none should be justices of the peace except the Dean of Westminster; and that prelates should have twelve assistants besides Deans and Chapters. Four of these assistants were to be appointed by the King, four by the Lords, and four by the Commons; and in the case of a see being vacant, they were to present three able divines to His Majesty, who was to nominate one of them to the Episcopal chair; no Dean or Prebendary was to absent himself from his cathedral above sixty days.

Other plans were drawn up by different persons with a view to the reconciliation of opposite parties, and there were moderate men who believed that, "but for some hot spirits who would abate nothing of episcopal power and profit," a compromise might have been effected. Perhaps it might; yet supposing some likelihood of peace through mutual concession at an earlier period, it admits of a question whether any possibility of it remained, now that the pent-up animosities of many years had burst out like the fires of a volcano. Theologians of a spirit like that of Ussher and others might have discovered grounds of union in spite of different views on some subjects; but a large majority of the divines who formed the two parties which then divided the Church, had reached conclusions irreconcilably opposed to each other. At all events, the semi-Puritan scheme of accommodation came to nothing. By the middle of May, the Committee had broken up, and when the reader

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reflects upon the crisis which affairs had reached, he will not wonder that the members abandoned the project in despair.

The Committee of the Commons appointed for considering the Ministers' Remonstrance of the 27th of January, had not been idle. They had made reports and submitted questions for discussion. The House consequently passed resolutions for reforming pluralities, removing bishops from the Peerage and Privy Council, and for excluding all clergymen from the commission of the peace. Orders were given to frame Bills accordingly.^[161]

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One of these Bills, which was introduced on the 9th of March, provided that no minister should have more than one living; that if he absented himself from his cure for forty days, he should forfeit his preferment; and that no member of the University should hold a benefice ten miles distant from his College, without living in the parish.^[162]

Another Bill, founded on the resolutions excluding clergymen from secular offices, came before the House on the first of April, when it was read a second time, and committed.^[163] The supporters of it argued:—"That there was so great a concurrence towards the passing this Bill, and so great a combination throughout the nation against the whole government of the Church, in which the Scots were so resolutely engaged, that it was impossible for a firm peace to be preserved between the nations, if bishops were not taken away, and that the army would never march out of the kingdom till that were brought to pass." Mr. Hyde, who afterwards, as Lord Clarendon, became his own reporter, replied that—"It was changing the whole frame and constitution of the kingdom, and of the Parliament itself; that, from the time that Parliaments began, there had never been one Parliament when the bishops were not part of it; that if they were taken out of the House there would be but two estates left, for that they, as the clergy, were the third estate, and being taken away, there was nobody left to represent the clergy, which would introduce another piece of injustice, which no other part of the kingdom could complain of, who were all represented in Parliament, and were, therefore, bound to submit to all that was enacted, because it was upon the matter with their own consent: whereas, if the bishops were taken from sitting in the House of Peers, there was nobody who could pretend to

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represent the clergy, and yet they must be bound by their determinations." Lord Falkland, who sat next to Hyde, then started up, and declared himself "to be of another opinion, and that, as he thought the thing itself to be absolutely necessary for the benefit of the Church, which was in so great danger, so he had never heard that the constitution of the kingdom would be violated by the passing that act, and that he had heard many of the clergy protest that they could not acknowledge that they were represented by the bishops. However, we might presume, that if they could make that appear, that they were a third estate, that the House of Peers (amongst whom they sat, and had yet their votes) would reject it."^[164]

What became of this measure we shall see before long. In March and April, Bills were brought before the Commons for removing the Star Chamber and High Commission Courts, but they were not presented to the Lords till the fate of Strafford had been sealed. After a fruitless attempt by the Peers to modify the Bill respecting the Star Chamber, that and the measure for extinguishing the other despotic tribunal were allowed to pass.^[165]

Before entering on the principal events of the month of May, it is proper to glance at a controversy, pending about that time, between bishops Hall and Ussher on the one side, and certain Presbyterians, together with John Milton, on the other. Hall had, at an earlier period, written his "Episcopacy by divine right." Now he appeared as the author of "An Humble Remonstrance," in defence of liturgical forms and diocesan Episcopacy. He was answered by five Presbyterian divines, the initials of whose names formed the word *Smectymnus*, under which ugly title their polemical production figures in literary history.^[166] The prelate insisted on the antiquity of liturgical forms, and on the apostolical origin of diocesan bishops. The Presbyters contended that free prayer was the practice of the early Church, and that no genuine liturgy can be traced up beyond the third century. They further maintained that the primitive bishop was a parochial pastor, or preaching presbyter, without superiority of order or any exclusive jurisdiction; that Presbyters of old ordained, and ruled, and that what they did at the beginning they had a right to do still. Hall published a rejoinder in defence of the Remonstrance. The Presbyters soon produced a Vindication. The Bishop now sought assistance from his friend Ussher, entreating him to bestow "one sheet of

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paper in such distracted times on the subject of Episcopacy." Ussher complied, and entitled his tract, "The original of Bishops and Metropolitans briefly laid down." This, as well as another tract from the same pen, on the position of the bishops of Asia Minor, issued from the Oxford press in the course of the year, in a collection which further included extracts from the writings of Hooker and Andrewes. Ussher argued, that from the writings of the Fathers a succession of bishops may be shown to have existed ever since the age of the Apostles; and that the Seven Angels of the Seven Churches were "seven singular bishops who were the constant presidents" over them. [\[167\]](#)

Milton, with characteristic ardour and eloquence, plunged into this warfare, and published no less than five treatises on the subject, advocating ecclesiastical reform, condemning prelatical Episcopacy, reasoning against its government, animadverting on the "Defence," and apologizing for Smectymnus. The poet's genius, and his mastery of English prose, are conspicuous in these pamphlets; but the ferocity of temper with which he here uses his scalping-knife is hardly less than what it was in his onslaught upon Salmasius. Andrewes and Ussher are treated as dunces by the imperious scholar, and Lucifer is called the "first prelate angel," by this violent Nonconformist. Yet, behind his bitterest invectives,—with which mercenary feeling or personal grudge had nothing to do—may be seen a virtuous indignation against superstition, formality, and despotism; and it is in the very midst of this stormy assault, that he pauses to speak of that more congenial work—the great poem which even then floated before his imagination—which was "not to be obtained by the invocation of Dame Memory and her syren daughters, but by devout prayer to that Eternal Spirit who can enrich with all utterance and knowledge, and sends out His seraphim with the hallowed fire of His altar to touch and purify the lips of whom He pleases."

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CHAPTER V.

The May-day of 1641 was as merry as usual, save where Puritan opinions interfered with its time-honoured festivities. The May-pole was brought into the City and reared at St. Andrew's Undershaft with the accustomed honours. The morris-dancers, with Robin Hood, Maid Marian, Friar Tuck, and the other appurtenances of the show, made sport for those citizens who were attached to the old order of things. And in spite of Stubbs' "Anatomie of Abuses," which exposed these sports as heathenish practices, such persons looked on them as the symbols of an anti-Puritan loyalty, and of an old-fashioned affection for Church and State. At the same period, preparations were being made at Whitehall for the nuptials of the Princess Mary and the Prince of Orange; and the next day, being Sunday, the bride was led into the Chapel by the Prince of Wales and the Duke of York, "convoyed with a number of ladies of her own age of nine and ten years, all in cloth of silver," when the King gave away the bride, and "good Bishop Wren made the marriage."^[168] The destinies of England were mysteriously connected with the consequences of this royal union, and little could the brilliant party before the altar, dream that from the wedded pair would spring a son, destined to cut off one branch of the Stuart dynasty for ever from the British throne; to complete the series of revolutionary events beginning to arise at the time of the marriage; and to establish for ages the civil and religious liberties of the English Constitution.

The month so inaugurated proved most eventful. During April the perils of the nation had been on the increase. Plots were contrived by the King's friends to bring up the army to London and force a dissolution of Parliament. Pym, on the 3rd of May, declared that "combinations at home" corresponded with "practices abroad," and that the French were drawing their forces towards the English shores; that divers persons of eminence about the Queen were deeply engaged in these plots; that it was necessary for the ports to be closed, and that it was time to ask His Majesty to forbid any one who attended Court to leave these shores without special permission. Sir John Wray, member for the county of Lincoln, made a speech immediately after

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Pym had spoken, in which he urged, that if ever it was meant to perfect and finish the great work begun, the right way must be followed, which was to become holy pilgrims, not Popish ones. This he explained as meaning that they were to be loyal Covenanters with God and the King; binding themselves by a national oath to preserve religion in this country, without mixture of superstition or idolatry, and to defend the Defender of the Faith, his person, crown, and dignity. Doing this, and making Jerusalem their chiefest joy, the nation would be blessed; but if the people let go their Christian hold, and lost their Parliament-proof and old English well-tempered mettle, let them take heed lest their buckler break, and their Parliaments melt away, and their golden candlestick be removed for ever. [\[169\]](#)

In consequence of these appeals, the Commons resolved upon a solemn Vow and Protestation, to defend, as far as lawful, "with life, power, and estate, the true reformed Protestant religion" of the Church of England, against all popery and popish innovations; to maintain the privilege of Parliament, and the liberties of the subject; and to endeavour to bring to condign punishment any person who should engage in conspiracy, or do anything contrary to this Protestation. [\[170\]](#) It was forthwith taken by every member, and then the document was sent up to the Lords. The peers present, except the Earl of Southampton and Lord Roberts, followed the example of the Commons. In two days the formulary had passed the lips of eighty temporal lords, seventeen bishops, nine judges, and four hundred and thirty-eight commoners. It was then printed and sent to the magistrates throughout the kingdom, with an order that it should be solemnly adopted on the following Sunday by heads of families and all persons of proper age. [\[171\]](#)

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House of Commons.*

Of course, questions arose as to the meaning of the words, in many cases, no doubt, after they had been sealed by oath. Episcopalians took the declaration to mean defending the Protestant religion, as in the Church of England by law established. No such thing, said the Puritan majority of the Lower House; it includes not the hierarchy. It is *against* all popery and popish innovations, not *for* the discipline worship and ceremonies of the Church as they stand at present. [\[172\]](#) The Commons, having so explained their own measure, afterwards passed a Bill for its universal enforcement, which however was

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objected to by the Lords. A conference between the two Houses followed, conducted by Denzil Holles, who defended the imposition of the oath, as a shibboleth to distinguish Ephraimites from Gileadites. With his reasons, "after some debate, the Lords seemed satisfied."^[173] The proceeding shewed the alarm of the representatives of the people, lest they should be checkmated by their opponents. It indicated a determination to abide by what had been done, and further to grapple with all Papistical tendencies; whilst the Protestation itself anticipated the more famous Covenant of an after year, much to the joy of Robert Baillie, who, writing from his house in St. Antholin's, on the 4th of May, informed a Scotch brother: "After much debate, at last, blessed be the name of the Lord, they all swore and subscribed the writ, which here you have, I hope in substance, our Scottish covenant."^[174] The intolerance and injustice of the imposition could not be seen in those days as it is in ours. Intended to secure liberty for such as were counted its only friends, it in fact partook of that very injustice, which, when exercised on the other side, appeared intolerable.

The resolute temper of the House of Commons, in resolving upon the enforcement of the Protestation in spite of the Lords, is to be ascribed very much to the new position in which the House had placed itself. Mistrusting the intentions of the King, fearful of another dissolution, which would frustrate all patriotic plans, the representatives of the people had passed a Bill to render Parliament indissoluble until it should dissolve itself. The Bill was read a third time on the 7th of May, and such was the ascendancy of the Commons, that the King—either struck for a moment, as if by the eye of a basilisk, or intending to violate the Act, should it be in his power; or influenced by "his own shame and the Queen's consternation at the discovery of the late plot"^[175]—gave his assent to the fatal measure only two days after it had passed the Lords.

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House of Commons.*

During the progress of the Protestation, the Londoners manifested the greatest excitement; crowds assembled in Palace Yard, and the King sent a message to the House of Lords to say, that, taking notice of the great tumult and concourse of people, he had called a council to advise what should be done, and it was his pleasure that Parliament should adopt some speedy course for preserving peace.^[176] A laughable circumstance occurred amidst this panic.

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Two fat citizens, in the gallery of the Commons, stood earnestly listening to Sir Walter Erle, whilst he was descanting on the dangers of the times. Just then, an old board gave a loud creak, and Sir John Wray, imagining a second Guy Fawkes concealed in the cellar, called out, "he smelt gunpowder." This was enough. Knights and burgesses rushed out and frightened the people in the lobby, and the people in the lobby ran into Westminster Hall, crying, "the Parliament House was falling, and the members were slain." A few, scampering as fast as they could to Westminster Stairs, took water, and rowing at the top of their speed, reached the City, where they caused the alarm drums to beat, and the train bands to march as far as Covent Garden. All this arose from the creaking of a rotten board. [\[177\]](#)

The exposure of these idle fears did not, however, compose the House; for, on the 10th of May, members were in such consternation about a gunpowder plot, that the Serjeant-at-arms received an order to get the holes of the floor examined and stopped up; also a committee of five proceeded carefully to search the building to discover and prevent the designs of any ill-affected persons who might be imitating the example of Guy Fawkes. Whilst we smile at these unfounded terrors, we must believe some real danger to have been in the wind, to make strong hearts, such as beat in the Long Parliament, thus flutter with apprehension.

About the same time London echoed with "No popery riots." The presence of Marie de' Medicis in England excited immense uneasiness; and the zeal of that lady and her daughter, Queen Henrietta Maria, on behalf of the interests of the Roman Catholic religion, came to be regarded by Puritan citizens as a fountain of intrigue. At the end of April, the London apprentices—a class always foremost in city frays—catching the spirit of their sires and elders, gave it violent expression, by assaulting the Spanish ambassador's house in Bishopsgate Street, threatening to pull it about his Excellency's ears, and to take his life in revenge for permitting English Papists to frequent his chapel. [\[178\]](#)

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Other tumults and a deeper excitement appear in connexion with the trial of Strafford. Though the charges against him were chiefly of a political character, and his overthrow was accomplished mainly for political reasons, yet the religious feelings of the Puritans were intensely excited against this

arbitrary chieftain, as the friend of Laud, and the abettor of his High Church policy. They saw in him the evil genius of the past, and his removal seemed to them essential for accomplishing the ecclesiastical reforms which they desired.^[179] The conclusions which a student will reach, or the doubts that he will entertain touching the righteousness of Strafford's attainder and sentence, depend entirely upon the point of view from which he may regard the question. No wonder that lawyers now pronounce the attainder infamous.^[180] Looking at the statutes of treason, it is impossible to bring the conduct of the Earl within their scope. The subversion of the fundamental laws of the kingdom, with which Strafford was charged, can never be fairly construed into an act of treason against the King. But politicians, examining the subject on grounds of expediency, may regard the proceeding as one of necessity to save the liberties of England. They may also think, as some did at the time, that "stone dead hath no fellow"—that the only effectual way of getting rid of so formidable an enemy was at once to put him in his coffin; and, as a matter of state policy—overriding all statute and common law—such persons will pronounce the execution of Strafford perfectly justifiable. But when the moralist comes to investigate the matter, it assumes a different aspect. He will admit—unless he be under the influence of strong political prejudices—that the Earl was guilty of high crimes and misdemeanours; and that, though not guilty of treason at common or statute law, he was guilty of subverting the principles of the constitution. On grounds therefore of moral equity, it was right to inflict some punishment on the offender. But to what extent? Perpetual imprisonment, with proper precautions against rescue, might have sufficed to meet all which political expediency required. Sent out of the way, shut up in some strong castle, the Earl might have been rendered perfectly innocuous; and it may fairly be contended further, that such a proceeding would have accomplished the ends of justice—that such an expiation ought to have satisfied the moral indignation of the country. Yet, when that point is settled, another arises, which demands consideration from the historian.

While, free from the excitements of the seventeenth century, we calmly look at Strafford's deserts, is it fair to apply our standard of judgment to the patriots and Puritans of 1641 who took part in his condemnation? Right and wrong, it is true, in themselves are unalterable and eternal, but there are almost infinite

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degrees in the blameworthiness of men doing wrong, as there are in the meritoriousness of men doing right. Allowance being made for different ideas of criminal jurisprudence in the times of the Stuarts from those now current; and excuses being admitted for stern severity provoked by long oppression,—the patriots and Puritans who put Strafford to death must not be condemned as men would be who had done such a thing in our own times. If it be allowed that the Puritans acted under a sense of mistaken justice; that, standing before the bar of Heaven, they could lay their hands on their breasts, and plead the convictions of conscience and the impulses of patriotism; then, however condemnatory the deed, lenient should be the sentence on the offenders. I am not however prepared to contend for the absence of all vindictiveness in the men who brought Strafford to trial, and then sent him to the scaffold. One cannot but fear that a large amount of alloy was mixed up with the purity of their justice. But that must be left for the decision of a far different tribunal from any which we can erect.

Every reader of English history is aware of the perplexity of Charles when required by Parliament to sanction the death of his Minister. He did not believe Strafford guilty of treason, and he consequently regarded his execution as unjust. Yet he sought for some method of pacifying his conscience, and consulted certain Bishops^[181] as to the course that he should pursue. The general advice they gave is reported by the most distinguished of the counsellors. Ussher puts it thus: The matter of fact must be distinguished from the matter of law; of the matter of fact the King may judge; if he do not conceive the Earl guilty, he cannot in justice condemn him; but as for law, what is treason, and what is not, the King must rely on the opinion of the judges.^[182]

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This casuistry of Charles's advisers indicated the timid expediency of politicians rather than the grave righteousness of God's ministers. But what followed was much worse. One of them—probably Williams—suggested a distinction between the public capacity of Charles as a king, and the private capacity of Charles as a man; a distinction worthy only of a Jesuit, and such as, if allowed, would tear up the roots of all morality in official life.^[183] It appears that the other prelates were not responsible for this suggestion. Still reserve is seen on the part of the best men amongst the monarch's advisers,

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very unlike the outspoken habits of old Hebrew prophets. In their conduct there is much to provoke censure, though in their circumstances there is something to suggest excuse.

In justice to Ussher, let it be added, that he recommended the King not to consent to the Earl's condemnation unless he was convinced of his guilt. Charles himself declared, "After the bill was passed, the Archbishop came to me, saying, with tears in his eyes, 'Oh, Sir, what have you done? I fear that this act may prove a great trouble to your conscience, and pray God that your Majesty may never suffer by the signing of this Bill.'" The Episcopal party, though they did nothing decidedly against the execution of Strafford, ever afterwards regarded it as a dark spot in their royal master's history. They were certainly themselves not free from blame, for if they regarded the proceeding as they said they did, it became them to do their utmost to save Strafford's life. But the truth is, as the Minister was made a Jonah to still the storm, so the Monarch was made a scape-goat to bear the responsibility of throwing him overboard. With the superstition natural to a man wanting in straightforward principle, Charles, in the midst of his after troubles, promised to expiate his offence by public penance, should he ever be restored to his throne. That day of penance never came: but the moral effect of Strafford's dignified conduct in prison and on the scaffold has been such as to soften the opinion of posterity respecting his character, and to increase the condemnation pronounced by history upon Charles for consenting to his death. Strafford's last moments were the noblest of his life. The scene, as he knelt under Laud's window in the Tower to receive his benediction, touches English hearts to this very hour; pity is felt for the man going to his doom on the adjoining hill, which would never have been inspired had his fate been imprisonment instead of death. Both injustice and impolicy are sure to meet revenge, as Providence slowly knits up the threads of time.

Strafford fell on the 12th of May. Amidst the mingled awe and exultation of the moment—whilst the name of the nobleman who had perished passed from lip to lip through London, and the sawdust on the scaffold continued moist with blood—the House of Commons calmly sat to hear an appeal respecting Deans and Chapters. The men, who unconscious of guilt had brought Strafford to the block, and had thus swept from their path a huge obstacle,

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were at this awful moment quietly pursuing their measures of ecclesiastical reform. The event of the morning, however, one would imagine, came too vividly before them to allow of perfectly serene attention to the pleadings carried on in their presence.

Great alarm had been felt for the safety of cathedral establishments, although no measure at present had appeared in either House affecting their dignity or diminishing their revenues. But reports of approaching danger were rife, which did not at first alarm and arouse the "prelatical court clergy" so much as it did some others. They waited to see distinctly what impended before attempting a defence. Now they bestirred themselves and prepared petitions, and being informed that the order of the House would not permit of their employing counsel, they delegated Dr. John Hacket, Prebendary of St. Paul's and Archdeacon of Bedford, to plead their cause. On this 12th of May, Hacket came up to the bar of the House to fulfil an office which, he said, had been assigned to him only the afternoon before. He pleaded, that cathedrals supplied the defects of private worship, though he quaintly admitted that—through the super-inquisitiveness of the music—what was intended for devotion vanished away into quavers and airs, whereof he wished the amendment; and passing to what he termed "the other wing of the cherubim," he expatiated on the excellent preaching supplied by these establishments; refuting, by the way, slanders on lecturers as an upstart corporation, and shewing that the local statutes of most cathedrals required week-day lectures. The advocate urged further, that Deans and Chapters advanced the cause of learning, and provided persons for defending the Church. Moreover, he said, the institute comported with primitive usage, being in fact a *senatus episcopi*, and therefore meeting a want of which some of his reverend brethren complained. Warming with his subject, he praised the magnificence of cathedral buildings, mentioned the number dependent on the foundations, insisted on the excellence of Deans and Chapters as landlords, and their enrichment of cities by their residence and hospitality. The Doctor proceeded to uphold cathedral revenues as prizes to stimulate lawful ambition, and contended for a better maintenance of the clergy than in neighbouring reformed Churches—that they might not be like "Jeroboam's priests, the basest of all the people." To destroy Deans and Chapters, he added, would please the Papists—to preserve them would benefit the nation. He concluded by observing that the honour of God was

Deans and
Chapters.

at stake in this matter, that alienation of church property would be sacrilege, and that "on the ruins of the rewards of learning no structure can be raised but ignorance; and upon the chaos of ignorance nothing can be built but profaneness and confusion."^[184]

Dr. Cornelius Burgess, a London lecturer of Presbyterian principles, appeared in the afternoon of the same eventful day, and indulged in "a vehement invective against Deans and Chapters," their want of Scripture authority, and their utter unprofitableness. He charged some of the singing men with debauchery, and all with uselessness.^[185] Yet he considered it unlawful to convert the revenues to private uses. In his opinion they ought to be consecrated to public purposes of a religious kind. After hearing the arguments of Hacket and Burgess, the House allowed the matter to stand over for a while. Hereafter we shall have to notice its re-appearance.

The Commons a few days afterwards (May 17) gave signs of coming under Presbyterian influence. Having debated certain propositions presented by the Scotch commissioners, they reciprocated by resolution the affectionate regards of their brethren, and their desires for uniformity in Church government. They went so far as to pledge themselves to proceed in due time with reformatory measures, such as should "best conduce to the glory of God and the peace of the Church." Three days subsequently, the House set aside the oath of canonical obedience, by voting that no minister should be obliged to take any oath upon his induction, except *such as Scripture warranted*.^[186] In all this, a current of feeling against Episcopacy is distinctly visible.

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The Bill for "Restraining Bishops from intermeddling with Secular Affairs" came again under debate. It had been sent to the Upper House on the 1st of May, when Bishop Hall made a speech against it.^[187] The Bill reached a second reading, and was committed on the 14th. Whatever idea of compromise by passing this measure might have existed among the Commons, no such idea was entertained by the Lords. They disputed the question with all the logic and eloquence they could master; evidently regarding the overthrow of this measure as of vital moment. The Right Reverend bench stood firm, and the Bishop of Lincoln—to shew that his committee of accommodation meant nothing prejudicial to the order—boldly defended it in a speech which was

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full of learning and rhetoric. Lord Viscount Newark also strenuously opposed the Bill; but it received earnest support from the Puritan Lord Say and Sele. Yet the latter wished their lordships not to regard it as introduced with any ulterior view,—telling them, it meant not the taking away of Episcopacy *root and branch*, but only the lopping off exuberant and superfluous boughs which now wasted the juices of the tree. The Lords feared the consequence of passing the bill, and deemed the episcopal status amongst them as of ancient and inalienable right. So they resolved, that Archbishops and Bishops should have "suffrage and voice as ever;" but to the other propositions they agreed, viz:—that prelates should have nothing to do with the Star Chamber Court or the Privy Council, and that no clergyman should be any longer a Justice of the Peace. These points a year before—had Strafford and Laud conceded them when they were in power—would have been counted an immense concession. But ecclesiastical as well as political matters had since passed through a whole heaven of change; therefore the three articles granted by the Lords were by the Commons deemed trifles unworthy of acceptance apart from the first.

On the 24th of May, the resolution described passed the House of Lords. The impression which it made on the Commons is plain from what ensued. The patriots knitted their brows when the tidings reached them, and compressed their lips in firm determination to subdue the lordly prelates. We now reach an important crisis.

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The Commons assembled as usual on the 27th of May. A petition came from the Lincolnshire farmers and burghers, with many hands to it, praying for the abolition of the government of Archbishops and Bishops, and their numerous subordinates.^[188] As the gentlemen in broadbrimmed hats and scanty cloaks with goodly neck-ruffs or ample collars sat gravely pondering these ominous petitions,—suddenly, from a well-known voice, a short speech broke on their ears like the explosion of a bombshell. On the southern, or right-hand corner of St. Stephen's Chapel, a ladder might have been discovered, leading up to a gallery where certain members were accustomed to sit. Sir Arthur Haselrig commonly took his place there. That morning Sir Edward Dering was seen striding up the ladder to a seat next Sir Arthur. The member for Leicestershire held close and earnest conference with the Kentish knight. A paper was pressed into his hands, and after a

hasty perusal, with a good-natured air of importance, he rose, leaned over the gallery, and made the following impromptu remarks:—

"Mr. Speaker—The gentleman that spake last, taking notice of the multitude of complaints and complainants against the present government of the Church, doth somewhat seem to wonder that we have no more pursuit ready against the persons offending. Sir, the time is present, and the work is ready perhaps beyond his expectation. Sir, I am now the instrument to present unto you a very short but a very sharp Bill, such as these times and their sad necessities have brought forth. It speaks a free language, and makes a bold request. It is a purging Bill. I give it you as I take physic, not for delight but for a cure. A cure now, the last and only cure, if as I hope all other remedies have been first tried, then—*immedicabile vulnus*, &c., but *cuncta prius tentanda*. I never was for ruin so long as I could hold any hope of reforming. My hopes that way are even almost withered. This Bill is entitled, 'An Act for the utter abolishing and taking away of all Archbishops, Bishops, their Chancellors and Commissaries, Deans, Deans and Chapters, Archdeacons, Prebendaries, Chanters, and Canons, and all other their under officers.' Sir, you see their demerits have exposed them, *publici odii piaculares victimas*. I am sorry they are so ill. I am sorry they will not be content to be bettered, which I did hope would have been effected by our last Bill. When this Bill is perfected I shall give a sad aye unto it; and at the delivery in thereof, I do now profess beforehand, that if my former hopes of a full Reformation may yet revive and prosper, I will again divide my sense upon this Bill, and yield my shoulders to under-prop the primitive, lawful, and just Episcopacy; yet so as that I will never be wanting with my utmost pains and prayers to root out all the undue adjuncts and superstructures on it. I beseech you read the Bill, and weigh well the work."[\[189\]](#)

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It was an odd speech for any man to make who had undertaken so grave a business, and it looked doubly odd that Sir Edward Dering should father such a motion; seeing that, though he was a Puritan, he professed to love the Episcopal Church. Men stared and wondered. A pause followed. Then some one moved, that the Bill might not be read:—

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"That it was against the custom and rule of the House that any private person should take upon him, without having first obtained the leave and

direction of the House to bring in a new Act, so much as to abrogate and abolish any old single law; and therefore that it was wonderful presumption in that gentleman, to bring in a Bill that overthrew and repealed so many Acts of Parliament, and changed and confounded the whole frame of the government of the kingdom."^[190]

The Bill, however, was then read a first time. On the motion for the second reading, Sir John Culpeper, one of the popular party, opposed it on the ground, that Episcopal government was not beyond all hope of reformation. He advised the House to see what the Lords would yet do with the Bill sent up to them. D'Ewes supported the second reading. Sir Charles Williams, member for Monmouthshire, opposed it, declaring that he would divide the House, though there should be "but six noes." For this he was called to account, and compelled to apologize, to "the good satisfaction of the House." The second reading passed by 139 to 108. On a resumption of the debate, Pleydell and Hyde took the lead in opposing the measure. The latter argued that Church and State had flourished many centuries under the present ecclesiastical rule, and that the Bill must not be hastily adopted, since it contained matter of great weight and importance. D'Ewes promptly replied, that the existing ecclesiastical rule had hardly reached its hundredth year. Hyde would have rejoined, but the House did not allow him so to do. Holles and Pym followed, contending that bishops had well nigh ruined all religion, and complaining that they had determined to continue in the Upper House, despite the opposition of the Lower. The Commons ordered the Bill to be committed on the 3rd of June. It was then deferred to the 11th of the same month.^[191]

Dering's conduct at the time appeared a mystery. Afterwards he explained,^[192] that he had nothing to do with the preparation of the measure—that it was entrusted to him by Sir Arthur Haselrig, who had received it from Sir Harry Vane and Oliver Cromwell. It further appears, that he scarcely read the motion before moving its adoption. Haselrig's connection with this bold proceeding, as well as with Strafford's attainder, are proofs of his having then assumed a prominent position amongst ultra-politicians; but the character of the measure would rather suggest that Sir Harry Vane must really have been its author. Cromwell's relation to it is also worthy of notice, as it indicates his advanced opinions at the period, and his already

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active and influential statesmanship. According to Clarendon, the Solicitor General, Oliver St. John, "the dark-lantern man," had drawn up the Bill—a statement, which, if true, shows another of the republican commonwealth men taking up an extreme position at the outset of the strife.^[193]

No doubt the concocters of this design considered that it would meet with better acceptance if presented by a merely doctrinal Puritan; and it indicates the excited temper of the Commons at the moment, and how the resistance of the Lords had wrought them up to a resolution of frightening mitred heads—that the Bill immediately came to a second reading, and that too by such a majority. Moreover, it expressed growing indignation against the course of oppression with which Episcopacy stood identified. For long years the Church had been sowing the wind—now, in a few short hours, it reaped the whirlwind. To those who wished to get rid of Episcopacy altogether, the proceedings of the Lords, although very exasperating, would not be altogether unwelcome, as advanced politicians might gather from it an argument against what they deemed to be half-measures. They asked—since bishops cling so tenaciously to their temporalities, would it not be as easy to get rid of both, as to tear one from the other? Some moderate men, discouraged and annoyed, were thus thrown into the arms of excited companions. Policy led them on to extremes, hoping that the boldness of the people's representatives now in the ascendant, would alarm the Lords, especially the spiritual ones, and induce them to give way, even on a point where they had staked their fortunes and planted the defence of their order.

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As the business of Dering's bill was under debate, a message arrived from the Upper House, signifying a readiness to concur in the Bill which they had already received, excepting only the clause for taking away the bishops' votes. "This message," we are told, "took little effect with the Commons."^[194]

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A conference followed on the 3rd of June, when the peers were as decided as the Commons. They contended that there could be no question of the bishops' right to sit in Parliament, as well by common and statute law as by constant practice; and they further declared, that they knew of no inconveniences attending the privilege; still, if there were any, they were ready to consider them.^[195] In reply the Commons alleged, that

intermeddling with secular business hindered the exercise of ministerial functions, and that bishops should devote themselves entirely to their spiritual vocation. They added, that councils and canons forbid their engaging in secular affairs—that the twenty-four bishops are dependent on two archbishops—that with a peerage only for life, they are ever hoping for translation—that of late several prelates had encroached on the liberty of conscience belonging to His Majesty's subjects, and would still do so—and that they were pledged in their parliamentary character to maintain a jurisdiction grievous to the three kingdoms, and already abolished in Scotland, while it was petitioned against both in England and Wales. Finally, the Commons urged that rank as peers placed the prelates at too great a distance from the rest of the clergy. The arguments of neither House satisfied the other. The Commons could not accept the answer of the Lords. We will, declared they, have the whole Bill or none. Then, replied the Lords, you shall have none; and threw it out altogether. A wedge had before entered the oak of the English constitution. This blow split the two branches asunder, and they stood apart wider than before.

The Commons went on their way, and framed a piece of Sabbath legislation, by prohibiting bargemen and lightermen from using their barks on the day of rest.

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Further, they separated ancient usages from parish perambulations, by requiring that no service should be said, nor any psalms sung when such perambulations took place. And then—perhaps to cover the measure against the bishops with some show of zeal for clerical order—the House reproved some poor people brought before them for schismatical irregularities. [\[196\]](#)

Needing themselves a lesson on religious liberty, the Commons resolved to follow up their attack on those whom they considered to be its greatest enemies. "We

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fell upon the great debate of the Bill of Episcopacy," observes D'Ewes, in his Diary, June 11. "Robert Harley, as I gathered, Mr. Pym, Mr. Hampden, and others, with Mr. Stephen Marshall, parson, of Finchingfield, in the county of Essex, and some others, had met yesternight and appointed, that this Bill should be proceeded withal this morning. And the said Sir Robert Harley moved it first in the House, for Mr. Hampden out of his serpentine subtlety did still put others to move those businesses that he contrived." [\[197\]](#) From this passage it appears, that Pym had within six months made a

considerable advance in his advocacy of ecclesiastical reform. It will be recollected, that in January he "thought it was not the intention of the House to abolish Episcopacy," but now before Midsummer he seems to agree in opinion with the "root and branch men." Hampden, probably, entered the Long Parliament with at least a deep suspicion of the inexpediency of upholding episcopal rule: and both he and Pym were now in close conference with Stephen Marshall, the famous Presbyterian divine: who, by the way, affords an instance of the active part in political movements for the overthrow of bishops, which even then had begun to be taken by clergymen of his order. D'Ewes further reports:—"So after a little debate the House was resolved into a committee, and Mr. Edward Hyde (a young utter-barrister of the Middle Temple), upon the speaker's leaving his chair, went into the clerk's chair, and there sat also many days after." The making Hyde chairman was a stroke of policy—so he says himself—on the part of those who were favourable to the Bill, on the ground that thus he would be prevented from speaking against it.

According to his own account, he amply revenged himself, and proved no small hindrance, by mystifying questions and frequently reporting "two or three votes directly contrary to each other," so that after nearly twenty days spent in that manner, the Commons "found themselves very little advanced towards a conclusion."^[198] The trick indicates the character of the man; and the confession of it years afterwards, is a sign of his effrontery; indeed, the whole of his conduct on this occasion proves how little he could have had at heart the interests of Episcopacy, not to speak boldly on its behalf, and vindicate that which he professed was venerable in his eyes, in this the crisis of its fate and the hour of its humiliation.

In the course of debate, Sir Harry Vane advocated the abolition of Episcopacy, inveighing against it as a plant which God's right hand had not planted, but one full of rottenness and corruption, a mystery of iniquity fit to be plucked up and removed out of the way. Yet he did not advocate what would now be called the separation of Church and State; nor did he enter upon the defence or exposition of any broad principle of religious liberty. At the same time, Waller, the poet—a lively speaker, who, even at the age of eighty, could amuse the House with his badinage and wit—protested against further attacks on Episcopacy, now that its horns and claws were cut and pared. He

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was, he said, for reform, not for abolition. Upon the close of the debate on the 11th—which lasted from early in the morning till late at night—the committee, in spite of Mr. Hyde's expedients, resolved on the preamble of the Bill: "Whereas the government of the Church of England by archbishops, bishops, their chancellors, and commissaries, deans, archdeacons, and other ecclesiastical officers, hath been found, by long experience, to be a great impediment to the perfect reformation and growth of religion, and very prejudicial to the civil state and government of this kingdom."[\[199\]](#)

On the 15th June, during an earnest discussion relative to the abolition of cathedral chapters, Mr. William Thomas, member for Carnarvon, related to the House the history of Deans, tracing them up to the time of Augustine, who describes each as having the care of ten monks; and then he asked, "whether the office, as now it is exercised, be the same as then?" "They are deceived that urge it," the Welsh representative proceeded to say, "and they should know that this judicious House is able to discern and distinguish a counterfeit face of antiquity from the true. In vain do they, with the Gibeonites, labour to deceive us by old sacks, old shoes, old garments, old boots, and old bread that is dry and mouldy; therefore to no purpose and causelessly do they charge us to affect novelty, by our offering to take away church governors and government." He narrated stories of wicked deans; and said much about church music, as tickling the ear, without touching the heart, "whilst, as Augustine complaineth of himself, most were more moved by the sweetness of the song, than by the sense of the matter—working their bane like the deadly touch of the asps in a tickling delight—or as the soft touch of the hyena, which doth infatuate and lull asleep and then devoureth." Sir Benjamin Rudyard, who had before declared himself for Church reform, and still advocated it, offered some defence of cathedral establishments on the ground of their being conducive to the promotion of piety and learning. He deplored the selfishness which, in certain cases, led to the alienation of ecclesiastical property at the time of the Reformation; he warned his hearers against looking on Church lands with a carnal eye, and he besought them to search their hearts, that they might pursue sincere ends, without the least thought of saving their purses. Mr. Pury, alderman and member for Gloucester, produced the statutes which ordained that Deans and Canons should always reside within the cathedral's precincts, exercising

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the virtues of hospitality; that they should preach the Word in season and out of season, especially in the cathedral church and attend to the education of the young; and that they should have a common table in the Common Hall, where the canons, scholars, choristers, and subordinate officers should meet together. The Alderman then proceeded to observe, that not one of the statutes was kept, that the Dignitaries came once a year to receive the rents and profits of the lands, but did not distribute to the poor their proportion; that they neither mended the highways and bridges, nor kept any common table; and instead of preaching the gospel, they neglected it themselves, and did not encourage the discharge of the duty by others.^[200] Throughout this debate the unpopularity at the time of that class, commonly termed the dignified clergy, appears in a very distinct and serious form. They had so completely identified themselves with the High Church party; they had become so imbued with the spirit of pride and intolerance; they had been so selfish in the exaction and enjoyment of their revenues; and they had been so unmindful of their spiritual duties, as to separate themselves from public sympathy:—a consequence which no class of religious ministers, whatever may be their legal and social position, can long afford to brave; a result which the highest privileged orders have never at last been able to face with impunity.

The discussion ended with a resolution that Deans and Chapters, and all Archdeacons should be utterly abolished, and that their lands should be employed for the advancement of learning and piety, competent maintenance being afforded to those who might thereby suffer loss, provided that they were not delinquents. The House further resolved, that the forfeited property should be entrusted to feoffees, that the bishops' lands should be given to the King, except advowsons and impropriations, and that competent funds should be reserved for supporting preachers in cathedrals, and for repairing the sacred edifices.

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Proceeding with the business respecting Deans and Chapters, the committee did not drop the question of Bishops. On the 21st of June no change had come over the pleadings of the originator of the whole discussion. Dering's anti-prelatical zeal had not yet begun to wane, although he now complained of his adopted Bill as defective, and insisted on the importance of deciding on

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a future form of government before abandoning the present. He still alluded to existing Episcopacy in disrespectful terms, and advocated the introduction of a Presbyterian element into ecclesiastical rule. Dioceses, he said, were too large, and diocesans needed grave and able divines, assessors and assistants, amongst whom they were entitled to have the first place and to exercise the chief power. Then turning to the chairman for an illustration, the lively baronet observed: "Mr. Hyde, yourself are now in this great committee; Mr. Speaker is in the House the bishop of our congregation." "You,"—addressing himself to both gentlemen—"are in yourselves but fellow-members of the same House with us, returned hither (as we also are) to sit on these benches with us, until by our election, and by common suffrage, you are incathedrated. Then you have (and it is fit and necessary that you should have) a precedency before us and a presidency over us. Notwithstanding this, you are not diversified into a several and distinct order from us. You must not swell with that conceit. You (Mr. Chairman and Mr. Speaker) are still the same members of the same House you were, though raised to a painful and careful degree among us and above us. I do heartily wish that we had in every shire of England a bishop such and so regulated for Church government within that sphere, as Mr. Speaker is bounded in, and limited by the rules of this House."^[201]

The comparison was as amusing as it was pertinent, and fell in with the prevalent opinion of the Puritan party, that if bishops were retained in England it must be according to a greatly reduced standard of authority and power, and one that should resemble the dimensions of the Episcopal office, as many believed it to have existed in the first and second centuries of the Christian era.

1641, June.

Before we terminate this chapter, another subject requires notice. The Long Parliament, at an early period, turned its attention to the character of the clergy. So many complaints were made against them, that the committee for religion, in the month of May, divided itself into sub-committees, whose business it was to investigate clerical scandals. Their proceedings have been subjected to severe criticism. It is said by Nalson, that accusations against the best ministers, by malicious persons, were invited and encouraged, and then admitted without any proof.^[202] But this statement receives contradiction from the evidence which was laid before the Committees, and is still preserved; and though some portion of it might be untrustworthy, as

is the case in every kind of judicial trial, other parts of it appear of a nature not to be gainsayed. In conducting these enquiries the practice was to receive written evidence, a practice borrowed from the Court of Arches, where the method of procedure is by libel and affidavit. Englishmen prefer the *vivâ voce* testimony of witnesses before a jury; yet there are not wanting men of judgment, in modern times, who favour a written statement of fact. At any rate, the Committees could plead precedent for the course which they pursued, and as the causes which came before them were ecclesiastical, they did but adopt the usages of ecclesiastical courts. The constitution of the tribunal, rather than the mode of trial, is open to exception. There is no vindicating the former but on the fundamental principle of all revolutions, that old authorities having become thoroughly corrupt, new ones must be constituted by the popular power—in such cases the supreme power—to meet emergencies arising out of previous derangement.

Cases which came under the notice of White's committee were published at a later period in his "Century of Scandalous Ministers."^[203] On comparing that extraordinary volume with the proceedings of the Kent and Essex Committees, we must be struck with the large proportion in the former, not merely of allegations touching immorality, but of charges respecting the foulest and most atrocious crimes. Most of the complaints before Sir Edward Dering^[204] related mainly to delinquencies of a theological, ecclesiastical, or political description; and the same may be said of the accusations brought against the Essex ministers: but on turning over White's pages we are nauseated with the filthiest accusations and the most abominable stories. If only half of them be true, he assuredly was supplied with abundant proofs of the extensive and utter degradation of the clergy. But some of the narratives seem to us so absurd as almost to defy belief; yet supposing that they are truthfully related, it is evident there existed in the parishes of England, at that time, incumbents who must be regarded as no less thoroughly mad than radically immoral.

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CHAPTER VI.

While so much of argument and eloquence was expended upon Episcopacy in the abstract, it is natural to ask what became of the bishops themselves? At the opening of the Long Parliament a committee had been formed to prepare charges against Laud. The Scotch busied themselves with the same matter as soon as they reached London, being exasperated by the attempts of the prelate to force Episcopacy upon their countrymen. On the 18th of December the Commons voted the Archbishop a traitor, and sent up a message to the Lords desiring that he might be committed to custody, stating also that their accusation would be established in convenient time. [\[205\]](#)

On the 24th of February articles were voted, and then presented to the Lords by Mr. Pym. He charged the Archbishop with subverting the constitution, by publications which he had encouraged; by influence he had used with ministers of justice; by his conduct both in the High Commission Court and in reference to the canons; by his tyrannical power in ecclesiastical and temporal matters; by setting up Popish superstition and idolatry; by abusing trust reposed in him by his Majesty; by choosing chaplains disaffected to the reformed religion; by attempting to reconcile the Church of England and the Church of Rome; by persecuting orthodox ministers; by causing division in England, and between the two kingdoms; and, finally, by subverting the rights of Parliament. Mr. Pym read these articles, and supported them. A few days afterwards the Archbishop was sent to the Tower. [\[206\]](#)

Bishop Wren, who, according to a witticism of the age, is called the least of all these birds, and the most unclean among them, was early arrested (December 22), yet he was allowed to remain at large on bail. On the 20th of July the articles of his impeachment were presented by Sir Thomas Widdrington. The bishop—it was alleged, amongst other things—had ordered that the Communion-table should be placed altar-wise with steps and rails, and that communicants should kneel as they received the sacrament. He had

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enjoined the reading of the "Book of Sports," and had deprived godly ministers for refusing to submit to that unscriptural injunction. Prayers had been forbidden by him before sermon; and clergymen had been required to preach in hood and surplice. He had also been the means of excommunicating as many as fifty faithful pastors, and had been guilty of appointing Popishly-affected chaplains.^[207]

One bishop escaped the enquiry of the Long Parliament by being called to appear before a higher tribunal. We refer to Richard Montague, a man of learning, well read in the Fathers, an ecclesiastical antiquary, but a thorough Anglo-Catholic. Adopting Arminian views, supporting the encroachments of ecclesiastical power, loving ceremonial worship, and hating Puritanism with a perfect hatred, this prelate was just the person to please Archbishop Laud and Charles I. He had written, as early as 1623, a book against Popery, entitled "A new gag for the old goose," in which he was considered by many Protestants to have betrayed the cause he pretended to serve. For publishing this book, containing sundry propositions tending to the disturbance of Church and State, the author had been cited before the bar of the Commons, and, on the same account—and for the contents of his "Appeal to Cæsar," and his "Treatise upon the Invocation of the Saints"—articles of impeachment had afterwards been presented against him. He was charged with fomenting the King's hatred of the Puritans, abusing them as "Saint-seeming," "Bible-bearing," and "Hypocritical;" representing their churches as "Conventicles," and their ministrations as mere "prating;" and also with sneering at Reformers as well as Puritans, affirming that the Church of Rome was the spouse of Christ. Yet, notwithstanding Montague's Popish tendencies and his unpopularity with all but very High Churchmen, Charles elevated him to the see of Chichester—the worst episcopal appointment he ever made, next to his promotion of Laud to the Archiepiscopate. The death of this bishop, in April, 1641, alone prevented Parliament from instituting very severe proceedings respecting his conduct.

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Davenant, who presided over the diocese of Salisbury, died the same month. Totally unlike Montague, he had fallen into trouble for contempt of King James's injunctions relative to preaching on predestination. His humble and peaceable life, his strict observance of the Sabbath, his condemnation of clerical pomp and luxury, and his disapproval of certain

court proceedings, had secured for him the sympathies of the Puritans, and excited the displeasure of the High Church party. His death corresponded with his life; for in his last illness "he thanked God for this Fatherly correction," because in all his life-time he never before had one heavy affliction; which made him often much suspect with himself whether he was a true child of God or no, until this his last sickness. "Then," says Fuller—whose words we have followed—"he sweetly fell asleep in Christ, and so we softly drew the curtains about him."^[208]

On the 4th of August, 1641, Serjeant Wylde carried up to the House of Peers a series of articles prepared by a Committee of the House of Commons, impeaching thirteen bishops of certain crimes and misdemeanours. The accused were allowed till the 10th of November to prepare their answer, when they put in a Demurrer; after which the prosecution was superseded by other events hereafter to be described.

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Shortly before the impeachment of the thirteen prelates, a remarkable correspondence took place between certain Presbyterian clergymen of London and their brethren beyond the Tweed. It shows the high spirits of the former excited by recent events, their expectation of a speedy union with their neighbours in ecclesiastical polity, and the inspiration of fear from quarters opposite to those which had given them alarm a few months before. In a letter dated 12th July, 1641, the London ministers observe, that Almighty God having now of His infinite goodness raised their hopes of *removing the yoke of Episcopacy*, under which they had so long groaned, sundry other forms of Church government were projected to be set up in the room thereof; one of which was, that all power, whether of electing and ordaining ministers, or of admitting or excommunicating members, centred in every particular congregation, and was bounded by its extent. Independency in fact is meant by this passage, and the writers wished to know the judgment of their Scotch compeers on the point, as this would conduce by God's blessing to the settlement of the question. All the more earnestly was this entreated, because of a rumour that some famous and eminent brethren in the North were inclined to that form of government. In reply to this, an epistle arrived from the General Assembly, in which that reverend body assured their London brethren, that since the Reformation—especially since

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the union of the two kingdoms—the Scotch had deplored the evil of Great Britain having two kirks, and did fervently desire one confession and one directory for both countries. This they considered would be a foundation for durable peace, and the two Churches welded into one would be strong in God against dissensions amongst themselves, and also against the invasion of foreign enemies. The Assembly grieved to learn that any godly minister should be found not agreeing with other reformed kirks in point of government as well as doctrine and worship; and they feared that if the hedge of discipline were altered, what it contained would not long preserve its character. After laying down Presbyterian principles, the writers conclude by declaring themselves to be of one heart and of one soul; and to be no less persuaded that Presbyterianism is of God than that Episcopacy is of men. ^[209]

Other circumstances about the same period encouraged the Scotch. Their army was to be disbanded, and their troops were to be paid—a point respecting which the commissioners had been very solicitous—and a promising treaty between the two countries appeared on the eve of ratification. To the desire of the northern brethren respecting unity of religion, it was answered in the treaty, that his Majesty, with the advice of both Houses, approved of the desire of ecclesiastical conformity; and since Parliament had already taken it into their consideration, they would proceed in a manner conducive to the glory of God and the peace of the two kingdoms. ^[210] This passage is equivocal, for it might signify conformity to Episcopal or conformity to Presbyterian government. The King, no doubt, meant in his heart the former, but was quite willing at the same time that his subjects in the North should understand the latter.

When affairs were coming into this posture, Charles determined to visit his native land. Into his political motives for so doing this is not the place to enter—whether he hoped thereby to procure an adjournment of Parliament; or thought that he should break up the combination between the northern and southern patriots; or expected to obtain evidence and assistance against the latter by conference and co-operation with the antiCovenanters under Montrose. But most certainly his intention in reference to religion, as appears from his conduct, was to conciliate his countrymen and to throw

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them off their guard by veiling his strong attachment to Episcopacy, under an assumed friendliness for Presbyterianism.

Charles had determined to start on the 10th of August, and therefore, having passed certain bills on Saturday, the 7th, he then bid his Parliament farewell.

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The House of Commons greatly disliked this expedition. On the same day they requested the Lords to join them in petitioning his Majesty to delay his departure at least a fortnight longer. Only a strong reason could have induced Puritans to meet for business on the following day, being Sunday, but they did so meet. On that summer morning the members went down to Westminster, first to worship at St. Margaret's, and then to debate at St. Stephen's. But before entering on political affairs they were careful to guard against this Sunday sitting being drawn into a precedent. Often likened to the Pharisees for rigid formalism, these men, on this occasion, really shewed that—with their devout reverence for the holy season—they had caught the spirit of Him who said, the Sabbath was made for man, and not man for the Sabbath. Their attempt—on a day they so much loved to honour by religious exercises—at staying the King's journey northward, showed how much mischief they apprehended from that visit. But their effort did not succeed. On Tuesday, the 10th, Charles came to the House of Lords, and sending for the Commons, gave his assent to the Scotch Treaty and to certain Bills; after which he again took leave of the Houses, and started for Edinburgh, at two o'clock in the afternoon, accompanied by the Elector Palatine and the Duke of Lennox. On the 18th the Commons despatched commissioners to watch the ratification of the treaty, and "keep up a good correspondence between the two kingdoms." Mr. Hume calls them spies; their public appointment and legal credentials refute that representation; yet it cannot be a question that their intended business was to keep a sharp eye on his Majesty's proceedings, and to thwart any sinister design of his which they might be able to discover.

By the help of certain letters from Sidney Bere—afterwards Under Secretary of State, who formed one of the royal suite during this Scotch visit—we are able to follow the King into some of the religious and social scenes of the northern capital, which the courtier watched with much curiosity, and in his own fashion thus describes:—

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"The chaplains' places are supplied by Mr. Henderson and another, who say grace, but I cannot say read prayers, they being likewise extemporary, one in the beginning, then a chapter or two, after that another prayer, then a psalm, and so the benediction. This is in the Chamber of Presence at the usual hours; the sermons have been hitherto in the parish church, though the chapel here be fitted up, but after their fashion, without altar or organs."^[211]

"His Majesty is neither wanting in pains nor affection, going every morning to their Parliament, and this Sunday was in two of their churches, and daily takes the prayer and preachings according to their form, which gains much on the people. In a word, his Majesty is wholly disposed to settle both Church and State before he leaves this place."^[212]

"I will only add a relation of a feast, made by this town unto the King and the Lords in the Great Hall of the Parliament this day, August 30th. The King and the Prince Elector sat at one table, the Lords at another, but both in one room. The Duke of Richmond on one side, General Leslie over against, and next him the Marquis Hamilton, who gives him the place ordinarily, in respect, (I take it), that his commission of General is not yet delivered up. The mayor of the town, like a plain Dutch host, bestirred himself bravely, drank a health to the King, to the Queen, and the royal Children, and afterwards insisted with his Majesty to pledge; and so, in this Scotch familiar way, but with a great deal of familiarity, bid the King and the Lords welcome, with such hearty expressions as it served both for mirth and satisfaction. The glasses went liberally about, and the entertainment was great; indeed, over the whole town there was nothing but joy and revelling, like a day of jubilee; and this in token of the union, which, doubtless, is more firm than ever, by reason of the happy intervention of the unity of form of religion, at least for the present; and in the King's own practice, which wins much upon this people. Yesterday his Majesty was again at the great church at sermon, where the bishops were not spared, but put down in such language as would a year ago have been at the least a Star Chamber business, imputing still all that was amiss to ill counsellors, and so ingratiated his Majesty with his people, who indeed show a zeal and affection beyond all expression."^[213]

1641, August.

While reading these extracts we cannot help noticing that the services in Edinburgh, attended by the Anglo-

*Royal Visit to
Scotland.*

Catholic King, in 1641, were as different as possible from the ceremonial exhibitions arranged for Holyrood in 1633, by an Anglo-Catholic bishop, when the musical servants, with their chapel goods and paraphernalia were despatched by the Dreadnought for the Firth of Forth.^[214] Experience since then had taught some little wisdom in such matters. Defiance having failed, conciliation was now attempted, and it would seem that the whole political bearing of Charles whilst in Scotland was in keeping with his social and religious conduct at that time. He ratified the Acts of June, 1640, by which Presbyterianism had become the established religion of the country; he bestowed fresh titles and dignities on certain noblemen who had opposed him at the council table, and arrayed themselves against him in the field; and he consented to the partition of ecclesiastical revenues amongst Presbyterian claimants, when, as it was said, "leading men, cities, and universities cast lots for the garments which had clothed the Episcopal establishment." Such was the conduct of the Sovereign on the whole, that he alarmed his friends and encouraged his foes; some on both sides concluding that he meant to establish Presbyterianism throughout his dominions; but of that idea, however, he took care to disabuse "his servants," assuring them of his remaining "constant to the discipline and doctrine of the Church of England established by Queen Elizabeth and his father," and his resolution "by the grace of God to die in the maintenance of it."^[215]

When the pacification had been effected, the English Parliament solemnly celebrated the event on the 7th of September, by attending divine worship.^[216] But the two Houses did not agree in the manner of service. Bishop Williams, as Dean of Westminster, had prepared for the occasion a form of prayer. The Commons pronounced this to be beyond his power, and ordered the prayer not to be read in the liberties of Westminster or elsewhere. When the Lords met in the Abbey, the Commons went to Lincoln's Inn Chapel, where Burgess and Marshall preached, and prayers were offered *extempore*.

1641, September.

The Commons, conscious of strength, perhaps a little over-estimating it, were not slow in pressing Church reforms, though they proceeded with some caution. At the end of August, they resolved that churchwardens should remove communion-tables from the east end of churches where they had stood

Proceedings of the Commons.

altar-wise, and that they should take away the rails, level the chancel floors, and altogether place the buildings in the same state as they were in before the recent innovations. Perhaps excitement in our own day, respecting usages adopted at St. George's in the East, may serve as an illustration of the feeling awakened in the middle of the seventeenth century, by Anglican worship. Only it is to be remembered that instead of one St. George's in the East at that time, there were a hundred in different parts of the country. In villages and towns with High Church clergymen, and Low Church congregations, where semi-Popish arrangements had been adopted in the chancel, while rigid and ultra-Protestant Puritans sat in the nave, or absented themselves altogether—such feuds arose, that, to preserve the peace, as well as to check "innovations," the Lower House deemed it necessary to interfere. The opposition to Sunday afternoon lecturing, and the refusal of incumbents to admit lecturers into their pulpits, increased the strife; and, in reference to this, the Commons interfered by declaring it lawful for the people to set up a lecturer at their own charge.^[217] Bishops inhibited such proceedings; but the Commons declared the inhibition void. As bishops were members of the Upper House, all this tended to make the breach between the two branches of the legislature wider than before.

The question of worship could not be allowed to rest. "Innovations" were still discussed; it was resolved in the Lower House, on the 1st September, that scandalous pictures and images should be removed from sacred edifices, and candlesticks and basins from the Communion-table, that there should be no "corporal bowing" at the name of Jesus, and that the Lord's Day should be duly observed.^[218] The Peers did not agree with the other House in all these proceedings; they were prepared to command, that no rails should be erected where none existed already; that chancels should be levelled if they had been raised within the last fifteen years; that all images of the Trinity should be abolished; and that any representation of the Virgin set up within twenty years should be pulled down. But the Lords declined to forbid bowing at the name of Jesus; and—omitting any direct reply to the message on the subject from the Lower House—they simply resolved to print and publish the order of the 16th of January, commanding that divine service should be performed according to Act of Parliament; that those who disturbed "wholesome order" should be punished; and that clergymen

1641, September.

should introduce no ceremonies which might give offence.^[219] The Commons were highly displeased at this, and immediately published their own resolution on their own authority, adding, that they hoped their proposed reformatations might be perfected; and that, in the mean time, the people "should quietly attend the reformation intended," without any disturbance of God's worship and the public peace.^[220]

The Houses, on the 9th of September, adjourned their sittings for six weeks. When the conflicting orders of Parliament respecting worship came before the nation, the Anglicans adhered to the one issued by the Lords for preserving things as they were, the Puritans upheld the other published by the Commons in favour of reformation: party strife consequently increased, leading to fresh disturbances of the peace. Resistance to the order of the Commons burst out in St. Giles' Cripplegate, St. George's Southwark, and other parishes. There the High Church party defended the threatened communion-rails, as though they had been the outworks of a beleaguered citadel. On the other hand, where Puritanism had the ascendancy, violent opposition was made to the reading of the liturgy, service books were torn and surplices rent.^[221]

A considerable reaction in the state of public feeling began to appear in many quarters. There were persons who, having hailed with gratitude and delight the earlier measures of the Long Parliament, now felt disappointed at the results, and at the further turn which affairs were taking. Always, in great revolutions, a multitude of persons may be found in whose minds sanguine hope has been inspired by the inauguration of change; but, being moderate in their opinions and quiet in their habits, they are so terribly alarmed at popular excitement, and by the apprehension of impending extravagances of procedure, that they call on the drivers of the chariot of reform to pull up, as soon as ever the horses have galloped a few yards and a little dust begins to rise around the vehicle. Want of skill, reckless haste, even mischievous intentions, are sure to be imputed to those who hold the reins, and the conviction gains ground that speedily the coach will be overturned.

Reaction.

So it happened in this instance. People who had cheered on Pym and his compatriots a few months before, were now becoming thoroughly frightened.

1641, September.

Semi-Puritans, and other good folks, who wished to see matters mended very quietly, thought changes were going a great deal too far; also self-interest aided the reaction. Bishops had been assailed, but bishops as yet had neither been dethroned in the cathedral nor dismissed from the Upper House. They were provoked without being deprived of power, irritated without being divested of influence. They still lived in palaces, and had the establishments of noblemen, and at the same time they retained the means of attaching to them such of the clergy as waited for preferment. Persons of the latter description naturally dreaded the impoverishment of the prelates, and deprecated taking away the rewards of learning and piety.

They did what they could to make Parliament odious. Many, too, were "daily poisoned by the discourses of the friends, kindred, and retainers to so many great delinquents, as must needs fear such a Parliament." This is stated by a candid contemporary, Thomas May, secretary to the Parliament, who dwells at large upon the reaction at this period, and points out its causes. Besides those now mentioned, he adds: "daily reports of ridiculous conventicles, and preachings made by tradesmen and illiterate people of the lowest rank, to the scandal and offence of many, which some in a merry way would put off, considering the precedent times, that these tradesmen did but take up that which prelates and the great doctors had let fall,—preaching the Gospel; that it was but a reciprocal invasion of each other's calling, that chandlers, salters, weavers, and such like, preached, when the archbishop himself, instead of preaching, was daily busied in projects about leather, salt, soap, and such commodities as belonged to those tradesmen."

He then proceeds: "but I remember within the compass of a year after, (when this civil war began to break out over all the kingdom, and men in all companies began to vent their opinions in an argumentative way, either opposing or defending the Parliament cause, and treatises were printed on both sides,) many gentlemen who forsook the Parliament were very bitter against it for the proceedings in religion, in countenancing, or not suppressing, the rudeness of people in churches—acting those things which seemed to be against the discipline of the English Church, and might introduce all kinds of sects and schisms. Neither did those of the Parliament side agree in opinions concerning that point; some said it was wisely done of the Parliament not to proceed against any such persons for fear of losing

Reaction.

a considerable party; others thought and said, that by so doing, they would lose a far more considerable party of gentlemen than could be gained of the other sort. They also affirmed, that laws and liberties having been so much violated by the King, if the Parliament had not so far drawn religion also into their cause, it might have sped better; for the Parliament frequently at that time, in all their expressions, whensoever they charged the corrupt statesmen of injustice and tyranny, would put Popery, or a suspicion of it, into the first place against them."[\[222\]](#)

This reaction should be kept in mind, as it will serve to explain some things which followed.



CHAPTER VII.

After the Commons had resumed their sittings on the 20th of October, the difference which had arisen amongst the Puritan members became very apparent. The very next day, Sir Edward Dering questioned the legality of the recent order of the House respecting Divine worship; and the day after that, he indicated a still wider divergence from the policy of his former political friends. Upon a new bill being then introduced for excluding Bishops from Parliament—a bill which was, in fact, a reproduction of the old measure which the Lords had rejected—the Commons resolved to have a conference with the Upper House, respecting the thirteen accused prelates, and to request that the other occupants of the episcopal bench should be prevented from voting on this particular question, which so vitally affected their own personal interests. All this so alarmed the member for Kent that he hastily rose, and delivered a speech indicative of a still more decided veering toward the conservative point of the compass; for he went so far as to say that he did not conceive the House to be competent and fit to pronounce upon questions of Divinity. It seemed to him, he remarked, a thing unheard of, that soldiers, lawyers, and merchants should decide points which properly belonged to theologians. Laymen, he considered, should maintain only those doctrines which were authorized and established, and should leave the exposition and advocacy of what was new to a regularly constituted ecclesiastical assembly, in short, "a synod of Divines chosen by Divines." Whether or not he was animated in his retrograde course by cheers which came from the conservative benches, Sir Edward the following day bewailed the miseries of the Church between "Papism" on the one hand, and "Brownism" on the other; and instead of dwelling, as he had been wont to do, on "Puritan sufferings," his sympathies were now entirely bestowed on the opposite party. He related a story of two clergymen who had preached thousands of excellent sermons, but who now, like other deserving men, saw their infected sheep, after long pastoral vigilance, straggling from the fold, and mingling with the sects. Government, he complained, had begun to permit a loose liberty of religion;

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Commons.*

and, amidst varieties of opinion, and the perils of unity, what, he asked, could be thought of but a council—"a free, learned, grave, religious synod?"^[223] Such a style of address seems strangely at variance with the speaker's earlier speeches in this very Parliament, and also with proceedings which the House had adopted in accordance with his own impetuous appeals. The course which he now pursued was in decided opposition to his conduct when he spoke from the gallery of the House on behalf of the bill for the abolition of Episcopacy; and subsequent proceedings by this gentleman, in the same new direction, are yet to come under our notice. But, after all, the lapse of four months had not essentially altered his character. He was in October only the same versatile and impetuous, but well-meaning person, which he had shewn himself to be in May.

Another member, who expressed his alarm at the distractions of the times, was Mr. Smith, of the Middle Temple. While denouncing the "Book of Sports" and the persecutions inflicted by the Anglican party, he deplored existing differences of religious opinion, and besought his countrymen to worship God with one mind, and not go every one a way by himself. In the stilted euphuism of the day, he lamented that uncertainty staggers the unresolved soul, and leads it into such a labyrinth, that, not knowing where to fix for fear of erring, it adheres to nothing, and so dies ere it performs that for which it was made to live. Uniformity in religious worship, he proceeded to say, is that which pleaseth God, and, if we will thus serve Him, we may expect His protection; and then, passing over to the constitutional question, the orator declared both prerogative and liberty to be necessary, and that like the sun and moon they gave a lustre to the nation, so long as they walked at proper distances. But, he added, when one ventures into the other's orbit, like planets in conjunction, they then occasion a deep eclipse. "What shall be the compass, then, by which these two must steer? Why, nothing but the same by which they subsist—the law, which if it might run in the free current of its purity, without being poisoned by the venomous spirits of ill-affected dispositions, would so fix the King to his crown that it would make him stand like a star in the firmament, for the neighbour world to behold and tremble at."^[224] Smith did not plunge into that ecclesiastical reaction which had carried Dering completely away; but he contended for

1641, September.

some measure of uniformity and for the suppression of increasing sects, whilst in political matters he recommended a course of moderation.

Another individual—far different from this pedantic adviser, and incapable of the tergiversations of the representative for Kent, though he is not to be confounded with reckless revolutionists—was still inflexibly pushing forward those ecclesiastical and political reforms which he had inaugurated by the blow he struck at Strafford, the patron and upholder of arbitrary power. Pym supported the new bill against Bishops, and managed the conference respecting the impeachment of the obnoxious thirteen prelates, and the prevention of the remaining occupants of the Bench from voting upon this question. He asked whether those who had made the hateful canons, who had endeavoured to deprive the subject of his liberties, and who were accused of sedition, were fit to be continued as legislators? St. John, the Solicitor General, and "dark-lantern man," supported Pym, and supplied an erudite legal argument to shew that bishops did not sit in the Upper House as representatives of the clergy; and that their right of peerage differed from the claim of temporal lords—they having no vote in judgments touching life and death, and their consent not being essential to the integrity of an Act of Parliament. [\[225\]](#)

Debates by the Commons.

Change and reaction went on. There had long been much talk about some "Grand Remonstrance," and a committee had been appointed as soon as Parliament assembled, to draw up such a document. In April the committee had been directed to collect a list of grievances, and on the 22nd of November the long delayed paper came before the House, to be "briskly debated." This remarkable production deals largely with ecclesiastical affairs; and the intimate connection between the religion and the politics of the times is apparent throughout its various contents. In a series of numbered propositions, amounting altogether to 206, the history of arbitrary government is carefully traced from the beginning of Charles' reign; religious grievances are made distinct and prominent; complaints appear of Papists, bishops, and courtiers, who had aimed at suppressing the purity and power of religion, and who had cherished Arminian sentiments; prelates and the rest of the clergy are depicted as triumphing in the degradation of painful and learned ministers; and the High Commission Court is compared

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to the Romish Inquisition. The vexatiousness of episcopal tribunals shares in the general censure, and the exile and depression of Puritans are noticed with the deepest sorrow;—preaching up the prerogative, sympathy with Papists, superstitious innovations, the late canons, the toleration of Papists, and the permission of a Papal nuncio at court, are all deplored as very great evils, whilst an opinion is expressed that there is little hope of amendment so long as Bishops and recusant Lords remain numerous, and continue to misrepresent the designs of the patriots. [\[226\]](#)

Yet it is affirmed that there exists no intention of loosing the golden reins of discipline, and of leaving to private persons and particular congregations the right to take up what Divine service they pleased. Horror respecting a general toleration is plainly confessed, and the remonstrants advocate Conformity "to that order which the laws enjoin according to the Word of God," even while they are desirous of unburdening the conscience from superstitious ceremonies and are taking away the monuments of idolatry. A general synod is suggested as the remedy for ecclesiastical evils, and care is advised to be taken for the advancement of learning, and the preaching of the Gospel. The two Universities are referred to as fountains of knowledge which should be made clear and pure.

*Debates by the
Commons.*

The sting of the Remonstrance is found in its head, not in its tail. In the petition prefixed, the King is asked to concur with his subjects in depriving the bishops of their votes in Parliament, in abridging their power over the clergy and people, in staying the oppression of religion, in uniting loyal Protestants together against disaffected Papists, and in removing unnecessary ceremonies, which were a burden to weak and scrupulous consciences. Such requests were opposed to his Majesty's ideas of the constitution of the Church, though the remonstrants were prepared to rebut the charge of there being anything whatever revolutionary in their proposals and requests.

Looking at the current of Parliamentary debates for the last twelve months, the Remonstrance may be regarded as presenting to us the sentiments of the patriotic party. Sir Edward Dering, in May, had gone beyond this remonstrance, far beyond it; but Sir Edward Dering, in November, though the same character that he ever was, had become another kind of politician. The same remarks will apply to others. He now disputed

some of the statements in this famous political instrument, vindicated several of the accused bishops and clergy, protested against the spoliation of ecclesiastical estates, and intimated his apprehension of the perilous consequences which would follow the changes now set on foot. Other members pronounced the measure to be unnecessary and unreasonable, because several of the grievances now complained of were already redressed; and they declared that the King, after his concessions, ought not on his return from Scotland to be received by his loyal subjects with ungrateful reproaches.

More was lying underneath the Remonstrance than appeared upon the surface. Looking at the character of the King, his obvious want of sincerity, and his manifest intention to recover what he had lost of arbitrary power whenever he should have the opportunity; considering also the reinvigorated spirit of the party opposed to constitutional reforms; further, taking into account the reaction going on, which had withdrawn from the remonstrants certain active confederates; and pondering, too, the unsettled and disturbed condition of the country at large—the authors of this important measure foresaw that matters could not rest where they were, and that more must be done, or everything would be lost. Breaches made in the Constitution by its enemies, rendered extraordinary efforts necessary for the preservation of popular freedom. Calculating, therefore, on further and more serious struggles, the advanced party determined to make their instrument in question a manifesto, to which they might afterwards appeal in self-justification when that day of battle should come, which appeared to them then, both so likely and so near. This must be remembered, or the Remonstrance will not be understood.

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Regarded by its supporters as their palladium, it was strenuously opposed by courtiers and reactionists. The debate upon the measure, which took place on Monday, November the 22nd, lasted beyond midnight. After lights had been brought in, the members—amidst the gloom of St. Stephen's chapel and the glimmer of a few candles—continued hotly to dispute respecting this great question, with looks of sternest resolution; very distinct to us even now, although upon the darkness made visible, there also rest the shadows of two centuries and a half. Puritans and High Churchmen that night uttered sharp words

*Debates by the
Commons.*

against each other, as they stood face to face and foot to foot in conflict. A division arose on the clause for reducing the power of Bishops, when 161 voted for it and 147 against it. On the grand division soon afterwards, respecting the Remonstrance itself, 159 voted that it should pass, 148 took the opposite side. This gave but a scant majority. Immediately on the announcement of the result, there arose a discussion as to the printing of the document—a discussion which became more violent than the former ones. [227] The printing of the Remonstrance at once, prior to its being adopted by the Upper House, and prior to its being presented to the Sovereign, could not but be regarded as a step indicative of the elements of the English Constitution being thrown into a state of lamentable derangement. Hyde declared that he was sure the printing of it would be mischievous, and also unlawful: and then proceeded to assert for himself the right of protest, which, in a member of the Lower House, was an act as irregular as even the printing of the Remonstrance could be. Up started Jeffrey Palmer, "a man of great reputation," and likewise claimed that he might protest "Protest, protest," rung in wrathful tones from other lips; and some members, in the storm of their excitement, were on the point of bringing dishonour upon themselves and upon the House. "We had caught at each other's locks," says Sir Philip Warwick, "and sheathed our swords in each other's bowels, had not the sagacity and calmness of Mr. Hampden, by a short speech, prevented it, and led us to defer our angry debate until next morning." [228]

In corroboration of this general statement, and for the filling up of this graphic outline, happily we can turn to the journal of D'Ewes, the Puritan, who, like Warwick, was present, but who took the other side in the controversy. In answer to a question, as to who claimed the right of protest, there were loud cries of "All! All!!" This reporter, who took part with the patriots, goes on to say: "And some waved their hats over their heads, and others took their swords in their scabbards out of their belts, and held them by the pummels in their hands, setting the lower part on the ground, so as if God had not prevented it, there was very great danger that mischief might have been done. All those who cried, 'All! all!' and did the other particulars, were of the number of those that were against the Remonstrance." [229] Whether or not D'Ewes was right in attributing these acts of warlike defiance *exclusively* to his opponents—in the faint rays of the candle-light he could not have seen very

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distinctly all which was going on—he certainly substantiates the account given by Warwick of extensive violent confusion, a Parliamentary tempest in short, calmed by the wisdom and moderation of John Hampden. Before the Commons broke up, on that memorable night, it was resolved by 124 against 101, that the declaration should "not be printed without the particular order of the House," a conclusion which left the publication of the Remonstrance open for the present.

"The chimes of St. Margaret's were striking two in the morning," as Oliver Cromwell came down stairs, and, according to rumour, recorded by Clarendon, met Lord Falkland, and whispered in his ear, "that if the Remonstrance had been rejected, he would have sold all he had the next morning, and never have seen England more; and he knew there were many other honest men of the same resolution."[\[230\]](#)

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Commons.*



CHAPTER VIII.

Charles returned from the North improved in spirits, fancying he had made a favourable impression upon his Scottish subjects, and pondering sanguine schemes for crushing the power of Pym, and of all the patriots. The reaction towards the close of the summer of 1641, which we have already described, was decidedly in his favour—and there seemed room to expect that Parliament, after the course which the King now seemed disposed to pursue, might, in its eagerness for victory, place itself altogether in a false position.

During his stay in Edinburgh, he had been anxious to fill up certain vacant bishoprics, but delayed doing so at the request of Parliament. Soon after his return, he made Williams,—then Bishop of Lincoln,—Archbishop of York; and appointed Dr. Winniffe to succeed Williams. Dr. Duppa was translated from Chichester to Salisbury; King, Dean of Rochester, was promoted to Chichester; Hall had the See of Norwich presented to him in the room of Exeter; where he was followed by Brownrigg, who had been Master of Catherine Hall, Cambridge; Skinner went from Bristol to Oxford; Westfield had the former See conferred on him, and Ussher received the Bishopric of Carlisle *in commendam*. A conciliatory temper appeared in the episcopal arrangements thus made by His Majesty, inasmuch as all the prelates whom he now appointed and advanced were popular men, and were well esteemed by the Puritan party.

Charles, on his arrival in town on the 25th of November, received a welcome which vied in splendour with the renowned receptions given to our Edwards and Henries. The Lord Mayor and Aldermen in their robes; citizens in velvet coats; and noblemen richly apparelled, with a goodly array of trumpeters, pursuivants, equerries, and sheriffs' men, wearing scarlet coats, and silver-laced hats crowned with feathers, marched to meet the Royal party at Moorgate, whence they proceeded—the King on horseback, the Queen in her richly embroidered coach,—by way of Bishopsgate, Cornhill, and Cheapside, to Guildhall; the streets being lined by the livery companies, and

*The King's
Reception.*

adorned with banners, ensigns, and pendants of arms. The conduits in Cheapside ran with claret, and along the line of procession the people shouted "God bless, and long live King Charles, and Queen Mary."^[231] A grand banquet followed on the hustings of the Old City Hall; the floor being covered with Turkey carpets, and the walls hung with rich tapestry. Their majesties sat in chairs of state, under a grand canopy, and the royal table was covered with "all sorts of fish, fowl, and flesh, to the number of 120 dishes, of the choicest kinds," with "sweetmeats and confections, wet and dry." After a short repose, at about four o'clock, the Royal party advanced towards Whitehall; and as the evening shadows fell upon the spectacle, the footmen exchanged their truncheons for flambeaux, "which gave so great a light, as that the night seemed to be turned into day." Trumpets, bands of music, and the acclamations of the people,—according to the chroniclers—made the streets ring again.^[232]

This exhibition so artistically contrived, which had been a subject of much correspondence with the King, as well as of deliberation on the part of the citizens, had a no less religious than political significance. A year before, Presbyterians and Sectaries had made themselves conspicuous by "Root and Branch petitions," and since then, their activity had not declined, or their numbers diminished. On the contrary, the sectaries had increased, and had given alarming signs of zeal, in purifying certain Churches from the abominations of idolatry, and in organizing ecclesiastical societies of their own quite apart from the establishment.

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In this state of things, the conservative portion of the corporation, and the citizens who sympathized with them, had, for the purpose of a party demonstration, elected a Lord Mayor who was a decided Royalist and a High Churchman. "The factious persons," remarks Sir Edward Nicholas, writing on this subject to the King, "were making a noise, and would not proceed to the election, when the sheriff proposed Alderman Gourney (who I hear is very well-affected and stout) and carried it; and the schismatics who cried 'no election,' were silenced with hisses, and thereupon the Sheriff dismissed the Court."^[233] This victory equally gratified Sir Edward and his master, and placed at the head of the costly civic reception, a gentleman in whom the King had the fullest confidence. More indeed was intended, both of loyal and religious demonstration, by the party who now took the lead in

the City, than they were able to accomplish. A present of money and an address in favour of Episcopacy had been proposed, but without success. [234] Notwithstanding, the King took care, in answer to the address of the recorder and corporation—as they stood by Moorgate, bare-headed,—to assure them of his determination, at the hazard of his life and of all that was dear to him, to maintain and protect the Protestant religion, as it had been established by his two famous predecessors, Queen Elizabeth and his father King James.

Some significancy is to be attached to a little display at the south door of St. Paul's Cathedral, where "the quire in their surplices, with sackbuts, and cornets, sung an anthem of praise to God, with prayers for their Majesties' long lives, that his Majesty was extremely pleased with it, and gave them very particular thanks." [235] For unobjectionable as this kind of music might now-a-days appear even to a staunch nonconformist, it had a look, at that period, of stern, jealous, and watchful controversy, very obvious and very annoying to presbyterians and "sectaries;" so that, altogether, this City affair became a decided success for the King and the Church party, and as such, Royalists and Anglicans greatly rejoiced in it.

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"Londoners are a set of disaffected schismatics, bent upon upsetting the godly order of things which they received from their fathers," was the opinion of many a country knight and yeoman, as he turned his attention to the metropolis, and thought of the current stories of the day. "No," said one, who sympathized with the Court, in a letter he wrote to a friend just at that time, "you much mistake, if you think that those insolent and seditious meetings of sectaries, and others ill affected, who have lately been at the Parliament House, to cry for justice against the delinquent bishops, are the representative body of the city. They are not. The representative body of the city is the Lord Mayor, Aldermen, and Common Council, who gave the entertainment to the King, and will stick to him to live and die in his service. As for the rest, when the House of Commons please to give laws to suppress them, we shall quickly see an end of these distractions both in Church and Commonwealth, and, therefore, I pray give no ill interpretation to our actions." [236] These words show what capital the clique, to which the writer belonged, was determined

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to make out of the grand pageant which had just come off with so much *éclat*.

The King himself, who was disposed to construe the conduct of the citizens as having a political and ecclesiastical signification, had on the occasion of his entry, knighted the Lord Mayor and Recorder, doubtless with a feeling which made it more than a formal ceremony. He had also conferred a like honour, a few days afterwards, at Hampton Court, upon certain Aldermen, who had come to thank him for accepting their entertainment.

The reception of these civic dignitaries in the old palace of Cardinal Wolsey occurred on the 3rd of December.^[237] A very different kind of audience had been held within the same walls two days before.

A committee for presenting the Remonstrance had been appointed by the Commons, composed of persons not likely to be offensive to the King, including Sir Edward Dering, who, in spite of his opposition to the measure, was requested to read and present the document; but, when the time came, he "being out of the way," Sir Ralph Hopton took his place. The deputation started in the afternoon, and their object being well understood by the populace, they would attract much attention, as they travelled along under leafless trees, and a wintry sky, and drew up at last before the old gates at Hampton Court. After they had waited a quarter of an hour in the anteroom, the King sent a gentleman to call them to his presence, with an order that no one besides the deputation should be admitted. He received his "faithful Commons" with some anxiety, but in addition to his other encouragements, at that moment there remained the halo thrown round him by the late entry; and it would not be forgotten by the monarch as the members knelt before him, that the Remonstrance which they brought—(as obnoxious to royalty as it was dear to the patriots)—had been after all carried only by a scant majority. Sir Ralph Hopton, who headed the deputation, commenced reading the document on his bended knees, when his Majesty commanded all the members to rise: and as soon as that passage was reached, which alluded to the desire of the malignants to change the religion of the country, the King exclaimed, "The devil take him, whomsoever he be, that had a design to change religion." Upon reference to the disposal of the estates of the Irish rebels, he added, "We must not dispose of the bear's skin till he be

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dead." His Majesty proceeding to put some questions, the wary members replied, "We had no commission to speak any thing concerning this business." "Doth the House intend to publish this declaration?" Charles afterwards asked—thus touching the core of the matter. "We can give no answer," persisted the reticent diplomatists. "Well then," he rejoined, "I suppose you do not now expect an answer to so long a petition." A very reasonable remark, looking at the two hundred and more clauses which the petition contained.^[238] When the answer did come, it included this carefully-worded paragraph:—

"Unto that clause which concerneth corruptions (as you style them) in religion, in Church government, and in discipline, and the removing of such unnecessary ceremonies as weak consciences might check, that for any illegal innovations, which may have crept in, we shall willingly concur in the removal of them. That if our Parliament shall advise us to call a national synod, which may duly examine such ceremonies as give just cause of offence to any, we shall take it into consideration, and apply ourself to give due satisfaction therein, but we are very sorry to hear in such general terms, corruption in religion objected, since we are persuaded in our conscience, that no church can be found upon the earth that professeth the true religion with more purity of doctrine than the Church of England doth; nor where the government and discipline are jointly more beautified, and free from superstition, than as they are here established by law; which by the grace of God, we will with constancy maintain (while we live) in their purity and glory, not only against all invasions of popery, but also from the irreverence of those many schismatics and separatists, wherewith of late this kingdom and this city abound, to the great dishonour and hazard both of Church and State, for the suppression of whom we require your timely aid and active assistance."^[239]

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After the Remonstrance had been presented, affairs remained hopeful to the Royal eye; and as the Commons had issued their ordinance touching religious worship, the King on the 10th of December published one of his own, enjoining strict conformity to the form of divine service as by law established. But whatever advantages he might possess at the close of 1641, all were forfeited by the monstrously rash attempt to arrest the five members at the

Arrest of the Five Members.

beginning of 1642. That fatal act rung the death-knell of his hopes throughout the country, startling at once friends and foes. A letter by Captain Robert Slingsby to Admiral Pennington gives a Royalist version of the affair, which happened on the 4th of January.

"All parts of the court being thronged with gentlemen and officers of the army, in the afternoon the King went with them all, his own guard and the pensioners, most of the gentlemen armed with swords and pistols. When we came into Westminster Hall, which was thronged with the number, the King commanded us all to stay there; and himself, with a very small train, went into the House of Commons, where never king was (as they say), but once, King Henry VIII." The writer, who remained in the lobby, then proceeds to report what occurred inside the House; depending for his information, it appears, on some member, from whose lips he had eagerly caught up the following account:—"He came very unexpectedly; and at first coming in commanded the Speaker to come out of his chair, and sat down in it himself, asking divers times, whether those traitors were there, but had no answer; but at last an excuse, that by the orders of the House, they might not speak when their Speaker was out of his chair. The King then asked the Speaker, who excused himself, that he might not speak but what the House gave order to him to say, whereupon the King replied, 'it was no matter, for he knew them all if he saw them.' And after he had viewed them all, he made a speech to them very majestically, declaring his resolution to have them, though they were then absent; promising not to infringe any of their liberties of Parliament, but commanding them to send the traitors to him, if they came there again. And after his coming out, he gave orders to the Serjeant-at-arms to find them out and attach them. Before the King's coming, the House were very high; and (as I was informed), sent to the city for four thousand men to be presently sent down to them for their guard: but none came, all the city being terribly amazed with that unexpected charge of those persons; shops all shut, many of which do still continue so. They likewise sent to the trained bands in the Court of Guard, before Whitehall, to command them to disband, but they stayed still."

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The same correspondent then relates what he had himself witnessed in London. "Yesterday it was my fortune, being in a coach, to meet the King with a small

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train going into the City; whereupon I followed him to Guildhall, where the Mayor, all the Aldermen, and Common Council were met. The King made a speech to them, declaring his intention to join with the Parliament in extirpation of popery and all schisms and sectaries; of redressing of all grievances of the subject, and his care to preserve the privileges of the Parliament: but to question these traitors, the reason of his guards for securing himself, the Parliament, and them from those late tumults, and something of the Irish; and at last had some familiar discourse to the Aldermen, and invited himself to dinner to the Sheriff. After a little pause a cry was set up amongst the Common Council, 'Parliament, privileges of Parliament;' and presently another, 'God bless the King'—these two continued both at once a good while. I know not which was louder. After some knocking for silence, the King commanded one to speak, if they had anything to say; one said, 'It is the vote of this Court that your Majesty hear the advice of your Parliament'—but presently another answered—'It is not the vote of this Court, it is your own vote.' The King replied, 'Who is it that says, I do not take the advice of my Parliament? I do take their advice, and will; but I must distinguish between the Parliament and some traitors in it;' and those he would bring to legal trial. Another bold fellow, in the lowest rank, stood up upon a form, and cried, 'The privileges of Parliament;' and another cried out, 'Observe the man, apprehend him.' The King mildly replied, 'I have, and will observe all privileges of Parliament, but no privileges can prevent a traitor from a legal trial'—and so departed. In the outer hall were a multitude of the ruder people, who, as the King went out, set up a great cry, 'The privileges of Parliament.' At the King's coming home, there was a mean fellow came into the privy chamber, who had a paper sealed up, which he would needs deliver to the King himself—with his much importunity he was urged to be mad or drunk, but he denied both. The gentleman usher took the paper from him and carried it to the King, desiring some gentleman there to keep the man. He was presently sent for in, and is kept a prisoner, but I know not where."^[240] The arrest, which with its accompanying circumstances is vividly brought before us in this letter by Slingsby, was a fatal crisis in the history of Charles I. He thought by one stroke of policy to crush his enemies, but the avenging deities, shod in felt, were turning round on the infatuated prince, who could not perceive his own danger, but was in a fool's paradise, dreaming of restored absolutism.

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The liberties of the country having now become more obviously, perhaps more completely, than before, imperilled by the sovereign's misconduct, the national indignation was immediately aroused; and whatever Anglican and Royalist reaction might have set in from Michaelmas to Christmas, the tide turned, and furiously rushed in the opposite direction after New Year's Day. Such a defiance of the Constitution by the King, such a manifestation of despotism, after promising to rule according to law, left no doubt as to his character, his principles, and his motives.

The arrest was interpreted as an assault upon the interests of Puritanism, no less than upon the liberties of the nation; because the one cause had become identified with the other, and the friends of reformation in the Established Church, and the separatists who stood outside of it, saw that their hopes would be entirely cut off if the King were permitted to re-establish his despotic rule, or if he were allowed to perpetrate with impunity such a political crime as the arrest involved.

Westminster Riots.

Other circumstances had helped forward the political reaction in favour of the Puritan cause. Not only had the popular dislike to Bishops continued in London, Southwark, and Lambeth, in spite of all which might appear to the contrary in the civic doings on the King's return, but the revived spirit of ecclesiastical conservatism roused afresh the spirit of ecclesiastical revolution. After petitions had flowed in from different parts of the country in favour of Episcopacy, the Aldermen,^[241] Common Council, and other inhabitants of London, went down to Westminster in sixty coaches, carrying a counter petition for removing prelates and popish peers from their seats in Parliament. Crowds also assembled on Blackheath for a similar purpose; and the Puritan clergy of London again addressed the House, for taking away whatever should appear to be the cause of those grievances which remained in existence.^[242] The Prayer Book—said these ministers—continued to be vexatiously enforced, and what remedy, asked they, for this and other evils could there be but the debate of a free synod, and till that was held some relaxation on matters of ceremony? The London apprentices at such a time could not be quiet, and impelled by their own zeal, and perhaps also guided by their masters' commands, they in large numbers put their hands to a farther "Root and Branch" petition.

Every day the lobbies of the Houses were thronged by people eagerly watching the fate of the documents which expressed their opinions. Every day the area of Westminster Hall echoed with the tramp of jostling crowds and the loud buzz of angry talk touching Church and Bishops. Episcopalians came face to face with Puritans and Separatists. Staid and sober citizens anxious for reform, were elbowed by rollicking country squires, who wished to see things restored to the state in which they had been in the days of Lord Strafford. Cavaliers, full of pride and state, crossed the path of patriots whom they denounced as the enemies of their country. Soldiers, with swords by their side, marched up and down amidst the rabble, who carried staves or clubs. Roistering apprentices, with idlers and vagabonds of all descriptions, putting on a semblance of religious zeal, shouted at the top of their voice favourite watchwords as they went along, and delighted in all sorts of mischief. ^[243]

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December the 27th, being the Monday after Christmas Day, Colonel Lunsford, just appointed Lieutenant of the Tower—much to the disquietude of the Londoners, who denounced him as a Papist, and as being on that account utterly unfit for such a trust—came into the Hall; when some of the citizens beginning to abuse him, he and his companions drew their swords. The same day, Archbishop Williams walked towards the House of Peers with the Earl of Dover, when an apprentice lad, seeing his Grace, vociferated the popular cry of "No Bishop." This so aroused the Welshman's ire, that, leaving his noble friend, he rushed toward the vulgar urchin, and laid hands on him. This unbecoming act,—for "a Bishop should be no striker,"—made the wrath of the populace boil up afresh; and hemming in the prelate so that he could not stir, they continued shouting in his ears, "No Bishop," "No Bishop:" until they proceeded to an act of violence, and tore his gown "as he passed from the stairhead into the entry that leads to the Lords' House." ^[244] It is also stated that he was beaten by the prentices. A blustering "reformado," named David Hide, mingled in the fray, and looking savagely on the apprentices with their cropped hair, declared that he would cut the throats of "those round-headed dogs that bawled against bishops." ^[245] "Round-headed,"—the words so aptly fitted to the London lads—took with the Cavalier gentlemen; they forthwith applied it to the whole Puritan party,

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and so David Hide's impromptu became Court slang, and rose into the dignity of a world-known appellation.

The next day, certain people in the Abbey, who said that they were tarrying there a little while for some friends, who had just brought up a petition, but who were charged with coming to commit depredations in the sacred edifice, were attacked by the retainers of Archbishop Williams—who continued Dean of Westminster—and a sort of siege and assault followed. Amidst the riot and uproar several persons were hurt, and a stone thrown from the battlements^[246] fatally injured Sir Richard Wiseman, who appeared conspicuous amongst the anti-episcopal citizens.

On Wednesday, the 29th, between three and four o'clock in the afternoon, when "the scum of the people^[247]" had floated down to Westminster, there occurred a disturbance which, in a confused way, is apparent in the records of the period, but which becomes more luminous when examined in the light of the depositions of witnesses, still preserved amongst the State papers.^[248] The tumult seems to have commenced by Whitehall Gate. Some military gentlemen were walking "within the rails," in the direction of Charing Cross. The difficulty is to make out who commenced the quarrel. One deponent says, the apprentices called the "red coats a knot of Papists," meaning, of course, the Royalist officers. Another declared, the gentlemen within the rails cried, "If they were the soldiers they would charge the mob with pikes and shoot them." Thereupon—so it was affirmed—the people replied, "You had best do it, red coats," and threw at them clots of dry dust. Then the cavalier swordsmen leaped over the rails, and, sword in hand, dashed into the midst of the mob. Other gentlemen came out of the Court gate and joined their friends; upon which the parties fell to, pell-mell. One witness says, that he saw but one sword drawn on the citizens' side, but he saw many of the citizens wounded by the gentlemen. Another affirms, that one of the gentlemen received a wound in the forehead. It is manifest that the disturbance was made the very most of by each party, so as to reflect discredit upon the opposite side: for in a letter written the next morning, the writer, after recording how apprentices were wounded, and how they lost their hats and cloaks, gravely states, "It is feared they will be at Whitehall this day to the number of *ten thousand*." The City was in an uproar on

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account of the outrage on the apprentices, and the Court gentry were full of indignation at the abuse which the apprentices had heaped on the Bishops. The High Church Lord Mayor and Sheriffs, who rode about all night to preserve peace, had the City gates shut, the watch set, and the trained-bands called out. By those of a different class in politics this was thought quite unnecessary; as they implicitly believed that the citizens would commit no act of violence if the courtiers would but keep their swords in their scabbards. The majority of the Commons, too, were jealous of interfering with those whom they hailed as friends to reform; while the King, the Court, and the Archbishop, exaggerated the disturbance, and were for coercing the people as enemies of order. The whole story, as it appears from the documents we have mentioned, indicates rudeness and insolence on the part of the populace, but not any disposition in the first instance to proceed to violence. Their opponents sought to bolster up their own cause by highly-coloured reports of the uproar; the irritated pride and hot revenge of a few royalist officers having really brought on the bloodshed, to be followed by the blackest recrimination on the Puritan side.^[249] The squabble would be beneath our notice, were it not for the consequences which followed it;^[250] and for its significance as illustrating the way in which religious questions became mixed up with political ones, and how both, in some cases, sunk down to the most vulgar level.

Bishop Hall relates, in connection with the riot, that in the afternoon of the 28th of December, the Marquis of Hartford came up to the Bishops' bench, and informed their lordships that they were in danger, because the people were watching outside with torches, and would look into every coach to discover them; he adds that a motion made for their safety was received with smiles; and that some sought the protection of certain peers, whilst others escaped home by "secret and far-fetched passages."^[251] From the same authority—corroborated by other witnesses—we also learn, that Archbishop Williams, with the cry of "No Bishop" ringing in his ears, with a still more unpleasant recollection of the apprentice's attack, and also alarmed by the Marquis of Hartford's story, determined to protest against this state of things, not simply as a violation of his personal liberty, but as a violation of the freedom and rights of the Upper House. We Bishops, he argued, can no longer perform our

*Protest of the
Bishops.*

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Parliamentary duties if this be the case, and without the bishops the House of Lords is a nullity in the legislature. Upon this view being taken, twelve prelates, Williams being one of the number, repaired to the "Jerusalem Chamber in the Dean's lodgings"—that room which has witnessed so many ecclesiastical discussions, and which is so linked to the fortunes of the Church of England—and there drew up a protest against whatever should be done during the absence of their order from the House of Lords. ^[252]

To this protest signatures were hastily procured. On the 27th, Williams was assaulted; on the 29th, the protest reached the house of the Bishop of Lichfield, between six and seven o'clock at night, he not having heard of it before. ^[253]

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The document had been drawn up without proper deliberation, and after being signed, it was immediately presented to the King. ^[254] Much as he might sympathize with the prelates, he had prudence enough now to do nothing more than at once refer the matter to the House of Lords, who, in their turn, invited the Commons to a conference on the subject. The Lower House promptly resolved to impeach the prelates;—only one member offering any opposition, and that simply on the ground that he did not believe they were guilty of high treason, but were only stark mad, and ought to be sent to Bedlam. Upon receiving a message, notifying the impeachment, the Upper House immediately despatched Black Rod to summon the accused Spiritual Lords to the bar, where they soon appeared. The same night saw ten of the prelates safe in the Tower. ^[255]

The protest produced an "immense sensation." Unpopular before with the Puritans and the patriots, the bishops now became more unpopular than ever, with the former, on account of their alleged pride and arrogance; with the latter, on account of their esteeming themselves essential to the integrity of Parliament; and with all, on account of their obstinately obstructing the paths of reform. Still, the party most in advance felt rather glad than otherwise at this act of Episcopal imprudence, since it made the bench increasingly odious; and therefore afforded another and still stronger argument for hastening forward its overthrow. ^[256] Even Episcopalians blamed the protesters, considering they had much hindered the cause they should have helped; and Clarendon pronounces their

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proceedings to have been ill judged. But an excuse has been offered, on the ground that the conduct of the Bishops if not constitutional was chivalrous. It has been said, "To go out in smoke and smother is but a mean way of coming to nothing." "To creep and crawl to a misfortune is to suffer like an insect." "A man ought to fall with dignity and honour, and keep his mind erect, though his fortune happens to be crushed."^[257] Without staying to ask whether there be not concealed under this plea a spirit out of harmony with the religion professed by the prelates, we may remark that no one could have blamed them for courageously defending what they deemed the rights of their order. They might justly have protested against the tumultuous conduct of the people, and have sought protection in attending the House; but to protest against what was done in the Legislature during their absence was quite another thing, and appears to have been as unconstitutional as any violence employed in order to hinder their discharge of Parliamentary duties. An accusation of treason, however, brought against them for their strange proceedings, appears extravagant; although sufficient grounds existed for censure, and the imposition perhaps of some kind of penalty: but the lawyers were spared all trouble with reference to this subject by the abolition of the Episcopal bench, and the political insignificance to which the order had been reduced by their extreme unpopularity. The protesting Bishops remained in confinement until the 5th of May following, when they were dismissed on bail.^[258]



CHAPTER IX.

The bill of October for removing Bishops from the House of Peers had hung fire. On its reaching the Upper House it had been once read, and then laid aside. The conduct of the bishops, which led to their impeachment, also induced the Commons to urge upon the Lords the passing of this measure. After some hesitation, they read the bill a third time, on the 5th of February; and the Commons, now become impatient, expressed their sorrow, three days afterwards, that the royal assent had not been immediately given. The King's reluctance was at the same time expressed at a conference on the 8th of February, by the Earl of Monmouth, who said, "that it was a matter of weight which his Majesty would take into consideration, and send an answer in convenient time."^[259] On the 14th of February came the tardy "Le Roy le veult." No prelate now remaining to read prayers, the Peers ordered that the Lord Chancellor's or the Lord Keeper's chaplain should "say prayers before the Lords in Parliament," and in his absence, the Lord Chancellor or Lord Keeper should appoint some other person for that service. The vacant benches, staring their lordships in the face, appeared unsightly; in consequence of which they named a committee to consider "how the peers should sit in the House, now that the Bishops' seats were empty."^[260]

Thus fell, after threatening assaults for fourteen months, the temporal power of the prelates. Their exclusion from the Upper House is opposed to the ancient laws and customs of the realm, and it does violence to those ideas of the English Constitution which are based upon the history of the middle ages. Then Church and State were bound in the closest ties, and Churchmen, from their presumed superior intelligence, were esteemed amongst the fittest men to make laws and to direct public affairs. But matters had undergone a vast change by the middle of the seventeenth century, and many persons of enlarged minds had come to perceive, that there was no more necessity for seeking senators than seeking chancellors from the clerical ranks; that neither the liberties of the subject, nor the prerogatives of the crown, appeared to be in danger from the change; and

1642, February.

that the removal of the bench of Bishops would not destroy the integrity and completeness of the Upper House, or put out of working gear the machinery of the Constitution. On political grounds they saw no valid objection to the measure, whilst in a religious point of view they deemed it highly desirable.

The Act which deprived Bishops of their legislative functions did not touch their revenues; but there followed, within a little more than two months, an ordinance which absolutely deprived some amongst them of their estates, personal as well as real, and placed the possessions of all the rest in jeopardy; so that from affluence they were reduced to poverty, or to the imminent hazard of losing whatever they had.

Those who lived beyond the year 1650 will be noticed hereafter. Those who died before that time are recorded now.

Robert Wright, bishop of Coventry and Lichfield, one of the protesters, remained in the Tower eighteen weeks; and when set at liberty, retired to his episcopal castle of Eccleshall, in Staffordshire, which he—like a military Churchman of the middle ages—defended against the Parliament. He died during a siege in the summer of 1643.

Bishops.

Dr. Accepted Frewen, nominated by the King as successor to Wright, derived but little from his see before the Restoration. [\[261\]](#)

Thomas Westfield, bishop of Bristol, who died in 1644, won the good opinion of all parties; so that the Puritan committee, appointed by the ordinance for sequestering delinquents' estates, on being informed that his tenants refused to pay their rents, ordered them to yield to him the revenues of his bishopric, and gave him and his family a safe conduct to Bristol. It is said of him, that "he made not that wearisome which should be welcome; never keeping his glass (the hour glass in the pulpit), except upon extraordinary occasions, more than a quarter of an hour: he made not that common which should be precious, either by the coarseness or cursoriness of his manner. He never, though almost fifty years a preacher, went up into the pulpit but he trembled; and never preached before the King but once, and then he fainted." [\[262\]](#)

His immediate successor in the see, Thomas Howell, consecrated at Oxford during the siege of that city, is

1641-1650.

reported to have been treated at first by the people of Bristol with great indignity and violence—his palace being turned into a malt-house and a mill—but the mildness of his disposition overcame all enemies, and though he found few well-affected on his appointment to the diocese, he left few ill-affected towards him at his death. He died in 1646, and was buried in his own cathedral.

George Coke, bishop of Hereford, forfeited his estate, like the other protesters. Colonel Birch, a Parliamentary officer, took possession of his palace on the surrender of the episcopal city in 1645. His wife and children had an exhibition granted for one year out of his sequestered estate at Eardsley, on condition that neither she nor her husband should assist the malignants. He died in 1646.

Morgan Owen, bishop of Llandaff—said to be under the influence of Laud, and connected with him by the Puritans, in a story respecting some popish image of the virgin at Oxford—was a protester, and imprisoned accordingly. His death occurred towards the end of 1644.

Walter Curle, bishop of Winchester, resided in that city when the Parliamentary forces besieged it. Upon its surrender, he retired to Subberton, in Hampshire, where he died in 1647, after suffering the sequestration of his own proper estate for refusing to take the covenant.

John Towers, bishop of Peterborough, having been confined for his connection with the protest, subsequently repaired to the King, at Oxford, and remained there till its surrender to the Parliament, when he returned to Peterborough, and there found himself, as a delinquent, stripped of his revenues. He died in 1649. [\[263\]](#)

John Prideaux, a man of eminent learning, promoted to the bishopric of Worcester amidst the troubles of 1641, excommunicated all in his diocese who took up arms on the Parliament's behalf. By such conduct of course he subjected himself to penalties; and it is related, that he turned his books and everything else into bread for himself and his family, so that, when he was saluted in the usual way, "How doth your lordship do?" he facetiously replied, "Never better in my life, only I have too great a stomach, for I have eaten that little plate which the sequestrators left me; I have eaten a great library of excellent books; I have eaten a great deal of linen, much of my

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brass, some of my pewter, and now I am come to eat iron, and what will come next I know not."^[264] This humorous prelate died in 1650, leaving to his children—"no legacy but pious poverty, God's blessing, and a father's prayers."

John Williams, archbishop of York, who has appeared prominently in this volume, after the imprisonment and sequestration which he brought upon himself by the conduct which we have already described, took, by royal command, the charge of Conway Castle and the government of North Wales, in which country he was born; and, at last—either in accordance with his established character for trimming his sails according to the wind, or to gratify a personal grudge against the Royalist captain, by whom he had been violently displaced—he joined a Parliamentary troop in order to recover his old fortress; after which military transaction he ended his strange and chequered career, in 1650, at Glodded, in the house of his kinswoman, Lady Mostyn. It is related of him, that during the last year of his life, he rose out of bed regularly at midnight for one quarter of an hour, when he knelt on his bare knees, and prayed earnestly, "Come, Lord Jesus, come quickly, and put an end to these days of sin and misery."^[265]

On returning to the complicated web of religious interests and excitements at the close of the year 1641, some dark threads remain to be unravelled.

1641, October.

The following letter was written in London on the 4th of November, 1641, and indicates the alarm excited by intelligence just received from Ireland:—^[266]

"This week hath brought forth strange discoveries of horrible treasons hatched by the Papists in Ireland, and that upon the 23rd of October past, they should have been put in execution throughout the north of that kingdom upon all the Protestants at one instant, who were then designed to have their throats cut by them; but, God be thanked, the night before, being the 22nd October, one Owen Connellie, a servant of Sir John Clotworthy, a member of the House of Commons, being then newly made acquainted with the wickedness of the plot, by a friend of his, that the next day should have been an actor in it, went (though with much ado) to the Lords the Justices in Dublin, and revealed it: whereupon the gates were instantly commanded to

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be shut, and a matter of thirty-eight that were in town of the conspirators taken, whereof the Lord Marquis and Mac Mahon are the chief, and have since confessed, that by the next morning they expected to come to their aid twenty well armed Papists, out of every county in Ireland, that they might all, upon a sudden, have surprised the castle with the ammunition, and so commanded the city and the lives of all the inhabitants. The treason being thus discovered did spread apace throughout the north of Ireland, where the rebellion first began, and in several places in several bodies are of the Papists up in arms above 10,000 men, which doth much perplex the poor Protestants, and [there is] great fear whether they shall be able to suppress or resist them. Whereupon our Parliament hath ordered my Lord of Leicester, Lord Lieutenant, and all other commanders here, speedily to repair thither, and do furnish £50,000 to carry along with them, which the City of London advances for providing of men and arms to secure that kingdom. Some blood the villains have shed, and committed great outrages, and taken some castles and places of strength; but if they had taken Dublin, upon the rack divers have confessed, in a short time they would not have left a Protestant alive in the whole kingdom; but God, in His mercy, hath prevented that slaughter, and hath turned part of it upon themselves. The traitors give out the late tyranny of the Lord of Strafford upon them moved them to it; and that, by the example of the Scots, they hoped to purchase such privileges, by this means, in their religion, as otherwise they never expected to have granted to them. You see the distempers of the three kingdoms—God forgive them that have been the cause of it, and then to be despatched into the other world, that they may trouble us no more in this again."[\[267\]](#)

It is difficult for us—now that the reformation has become a remote event, and Protestantism holds undisputed supremacy; now that the principles of liberty are well understood, and the asperities and virulence of old controversies, except in a few cases, have, been softened down—to enter into the anti-papal feelings which moved our stout-hearted fathers more than two centuries ago. At that period, the Reformation, under Elizabeth, had lasted little more than eighty years. The parents of some who were now living had witnessed the cruelties of the Marian persecution; the men and women under Charles the First, had, as boys and girls, in ingle-nook at Christmas-tide, felt their blood run cold

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whilst listening to stories of the Smithfield fires from eye-witnesses. A few, then in London, had actually beheld with their own eyes a scene which stirs our hearts when only represented by the pencil—Elizabeth haranguing her troops at Tilbury Fort. More had heard, with their own ears, the current contemporary talk about the Spanish Armada, as it sailed up the channel, and had caught the first tidings of the proud armament being scattered to the winds—just after the subsiding of the storm which sunk the accursed ships—and they could never forget how the nation drew breath after a gasp of most awful suspense in 1588. These last events were about as near to the times we are describing, as the Battle of Waterloo is to our own. The gunpowder plot was an incident of no very distant occurrence; only as far back in the memory of members of the Long Parliament, as the Bristol riots, and the Swing rick burning in our own. Numbers of the gentlemen in high-crowned hats and short cloaks, who walked into the House of Commons in 1641, filled with alarm respecting Popery, had participated in the sensation produced by that discovery, which is celebrated now only by a few boys on the 5th of November. Besides all this, the sufferings of French Huguenots were fresh in everybody's mind. Refugees who had escaped the galleys were still in London. The massacre at Paris, commemorated by the Pope's medal, hardly fell beyond the recollections of existing persons, whilst new religious conflicts in France, and the siege of Rochelle, had occurred but a few years before. The thirty years' war in Germany was not concluded; and the battle of Prague, the execution of the Protestant patriots in front of the Rathhaus, the expulsion of the disciples of Huss, and the barbarities of the Papists throughout Bohemia, were in everyone's memory.

With so many alarming events recently connected with Popery, and while the question of the Reformation in Europe appeared unsettled, and Jesuits were intriguing, and catholic tendencies had reached such a height in the Church of England, it is no wonder that staunch Protestants at home, who made common cause with staunch Protestants abroad, had such an intense dread of their old enemy. It was then with the Puritans of England, as it has ever been, and still is, with the Protestants of France. The latter have never forgotten the massacre of St. Bartholomew, and the revocation of the Edict of Nantes. They have cherished, more than we have, the traditions of a suffering Church, a Church struggling to keep its ground against neighbours as powerful as they are antagonistic. Catholic tendencies do not appear

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amongst the descendants of the Huguenots; the line is distinct between the two Churches, and the trumpet of defiance, in the case of French Protestantism, gives no uncertain sound. A like relative position to papal Europe was maintained by the Puritans of 1641, with animosities even more intense, inasmuch as the tragedies remembered were more recent, and the danger apprehended seemed just at hand: and it explains how the outburst of a neighbouring rebellion on the part of the spiritual subjects of the Pope, struck terror in all Protestants throughout this kingdom, from the Orkneys to the Land's End.

The Protestant Church never flourished in Ireland. Bedell, Bishop of Kilmore, and Bramhall, then Bishop of Derry, laboured to produce reform. Bedell, seeing that the native Irish were little regarded by the Protestant clergy and were left almost entirely in the hands of the Popish priests, aimed at instructing them in the truths of Christianity; a wise method, which however did not meet the views of Strafford, whose policy was "to enforce religious unity by Church discipline, and to invigorate Church discipline with the secular arm."^[268] Bramhall, in 1633, gave a deplorable account of the Irish Church to Archbishop Laud. It was hard to say whether the fabrics were more ruinous, or the people more irreverent. One parochial church, in Dublin, had been turned into a stable, a second into a dwelling, and a third into a tennis court, the vicar acting as keeper. The vaults of Christchurch, from one end to another, were used as tippling rooms, and were frequented for that purpose at the time of Divine service. The very altar had become a seat for maids and apprentices. The bishop also doubted the orthodoxy of his clergy. The inferior sort of ministers (he said) were below contempt in respect of poverty and ignorance, and the boundless heaping together of benefices by *commendams* and *dispensations* was but too apparent. Rarely ten pounds a year fell to the incumbent, and yet one prelate held three-and-twenty benefices.^[269] Such a state of things, not described by an enemy but by a friend, speaks volumes. Bramhall, in meditating reform, followed too much Laud's method, first looking at the external condition of the Church, striving to improve edifices, to preserve and rightly administer emoluments, to regulate worship and secure uniformity—doubtless with far higher ultimate aims—instead of going at once to the root of the evil, and promoting the spread of the Gospel of Christ, and the revival of spiritual religion. Some

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outward improvement followed the Churchman's endeavours, but very little of that pure vital piety, and that Christian love, without which a Church, no less than an individual, is but as "sounding brass and a tinkling cymbal." Protestantism, even with the best endeavours of its advocates, had not laid hold on the Irish heart; and Papists, who were immensely in the majority, looked with bitter feeling on the chronic disease of Ireland—the absorption of ecclesiastical emoluments by a sect in the minority. Puritanism too was active. People complained of "the unblest way of the prelacy," of fines, fees, and imprisonments, of silencing and banishing "learned and conscionable ministers," and of the prelates favouring popery.^[270] Moreover, political heart-burnings mingled with all this ecclesiastical strife.

The Popish rebellion broke out in October. On the 1st of November, Mr. Pym rose in the House of Commons, and stated that a noble lord, a Privy Councillor, with other noble lords, stood at the door, waiting to deliver important intelligence. Chairs were ordered to be placed for these distinguished visitors, who entered uncovered—the serjeant carrying the mace before them. The Commons doffed their hats till the strangers were seated; when, having covered their heads again, each, in breathless silence, with eager inquisitive eye, perhaps with pressed ear, listened to the Lord Keeper, as he proceeded to tell them the purpose for which he had come. The alarm increased as the Earl of Leicester, Lord Lieutenant of Ireland, one of the deputation from the Lords, took off his hat, and said: That letters and papers had been sent from Ireland by the Lord Justices, communicating information of the shedding of much blood; that all Protestants were to be cut off; that no British man, woman, or child was to be left alive; that the horrid deed had been fixed for Saturday, the 23rd of October, being the feast of St. Ignatius; that the King's forts were to be seized, and the Justices and Privy Council slain. A timely supply of men and money therefore was needed to save the country.

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These vague tidings ran through England like wildfire, and then there followed details of unparalleled barbarities. It was reported, that in the county of Armagh alone, a thousand Protestants were forced over the Bridge of Portadown, and drowned in the River Bann. A wife was compelled to hang her own husband. Two-and-twenty people were put into a thatched house, and

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burned alive. Women, great with child, had their bellies ripped up, and were then drowned. Three hundred Protestants were stripped naked, and crowded into the Church of Loghill, a hundred of whom were murdered, one being quartered alive, whose quarters were flung in the face of the unhappy father. A hundred men, women, and children were driven like hogs for six miles to a river, into which they were pitched headlong with pikes and swords.^[271] These instances are only a few taken from the reports: page after page in Rushworth, and other collections, is filled with the like enormities. The computation was that between one and two hundred thousand persons perished in these massacres. Common sense, knowledge of human nature, and the recollection of rumours in our own time respecting Indian massacres and Jamaica atrocities, must lead us to suspect the accuracy of these reports.

Allowance should be made for exaggeration at a time of maddening terror, and in the case of an excitable and imaginative people like the Irish. It should also be remembered that our poor sister island had endured wrongs from a Protestant Government; that the Puritans had alarmed the Papists; that the Papists had exasperated the Puritans; and that mutual intolerance increased mutual hatred. But, after all fair abatements, that Irish Rebellion must be regarded as one of the blackest crimes recorded in history, as an outburst of demoniacal fury, which nothing could excuse, and which the utmost provocation could but slenderly palliate.^[272] If, as supposed by some, it was a desperate stroke for Popish ascendancy in Ireland, encouraged by the example of the Scots, who by rising in arms had asserted their right to a Presbyterian Government, it must be admitted by all to have been, as Carlyle says, "a most wretched imitation."

It is not our business to investigate the sources of the Irish rebellion, or to weigh evidence as to its horrors. Enough is admitted by historians of every school to shew that it was a very great calamity, and all to be done here is to indicate the impression it made in England, and how it further complicated the already intricate causes which conspired to complete the great ecclesiastical revolution of the age.

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Puritans in England were terror-stricken. Fasts were held, and young people were worn out by abstinence and prayer. Amidst a crowded congregation, near Bradford, where all were groaning and weeping, there

came a man, who cried, "Friends, we are all as good as dead men, for the Irish rebels are coming; they are come as far as Rochdale, and Littleborough, and the Batings, and will be at Halifax and Bradford shortly."^[273] Upon hearing this, the congregation fell into utter confusion, and began to run for their lives,—screaming about the bloody Papists, and expecting every moment to meet the cut-throats. Not only were ignorant multitudes thus panic-stricken, but Richard Baxter believed that the Irish had threatened to come over, and, he remarks, that such threats, "with the name of 200,000 murdered, and the recital of the monstrous cruelties of those cannibals, made many thousands in England think that nothing could be more necessary than for the Parliament to put the country into an armed posture for their own defence."^[274]

Not only did aversion to Popery proper increase through what had happened in Ireland, but that aversion regarded much which bore but a very partial resemblance to Popery. It was not easy then, with cool discrimination, to distinguish between things which differed; and some things, it must be remembered, were more alike then than they are at present. What would be folly in one age may be something like wisdom in another; what would be groundless fear now might be caution then; that which all would pronounce insanity in a Protestant of the nineteenth century was probably only a reasonable apprehension in a Puritan of the seventeenth. At that time there not only rose a stronger determination to resist the power of Rome, but also a stronger determination to put an end to the power at Lambeth. The tiara became more hateful than ever, and not less so the mitre: images of the Virgin were pronounced intolerable, so were all superstitious ornaments in churches. The Popish rebellion helped on the measure for removing Bishops from amongst the rulers of the country, and imparted a fresh impulse to the desire for abolishing Episcopacy.

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The actual plot in Ireland gave countenance to the belief of imaginary plots in England. One day in November, John Hampden went up to the Lords to let them know that a man had come to the door of the House of Commons, and sent in word how he had matters of a high nature to reveal concerning certain noble Peers and honourable Commons. They had therefore sent the man to their Lordships' House, for examination. Upon this, one Thomas

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Beal, a tailor of Whitecross Street, appeared, who told a long rambling story to the effect, that on that very day, at twelve o'clock, as he went into the fields near the Pest House, and was walking on a private bank, he heard some people talking warily. Going nearer, he heard somebody say, "it was a wicked thing that the last plot did not take," but that one now was going on which would be the making of them all. A hundred and eight conspirators were to kill one hundred and eight members of Parliament—all Puritans—and the sacrament was to be administered to the murderers. Beal was commanded to withdraw, and an order followed to arrest certain Jesuits on suspicion. This conspiracy, as might be expected from the man's story, turned out to be mere smoke.^[275] Yet we relate the circumstance as an illustration of the excitement of the period; and to exemplify how men, like the inhabitants of the Hartz mountains looking at the clouds, saw their own fears reflected in gigantic shadows, which they mistook for most awful and threatening realities.



CHAPTER X.

The cause of English Episcopacy sank into a hopeless condition. Whatever streaks of light had just before been flickering on its horizon had now totally vanished; not that the removal of the prelates' bench from the House of Peers sealed its fate, for, apart from legislative authority and political position, Episcopal office and influence might have been retained. But the policy of Laud and Montague had been such as to estrange from the Order the affections of the Puritans, then the most active and influential part of the religious population of the country. The complicity of Church rulers in the unpopular proceedings of the High Commission and Star Chamber Courts, and their sympathy in Strafford's scheme of arbitrary rule, had torn away from them the last ties of attachment on the part of the middle classes, which, in modern England, form the only trustworthy stays of power in Church or State. The effect of the protest of Archbishop Williams and his associates had confirmed the mean opinion in which all the bishops were held, and had now rendered a case before very doubtful, wholly desperate. Charles, who from the beginning had been ready to stake the crown in his struggle for the Episcopal Church, had by his arrest of the five members exasperated to the utmost the supporters of the Constitution, and placed himself in a false position towards the House of Commons; so that, while imperilling his own prerogatives, he also injured the Church, with which he identified the interests of his throne.

Even the secession of certain conspicuous advocates from the ranks of ecclesiastical reform to the opposite side served to weaken, not to help, the cause of ecclesiastical conservatism.

1641-2.

Sir Edward Dering's course has been described. We have seen him to be one of those men, who, after looking at both sides of a question, and endeavouring to keep the mean between extremes, at length come to look at one side so much more than the other, that they unconsciously swerve in a direction divergent from their original career, and then, with exquisite simplicity, wonder that they are charged with vacillation. Such persons are

also apt to be impetuous, and to speak unguardedly in the heat of debate; and, while honestly hating the character of turn-coats, they expose themselves to that odious accusation. Sir Edward had looked at Anglicanism and at Nonconformity, trying to steer a middle course; but circumstances of late having brought before him most prominently the dangers of schism, he now inveighed against it with the same zeal, which, in the spring and summer of 1641, had inflamed his anti-prelatical orations. It is very easy to make good against this honest but shallow politician the charge of self-contradiction. It is curious to see in his "Defence" how one who courted popularity winced under the accusation of being an apostate, and how he parried the charge of going over to the enemy's camp. At an hour when parties were plunging into a mortal struggle, a much wiser man, counselling moderation, would have had little chance of making himself heard; and certainly Dering's laboured distinction between ruin and reform did as little toward preventing the first as promoting the second; and it could only produce a grim smile in the iron face of a Puritan, when the recent church reformer cautioned his friends, in classic phrase, against "breaking asunder that well ordered chain of government, which from the chair of Jupiter reacheth down by several golden even links to the protection of the poorest creature that now lives among us."^[276]

Another seceder was Lord Falkland, who though a far different man from Dering, yet possessed an amount of impetuosity which at times mastered his wisdom; for instance, when on one occasion the Speaker desired the Members of the House to concur in a vote of thanks by a movement of the hat, Falkland, with a sort of childish irritability, "clasped his hands together upon the crown of his hat, and held it close down to his head."^[277] It is somewhat singular that such a man should be held up as an example of moderation—that one so impulsive and demonstrative should have won renown for calmness and caution. The truth is, that he had looked even more closely than Dering had done at the two sides of the great controversy, and by dwelling exclusively first on the one and then on the other, had incurred, like his parliamentary friend, the charge of tergiversation. He saw more strongly the objections to a question than the grounds of its support. "The present evil always seemed to him the worst—he was always going backward and forward; but it should be remembered

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to his honour, that it was always from the stronger to the weaker side that he deserted: while Charles was oppressing the people, Falkland was a resolute champion of liberty. He attacked Strafford, he even concurred in strong measures against Episcopacy; but the violence of his party annoyed him and drove him to the other party, to be equally annoyed there."^[278] Falkland deserted his former friends in October, on the reintroduction of the Bill for taking away the bishops' votes; on the ground, that, though at first he thought it might prove an effectual compromise, and might save Episcopacy by sacrificing its political power, yet he afterwards entertained the opinion that it would have no such effect. The charge of dishonesty never can be brought against him; his character in this respect, like polished armour, could not be dimmed for more than a moment by the breath of scandal. A perfect Bayard in his chivalrous career, *sans peur et sans reproche*, however he might diverge from his previous path, he can never be justly regarded as a renegade. The persuasion of his friend Hyde, his sympathies as a tasteful and accomplished gentleman with the cavalier party, and beyond all, perhaps a sort of religious reverence for royalty, had more than anything to do with his change of policy in October, and his acceptance of office in the King's councils in January. And it does not appear, that, though he dreaded extreme measures against the Church, he had any more zeal for prelates after than before his separation from his old friends. It was for the crown rather than the mitre that he threw his weight into the royal scale. He approved of moderate Episcopacy, but for that he did not make his great sacrifice. He could not say with Sir Edward Verney, "I have eaten the King's bread, and served him near thirty years;" but he could adopt the veteran's declaration, "I will not do so base a thing as to forsake him." He was not prepared to exclaim, "I chose rather to lose my life, which I am sure I shall do, to preserve and defend those things which are against my conscience;" but he might have adopted the words of the same brave soldier, "I will deal freely with you, I have no reverence for Bishops for whom this quarrel subsists."^[279] The heart of many a Royalist went more with King than Church.^[280]

These changes left the staunch opponents of Episcopacy more unfettered in action, and served to consolidate party elements which, for a long time, had been held in a state of solution. Though it would be inaccurate to speak of

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Popular Party.*

two distinct and compact parties before the end of 1641, such parties are to be recognized after the beginning of 1642. Men were then forced to take a side, to assume a definite position. A grand issue was joined. Half measures were no longer possible. Questions became distinct. The device and cognizance on each of the opposite banners might be as unmistakably understood as they were plainly emblazoned—on the one side, "Church and King," on the other, "Constitutional Reform in Church and State." There may be quibbles about the accuracy of such watchwords, but those now mentioned are as applicable to the two parties of the seventeenth century, as any familiar ones now are to the political distinctions of the nineteenth.

Politicians who remained staunch in the defence of Parliamentary power against Kingly despotism were much more agreed in reference to the State than in reference to the Church. On the negative side of ecclesiastical revolution they pretty well understood each other. What should be put down they knew; but not precisely what should be set up. That prelacy of the Stuart type should be expelled was a foregone conclusion in 1642; but what sort of rule should take its place, whether very moderate Episcopacy, or thorough Presbyterianism like that of Scotland, the leaders of the movement had not determined. It is, however, quite evident that great modifications in the direction of Presbyterianism were under contemplation: for Presbyterians were numerous in London; their leaders were active amongst the citizens; and the Scotch, through their commissioners, were earnestly doing all they could to promote the cause which was dear to their hearts. But the sectaries, who were hated equally by the Presbyterian and Prelatist, were also on the increase. So numerous indeed had they become that Bishop Hall, in his last speech in the House of Lords, declared with spleen unworthy of so good a man, that there were eighty congregations of them in London, "instructed by guides fit for them, cobblers, tailors, felt-makers, and such like trash, which all were taught to spit in the face of their mother, the Church of England, and to defy and revile her government."^[281] Letters of the Royalists at that period abound in complaints respecting the increased activity and boldness of people who were condemned as schismatics. Those so designated had views of ecclesiastical polity very different from Presbyterian opinions, and were destined to check the progress of the latter much more effectually than to contribute to the downfall of Episcopacy. Some of them even (but only some) went so far as to cry, "Away with the

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thought of a national Church. It is impossible for a national Church to be the true Church of Christ. Let us have no Church but Congregations, and let them be without superintendency." To this we may add that the separatists in general objected to the distinction between clergy and laity, and maintained that the Church is a body, all the members of which are kings and priests.^[282]

Charles and his Queen left London on the triumphant return of the five members to Westminster. So hasty was the royal flight, that befitting accommodation for their Majesties could not be provided. They first journeyed to Hampton Court, but their subsequent movements were so secret, that even courtiers did not know whither the royal pair were bending their steps.^[283]

Royal Flight.

Under Secretary Bere, writing to Admiral Sir John Pennington, on the 13th of January, thus speaks of the startling events then taking place:—

"Sir—The last week I told you but the beginning of those bad ensuing news we must now daily expect, unless it please God to give a strange if not miraculous change whereby to settle the distraction of affairs. The committees, sitting all last week in the city, returned again to Parliament on Tuesday, and the persons accused with them; for whom both City and county have shewn so much affection, that they came accompanied with such multitudes, as had as much of the triumph as guard: and by water the seamen made a kind of fleet of boats, all armed with muskets and murdering pieces, which gave volleys all the way they went. The King and Queen took the day before a resolution to leave this town, which was also so sudden, that they could not have that accommodation befitting their Majesties. They went to Hampton Court that night, next day to Windsor; whence it is conceived they will also depart as this day, but whither is uncertain. The Prince and Prince Elector is with them; but few Lords, Essex and Holland being here, who offered up both their places before his going, but his Majesty would not accept the surrender. Mr. Secretary Nicholas is likewise gone, and hath left me to attend such services as shall occur, which, if the King shall persist in his resolution to retire, will not be much. However, I will expect the issue, and, if I be not sent for, think myself not unhappy in my stay, to be freed of an expensive and troublesome journey. My Lady Nicholas is much afflicted, and, I believe, as well as he, would for a good round sum he had never had

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the seals. My Lord-Keeper, refusing to put the great seal to the King's proclamation against the persons accused, did also make tender of his charge, but howsoever remains still with it; and thus, Sir, you see to what height of distempers things are come. The public voice runs much against Bristol and his son, as great instruments of these misunderstandings. In the meantime they are united in the Houses, and the accord between the Upper House and Commons grows daily more easy; so that it is hoped some good and moderate resolutions will be taken for the procuring his Majesty's return with his contentment (which I pray God may be), for otherwise there can be expected nothing but confusion.

"I understand even now that the King is remained this day at Windsor, and it is hoped will not go further; the French Ambassador having been there, and offering to interpose for an accommodation between his Majesty and the Parliament, in the King his master's name, whence it is hoped may ensue some good effect. This day divers Lords are going to Court with a message from the Houses. I had almost forgotten to tell you of a new Secretary of State made last Saturday, to wit, the Lord Falkland, and he hath the Diet."^[284]

From Windsor, Charles went to York, which now became a focus of political and ecclesiastical activity and intrigue. Declarations, manifestoes, and commands were issued by royal authority from the North to be contradicted and disobeyed by such members of the two Houses as continued at their posts in the South.^[285] The Puritan patriots flocked to St. Stephen's with petitions complaining of Popish malignants, Irish rebels, and other hindrances to reform; while Royalist Churchmen as eagerly besieged the King's presence chamber in the ancient archiepiscopal city with addresses lamenting the disorders of the times, and praying for the support of old-fashioned loyalty, with Prayer Book, Cathedrals, and Bishops.

Attempts to mediate between the two contending powers were made in vain: for no mediator existed possessing such a character for impartiality as was needful to reconcile, or even mitigate the quarrel. Louis XIII. of France

*Attempts at
Mediation.*

offered his services, but his relationship to Henrietta Maria, and his being a Popish and absolute monarch, disqualified him for the office of peace-maker.

The Scotch, with the best intentions, but with even more unfitness—having taken up arms against Episcopacy, having been in the pay of Parliament, and having fostered a Presbyterian spirit in England—proffered their help. The Commissioners, who had just returned to London, and had taken umbrage at the treatment which they had received from the Royalist and High Church Lord Mayor—complaining that he had assigned to them lodgings in a plague-stricken house^[286]—made their appearance at Windsor Castle, in the month of January, to tell his Majesty, that the liberties of England and Scotland must stand and fall together, and to ascribe the existing disorders of the country to the plots of Papists and prelates, who aimed at subverting the purity and truth of religion.^[287] Yet, while thus manifestly taking the Parliament side in the controversy, the Scotch coolly offered their services to compose the difference between the King and his subjects. Nothing could come of this, nor of a renewal of the offer in May sent from the Council in Edinburgh to Charles, at York, through the hands of their Chancellor. Even the most impartial advice and the wisest diplomacy now must have been too late, for the dispute had gone beyond any healing power, since both parties laid their hands on the scabbards of their swords, and, in fact, the blade was already half drawn by each.

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It is not our province to enter upon the question between King and Parliament, touching the militia. It is sufficient to observe that, when such a question arose, war could not be far off. Nor does it become us to notice the simply political aspects of those voluminous papers belonging to the Civil War which have been collected by Rushworth,^[288] containing the manifestoes of the two belligerents, who—like all belligerents down to the Prussians and Austrians this very summer—writing what they know would be read by the whole world, sought to throw the whole blame of the quarrel on each other; and while both were buckling on their armour, neither liked to be seen striking the first blow. It must be confessed, that in these patiently prepared, and able, though tedious documents, the thrusts at the enemy are more effective than the counter-

Manifestoes.

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thrusts. Both King and Parliament wished to be thoroughly constitutional in the form of everything which they said and did; and on the side where justice lay it was far more easy for them to be so, when assailing their antagonists than when they were defending themselves. In other words, it was easy for the Parliament to prove that the King had violated the Constitution; but it was not so easy to prove that, when taking all power into their own hands—especially when taking up arms—they kept within the formal lines of the English Constitution. The legal fiction of arming in the King's name against the King's person; the separation of Charles Stuart and the Sovereign of England into two entities; the defence of the abstract rule by violence against the concrete ruler, are refinements, which, however sound they may be in political metaphysics, do not carry conviction to plain English understandings.^[289] Besides, the reasonings of the great Parliamentary lawyers,—which were learned, profound, and subtle in the extreme,—require much more of erudition and perspicacity, that they may be followed and appreciated, than people commonly, either in that age or this, could be supposed to possess.^[290] But putting legal technicalities aside; looking at the matter on broad grounds of justice; viewing the government of England at that period as already unconstitutionalized, by the King's aiming to rule without Parliaments; considering also that a regal revolution had in fact been going on for twenty years, the vindication of the popular party is triumphant. To save what was free in the Constitution, there was a necessity perforce for breaking down, at all hazards, whatever of arbitrary power had crept into the working of affairs. The King had been striving to destroy Parliamentary action, and nothing which he had conceded could remove the suspicion that he remained the same despot in spirit which he had ever been, and that now he only waited for a convenient season, when he might withdraw his concessions, lock up the doors at Westminster, and, with the key in his pocket, entrench himself at Whitehall, as absolute a tyrant as his brother of France. Parliament then was compelled, if it would save the liberties of the country, to work by itself for the repair of mischief already done. The State had reached a revolutionary crisis; and only by revolutionary means could it be brought back to a constitutional and normal condition. What Quin said to Warburton of the execution of Charles, may be more fitly applied to the taking up arms against him. When asked by what law he would justify the deed? The witty

actor rejoined, "By all the laws he had left them." "It is the sum of the whole controversy," says Walpole, "couched in eight monosyllables."^[291]

With the religious points of the declarations we have alone to do. On the 9th of April, the Lords and Commons declared that they intended a reformation of the Church; and that, for the better effecting thereof, they wished speedily to have consultation with godly and learned divines; and because this would never of itself attain all the end sought therein, they would use their utmost endeavours to establish learned and preaching ministers with a good and sufficient maintenance throughout the whole kingdom; wherein many dark corners were miserably destitute of the means of salvation, and many poor ministers wanted necessary provision.^[292]

Manifestoes.

On the 3rd of June, the King stated that he was resolved to defend the true Protestant religion established in the reign of Queen Elizabeth, to govern by law for the future; and that he had no intention to make war with his Parliament, except it were in the way of defence. In June the Parliament presented to the King certain propositions. Those relating to religion were:—That the laws against priests and Popish recusants be strictly put in execution, and a more effectual course be taken to disable them from making any disturbance; that the Popish lords in the House of Peers be deprived of their votes, and a Bill be drawn for the education of the children of Papists in the Protestant religion; that his Majesty do consent to such a Reformation of the Church as Parliament shall devise, and be pleased to give consent to the laws for removing innovations, pluralities, and scandalous ministers.^[293] The King replied, that as to the Popish peers he was content that they should give their votes by proxy through Protestant lords; as to the education of Papists by Protestants, it was the very thing he wished: but, touching the Reformation to be made of the Church Government and Liturgy, he told them he hoped that what he had formerly declared had been sufficiently understood. He had said, in his answer to the petition presented at Hampton Court, that, for any illegal innovations which might have crept in, he should willingly concur in their removal, and that if Parliament should advise the calling a national synod he should take it into consideration: but he was persuaded that no Church upon the earth could be found with more purity of doctrine than the Church of England, that

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nowhere did government and discipline exist more free from superstition; and that he would with constancy maintain them in their purity and glory, not only against all invasions of Popery, but also from the irreverence of schismatics and separatists, for the suppression of whom he required their timely assistance.^[294] Much of the royal reply had a specious look, and, if honestly meant, might have served as a ground for reconciliation; but to the Parliament, with their deep conviction of the King's insincerity founded on the experience of years, all his honied phraseology only seemed to cover hidden stings: and to persons bent on securing toleration for the sects—a daily increasing party—there was nothing in the King's words but what shewed the hopelessness of their cause if left to him.

All these documents considered in reference to what they professed, were so much waste paper. Ostensibly they spoke of peace—virtually they meant war.

Manifestoes.

Indications of a coming conflict were visible. The people divided into two parties, and gave signs by hoisting colours. Tawny ribbons were mounted in the hats of the Royalists,^[295] the Parliamentarians wore orange. Cavaliers insulted roundheads, and roundheads retaliated on cavaliers. The latter, it was reported, put the former to the test by requiring them to swear "a round oath." Pamphlets were published in vindication of taking up arms. In one of these publications, bearing the title of "Powers to be Resisted," it is declared, that if it be lawful in any case to contend with the sword it is in this; and, in reply to the objection, "No, not with the sword, but with prayer," comes the curious *reductio ad absurdum*, "contend against swine and dogs with prayer! I never heard the like since I was born; a vain thing, it is sure, to pray the swine not to trample the pearl under foot, to pray the dogs not to rend you."^[296] Disturbance and insecurity appeared already. The quaint little newspapers of the day make complaints of assaults and pillage. The Kent waggoners, for example, were stopped on the road to London, and the well-laden wains robbed by cavalier banditti.

Fearful times had already come, and times still more fearful were at hand. The people of England trembled at the idea of a civil war; the insurrection of Wyatt, and Kett's rebellion, had left grave recollections in London and Norfolk; but the blood shed in the wars of the Roses—a more terrible memory—now rose

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before peaceful households in crimson colour. Mental agitation increased at the sight of natural phenomena, which that agitation interpreted as supernatural portents; omens were detected in slightly unusual incidents, with a feeling akin to ancient Greek and Roman hope or terror under the augur's divination. Signs blazed in heaven—noises burst through the air—people talked of "a celestial beating of drums," and "discharging of muskets and ordnance for the space of an hour and more." Not satisfied with a recognition in the skies of the excitements on the earth, each of the two parties claimed the Divine Being on their own side, and had wonders to tell of judgments smiting opponents. Royalist churchmen related a story of a certain Puritan churchwarden who had taken down a painted glass window, and within two days his wife was exceedingly tormented in her limbs, raging and crying most fearfully. Parliamentary Puritans, with equal extravagance, declared how some wicked Royalist had stuck on the top of a pole a man in a tub to be shot at, and soon afterwards the Royalist was seized with convulsions. One who drank to the confusion of Roundheads, on beginning to dance, broke his leg. The divine indignation on account of setting up May-poles was equally apparent.^[297]

In connection with all this, hostile preparations were made on both sides. Members of the House of Commons contributed horses, money, and plate for the service of Parliament,^[298] whilst clergymen and their families sent spoons, cups, and beakers of silver, to be turned into money for the payment of the forces.^[299] On the other hand, the friends of the King manifested their loyalty and devotion; but they did not make sacrifices with the same ardour, and to the same extent, as their fellow-countrymen who embraced the cause of the opposite party. Clarendon bitterly complains of the lukewarmness of the Royalists, and observes, that if they had lent their master a fifth part of what they afterwards lost, he would have been able to preserve his crown, and they would have retained their property.

*The Coming
Struggle.*

The enlistment of soldiers was still more important than filling the military chests; and here again the advantage was on the side of the Parliament; the militia increased more rapidly than the forces gathered by the King's commission of array.^[300] Hampden, as the wheat ripened in the Chiltern Hundreds, was engaged in raising volunteers; Cromwell made himself useful in Cambridge

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and the Fen Country after a similar fashion; Lord Brooke, too, rode up and down amongst the fields and orchards of Worcestershire on the same business; and soon England bristled all over with officers beating up recruits. As cavalier nobles and squires assembled their tenantry under the royal standard, there were other landed proprietors who espoused the popular cause, and who were still more successful in securing followers. At the same time, town halls and market-places echoed with appeals to citizens and burgesses to fight for the liberties of their country; whilst in various places ammunition and stores were collected with corresponding activity and zeal. Castles and manor-houses were stripped of armour which had hung for years upon the time-stained walls; and parish churches yielded up from the tombs of ancient knights rusty helmets and hauberks. Old bills and bows, matchlocks and pistols, pikes and lances, and even staves and clubs, were piled up as part of the extemporised equipment. After a little while, military matters took something of artistic form, and regiments well accoutred might be seen marching under the flags of their respective colonels. Redcoats, following Denzil Holles, tramped along the streets of London; purple rank and file drew up at Lord Brooke's command under the tower of Warwick Castle; Hampden saw with pride his green coats winding through the vales of Buckinghamshire; and Lord Say and Sele appeared at the head of a regiment in jackets of blue. Haselrig led on his troops of "lobsters"—so called from the cuirasses worn by his horsemen; and last, but not least, Cromwell rode at the head of cavalry, who, from the completeness of their armour, as well as the invincibleness of their courage, have always been known as his "Ironsides."^[301] The Parliamentary officers tied an orange scarf over their accoutrements, and the standard of each regiment bore on one side the colonel's device, and on the other the Parliament's watchword, "God with us." Presbyterian divines became Parliamentary chaplains, in which capacity Dr. Spurstow was attached to John Hampden, and Simeon Ash—"good old Ash," as afterwards he used to be called—followed Lord Brooke. Marshall and Burgess attended upon the Earl of Essex, commander-in-chief.

The character of the Parliamentary army was not at first what it afterwards became. When the war commenced, as Cromwell subsequently remarked, "there were numbered among the soldiery, old, decayed serving men and tapsters," who dishonoured the cause; Papists, too, were reported to be in the ranks,

*Character of the
Army.*

strange as that report may appear. Charles, after the battle of Edgehill, flung the reproach in the face of his enemies, and declared that all men knew the great number of Papists who fought under their banner.^[302] The Parliament indignantly repelled the accusation, as utterly inconsistent with their avowed opinions and designs. So undoubtedly it was, and if any adherents of the popish religion actually existed in the patriot camp, they could be there only as Jesuits in disguise, in order to corrupt the good affection of their comrades; still, it would appear that such a charge could never have been hazarded but for the miscellaneous character of the troops at the commencement of the outbreak. Religious instruction and discipline, however, were speedily instituted; the men were furnished with copies of the Scriptures;^[303] the preaching of the Gospel prevailed in every place where the forces were quartered; and various means were employed to improve the moral and spiritual condition of the soldiers.

Turning to look for a moment at the Royalists, we observe that there were sound-hearted Protestants and truly religious men amongst them, but there were also considerable numbers of Roman Catholics;^[304] others—we fear they were the majority—cared very little, if at all, for religion, either in substance or form. Some scoffed at sacred things, and made a boast of their profanity and licentiousness. If Puritans quoted Scripture, sometimes with more reverence than wisdom, Royalists could use it with a blasphemous kind of vulgar wit which it is shocking to record. For example, on an ensign captured in Dorsetshire, a cannon was painted, with this motto: "O Lord, open thou my lips, and my mouth shall shew forth thy praise."

1642.

The ecclesiastical aspects of the civil war may be seen in the State Papers issued at the time. For the present, it suffices to observe that the English and the Scotch differed in their views respecting the relation in which the religious and political questions of the day stood to each other. The Scotch entered the field under the banner of Church, Crown, and Covenant, to carry on a contest, if not purely religious, yet one which was so in the main. Political considerations were subordinate: the flag was unfurled, and the sword drawn for Presbyterianism against Popery and against Prelacy. The rights of synods, and the interests of pure and undefiled religion, more than the privileges of

Nature of the Struggle.

1642.

Parliament, constituted the precious national treasure, to secure which the veteran General Leslie encamped with that great host, which Baillie so graphically describes. In the case of the Parliamentary army of England, it was otherwise. In the beginning, indeed, the Lancashire Puritans, when taking up arms, proceeded entirely on religious grounds, and emulated their more northern neighbours in that respect. They dreaded the Papists living amongst them; and it was against those Papists, not against the King, as they expressly declared, that they threw themselves into the civil war. During the siege of Manchester, the inhabitants, in their answer to the Royalist Lord Strange, identified his proceedings with the cause of the Roman Catholics, many of whom were marching under his flag.^[305] And in connection with this prominence, in one part of the country at least, given to the religious phase of the conflict, it should be remembered that English Puritans never counted religion in any of its relations as less than supreme; that they always professed obedience to Christianity as the supreme law of life; and that they were thoroughly religious, as to motive and spirit, in all their military service. So completely was this the case, that no Crusader could be more devout, as he buckled on his sword to fight for the rescue of the Holy Sepulchre, than the Roundhead was, when he buttoned his 'souldier's pocket bible' in his waistcoat, and shouldered his musket to fight against Rome and the devil—as well as against political despotism. But still, this latter object appears most conspicuous in our civil war. Pym and his associates were emphatically Parliament men: they engaged in a Parliament struggle, to save the English Constitution from the absorbing encroachments of the King's prerogative. Ecclesiastical questions necessarily connected themselves with such as were political, but the former were kept subordinate; and, when appearing in State documents, they occupy a far less space, and are treated with much less minuteness and fulness than the latter. The previous history of our country had given this shape to the controversy. As prior circumstances in Scotland had made the war for the Scotch principally one on behalf of the rights of the Church, prior circumstances in England made it for the English principally a war on behalf of civil liberty. Through a victory achieved for the Church, the Scotch intended to establish the political well-being of their country; through a victory obtained for the Parliament, the English meant to promote the spiritual interests of the Church. The relation between the two aspects of the conflict, in each case, came to be regulated accordingly.



CHAPTER XI.

To employ an apt but homely figure used by Mrs. Hutchinson, the smoke ascended from the tops of the chimneys before the flame broke out. As early as April, the King appeared at the gates of Hull, where he was denied entrance by Sir John Hotham. In the middle of June, the Commission of Array at Leicester came into collision with the Parliamentary militia. In August, the brave Lord Brooke set out from Warwick Castle with three hundred musketeers and two hundred horse, gathering round him recruits to the number of three thousand; the country sending "six loads of harrows to keep off horses, and a cart-load of bread and cheese, and great store of beer."^[306] Reluctant to shed blood, the Puritan commander charged his soldiers, for the kingdom's sake, not to fire a single pistol except in self-defence. Happily, there arose no occasion for firing at all, as the Royalists, under the Earl of Northampton, threw down their arms, and ran away. The King, in revenge of Brooke's conduct, bestowed that nobleman's castle as an escheat on the Lord of Compton-Winyates, after which the patriot, in defiance of this injustice and insult, planted ordnance at the gate and keep of his feudal fortress, and on the top of Cæsar's tower. Lord Compton, forcibly claiming the royal grant, assailed the stronghold left under the charge of Sir Edward Peto, and planted cannon on the church to bombard the castle. Dislodged by shots, the besieger endeavoured to starve out the garrison; but Sir Edward, with grim Puritan resolution, hoisted a flag displaying the figures of a Bible and a winding sheet, which presented very significant symbols of the objects and spirit of the rising war.^[307]

On the afternoon of Monday, the 22nd of August, there occurred the world-famous act of setting up the King's standard at Nottingham. After dinner, he with his company rode into the town from Leicester Abbey. The standard was taken out of the castle and carried into a field behind the castle wall. It resembled one of the city streamers used at the Lord Mayor's show; it had about twenty supporters; on its top hung a flag with the royal arms quartered, and a hand pointing to the crown, with the motto, "Give Cæsar his due." It was

Outbreak of War.

conducted to the field in great state by the King, Prince Rupert, and divers Lords. A proclamation respecting the war had been prepared, which his Majesty read over, and, seeming to dislike some expressions, called for pen and ink, and with his own hand crossed out or altered them; after which, when the paper was read, the multitude threw up their hats and cried, "God save the King." It was now late in the month of August, the days were closing in, and the evening shadows fell on the King and his staff as they engaged in this act which finally plunged England into a civil war. A violent storm of wind arose and blew down the standard, almost as soon as it was unfurled.^[308] As the cavaliers, in the dim twilight, wheeled off from the spot, did not their hearts beat with a sense of something very awful done that night?

As from one end of England to the other rumours of war were current, pious men betook themselves to the exercises of devotion; and the two Houses of Parliament, on hearing that the standard had been set up at Nottingham, published an ordinance for observing, with more than usual humiliation, the monthly fast, the services of which were to last from *nine in the morning till four in the afternoon*. At the same period, a religious service in London, known as "the Morning Exercise," was commenced, in connection with which special intercessions were offered up on behalf of the Parliamentary forces.^[309]

1642, August.

But whilst peaceable Puritans were praying, their armed brethren were marching through the country. In the State Paper Office there are letters, probably intercepted ones, written by a Roundhead soldier named Wharton, reporting to a friend the adventures of the regiment to which he belonged. They are so curious and interesting, and throw such light on the feelings of a religious nature which existed in the hearts of the Parliament soldiers, that we cannot forbear making use of them largely in this part of our narrative.

He informs us, that in the month of August, 1642, he and his comrades marched to Acton, and were belated. Many were constrained to lodge in beds "whose feathers were above a yard long." They sallied out into the town, and coming to the house of one Penruddock, a Papist, they were "basely affronted by him and his dog;" whereupon they entered and pillaged the dwelling; and then proceeded to the church, where they "defaced the ancient and sacred glazed pictures, and burned the holy rails;" the soldiers brought more holy rails to

Troops on the March.

be burnt, and abstained from pillaging Lord Portland's house, together with another inhabited by Dr. Ducke, only in consequence of a prohibition from their commanders. Mention is made of converting the surplice at Hillingdon into handkerchiefs, of burning the rails and also a service book at Uxbridge, and of similar outrages, perpetrated in other places; as well as of soldiers visiting Papists by stealth, and forcing them to give loaves and cheeses, which the captors triumphantly carried away on the points of their swords. Colonel Hampden, accompanied by many gentlemen well-horsed, welcomed these detachments to Aylesbury with great joy; after which they marched out with 400 musqueteers and a hundred horse, to Watlington, in Oxfordshire. At Great Missenden they had noble entertainment from the whole town, and especially from Sir Bryan Ireson, and the minister. On Sunday, a pulpit was built in the market place of Aylesbury, where they heard "two worthy sermons." Grievous complaints are made of their Lieutenant-Colonel, who is described in no measured terms, as one whom they all desired that the Parliament would depose or God convert, or "the devil fetch away quick."^[310]

From Northampton the same correspondent writes informing his friend that on Wednesday a fast was kept at Coventry—which is described as a city, having four steeples, three churches, and two parishes, and not long since, but one priest—where they heard two sermons, but before the third was ended an "alarm" came for them to march. By ten o'clock they got their regiments together, and about two in the morning proceeded towards Northampton.^[311] The military pillaged the parson of Barby, and brought him away prisoner with his surplice and other relics. At Long Buckby the soldiers had hard quarters, insomuch that they were glad to "dispossess the very swine, and as many as could quartered in the church." Some stragglers sallied into the neighbourhood of the town, and returned "in state, clothed in surplice, hood, and cap, representing the Bishop of Canterbury." On Friday morning, Mr. Obediah Sedgwick "gave a worthy sermon," and Wharton's company marched rank and file to hear him. Mr. John Sedgwick had been appointed to preach in the afternoon, but news having arrived that Prince Rupert had plundered Harborough, and fired some adjacent towns, this circumstance spoiled the service. On Sabbath morning Mr. Marshall, "that worthy champion of Christ," preached, and in the afternoon Mr. Ash officiated.

1642, September.

These by their sermons "subdued and satisfied more malignant spirits than 1,000 armed men could have done, so that we have great hopes of a blessed union."

Writing from Worcester (September 26th), Wharton complains of the barbarity practised by the cavaliers—relating how they stripped, stabbed, and slashed the dead, and then states that on Sabbath morning, his fellow-soldiers entered a vault of the college where his Excellency was to hear a sermon, and found secreted there eleven barrels of gunpowder and a pot of bullets. It is added that his Excellency prohibited any soldier to plunder churches or private houses under pain of death. In another communication, (dated September 30th), after an interesting account of the situation, buildings, and curiosities of the city, he paints its moral and spiritual condition, in most frightful colours, as so vile, and the country so base, so papistical, so atheistical, and abominable that it resembled Sodom, and was the very emblem of Gomorrah, and doubtless worse than either Algiers or Malta, a very den of thieves, and a refuge for all the hell-hounds in the country. Though the citizens cried *peccavi* their practical motto was *iterum faciam*; but they only did as they were taught by Dr. Prideaux, lately made bishop, and by other popish priests, who had all run away.

Troops on the March.

Respecting Hereford, he remarks, October the 7th, "On Sabbath day, about the time of morning prayer, we went to the minster, where the pipes played and the puppets sang so sweetly, that some of our soldiers could not forbear dancing in the holy quire, whereat the *Baalists* were sore displeased. The anthem ended, they fell to prayer, and prayed devoutly for the King and the bishops, and one of our soldiers with a loud voice said, 'What! never a bit for the Parliament,' which offended them much more. Not satisfied with this human service we went to divine, and, passing by, found shops open and men at work, to whom we gave some plain dehortations, and went to hear Mr. Sedgwick, who gave us two famous sermons, which much affected the poor inhabitants, who wondering, said they never heard the like before, and I believe them. The Lord move your hearts to commiserate their distress, and to send them some faithful and painful minister, for the revenues of the college will maintain many of them. I have sent you the gods of the

1642, October.

cavaliers enclosed, they are pillage taken from Sir William Russel, of which I never yet got the worth of one farthing."

The writer of these letters was a stern Puritan, with an almost equal hatred of Prelacy and Popery, and also a fierce Iconoclast, with not an atom of regard for what is æsthetical in worship—tearing up surplices as the rags of the mother of harlots, and looking with grim satisfaction on altar rails crackling in the fire as so much superstitious refuse and defilement swept out of the Church of God, and meet only to be destroyed.

Contemporary with these epistles is one from a minister at Berwick, which presents to us another illustration of what happened in those times, by revealing to us his secret troubles—thus indicating the violence of feeling prevalent amongst the Roman Catholics of the wild Border Country, towards zealous apostles of Puritanism: "Never had I more need of your prayers than at present: the Papists are very insolent, use me most basely by railing on me, &c. But especially the Scottish fugitives, Mr. Sideserfe and his adherents, are so exasperated against me for my fidelity, that there is no small fear of my life and safety. One in his cups said yesterday, that they would not be satisfied until they had my life; but I say with the apostle, my life is not dear unto me, that I may finish my course with joy and fulfil the ministry which I have received of the Lord Jesus. They rail upon the Parliament, and threaten to send for a troop of horse to fetch me from Berwick, but my times are in the Lord's hands. I have one hundred pounds in London: I would the Parliament had it for and towards the defence of the kingdom, if it would be accepted. The Lord maintain His own cause, go out with His armies, and make a good end for us, for I know your prayers will not be wanting."^[312]

As the Parliamentary soldiers were marching up and down the country, after the fashion described in Nehemiah Wharton's letters, Royalists were working out their will in another kind of lawless way. They had no psalm-singing or prayer, they built no pulpits in market-places, and if they did not retaliate upon conventicles the puritan treatment of parish churches, it was simply because conventicles did not exist, or were not within their reach. Royalist excesses were of another order. Whitelocke, describing the plunder of his own house, tells us that the enemy consumed whatever they could find, lighted their pipes with his MSS., carried away his title deeds, littered their horses with his wheat sheaves, broke down his park pales, killed his

deer, broke open his trunks and chests, cut his beds and let out the feathers, and seized his coach and horses. In a word, they committed "all the mischief and spoil that malice and enmity could provoke barbarous mercenaries to commit."^[313]

The first serious conflict between the two armies happened at Edgehill, on Sunday, October the 23rd. The Puritan forces were marching to worship at Keynton church, when news reached them of the enemy being only two miles distant. Upon hearing this, they proceeded that morning—as the autumnal tints dyed the landscape—to a broad field at the hill foot, called the Vale of the Red Horse, where, as they took up their position, the Royalists came down and arranged their forces in front of them. Amongst the cavaliers rode Sir Jacob Astley, whose prayer and charge were so characteristic of the bluff piety of the best of that class, "O Lord, Thou knowest how busy I must be this day. If I forget Thee do not forget me. March on, boys!" Then began the rush of pikes, the crack of musketry, and the roar of cannon, which lasted till dark. Richard Baxter was preaching that day at Alcester, and heard the tumult of the distant fight. Some fugitives ran into the town, startling and alarming the inhabitants with the news, that the Parliament had been defeated; but early next morning other messengers relieved the panic-stricken inhabitants by the assurance that while Prince Rupert's men were plundering the waggons of Lord Essex's routed wing, the main body with the right wing had prevailed and won the day. The preacher walked over to the spot next morning, and found the Parliamentary General in possession of the field.^[314]

Battle of Edgehill.

1642, October.

The battle decided nothing, but it nourished the hopes of Parliament. A few days afterwards, the House of Lords ordered the Lord Mayor of London to summon a Common Hall at five o'clock, when a committee of peers and commons met the citizens, and amidst the gathering shadows of the afternoon, told the eagerly-listening crowd the story of the fight; Lord Say and Sele closing his speech with the exhortation, "Up and be doing, and the Lord be with you."^[315]

On the 8th of November, the citizens again assembled. Charles was moving up to London, Rupert was scouring the suburbs, and within the walls there was general alarm. Lord Brooke, who attended the meeting,

after giving a confused report of what had been done at Edgehill, urged his audience to stand up for liberty and religion. "When you shall hear the drums beat," he exclaimed, "say not, I beseech you, I am not of the train band, nor this, nor that, nor the other—but doubt not to go out to the work, and fight courageously, and this shall be the day of your deliverance."

A few days later the Royalist forces were at Brentford. The City volunteers now rallied round old General Skippon, whose homely words went to their hearts: "Come, my boys, my brave boys, let us pray heartily and fight heartily. I will run the same fortunes and hazards with you. Remember the cause is for God, and for the defence of yourselves, your wives, and children." The train bands marched out on Sunday, the citizens, after sermon, carrying them provisions.^[316] At the time when the cavaliers were spurring their horses toward the metropolis, a declaration of the two Houses appeared in answer to one by his Majesty. In the course of a general argument which the document contained, there occurred a disavowal of any intention to reject the Book of Common Prayer. It was intended, they said, only to take out of it what was evil and justly offensive, and what was considered unnecessary and burdensome. They also protested against Brownists and Anabaptists, entirely disavowing any sympathy with such persons; though they said they agreed with many who were falsely designated by such opprobrious appellations. These references were made to the Separatists because the King and the Anglicans were always reviling them, sometimes in strong terms; for example, the Earl of Newcastle declared that they were worse than Papists, and deserved a heavier punishment.^[317] Such abuse really was pointed at the Commons themselves, who were not only suspected but often broadly accused of schismatical predilections. His Majesty's wrath also boiled over, and in one of his many declarations he told his "loving subjects" of seditious members, who being joined with the Anabaptists and Brownists of London, first changed the government of the city, and then by their pride and power would fain undo the whole kingdom. Pennington, who now occupied the mayoralty, was described as guilty of treason, and also as reviling the Prayer Book; and as robbing and imprisoning whomsoever he thought fit, and with the rabble who composed his faction giving law to Parliament.

*Church Politics in
London.*

The quarrel between the King and the City now became still darker and deeper. A letter from the Hague, directed to Secretary Nicholas, and brought to London in a Gravesend boat—which was stopped at the moment of shooting London Bridge—contained evidence of the King's negotiations for bringing over foreign troops: this letter consequently was soon printed and circulated through the city. The two Houses ordered the clergy to read it in their churches; and the devoted Lord Mayor requested them to make it a ground of appeal to the parishioners respecting a sum of £30,000 which was about to be raised for Parliament. Churchwardens were to hold meetings after service in the afternoon on the 27th of November, to raise "a proportionable fund,"^[318] which we may well imagine that we see accomplished by dim candle-light in churches, vestries, and other places, on that wintry Sunday night.

1642, November.

The City and the Parliament were thoroughly united this midwinter; and therefore the City and the Sovereign continued in violent opposition. At a Common Hall, held on the 13th of January—when all the companies came in their city habits, and there were present the Committee of both Houses, the Lord Mayor and Aldermen, and such a confluence of liverymen as had not been seen in the memory of the oldest man—a petition to the King was read, and then the royal answer, in which his Majesty asked his petitioners whether they believed that the indignities done to the Prayer Book, the violent treatment of Episcopal clergymen, and the cherishing and countenancing of all manner of sectaries, were likely to defend and maintain the Protestant religion. Mr. Pym, being present at the meeting, delivered a speech, in which he denied his Majesty's allegations, maintaining that the magistrates did not give countenance to the sectaries; adding this home-thrust, which Charles so often had to meet, that if they did, his Majesty could not consistently object, inasmuch as, having sworn to support the Protestant religion, he, in the meantime, raised an army of Papists.^[319]

Church Politics in London.

Another City meeting followed on the 17th, when Alderman Garroway appeared as an advocate of the Episcopal Church; and it will be instructive to notice his speech, as shewing the line of remark which at the time was adopted on that side of the controversy. "Mr. Pym told us," said the Alderman, "there was

1643, January.

no proof that my Lord Mayor and the other persons named were countenancers of Brownists, Anabaptists, and other sectaries. Where should this proof be made? Do we not all know this to be true? Are they not all so much countenanced, as there is no countenance left for anybody else? Did not my Lord Mayor first enter upon his office with a speech against the Book of Common Prayer? Hath the Common Prayer ever been read before him? Hath not Captain Venn said that his wife could make prayers worth three of any in that book? Oh, masters, there have been times that he that should speak against the Book of Common Prayer in this city, should not have been put to the patience of a legal trial. We were wont to look upon it as the greatest treasure and jewel of our religion; and he that should have told us he wished well to our religion, and yet would take away the Book of Common Prayer, would never have gotten credit. I have been in all the parts of Christendom, and have conversed with Christians in Turkey. Why, in all the reformed churches there is not anything of more reverence than the English liturgy; not our Royal Exchange, or the name of Queen Elizabeth, so famous. In Geneva itself I have heard it extolled to the skies. I have been three months together by sea, not a day without hearing it read twice. The honest mariners then despised all the world but the King and the Common Prayer Book. He that should have been suspected to wish ill to either of them would have made an ill voyage. And let me tell you, they are shrewd youths, those seamen. If they once discern that the person of the King is in danger, or the true Protestant professed religion, they will shew themselves mad bodies before you are aware of it."[\[320\]](#)

Whilst the Alderman was speaking, there arose, according to the reporter, much interruption. Citizens hissed, and cried, "No more, no more!" It was an hour after he rose to speak ere the uproar ceased. He was not to be put down, however, but patiently continued repeating the same sentence till people were quiet. At last the Court broke up, and every man departed—"so great a company going before and following after Alderman Garroway to his house, that the streets were as full as at my Lord Mayor's show." Some one recommended them to act with discretion. "Discretion!" exclaimed a butcher, "we shall be undone with it. Let us proceed as these people have taught. When we asked them what we should have in the place of bishops, they told us bishops were naught we all knew, and, when they were gone, we should think of somewhat that is better in their room. Let us now take

away what we know is naught, and we shall do well enough after. I owe them a good turn for the honour they have done my trade."

Whatever truth there might be in the charge that the sectaries were encouraged by Pennington and others, certainly Presbyterianism received the support of by far the majority of the London citizens. Two Presbyterian clergymen at this time enjoyed great popularity in the metropolis—Stephen Marshall and Edmund Calamy. Marshall held the lectureship of St. Margaret's Church, Westminster. His pulpit talents were of a superior order, and were employed in the exhibition of truths dear to Puritan affections; but, like others of his age and creed, he introduced into his sermons the absorbing questions of the day. Knowing that they filled the minds of his hearers, and deeming them of vital interest to his country and the Church, he judged that by such preaching he really walked in the footsteps of old Hebrew prophets. We find Calamy, the historian, admitting that Marshall encouraged the taking up arms for securing the Constitution, when it appeared, not only to him and his brethren, but to a number of as worthy gentlemen as ever sat in St. Stephen's chapel, to be in no small danger.^[321] Men, in those troublous times, must not be judged by such standards of propriety as are upheld amidst the comfortable respectability of our own peaceful era; and the same allowance must be made for both sides. If we do not wonder at the stern animosity of the Royalist churchman, neither should we be surprised at the martial zeal of Parliamentary presbyters.

*Popular Preachers
in London.*

The lectureship at St. Margaret's brought Marshall into close connection with the Commons, which naturally, under the circumstances, imparted a political tinge to his oratory. But Calamy,^[322] being perpetual curate of Aldermanbury, had to do with parishioners whose spiritual wants came immediately under his notice; and he delighted in that experimental strain of discourse which ever touches the hearts of men. What made him acceptable to the citizens in his own neighbourhood, made him acceptable to the citizens generally. No church was so thronged as his. Admired by the Puritan, he was lampooned by the Royalist. "Well, who's for Aldermanbury?" asked the latter, in one of the scurrilous party tracts, of which some are reprinted in well-known collections, and many more are preserved in the British Museum. "You would think a phoenix preached

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there. A foot-ball in cold weather is as much followed as Calamy by all his rampant dog-day zealots." Reporters, not for the press, but for private edification, waited on the divine, as we learn from the pamphleteer, who proceeds to exclaim, "Instead of a dumb shew, enter the sermon daubers. Oh! what a gracious sight is a silver ink-horn. How blessed a gift is it to write short-hand! What necessary implements for a saint are cotton wool and blotting-paper. These dabblers turn the Church into a scrivener's shop. A country fellow, last term, mistook it for the six clerks' office."^[323] This vulgar ridicule at once testifies to the popularity of Calamy, illustrates the manners and customs of the time in places of worship, and shews that, whatever might be the religious extravagances of some Presbyterians, they were more than matched by the godless ridicule of people who claimed to be exceedingly zealous for Episcopacy.

Coincident with the increasing popularity of these preachers, the actual outbreak of the Civil Wars, and the excitement in London respecting ecclesiastical affairs, were certain measures adopted by Parliament for abolishing Episcopacy. The Scotch did not fail to press this subject most earnestly upon their English brethren. They looked at it in the lurid light which their own annals had thrown on the institution, and in their view it had become identified with the arrogance and intolerance of Popery and Anglicanism. Unable to rest till England was saved from what they considered to be the secret of its weakness, and the precursor of its ruin, the General Assembly of Scotland sent a letter to Parliament, urging a thorough reformation, with a view to "one confession of faith, one directory of worship, one public catechism, and one form of Church government."^[324]

*Popular Preachers
in London.*

The answer of the English Parliament was both cautious and promising. No assurance was returned that organic unity with the Scotch should be attempted, but a hope was expressed of more free communion in worship, of security against Papists and "other sectaries," and of the gathering together in England of an Assembly of learned Divines. The fate of prelacy, however, was sealed by the following important declaration, which was embodied in the answer:—

"That this Government by Archbishops, Bishops, their Chancellors and Commissaries, Deans and Chapters, Archdeacons, and other ecclesiastical officers depending upon the hierarchy, is evil, and justly offensive and

burdensome to the kingdom, a great impediment to reformation and growth of religion, very prejudicial to the State and Government of this kingdom; and that we are resolved that the same shall be taken away."^[325]

On the 30th of the following December, a Bill for the utter abolition of Episcopacy was read a first time;^[326] and on the 26th of January following, 1643, the Bill was reported in the House of Lords as having been approved by the committee and read the third time. What had been threatened for nearly two years was done at last in a few hours. The emergency of the moment, and the critical state of the war, caused now the hasty passing of the measure, for which a long train of events had opened the way.

1643, January.

Other acts of a like complexion gather around this central one. On the 23rd of December, an order was given to secure the library, writings, and goods in Lambeth House, belonging to the see of Canterbury, and to take the keys of the palace, which was now to be used as a prison. On the 3rd and 5th of January, a similar disposal was made of Ely House and the palace of the Bishop of London, near St. Paul's. On the 30th of December, the Lords and Commons, ignoring altogether the laws and customs of the Episcopal Church, ordered a clergyman to be instituted to the vicarage of Chard, in Somersetshire; and on January the 7th, a Bill against pluralities and non-residence received a third reading by the Lords.^[327]

Be it remembered, that all these Bills, after passing both Houses, remained without Royal assent; and therefore could not be regarded as Acts of Parliament according to the principles of the English Constitution: a circumstance which, of course, the Sovereign and the Royalist party took care to urge against them.

Negotiations at Oxford.

The Scotch Presbyterians, after having failed in their attempts at the beginning of the year 1642 to mediate between the King and the Parliament, continued anxiously to watch the progress of affairs in England, with a view to the accomplishment of that union between the two countries upon which they had already set their hearts. Willing, and even anxious, to take a part in the war, they waited until such applications for aid should be made by either of the belligerents as might seem most likely to terminate the strife in favour of their own Church schemes. Doubtless they would have helped the

King, if, on the one hand, he would have renounced Episcopacy and embraced Presbyterianism, or if, on the other hand, Parliament had opposed Presbyterianism and maintained Episcopacy. But Charles despaired of their assistance, knowing well the religious antipathies existing between himself and them; and Parliament at first forbore to solicit their military help, not then feeling their very great need of it.

Even when a turn in affairs made it appear valuable, Parliament did not ask for it with as much earnestness as the northern brethren would have wished. It is plain, from Baillie's letters, that he and his friends were readier to draw the sword for the true Kirk on this side the Tweed than the English at present were to enter on a military alliance with Scotland for ecclesiastical objects. After a diplomatic lull—in which for a long time, says the worthy man, we "lay verie calm and secure,"^[328] and when intrigues amongst the Scotch Royalists filled the Presbyterian magnates with alarm—they turned their thoughts towards Oxford, and sent Commissioners to treat with the King.

The Earl of Loudon, now Chancellor of Scotland, came to Oxford as the principal lay commissioner, and Alexander Henderson accompanied him as an ecclesiastical one. The latter bore a petition from the General Assembly, prepared by himself. This petition dwelt upon the insolence and presumption of Roman Catholics, and entreated that there might be an established uniformity in religion. It was urged that, since prelatical government had been taken away, a government by assemblies, as in other reformed kirks, should follow.^[329]

1643, January.

Another embassy, with somewhat different designs, reached the same place soon afterwards. It included the Earl of Northumberland, with other noblemen and gentlemen, Bulstrode Whitelocke, who relates particulars of the visit, being one of them.^[330] They were sent by the Parliament to confer with the King for an ultimate peace with an immediate cessation of arms, upon terms which were strictly prescribed in their commission. These ambassadors were not plenipotentiaries, but they were selected for their known moderation, as persons likely, on that account, to be acceptable to the monarch. They travelled with the King's safe conduct in a style which was

*Negotiations at
Oxford.*

no doubt very superior to that of the emissaries from the North. They had "six gallant horses in every coach," and the whole party was attended by a number of servants on horseback. This imposing procession, however, failed to awe the "rascality of the town;" for they, and even "some of better rank but like quality," reviled the distinguished visitors as so many rebels and traitors. However, Charles received them all in the gardens of Christ Church very graciously, and held out his hand for each to kiss. Immediately they proceeded to business, and the Earl of Northumberland, "with a sober and stout carriage," read to the King the propositions of the two Houses. The Monarch began to interrupt. The Earl smartly replied, "Your Majesty will give me leave to proceed." Charles stuttered out, "I—I," and then paused, allowing the bold nobleman to have his way.

The ecclesiastical proposals were as follows:—[\[331\]](#)

1643, February.

(1) "That your Majesty will be pleased to give your royal assent unto the Bill for taking away superstitious innovations;

(2) "To the Bill for the utter abolishing and taking away of all archbishops, bishops, their chancellors and commissaries, deans, sub-deans, deans and chapters, archdeacons, canons and prebendaries, and all chanters, chancellors, treasurers, sub-treasurers, succentors and sacrists, and all vicars choral and choristers, old vicars, and new vicars of any cathedral or collegiate church, and all other their under officers out of the Church of England;

(3) "To the Bill against scandalous ministers;

(4) "To the Bill against pluralities; and

(5) "To the Bill of consultation to be had with godly, religious, and learned Divines. That your Majesty will be pleased to promise to pass such other good Bills for settling of Church government, as, upon consultation with the Assembly of the said Divines, shall be resolved on by both Houses of Parliament, and by them be presented to your Majesty."

To these five propositions no explicit reply was given by the King; but, in reference to religion generally, he said that, as he would "readily consent (having done so heretofore) to the execution of all laws already made, and to any good Acts to be made for the suppressing of Popery, and for the firm settling of the Protestant religion, now established by law; so he desired that

a good Bill might be framed for the better preserving of the Book of Common Prayer from the scorn and violence of Brownists, Anabaptists, and other sectaries, with such clauses for the ease of tender consciences as his Majesty hath formerly offered."

Such an answer virtually negated what the Parliament proposed. It does not seem that any debate arose on the ecclesiastical points between the King and the Commissioners. Their diplomacy entirely referred to the question of a cessation of arms, which, after all, could not be effected; and the embassy returned to Westminster without accomplishing any part of their object.

The Scotch were not more successful; but in the King's council their petition created much discussion, the main question being, "What answer shall be given to these gentlemen from the North?"

"Many of the Lords," says Clarendon, "were of opinion that a short answer would be best, that should contain nothing but a rejection of the proposition, without giving any reason; no man seeming to concur with his Majesty, with which he was not satisfied, and replied with some sharpness upon what had been said. Upon which the Lord Falkland replied, having been before of that mind, desiring that no reasons might be given; and upon that occasion answered many of those reasons the King had urged, as not valid to support the subject, with a little quickness of wit (as his notions were always sharp, and expressed with notable vivacity), which made the King warmer than he used to be; reproaching all who were of that mind with want of affection for the Church; and declaring that he would have the substance of what he had said, or of the like nature, digested into his answer; with which reprehension all sat very silent, having never undergone the like before. Whereupon, the King, recollecting himself, and observing that the Chancellor of the Exchequer had not yet spoken, called upon him to deliver his opinion, adding, that he was sure he was of his Majesty's mind with reference to religion and the Church."^[332]

*Answer to the
Scottish Petition.*

From Clarendon's narrative we discover, that with all Falkland's vivacity, he shewed lukewarmness in the cause of Episcopacy, and that the zeal of the King on its behalf went beyond that of his advisers. The historian reports his own

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speech, in which he recommended that reasons should be given, but not in the way his royal master wished. The result may be seen in a paper in the King's name, probably drawn up by the Chancellor.^[333] No concessions, it was stated, could be made until propositions in a digested form should be submitted to the free debate of both Houses. The King would not be unwilling to call a synod of godly and learned Divines, regularly chosen according to the laws and constitutions of the kingdom, to which representatives from Scotland might be admitted—an Assembly which, in fact, would be a Convocation, whose spirit and proceedings were very well known. He gave no opinion on any Bills offered to him, but only expressed his wonder that the royal judgment should be prejudged, and that the Divine anger should be threatened for his non-consent. A sentence occurred towards the end which, though by no means agreeable to those for whom it was intended, certainly contained a large amount of truth. "Nor are you a little mistaken, if either you believe the generality of this nation to desire a change of Church government, or that most of those who desire it, desire by it to introduce that which you only esteem a reformation, but are as unwilling to what you call the yoke of Christ and obedience to the Gospel, as those whom you call profane and worldly men, and so equally averse both to Episcopacy and Presbytery; for if they should prevail in this particular, the abolition of the one would be no let to the other, nor would your hearts be less grieved, your expectations less frustrated, your hopes less ashamed, or your reformation more secured."

The Scotch mission ended in disappointment. Much hope had been built upon the King's friendliness towards Mr. Henderson during the royal visit to Edinburgh. All remembered the minister's standing next the royal chair in sermon time, and the loving cup which passed round at the banquet. People fancied "Mr. Henderson would do wonders with the King;" and perhaps the King thought he could do wonders with Mr. Henderson, for he strove to persuade him of the justice and necessity of taking up arms against the Parliament. But as that gentleman did not find the King so pliable as he wished; neither did the King find that gentleman so "credulous as he expected." Charles "did at once change his countenance," we are informed, when he discovered that his Scotch chaplain had written the petition which he had received, and that the document had been already circulated throughout the kingdom. Reports also had reached the royal ears of certain violent sermons and prayers

*Treatment of the
Scotch.*

uttered in Edinburgh, which tended to make the visitors at Oxford "verie unsavourie." Their life in the University city—so they complained—was uncomfortably spent. They were wearied out with delays; they had no private nor familiar conference, but all was done "in public, in a very harsh way;" letters sent to them by their friends were opened; and, in addition to this great insult, they were abused by all sorts of people, and they even feared that they should be poisoned or stabbed. "This policy," adds Baillie, "was like the rest of our unhappy malcontents' wisdom extremely foolish; for it was very much for the King's ends to have given to our Commissioners far better words and a more pleasant countenance."[\[334\]](#)



CHAPTER XII.

Some desire for a conference of Divines manifested itself immediately after the opening of the Long Parliament. Baillie had scarcely reached London, on his first mission, in 1640, when he began to speak of an Assembly in England, which was to be called together to perfect the work of reform; though, with characteristic wariness, the Scotch Commissioner said that such an Assembly "at this time would spoil all," because the clergy were so "very corrupt."^[335] Dering, in the debates of October, 1641, as we have seen, recommended a synod of grave Divines; and the same measure was sanctioned by the grand Remonstrance in the winter of the same year. The Puritan clergy also, in a petition presented on the 20th of December, intreated that the consideration of ecclesiastical matters might be entrusted to a free synod, differing in constitution from the Convocation of the clergy.^[336] Other proofs of the prevailing wish might be adduced. At length, on the 15th of October, 1642, a Bill was introduced into Parliament for the purpose so much desired; and on its passing through a committee of the Commons two significant resolutions were adopted; first, that the vote against Bishops should be appended to the Bill; and secondly, that the Parliament did not intend wholly to abrogate the Prayer Book. These additions indicated the existence of an anti-episcopal spirit, together with a lingering love for the ancient liturgy. Revolutionary ideas were still kept in check by conservative instincts, and whilst the tide of change was at the flood, sweeping the Church forward to a new position, the legislators were not prepared to let it drift away entirely from its ancient moorings. For want of the royal assent, this Bill for an assembly, after having passed both Houses, was, constitutionally considered, a dead letter. So, to remedy as far as possible the defect—the country having reached the crisis of a revolution, and the King's concurrence in the measure being hopeless—Parliament, convinced of its urgent importance, boldly issued an ordinance, bearing date the 12th of June, 1643, commanding that an Assembly of Divines should be convened at Westminster on the 1st of July following. The document recognized the Church of England as still undestroyed, by alluding to

*Westminster
Assembly.*

"many things in its liturgy, discipline, and government requiring further and more perfect reformation." The theory of proceeding was not to overturn and ruin one establishment first and then to create and fashion another, but only to alter that which continued in existence; yet the resolution to abolish prelatical government as soon as possible, being cited in the ordinance, that instrument, though it did not in itself go so far as formally to extinguish episcopal rule, left no doubt of a foregone conclusion in the mind of the legislators that an end must be put to the ancient hierarchy. Ecclesiastical government was to be settled so as to be most agreeable to God's Word, and most adapted to procure and preserve the peace of the Church at home, as well as to promote nearer agreement with the Church in Scotland, and other reformed communions abroad. This document, without mentioning Presbyterianism, plainly pointed to it.

Thirty lay assessors were named first, and the priority of their enumeration indicates that the lay element occupied no subordinate place. [\[337\]](#)

1643, July.

Some of the persons selected were so eminent that it was impossible they should not occupy a very influential position in the conference to which they were called. John Selden, Bulstrode Whitelocke, Oliver St. John, Sir Benjamin Rudyard, John Pym, and Sir Harry Vane were of the number. Selden and Whitelocke frequently attended, and took a leading part in some of the debates.

Lay names were followed by those of one hundred and twenty one Divines. Episcopalians were not excluded. Ussher, of world-wide celebrity, Archbishop of Armagh and Bishop of Carlisle; Brownrigg, Bishop of Exeter; Westfield, of Bristol; and Prideaux, of Worcester, are to be found on the roll, with five more persons included, who afterwards became Bishops. [\[338\]](#) These appointments would fall in with the views of such Members of Parliament as still wished for a modified Episcopacy. But names of this order, whilst they saved appearances and gave additional weight to the convention, were too few to tell in divisions; nor could any Episcopalians, identified with a sinking cause, and unbacked by any strong party amongst the Commons, expect to have much influence in the proposed deliberations. A small band of persons, called *Independents*, of whom we shall have to speak at large, were also amongst the theologians summoned: but what they lacked in

Constitution of the Assembly.

numbers and in position was compensated for by force of character and vigour of intellect, and by what availed even more—the enjoyment of friendship with those who were destined ere long to guide the entire affairs of the kingdom. Indeed, according to Calamy—a safe authority for the statement—one of the Independent brethren, Philip Nye, had "a great concern in choosing the members of the Assembly of Divines who were summoned from all parts."^[339]

The decided, nay, the overwhelming majority of those summoned to Westminster were Presbyterians. For that party in England had by this time been greatly multiplied, and it had also much power in Parliament, and derived advantage from the favour naturally manifested towards it by the Scotch.

The Assembly of Divines was appointed by secular authority: in this respect, however, it only resembled other ecclesiastical conventions. Œcumenical synods, as they are ostentatiously called, have in point of fact been "Imperial gatherings."^[340] That they owed their existence to the civil power was a necessity arising from the union between Church and State; and the necessity is recognized in the twenty-first Article of the Church of England, where it is said that "General councils may not be gathered together, but by the commandment and will of princes." Convocations of clergy according to this Article, and according to the fundamental principles of the English constitution, are entirely dependent upon the Crown. Parliament, therefore, by constituting the Westminster Assembly, so as to make it rest on a political basis, did not invade the ecclesiastical rights of the Establishment, it only usurped the ecclesiastical power of the Crown. And it may be worth observing that the same authority, in selecting the place and time of meeting, in making provision for those whom it called together, and in paying their expenses,^[341] did but adopt the policy of Constantine at the Council of Nicæa. But the Parliament went still further in the appointment and control of the Westminster Assembly than emperors and kings had ever done in reference to Œcumenical councils and national convocations.^[342] It first nominated the individuals who were to be members, and then it took the direction of affairs entirely into its own hands, without relaxing its hold for a moment: the carefully-worded warrant allowing no liberty beyond this—that the Divines should consult and advise on matters and things

1643, July.

proposed to them by both or either of the Houses, and give their advice and counsel as often as required; and in all cases of difficulty refer to the authority which had called them together. A clause is inserted forbidding the assumption of any ecclesiastical jurisdiction, or any power whatever, except that which the ordinance carefully defined. And also—in this respect, exceeding the regal control over Convocation—Parliament chose the Prolocutor of the Assembly, and filled up vacancies when they occurred. Nor should it be forgotten that the State exercised in reference to ecclesiastical matters all the functions which we have described, not because there remained no Episcopal clergy to elect members of Convocation, nor because there existed no Presbyteries to delegate members to a General Assembly, but simply because a perfect horror of ecclesiastical despotism had taken possession of the minds of those who had now become the civil rulers of the realm.

On the day appointed (Saturday, July 1, 1643), many of the Assembly, together with a large congregation of other persons, gathered within the walls of the grand national abbey of Westminster, "both Houses of Parliament being present."

*Meeting of the
Assembly.*

[343] The Prolocutor, Dr. Twiss—of whom it was said that the school, not the pulpit, was his proper element—preached from John xiv. 18, "I will not leave you comfortless, I will come to you;" from which text he exhorted his hearers faithfully to discharge their high calling to the glory of God and the honour of His Church; and, whilst lamenting that the royal assent was wanting to give them comfort and encouragement, the preacher hoped through the efficacy of their prayers that the sanction of his Majesty might in due time be obtained, and that a happy union might be accomplished between King and Parliament. After the conclusion of the discourse, the Divines and other members ascended the broad flight of steps leading to Henry the Seventh's chapel, where, upon the roll being called over, sixty-nine persons answered to their names.

The vaulted roof springing from the clustered pillars in the walls—like branches of lofty trees interlaced together, forming a rich canopy of leaves, while the bossed pendants resemble stalactites—though appearing to most persons now, even those who feel strong Puritan sympathies, a monument of exquisite taste and consummate skill—would

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*Meeting of the
Assembly.*

be regarded by those who on this occasion assembled beneath its shadow, as mainly, if not exclusively, a symbol of that "petrification of Christianity" which to their great grief had over-arched mediæval Christendom. Dressed in black cloaks, and wearing bands, and skull caps, as they walked over pavements heretofore trodden by prelates and priests in mitres and copes, they would be reminded of what they deemed superstitious and idolatrous worship; and as they now met in assembly where Convocations had before been wont to gather,^[344] they would think of obnoxious canons, and of Archbishop Laud, with feelings of pain—if not of bitterness—such as the charms of Gothic architecture had no power to subdue. Their principles, and the principles of the Church before the Reformation, were in mutual opposition. And, as we watch the Divines entering within those gates—well described by one who himself came from the land of the Pilgrim Fathers, as "richly and delicately wrought, and turning heavily upon their hinges, as if proudly reluctant to admit the feet of common mortals into this most gorgeous of sepulchers"^[345]—we may fancy that the gates, if they had sympathy with those who caused them to be hung there, would open that morning more reluctantly than they had ever done before. Altogether, the scene and the purpose for which the Assembly met marked a new era, not only in the history of the Abbey but in the annals of the Church and the nation.

Westfield, Bishop of Bristol, and some few other Episcopalians out of the number summoned, were present at this first meeting; and, as Fuller says, they "seemed the only Nonconformists amongst them for their conformity, whose gowns and canonical habits differed from all the rest."^[346] The majority of the Episcopal Divines, however, declined to attend, because the Assembly had been prohibited by royal proclamation; and because, not being chosen by the clergy, it had no proper representative character. They objected to it also on account of its containing a mixture of the laity; whilst all its members, whether divines or laymen, were of the Puritan stamp, and were, according to the terms of the ordinance which gave it existence, virtually pledged to the demolition of the hierarchy. The reply which was afterwards given by the Parliament to the objection that the Assembly had not been ecclesiastically elected, instead of mending the matter in the eyes of a High Churchman, would only make it appear all the worse; for the

1643, July.

Parliament plainly declared the Assembly to be no national synod or representative body at all, but only a committee of advice;—adding that the civil power had a right to choose its own counsel, and ought not to be dependent for that upon the nomination of clergymen.^[347] For the reasons just indicated, the few Episcopalians who at first appeared in the Assembly speedily dropped off. Brownrigg, Bishop of Exeter, sent a letter on the 12th of July, excusing absence in consequence of "the tie of the Vice-Chancellorship in the University that lay upon him:" probably there were other ties which hindered his Lordship's attendance, but what they were he did not care to specify.

On Thursday, July the 6th, the Divines and lay assessors assembled again, when they received further directions from Parliament of a very precise description.

*Parliamentary
Directions.*

The directions were, that two assessors or vice-chairmen should be associated with the Prolocutor to supply his place in case of absence; that scribes or secretaries should keep a record of the proceedings; and that these officers should be Henry Roborough and Adoniram Byfield, Divines not members of the Assembly; that every member, on his entrance, should make a solemn protestation not to maintain any thing but what he believed to be truth; that no question should be resolved on the day it was propounded; that whatever any one undertook to prove to be necessary, he should make good from Scripture; that no one should continue to speak after the Prolocutor had silenced him, unless the Assembly desired him to proceed; that the members should have liberty to record their dissent from the conclusions adopted by the majority; and that all things agreed upon and prepared for the Parliament should be openly read and allowed.^[348] The bye-laws which were to regulate their proceedings were thus so minutely prescribed, that very little indeed was left for the Divines to perform in the way of preliminary arrangement. All which they actually did in this respect was to nominate Mr. White^[349] and Dr. Burgess as assessors, and to resolve that the sittings should be opened with prayer; that afterwards the names of members should be called over; that the hour of meeting in the morning should be ten o'clock, the afternoon being reserved for committees; and that three of the Divines should officiate weekly as chaplains—one to the House of Lords, another to the House of Commons, and a third to the Committee of both kingdoms. Still further, to illustrate how, with this modicum of

liberty in relation to the management of its own business, the Westminster Assembly found itself under the authority of its neighbouring masters, especially those in St. Stephen's Chapel—we may observe that on the 27th of July an order from both Houses was read, requiring a letter to be written to the United Provinces in behalf of Ireland. On the 28th of July an ordinance from the Commons followed, for appointing a committee to examine plundered ministers, with a view to their admission into sequestrated livings; and on the 14th of August there came a command to send divers metropolitan divines up and down the country, to stir up the zeal of the people in the cause of patriotism, and to vindicate the justice of Parliament in taking up arms for the defence of its liberties. ^[350]

The first subject of a strictly theological kind submitted to the Assembly was the revision of the Thirty-nine Articles of the Church of England. A sub-committee spent ten weeks in debating upon the first fifteen; and the result appeared in a draft of proposed alterations. ^[351] In the middle of October, we discover the Divines, through the dim light thrown on their proceedings by Lightfoot's Journal, "busy upon the sixteenth Article," and upon "that clause of it which mentioneth departing from grace," when an order came from both Houses of Parliament, commanding them speedily to take in hand the discipline and liturgy of the Church.

1643, October.

The circumstances of the country shaped the proceedings of the Divines no less than those of the Legislators. It may be said of the new system they were engaged to construct that—"the street" of the city was built again, and "the wall, even in troublous times." War had begun to kindle its fires far and wide; and it is necessary for us to turn our attention to military affairs and the fortunes of the battle-field, in order that we may understand what followed in the Westminster Assembly.

A heavy blow had befallen the Parliament in the month of March, 1643, when Lord Brooke had been killed at the siege of Lichfield. He had prepared for an assault on the Royalist troops, who were in possession of the cathedral; and just as he was standing under the porch of a house, and directing a battery against the Close gate—the spot is still pointed out to the visitor in that quiet little city—the Puritan commander was shot by a musket ball. His death created a great sensation, and was differently interpreted by contemporaries, according to their political and ecclesiastical

opinions. Laud pronounced it a Divine judgment for Brooke's sins. Parliamentarians celebrated it as a glorious sacrifice offered up in the cause of patriotism and religion.

Another loss had to be sustained in the month of June. Early one Sunday morning, Prince Rupert, with a skirmishing party, drew up his men in order of battle amidst the standing corn of Chalgrove Field. John Hampden, who had spent the night in the immediate neighbourhood, adventured, contrary to the wishes of his friends, to throw himself into this at first apparently unimportant action. With characteristic bravery, he led an attack, and, on the first charge at the head of his troops, received in his shoulder two carbine balls. He rode off the field, "his head bending down, and his hands resting on his horse's neck." Though fainting with pain, he cleared a brook on the road to Thame, and on reaching that town had his wounds dressed. Conscious of danger, he first despatched letters of counsel to Parliament, and then prepared for his departure from the world. After six days of severe suffering, and about seven hours before his death, he received the Lord's supper, declaring that, "though he could not away with the governance of the Church by bishops, and did utterly abominate the scandalous lives of some clergymen, he thought its doctrine in the greater part primitive and conformable to God's word, as in holy Scripture revealed." Dr. Giles, the rector of Chinnor, and Dr. Spurstow, the chaplain of his regiment, attended him in his last moments. He died in prayer, uttering, "O Lord, God of Hosts! great is Thy mercy, just and holy are Thy dealings unto us sinful men. Save me, O Lord, if it be Thy good will, from the jaws of death; pardon my manifold transgressions. O Lord, save my bleeding country. Have these realms in Thy special keeping. Confound and level in the dust those who would rob the people of their liberty and lawful prerogative. Let the King see his error, and turn the hearts of his wicked counsellors from the malice and wickedness of their designs. Lord Jesus, receive my soul! O Lord, save my country! O Lord, be merciful to...." As he uttered these words, his speech failed, and then, falling backwards, he expired. His remains were conveyed to the churchyard of Great Hampden, close beside the old family mansion, where the patriot had spent so much of his life in the studies and the sports of a country gentleman. Through lanes under the beech-covered chalk hills of the Chilterns, a detachment of his favourite troops, bare-headed, carried him to

John Hampden.

1643, June.

his last resting-place—their arms reversed, their drums and ensigns muffled—mournfully chanting, as they slowly marched along, the dirge from the Book of Psalms: "Lord, thou hast been our dwelling-place in all generations;—thou turnest man to destruction;—thou carriest them away as with a flood;—they are as a sleep; in the morning they are like grass which groweth up, in the morning it flourisheth and groweth up, in the evening it is cut down and withereth." When the funeral was over, the soldiers, returning from the village church to their quarters, made the green woods and the white hills that summer day resound to the beautiful prayer and the cheerful song, so appropriate to their present circumstances: "Judge me, O God, and plead my cause against an ungodly nation. O, deliver me from the deceitful and unjust man! For thou art the God of my strength, why dost thou cast me off? Why go I mourning because of the oppression of the enemy? O send out thy light and thy truth: let them lead me; let me bring them unto thy holy hill, and to thy tabernacles. Then will I go unto the altar of God, unto God my exceeding joy: yea, upon the harp will I praise thee, O God, my God. Why art thou cast down, O my soul? and why art thou disquieted within me? Hope in God, for I shall yet praise him, who is the health of my countenance and my God."^[352]

The death of Hampden was bewailed even more than that of Brooke. "The memory of this deceased Colonel," said the *Weekly Intelligencer*, "is such that in no age to come but it will more and more be had in honour and esteem; a man so religious, and of that prudence, judgment, temper, valour, and integrity, that he hath left few his like behind him." The old newspaper was right in its prediction of Hampden's growing fame.

John Hampden.

Other calamities overtook the Parliament cause. From the spring of the year, success had followed the King's banners. Royalists occupied Devon and Dorset; and the Earl of Wilmot had beaten Waller at Lansdowne and at Devizes. Summer saw the defeat of Lord Fairfax in Yorkshire. But Charles' victories at that period culminated in the taking of Bradford, after the battle of Atherton Moor, and in the capture of Bristol just before the siege of Gloucester.

Bradford and Gloucester were Puritan towns, beleaguered by what they looked upon as prelatical armies; and the incidents connected with the siege of each serve at once to bring out some curious features in the memorable

strife, and to shew the declining condition of the Parliament, at the time when the Westminster Assembly held its first sittings. Bradford had suffered assault so early as December, 1642. The Royalists, who were encamped at Bowling Hill, had selected Sunday morning, as the Puritans were attending church, to plant their guns against the steeple; but a snowfall, the bursting of a cannon, and other misadventures on the part of the besiegers, for a time saved the besieged. The following midsummer, the church, which was still the prize in dispute, endured "many a shake," whilst the people hung up wool-packs by the side of the building, only to see, however, almost immediately afterwards, the ropes cut down by the shots of the enemy. ^[353]

On Lord's-day morning, the Royalists beat drums for a parley, and spent all the day in removing their guns "into the mouth of the town," the inhabitants being so reduced that they had little ammunition, and for their matches were compelled to use "untwisted cords dipped in oil." About sunset the parley ended, when a shot killed three men who were sitting on a bench; and during all night the valley shone with the flash of artillery. When resistance became useless, the vanquished thought that the Earl of Newcastle, who commanded the King's troops, would shew them no mercy; but he gave them quarter, on the ground, as was superstitiously rumoured, that an apparition on a Sunday night had pulled the clothes from off his bed several times, crying in tones of lamentation, "Pity poor Bradford." "A young Puritan gentleman," reported as having attempted to break through the enemy's lines, became famous in after days as David Clarkson, the Nonconformist divine. ^[354]

The siege of Gloucester was commenced on August the 10th, 1643. The Parliamentary committee, believing that the metropolis would not be safe if Gloucester were taken, sent a strong force for its relief, under the Earl of Essex, for the better furtherance of the service, and required all persons "dwelling within the lines of communication" immediately to shut up their shops, and to keep them closed till the beleaguered should be delivered. The King, sitting down about a quarter of a mile distant from the old cathedral city, despatched two heralds to demand surrender. They returned to the royal camp with two men, lean and pale, of "bald visages," and in such strange garb and carriage—according to Clarendon ^[355]—that the merriest were made sad, and yet even the grave

1643, August.

Siege of Gloucester.

were provoked to laughter. These poor Puritan envoys, whom the Royalist historian saw with jaundiced eyes, manifested not a little bravery and firmness, when they delivered a message from their fellow-townsmen in these memorable words—"We do keep this city according to our oath and allegiance, to and for the use of his Majesty and his royal posterity; and do accordingly conceive ourselves wholly bound to obey the commands of his Majesty, signified by both Houses of Parliament; and are resolved, by God's help, to keep this city accordingly."^[356]

The Gloucester men, made of this sturdy mettle, forthwith set to work and raised entrenchments; and the Gloucester women seem to have caught the spirit of their husbands and fathers, for matrons and maids wrought all the afternoon in the little mead, fetching in turf to repair the works, whilst the soldiers, on the other side, cut off the pipes which supplied the city conduits, and diverted the waters which drove the mills. On Sunday, which seems to have been with the Royalists a favourite day for such work, the engineers planted pieces of ordnance on a battery at Gawdy Green, and thence plied their shots; but breaches were no sooner made in the fortifications than they were mended, through the untiring energy and courage of the inhabitants, who employed wool-sacks in repairing the damage done. From day to day for three whole weeks, some incident occurred to alarm or encourage the people, till, on Sunday, September the 3rd, when they were at church, news came that the besiegers had planted a store of cannon-baskets at the east gate, and that it was supposed they intended there to spring a mine. The Puritan preacher hearing this, dismissed his audience without any sermon, when the men, equally prepared to pray or fight, immediately began to line the houses over the east gate, and to make a strong breastwork across the street.

1643, September.

The renowned William Chillingworth, we may observe in passing, "was in Charles's camp, engaged in bringing his classical knowledge to bear upon the contrivance of engines ("after the manner of the Roman *testudines cum pluteis*.")) They ran upon cart wheels, we are told, with a musket-proof covering to conceal the assailants, who shot through holes; and these machines—which were odd things for a clergyman to make—were also furnished with a protection to rest on the breastworks, and so to form a complete bridge over the ditch into the city. The employment of a divine in

military matters was then by no means a peculiar circumstance; for it is a little curious that his antagonist, Francis Cheynell, Fellow of Merton College, Oxford, accompanied the Earl of Essex into Cornwall, where he shewed a soldierly courage, and where it was said his commands were as readily obeyed as the general's own. ^[357]

After much suffering by the citizens of Gloucester, the siege was raised by the Earl of Essex, on the 5th of September.

These military events at the very beginning powerfully influenced the Westminster Assembly. As the members mourned the loss of illustrious captains, reports of disastrous turns in the fate of war would be brought to London from Yorkshire, by the letter-carriers, who rode along the dusty roads in those long summer days; and the Divines, amidst their theological discussions, would anxiously listen to tidings respecting the army. The success of their cause, if not their personal safety, depended upon the acquisition of some military advantages at that critical juncture, and therefore—whilst feeling that only God could help them—they presented, on the 19th of July, to the two Houses, a petition, in which—after expressing their fear of the Divine wrath, manifested by the sad and unexpected defeats in the north and west—they implored, as watchmen set on the walls of the Church and the kingdom, that a day of solemn fasting and humiliation might be fixed for universal observance throughout the cities of London and Westminster: and with a further view of removing Divine displeasure, they entreated, that Parliament would speedily set up Christ more gloriously in all His ordinances within the kingdom, and remove throughout the land all things which were amiss. Then followed a painful enumeration of national evils, including brutish ignorance, pollution of the Lord's Supper, corruption of doctrine, profanation of the Sabbath, blind guides and scandalous ministers, and finally, the prevalence of vice, idolatry, and superstition. ^[358]

Effect of War on the Assembly.

The fall of Bristol on the 26th of July, preparing as it did for the siege of Gloucester, further alarmed the Assembly, who would not fail also to watch with trembling anxiety the progress of the assaults on the latter city. In the month of August, all London too was in a state of excitement, as disastrous news from the west reached it day by day. Some of the citizens were in favour of

1643, August.

propositions of peace voted in the House of Lords; others—the majority—influenced by Alderman Pennington and by Pym, who eventually prevailed on the Commons to reject the Peers' propositions, were for resisting the royal army to the utmost, though the waves of war should surge up to the very walls. In the strife the pulpits had a share; and on the Sunday after the propositions were submitted to the Commons, the Divines of the popular party eloquently appealed to their disheartened hearers in favour of opposing the overtures of the Upper House, at a moment when the Monarch was successful in the field, and persisted in his proclamations against the freedom of the Parliament. ^[359]

In the midst of these untoward events, help from Scotland had become more than ever necessary, and the eyes of Statesmen, Divines, and Citizens were turned in that direction. Yet some even of the staunch Presbyterians of England were reluctant in this extremity to rely upon their neighbours; and Calamy, in a speech at Guildhall, when the question was mooted, pronounced it a great shame that Englishmen should stand in need of others to aid them in the preservation of their own lives and liberties. ^[360] Repeated references to the unwillingness of the nation to ask and receive assistance from the north occur in Baillie's letters. ^[361]

But Parliament, being compelled by circumstances, resolved, as early as July, to send Commissioners to negotiate a treaty of assistance with their brethren of the north. Sir Harry Vane was one of the number. ^[362] With this embassy the Westminster Assembly determined to unite an ecclesiastical deputation, and chose for the purpose Stephen Marshall, the Presbyterian, and Philip Nye, the Independent. Letters were sent through their hands both to the Convention of States, and to the General Assembly, seeking succour for the war and the addition of some Scotch Divines to the meeting at Westminster. The letter to the General Assembly of Scotland set forth the deplorable condition of England, as on the edge of a precipice, ready to plunge into the jaws of Satan; and the perils of the Church, as threatening the safety of Protestantism at large. Prayers and advice were implored with a view to promote the kingdom's peace with God, and to strengthen the people in standing up against Antichrist.

*Commissioners sent
to Scotland.*

On Monday, the 7th of August, the English Commissioners landed at Leith; and Baillie reports that the Lords went down to welcome them at the harbour, and then conveyed them up to Edinburgh in a coach.

The General Assembly shewed how impressed it was with the idea that the visit now paid was no ordinary one. "We were exhorted," says our informant, in all these minute matters "to be more grave than ordinary; and so, indeed, all was carried to the end with much more awe and gravity than usual." With a punctilious formality, borrowed, it was said, from the like usage in the reception of their own Commissioners by the English Parliament, the Scotch arranged that the access of the delegates to the Assembly should be at first only that of private spectators; "for which end a place commodious above in a loft, was appointed for them." Then followed an interview between them and a deputation from the General Assembly, to whom were presented the documents brought from London. One paper, subscribed by above seventy English Divines, supplicating help "in a most deplorable style," as soon as it was read drew tears from many eyes. The loss of Bristol was reported, and fear was expressed lest his Majesty might march to London. Cautiously did the Scotch consult sundry times with the prime nobles, in the Moderator's chamber, before taking any decided step. One night all present were bent on peaceful mediation, proposing to act as friends between the belligerents, and not to espouse exclusively the side of either. Lord Warristone "alone did shew the vanity of that motion and the impossibility of it." Words now would come too late, and the Scotch must arm or do nothing; they must cross the Tweed with pike and gun, or leave English Puritans to their hard fate. The Assembly at length decided on recommending military aid on these grounds:—the war was a religious one; the Protestant faith was in danger; gratitude for former assistance required a suitable return; both Churches were embarked on the same bottom; the prospects of uniformity between the two kingdoms would strengthen the Protestant cause all over Europe; and, finally, the English Parliament stood in friendly relation to the Scotch, who felt that they could never trust King Charles. [\[363\]](#)

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Terms of union now became the absorbing question, and hard debates ensued. The English Commissioners preferred a civil league, and the Scotch were earnest for

*Commissioners in
Scotland.*

a religious covenant. The former wished for a bond of reciprocal aid between nation and nation to maintain the interests of civil liberty; the latter longed for a holy confederation between church and church, for the maintenance of Protestant truth and worship, against papal and prelatial superstitions. As Vane and Nye belonged to a party in England which advocated religious toleration, and as the latter avowed himself an Independent, they would both be averse to the establishment of such uniformity as was advocated by Presbyterians, and would be anxious to keep a door open for the admission of congregational liberty. "Against this," Baillie states, "we were peremptory." What was to be done? Succour from the Scotch was indispensable, but the Scotch had determined not to grant it save on their own conditions. The English Commissioners therefore felt compelled to enter into a compromise; and stipulating that it should be a *League* to meet their own views of it as a civil compact, they yet allowed it to be a *Covenant* for the satisfaction of those who chiefly valued its religious character and bearings. Without impugning the motives of either party, we must say, now that the lapse of more than two centuries has hushed to silence the tempestuous controversy, that this modification of the compact seems very much like playing at a game of words, and that, after all this hair-splitting, the two contracting powers became equally bound to the whole agreement, however they might choose to interpret the phraseology. The English Commissioners, by accepting the Covenant, pledged themselves to the cause of which the Scotch Presbyterians regarded it as the symbol; and looking at the ecclesiastical opinions of Vane and Nye, we cannot defend their conduct on this occasion against the charge of inconsistency. The Commissioners believed they had accomplished an important object by what they had done; and when the Solemn League and Covenant came before the General Assembly, a hearty affection toward England was "expressed in tears of pity and joy by very many grave, wise, and old men," as the moderator, Mr. Henderson, after making an oration, read over the document twice amidst loud applause.

Three Scotch Commissioners, with Philip Nye, set sail on the thirtieth of August; but eight days before they started, the English had despatched a ketch, with a duplicate copy of the famous instrument, and on the first of September it reached the Westminster Assembly.

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Some of the members, especially the Scotch Divines, were prepared to receive it exactly as it was, cordially sympathizing in all its sentiments, but others, particularly Dr. Twiss, the Prolocutor, Dr. Burgess, and Mr. Gataker, stumbled at the condemnation of *prelacy*. They were averse "to the English diocesan frame," and if that was meant by the word *prelacy* they could agree in the condemnation of it; nevertheless they were advocates for the ancient and moderate form of Episcopacy, with some admixture of Presbyterian rule, and could not agree to the use of any expression which, with regard to that rule, might seem to convey any censure. To meet this difficulty, a parenthesis was introduced describing the exact nature of the *prelacy* opposed viz., "Church government by Archbishops, Bishops, Deans and Chapters, Archdeacons, and all other ecclesiastical offices depending on that hierarchy."^[364]

Covenants were, of old, favourites with the nation of Scotland, and they present in their spirit, though not their form, a strong resemblance to that very noble Hebrew one, in the days of Asa, the king of Judah, when "the people entered into a covenant to seek the Lord God of their fathers with all their heart and with all their soul"—"and they swear unto the Lord with a loud voice"—"and all Judah rejoiced at the oath."^[365]

The Covenant.

The first Scotch Covenant was taken in 1557, "to establish the most blessed word of God and His congregation," and to "forsake and renounce the congregation of Satan;" by which, of course, we are to understand the apostate Church of Rome. Another succeeded in 1581, protesting against Popish doctrines and rites, as being full of superstition and idolatry. In 1638, a third is found, including a transcript of the confession of 1581, a summary of Parliamentary acts condemnatory of the Papal religion, and a new declaration drawn up by Henderson; the subscribers to which swore they would continue in their Protestant profession, defend it against errors and corruptions, and stand by the King in support of the religion, laws, and liberties of the realm.^[366]

The New League and Covenant of 1643, the origin of which we have just described, differed from former ones by the addition of an express resolve to extirpate *prelacy* as well as popery. It consisted of six articles, pledging subscribers to

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preserve the established religion of Scotland, to endeavour to bring the Church of God in the three kingdoms to the nearest possible uniformity and conjunction, to aim at the extirpation of popery and prelacy, superstition, heresy, schism, profaneness, and whatsoever is contrary to sound doctrine and the power of godliness, to preserve the privileges of Parliament and the liberties of the kingdom, to search out malignants, and promote peace, and to defend every one belonging to the brotherhood of the Covenant.^[367]

With intense ardour was the engagement entered into by the Scotch, who venerated and loved these symbols of confederation. The Covenant passed from city to city, from town to town, from village to village, gathering together the men of the plain and the men of the mountain, like the fiery cross, which summoned the clan round their chieftain's banner.

"O'er hill and dale the summons flew, Nor rest nor pause the herald knew, Not faster o'er thy feathery braes, Balquidder speeds the midnight blaze, Rushing in conflagration strong, The deep ravines, and dells along. Each valley, each sequester'd glen, Mustered its little horde of men That met, as torrents from the height, In highland dales, when streams unite, Still gathering as they pour along, A voice more loud, a tide more strong."

The Scotch wished to see the Covenant embraced with the same love and zeal in the cities, towns, and villages of England, but in this they were disappointed.

*Taking of the
Covenant.*

The adoption of the Covenant, however, at Westminster, was a very solemn ceremony. The Assembly met on Monday, September the 25th, 1643, in St. Margaret's Church—an edifice almost lost in the shadow of the neighbouring Abbey, but deeply interesting as the place of worship still used on special occasions by the Houses of Parliament. The building then was somewhat different from what it is now, for it did not possess at that time the antique centre window of stained glass; but the graves of Sir Walter Raleigh, and of Caxton, the printer, existed beneath the pavement, and their names were symbolical of the art and the enterprise which had contributed largely to the great revolution betokened by this notable gathering. Besides the Divines, and the rest of the Assembly, the House of Commons, and the Commissioners from Scotland attended the service. White of Dorchester commenced the service by offering prayer to the Almighty. Then Philip Nye read and explained the terms of the Covenant, commending it as a defence against popery and prelacy, and a stimulus to further reformation.^[368] Dr.

Gouge presented a second prayer.^[369] Mr. Henderson, the Scotch Commissioner, described the deliverance of his countrymen from prelatical domination, declared the purity of their intentions in what they had done, and gratefully acknowledged the blessings of heaven upon their work and service. After the Covenant had been read, the Assembly rose, and with that solemnity which marked the Puritan mode of performing such acts, they lifted up their right hands to heaven, worshipping the great name of God; by their gesture reminding us of another oath, less spiritual but not less solemn, sworn by the Swiss patriots, under the shadow of the Seelisberg, on the rich green slope by the shore of the lake of Uri. After this ceremony, the Commons and the Divines adjourned to the chancel, and there wrote their names on the parchment rolls, containing the words of the Covenant.

On the 20th of September, being the Wednesday before the Monday on which the Covenant was sworn, a battle was fought at Newbury; and the particulars of this action must have reached the Assembly before they held up their hands to heaven; perchance some held them up all the more firmly in consequence of what they had just been told respecting the persistent valour of the army. For all along the valley, more than half a mile in length, Essex's men, wearing fern and broom in their hats, had fought from four o'clock in the morning until ten at night. After a struggle, hand to hand, in the darkness, the King's forces stood in order on the further side of the Green, and Essex expected a fresh engagement next day; but the enemy retreated in the night, and consequently the Parliament claimed the victory. One fell in that engagement, whose death, with its never to be forgotten touches of sadness, deeply affected some who faced him in battle, after sitting beside him in council. Lord Falkland, on rising that morning, had put on a clean shirt, saying he would not be found in foul linen amongst the slain; and when his friends attempted to dissuade him from fighting, replied, "I am weary of the times, and foresee much misery to my country, and believe I shall be out of it before night." And so he was.^[370]

1643, September.

The Covenant prepared in Scotland having been adopted in England, the two countries entered into a treaty on the 29th of November, 1643. The first of the Articles declared, that the Covenant now to be sworn throughout both kingdoms was "a most noble near tie

*Treaty with the
Scotch.*

1643, November.

and conjunction between them against the papist and prelatical faction, and for pursuance of the ends expressed in the said Covenant." The Scotch agreed to levy and send an army of 18,000 foot, 2,000 horse, and 1,000 dragoons, to be ready at some general rendezvous near the borders of England; and the English promised that the charges so incurred should be refunded when peace was settled, with Scotch consent. The money was to be raised out of the forfeited estates of papists, prelatists, malignants, and their adherents; and £100,000 was to be paid at Leith or Edinburgh with all convenient speed, half of the sum being conveyed at once by the bearers of the treaty.^[371] English solicitude respecting this compact oozes out in the quaint old diurnals of that day. "The Covenant," say they, "will doubtless give more life to the preparations of their brethren, if they be not already on their march into this kingdom, which we have good grounds to surmise they be; but no letters as yet come to confirm the same." A communication from the north is joyfully quoted, to the effect that the artillery, ammunition, arms, and men were all in readiness; and it is added, "upon the first notice of your agreement in the Covenant and propositions, they will be setting forward without doubt."^[372] On the 6th of September we read of a consultation about the Scotch Covenant, and the advance of moneys, and of letters sent to hasten forward their preparations. The northern rulers stipulated that the war should be carried on for the sake of the Covenant; and bleeding England, accepting help on such terms, and agreeing to pay expenses, the journalists waited eagerly for tidings of the advancing troops. Baillie, in his manse at Kilwinnin, writing a news-letter which would make some columns in the *Times*, informed his reverend dear cousin, Mr. William Spang, about a fortnight after the newspaper had circulated rumours of Scotch preparations, that so soon as the Covenant was signed by any considerable number in England, and a certain amount of money remitted to Scotland, he and his friends would turn to God by fasting and prayer, and promote the levy of 32,000 foot and 4,000 horse. This number far exceeded what had been stipulated for in the treaty; but no doubt the exaggeration was simply owing to the heated zeal of the honest news-writer. In the same quaint and lively pages, which, while they reflect passing events, also indicate what the Scotch thought of their own proceedings and of the condition of the English, we find Baillie saying, "Surely it was a great act of faith in God, and huge courage and unheard-of compassion, that moved our nation to hazard their own peace and venture their lives and all, for to save

a people so irrecoverably ruined both in their own and in all the world's eyes." In December, writing from Worcester House, in the Strand—a mansion which had been fitted up by Parliament for the Commissioners with furniture taken out of the King's wardrobe—the same writer alludes to the undecisive conduct of the English war, adding, "they may tig tag on this way this twelvemonth. Yet if God send not in our army quickly, and give it not some notable success, this people are likely to faint; but it is the hope of all the godly, it is the confidence and public prayers of all the good ministers here, that God will honour the Scots to be their saviours." "All things are expected from God and the Scots."^[373]

The articles of the treaty, together with these waifs and strays sifted out of early newspapers and old letters, enable us to comprehend how matters stood in relation to the Covenant. The Scotch contingents were to march across the border for ends set forth in that document: and the adoption of it in England was demanded before a single pikeman would cross the Tweed. The feeling of our neighbours, in short, had culminated to this point, that England resembled the man fallen among thieves, and that they themselves were playing the part of the good Samaritan. And so much of truth lay at the bottom of this assumption, that it must be admitted our fathers did most surely need the military assistance of their brethren; and that not without a sufficient consideration—partly religious and partly pecuniary, for the whole of which a careful stipulation was made—could the assistance be secured. Without charging the North with a huckstering policy, or representing the South as over-driven in the bargain; we must regard the taking of the Covenant, and the affording of the required supplies, as so much payment rendered for so much help. Nor does it seem at all less plain, that the army marched under the banner of the Covenant for the establishment of uniformity. The Assembly in Edinburgh, and the Parliament under its control, shewed as strong a zeal for a single form of religion as English Kings and English Bishops had ever done. The contrast between the duplicity of Charles and the honesty of Henderson—between the ritualism of Laud and the simple worship of Baillie—certainly ought to be recognized; but then, also, it must be admitted that all these persons had their hearts fixed on the establishment of one Church, one creed, and one service, without the toleration of a second; in other words, the enjoyment of full liberty for their own consciences, but not the bestowment of a shred for

*Treaty with the
Scotch.*

1643, November.

the conscience of any one besides. The Church of the Covenant is not specified by name, it is simply described as meant to be "according to the Word of God and the example of the best reformed churches;" but as we know the persons who drew up the instrument, what but Presbyterianism can be understood as the ecclesiastical system intended by these expressions?



CHAPTER XIII.

In the month of December, 1643, just after the Scotch treaty had been ratified, and while the Puritans waited for their allies, a great man passed away from the scene of strife. A journal reported how some at Oxford drank "a health to his Majesty, by whom we live and move and have our being; and to the confusion of Pym, his God, and his Gospel." Whether the report be an exaggeration of fact, or, as we would hope, a pure fiction, certainly Pym was an object of intense dislike to the Royalists, and his death removed a formidable antagonist. Crushed by toil and anxiety, his health had rapidly failed; and, while his body suffered from disease, and his mind from anxiety, he had to endure the fury of a populace which now sought to dash in pieces the god of its former idolatry. As the patriot lay on his death-bed, men, in women's clothes, instigated by those who wished to thwart the rigorous prosecution of the war, besieged the House of Commons, madly crying out, "Give us the traitor, that we may tear him to pieces, give us the dog Pym!"^[374] The brutality of the mob had its match in the malignity of the Royalists, who, if rumour be true, kept horses idle in the stables, waiting to carry down to Oxford tidings of the wished-for stroke.^[375] Report further spoke of knighthood as promised to the first who should bring the news. It was also stated that the night after Pym's decease, bonfires were blazing in the University streets to celebrate the event.^[376]

Westminster Abbey has witnessed many noble funerals. The pavement has but just closed over the remains of a renowned parliamentary chief, and we have a fresh remembrance of the long procession and the solemn service, the crowds of spectators and the general mourning at the burial of Lord Palmerston. The obsequies of John Pym were perhaps still more imposing. Preceded by servants and friends, by numerous persons of distinction according to their rank, and by the Westminster Assembly of Divines, attended also by some little pomp of heraldry, the remains of that illustrious statesman were borne on the shoulders of certain of his fellow-commoners up the nave of the cathedral, followed by his family, and by the members of both Houses of Parliament.

1643, December.

Burial of Pym.

[377] They crowded the vast building, whilst Stephen Marshall preached a sermon describing the virtues of the deceased. "He maintained," said the minister, "the same evenness of spirit which he had in the time of his health, professing to myself, that it was to him a most indifferent thing to live or die; if he lived, he would do what service he could, if he died, he should go to that God whom he had served, and who would carry on his work by some others. To others he said that if his life and death were put into a balance he would not willingly cast in one drachm to turn the balance either way. This was his temper all the time of his sickness." "Such of his family or friends who endeavoured to be near him (lest he should faint away in his weakness) have overheard him importunately pray for the King's Majesty and his posterity, for the Parliament and the public cause, for himself begging nothing. And a little before his end, *having recovered out of a swoond*, seeing his friends weeping around him, he cheerfully told them he had looked death in the face, and knew, and therefore feared not the worst it could do, assuring them that his heart was filled with more comfort and joy which he felt from God, than his tongue was able to utter, and (whilst a reverend minister was at prayer with him) he quietly slept with his God."

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This incident—in an early stage of our Civil Wars—of Pym carried to the grave by his fellow patriots, forcibly reminds us of the interment of Mirabeau with similar honours, at the beginning of the French Revolution. Unlike as to moral and religious character, these two eminent men, as to ability for guiding public affairs, and swaying a nation's destinies, had much in common: and whilst we speculate on the probable consequences of the lengthened life of the brilliant Frenchman in curbing party excesses and preventing terrible scenes, we may also conjecture that happy consequences would have followed, had the illustrious Englishman been longer spared. The loss of John Hampden is often deplored, as of one whose wise counsel and force of character might have saved his country a series of mistakes and much suffering, had Divine providence lengthened his days. The loss of John Pym, for reasons of the same kind, is probably still more to be lamented.

1643, December.

At this period, plots were of frequent occurrence. [379]
Basil Brooke, a noted Royalist and Roman Catholic,

Court Intrigues.

planned a scheme for detaching the City of London from the cause of the Covenant, and from the Scotch alliance. By means of defeating Presbyterian schemes, he aimed at procuring peace favourable to the King. Propositions from his Majesty, and signed by his hand, were to be presented to the Lord Mayor, so that the latter should be obliged to convene a meeting to petition Parliament to treat with the monarch: upon which, should Parliament refuse, "a party in both Houses would appear with the City, and so either carry all to the King, or put all in confusion." The utterly idle conception of achieving a desired result by means in themselves impracticable, or, if even carried out, not such as to ensure the effect contemplated, only led to exposure and defeat. Keen-witted men in Parliament and in the City discovered the plot, and turned it to an account the very opposite of that which the plotters intended.

The court party at the same time endeavoured to intrigue with the Independents, whose want of sympathy in Presbyterian projects had become obvious to all.

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Flattering offers were made to them if they would break with the Scotch, abandon the Covenant, join the Royalists, and agree to the establishment of a moderate Episcopacy. Toleration was promised upon these conditions, and it was said: "Mr. Nye should be one of the King's chaplains, and several other Independents should be highly preferred and rewarded."^[380] With these larger intrigues were mixed up certain minor ones for the purpose of inducing officers of the garrison at Windsor Castle and Aylesbury to betray those places into the King's hands. The person who appears most prominently among the Royalist agents in these schemes was one Serjeant-major Ogle, who had been taken prisoner by the Parliament, and who was lodged in Winchester House. References to him, as a notorious plotter in the service of his Majesty, occur in the publications of that day, and he also figures in that capacity upon the pages of the Parliamentary journals.^[381] His own version of the part he played comes to light in the following letter found in the State Paper Office. Giving an account of himself at a later period, he says:—

"It pleased his Majesty," that blessed martyr, my ever-blessed master, to give his express orders unto me (then a prisoner in Winchester House, only upon his Majesty's interest), to proceed with Mr. Nye, Goodwin, Homstead, Grafton, Moseley, Devenish, and some other of the Independent faction,

according to a letter of mine unto the Earl of Bristol, intimating their desires to his Majesty, on their own and all the rests' behalf, in order to their plenary satisfaction and freedom from pressure of conscience in point of worship, which they judged might more easily and safely be obtained, and by them more honestly and honourably accepted from the King than the Covenant then in its triumphant career in London, they having failed of their expectation from the address they made to his Majesty by Sir Basil Brooke. Upon receipt of which warrant from his Majesty, I did conclude upon certain articles, or rather propositions, in order to a treaty upon their coming to Oxford, for which purpose I received a safe conduct from his Majesty, with a blank for such names as I thought fit to insert, and a hundred pounds out of his Majesty's county, towards relief of my necessities.

"The general, upon which all particulars were founded, was, that if his Majesty pleased to give them assurance of liberty of conscience, upon their submission to the temporal authority, they would employ their whole interest in opposition to the Scotch Covenant, to serve his Majesty against the two Houses, and submit to a moderate Episcopacy, which they judged to be far more tolerable than the other, and, indeed, the only way to settle the nation: and from this general one particular was, that they would deliver to the King Aylesbury and Windsor garrisons as pledges for performance of their future assistance upon his Majesty's command, after their coming to Oxford, and satisfaction received."^[382]

Court Intrigues.

It is to be observed that Ogle's letter plainly implicates the King as a prime mover in these wished-for intrigues with the Independents.

In the midst of these contrivances, and immediately after the detection of that in which Sir Basil Brooke was the chief actor, the corporation of London, (according to civic custom on occasions of great public interest), invited the Houses of Parliament to a grand banquet, as a proof of union in one common cause, and as a celebration of recent victory over common enemies. The invitation was formally accepted, and entered in the journals, and the Commons added to their acceptance of the invitation a request that, on the morning of the festive day, there should be in such place as the City might think fit, and by such a minister as the City might choose, a sermon for the commemoration

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of the recent deliverance. The Assembly of Divines also received an invitation to the festival; and further, the sheriff and aldermen, in chains and gowns, called on Baillie and his colleagues at Worcester House to join the other notabilities who were to be present at the municipal entertainment. On Thursday, the 18th of January, the Parliament, the Assembly, and the Scotch Commissioners met between nine and ten o'clock in the morning at Christ Church in the City, to hear Stephen Marshall, the preacher selected by the corporation to deliver a sermon at the request of the Commons.

The exordium to his discourse was ingenious.

"Right honourable and well-beloved in our Lord,

*Stephen Marshall's
Discourse.*

"This day is a day purposely set apart for feasting, and it is like one of the Lord's feasts, where you have a feast and an holy convocation, and you are first met here to feast your souls with the fat things of God's house, with a feast of fat things, full of marrow; and wine on the lees well refined; and afterwards to feast your bodies with the fat things of the land and sea, both plenty and dainty. But if you please you may first feast your eyes. Do but behold the face of the assembly. I dare say it is one of the excellentest feasts that ever your eyes were feasted with. Here in this assembly you may first see the two Houses of Parliament—the honourable Lords and Commons, who after thus many years wrestling with extreme difficulties, in their endeavouring to preserve an undone kingdom, and to purge and reform a backsliding and a polluted Church, you may behold them still not only preserved from so many treacherous designs, and open violences, but as resolved as ever to go on with this great work which God hath put into their hands. Here you may also see his excellency my most honoured lord, and near him that other noble lord the commander of our forces by sea, as the other is by land; and with them abundance of lords and resolute commanders; all of them with their faces like lions, who after so many terrible battles, and abundance of difficulties, and charging in the faces of so many deaths, are yet all of them preserved, and not a hair of their head fallen to the ground. Here also you may behold the representative body of the City of London, the Lord Mayor, the Court of Aldermen, the Common Council, the militia, and in them the face and affection of this glorious city; this city which, under God, hath had the honour of being the greatest means of the salvation of the whole kingdom, and after the expense of millions of treasure, and thousands of their lives, still as courageous and

resolute to live and die in the cause of God as ever heretofore. Here you may likewise see a reverend assembly of grave and learned divines, who daily wait upon the angel in the mount, to receive from him the lively oracles and the pattern of God's house to present unto you. All these of our own nation, and with them you may see the honourable, reverend, and learned commissioners of the Church of Scotland, and in them behold the wisdom and the affection of their whole nation, willing to live and die with us; all these may you behold in one view. And not only so, but you may behold them all of one mind, after so many plots and conspiracies to divide them one from another. And, which is yet more, you may see them all met together this day on purpose both to praise God for this union, and to hold it out to the whole world, and thereby to testify that as one man they will live and die together in this cause of God. Oh, beloved, how beautiful is the face of this assembly! Verily, I may say of it, as it was said of Solomon's throne, that the like was never to be seen in any other nation. I question whether the like assembly was ever to be seen this thousand years upon the face of the earth. Methinks I may call this assembly the host of God; I may call this place Mahanaim, and I believe there are many in this assembly that would say as old Jacob did when he had seen his son Joseph's face, 'Let me now die, seeing my son Joseph is yet alive.' And for mine own part, I am almost like the Queen of Sheba, when she had seen the court of Solomon, it is said that she had no spirit in her; and I could send you away and say that you had no cause to weep to-day or to-morrow, but to eat the fat and drink the sweet, and send portions one unto another; and I should send you away presently, but that I have first some banqueting stuff for your souls, such as the hand of God hath set before you for your inward refreshing; the ground whereof you shall find in the twelfth chapter of the first book of Chronicles, and three last verses:—'All these men of war, that could keep rank, came with a perfect heart to Hebron, to make David king over all Israel: and all the rest also of Israel were of one heart to make David king. And there they were with David three days, eating and drinking; for their brethren had prepared for them. Moreover, they that were nigh them even unto Issachar, and Zebulun and Naphtali, brought bread on asses, and on camels, and on mules, and on oxen, and meat, meal, cakes of figs, and bunches of raisins, and wine, and oil, and oxen, and sheep abundantly: for there was joy in Israel.'

""[383]

After the preacher had delivered a pertinent discourse from this text, which was felicitously chosen, the guests who had attended the church marched in long and imposing procession to Merchant-Taylors' Hall, where the banquet was served.

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Train bands lined the streets. Common Councilmen in their gowns walked first. The Mayor and Aldermen, arrayed in scarlet, followed on horseback. The General and Admiral of the Parliament, with the rest of the Lords and the Officers of the Army, trudged on foot. Then came the Commons, with their Speaker and his mace-bearer; and next to these the Westminster Divines. It had been appointed that the Scotch Commissioners, clerical and lay, should have a post of honour between the Commons and the Assembly, but as Lord Maitland went with the other lords, the modesty of his clerical companions would not let them take precedence of the English brethren. So Baillie and his colleagues "stole away to their coach," and when there was no room for coaches along the thronged streets, they went on foot, "with great difficulty through huge crowdings of people." Passing through Cheapside they saw,—where the Cross used to stand,—a great bonfire kindled, "many fine pictures of Christ and the saints, of relics, beads, and such trinkets," being piled up for the special entertainment of the reverend gentlemen, and kindled into a blaze just as they marched by. The feast cost £4,000, though, in the spirit of Puritan moderation, it included neither dessert, nor music, only "drums and trumpets." The Mayor sat on the dais. Two long tables supplied the Divines; Dr. Twiss the Prolocutor, sitting at the head. The Speaker of the Commons proposed the health of the Lords. The Lords stood up, every one with his glass, and drank to the Commons. The Mayor toasted both in the name of the citizens. The sword-bearer, wearing his cap of maintenance, carried the loving cup from the chief magistrate to the Commissioners. The whole ceremony was to them a "fair demonstration" of union between those whom the Oxford plotters endeavoured to divide. The feast ended with the singing of the 67th Psalm, "whereof Dr. Burgess read the line." "A religious precedent," says Vicars, in his Chronicle, "worthy to be imitated by all godly Christians in their both public and private feastings and meetings."^[384]

*Corporation
Banquet.*

The Cheapside bonfire of papistical trinkets illuminated the spot where once stood the famous cross. That cross, also the one at Charing, and even the venerable building of a like description in St. Paul's Churchyard—although so rich in memories of the Reformation—had been destroyed by the axes of puritanical zeal. In his honest hatred of superstition, the Puritan did not perceive that objects once devoted to its service, if intrinsically beautiful, might yet deserve preservation, and that monuments of antiquity, though they may not advance the cultivation of taste, may render valuable aids to the study of history. But the use and appreciation of ancient art is of modern growth, and the Puritan must not be blamed for being, in this respect, only on a level with the reformers of an earlier age, and with many of his own contemporaries of a different creed.^[385] The House of Commons had early taken in hand the destruction of what were deemed relics of idolatry, although, being unsupported by the Lords, they accomplished little. But in the spring of 1643, by order of the two Houses, Sir Robert Harlow executed the iconoclastic crusade just noticed, which proved the beginning of a wholesale destruction which continued throughout the following winter. Acting under the advice of the Assembly, as well as in accordance with their own impulses, the Commons, in the month of August, issued an ordinance for demolishing altars, for removing tapers, candlesticks, and basins, and for defacing crosses, images, and pictures of the persons of the Trinity, and of the Virgin Mary.^[386] Monuments of the dead, not commonly reputed for saints, were to be spared. Accordingly, in December, images in Canterbury Cathedral were dashed down, and stained windows broken in pieces. Something of the same wilful destruction followed a few days afterwards in Westminster Abbey; copes and surplices, it may be observed, having been taken away in the previous October, up to which time they had been in use even there.^[387] St. Paul's Cathedral^[388] shared a like fate, and sacred articles of silver belonging to it were sold for the replenishment of the war treasury.^[389] As to the defacement of churches, the Puritans have been blamed for things in which they had no concern. What was really owing to the violence of reformers, the depredations of Royalists, and the neglect and folly of churchwardens has been put to their account. Yet when all this is allowed for, enough remains to sustain serious indictments against

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*Iconoclastic
Crusades.*

the accused, and little mercy would they find at the hands of a tribunal of antiquaries.

In the city of Norwich, (January, 1644) the Puritan corporation appointed a committee to repair several churches, and take notices of scandalous pictures, crucifixes, and images:^[390] whereupon they went to work, breaking windows, filing bells, tearing down carved work, stripping brasses off monuments, and pulling down the pulpit with its leaden cross in the green yard. Popish paintings, taken from the cathedral and other churches, were burnt in the old market-place, "a lewd wretch" (according to Bishop Hall) walking before the train with his cope trailing in the dust, and a service book in his hand, "imitating in an impious scorn the tune, and usurping the words of the litany."^[391] There is further evidence of remorseless destruction in the journal of William Downings, of Stratford, a parliamentary visitor, appointed under a warrant from the Earl of Manchester, for demolishing superstitious pictures and ornaments within the county of Suffolk, in the years 1643 and 1644. But in some places the populace opposed the execution of the Parliamentary decree. At Kidderminster the Puritan churchwarden set up a ladder, which was too short to enable him to reach the crucifix on the top of the town cross; and, while he was fetching another, a mob assembled to defend what many admired only for the reason that their neighbours disliked it.^[392] Baxter, then minister in the town, calls these defenders of crucifixes and images "a drunken crew," and declares that they beat and bruised two neighbours who had come to look after him and the churchwardens, and would have belaboured both in the same way, could they but have caught them.^[393] If sometimes the iconoclasts were defeated, at other times they overcame their adversaries. A church near Colonel Hutchinson's house at Owthorpe, in Nottinghamshire, had a painted window with a crucifixion, the Virgin Mary and the Evangelist John. The clergyman took down the heads of the figures, and laid them by carefully in his closet, and tried to persuade his churchwardens to certify that the Parliamentary order was executed; but they took care to call on the Colonel and bring him to see the church and the minister, who was at last compelled to blot out all the paintings and break all the glass which was tainted with superstition.^[394]

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The amount of damage done in different parts of the country would depend on circumstances, on the disposition of the magistrates, and especially on the conduct of the military. It is certain that the havoc of Downings' iconoclasm is not a specimen of what generally took place. The state of numerous churches throughout the kingdom shews that Puritanism in many places touched them lightly, if at all. We know more

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*Iconoclastic
Crusades.*

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about the cathedrals. These suffered severely. Peterborough, perhaps, was treated worse than any, the choir being stripped of its carved fittings and coloured glass, the cloisters being completely pulled down.^[395] Part of the nave at Carlisle was destroyed, in order that guard houses and batteries might be constructed. The chapter house of Hereford was ruined, and 170 crosses torn up.^[396] At Chichester, ornaments, monuments, and windows were destroyed. Sawpits were dug in the nave of Rochester. The lady chapel of Ely was cruelly shattered. Norwich Cathedral sustained much injury; and so did Lichfield, which the cavaliers turned into a citadel. Monuments were smashed at Gloucester and Lincoln. But, in Winchester, though Waynflete's chantry was defaced, the cathedral is said to have suffered less than it otherwise would have done, from the circumstance of the captain of the troop stationed there being an old Wykehamist. Though stalls were pulled down at Worcester, numerous monuments and effigies still remain within that edifice. Only painted windows were taken down at Exeter and Oxford; some of the latter being preserved after their removal. Notwithstanding what is reported in the *Mercurius Rusticus*, the ornaments of Westminster Abbey, which at the beginning of the conflict fell into Puritan hands, so far escaped violence, that it is said "a history of ecclesiastical sculpture, from the reign of Henry III. to the present day, might be fairly illustrated from the stores of that Church alone."^[397] Other noble cathedrals were but slightly damaged. Salisbury was free from "material profanation."^[398] There is no mention of harm done at Bristol, Durham, Chester, and York. Throughout England, tradition is constant in her story, that the violation of churches was the work of soldiers.

The excess to which ceremonial worship had been carried by the Laudian clergy, and the almost Popish reverence with which images and pictures had been regarded by some of them, inspired an intense Protestant

indignation in numbers of Englishmen. They prized the Reformation, and thought they saw in the Anglo-Catholicism of their day a national defection from the faith of their fathers, like setting up the calves in Bethel and Dan, or the idolatrous service of Baal in Samaria. And whilst fearing the return of Romanism, with Romanism they identified things which have no necessary connection with it. Their zeal, though religious and disinterested, lacked wisdom, and had mixed up with it such alloy as commonly adheres to that passion in the breasts of mortals. It resembled the fierceness and fury of a noted reformer of Israel, who "brought forth the images out of the house of Baal and burned them;" nor was it untouched by a spirit of proud self-complacency like his when he cried: "Come see my zeal for the Lord of Hosts." Again and again, as we mark Puritan doings in cathedrals and churches, we are ready to exclaim: "The driving is like the driving of Jehu the son of Nimshi, for he driveth furiously."^[399]

A broad construction was given to the meaning of orders for suppressing superstition and idolatry. In the month of January, 1644, when Oliver Cromwell was Governor of Ely, a Mr. Hitch officiated in the cathedral in the usual way. No express law, as yet, had been made against the Prayer Book or choral worship. But, interpreting the latter as "superstitious," and apprehending that its continuance would irritate his soldiers, Cromwell wrote to this clergyman and required him to forbear a service which he styled "unedifying and offensive." The clergyman persisted. The Governor,—wearing his hat according to custom,—with his men, entered the church, and found Mr. Hitch chaunting in the choir. "I am a man under authority," said Oliver, "and am commanded to dismiss this assembly"—the only authority, in fact, being the order about superstition, backed by the probability of a disturbance in case the service was continued. When Hitch determinately went on, Cromwell's words, "Leave off your fooling and come down, sir," broke up the cathedral worship, and shewed the sort of man the clergy had to deal with.

Cromwell at Ely.

While crosses, images, and choral services were put down, the Solemn League and Covenant was set up. The zeal with which the Parliament attempted the last, scarcely fell below that with which they accomplished the first. An exhortation on the subject by the Divines at Westminster publicly appeared.

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It contains no threatenings of penalty in case of refusal, but only an abundance of argument and rhetorical persuasion. Various objections are answered—one especially, which, read in connexion with the events of the Restoration, is rather curious:—

"As for those clergymen who pretend that they, above all others, cannot covenant to extirpate that Government because they have, as they say, taken a solemn oath to obey the bishops *in licitis et honestis*, they can tell, if they please, that they that have sworn obedience to the laws of the land, are not thereby prohibited from endeavouring by all lawful means the abolition of those laws when they prove inconvenient or mischievous; and if yet there should any oath be found into which any ministers or others have entered, not warranted by the laws of God and the land, in this case they must teach themselves and others that such oaths call for repentance, not pertinacity in them."^[400]

Though no threats are found in the exhortation, Parliament sent instructions to commanders-in-chief and governors of towns and garrisons, that the Covenant should be taken by all soldiers under their command. The committees of the several counties had to see that copies were dispersed over the country, its contents read in the churches, and the oath tendered to ministers, churchwardens, and constables. Law officers under the Crown were subjected to loss of office, and lawyers to restraint from practising in the Courts, if they did not submit to the new test.^[401] If a minister refused to present it to his parishioners, the committee was to appoint another minister to do so in his place.^[402] It was ordered, at an earlier date, that no one who declined the Solemn League should be elected a common-councilman of London, or have a vote in such election, or hold any office of trust in the City.^[403] Every congregation was to obtain a copy of the document fairly printed in large letters, fit to be hung up in the place of worship.^[404]

Sermons were preached and published, containing numerous scriptural quotations, pertinent and impertinent, in favour of covenanting. The Presbyterians regarded it as a symbol of their Church, and made it a bulwark of their system; and others, who had no sympathy with them, and who afterwards opposed their proceedings, were,

*The Solemn League
and Covenant.*

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at first, scarcely less extravagant in extolling its merits.^[405] The devices of the engraver came under contribution, and there may be seen a curious series of plates executed at that period, one representing the Divines swearing to the Covenant with uplifted hands; and another exhibiting Prelatists in gowns and caps coming out of Church, whilst a Puritan is shutting the door upon them, saying, "Every plant that my heavenly Father hath not planted shall be plucked up."^[406] Copies of the instrument, with a long array of names appended to it, sometimes present themselves amongst corporation records and parish archives, suggestive of scenes once enacted in church-porches and chancels.^[407] Other written vows belong to that covenanting age. At Nottingham, the governor and garrison took between them a mutual oath to be faithful to each other, and to hold out until death, without listening to any parley, or accepting any terms from their enemies. Lucy Hutchinson describes how women as well as men entered into such pledges;^[408] and an instance of a female adherent to the famous bond is found in a MS. life of Mrs. Stockton, preserved in Dr. Williams' library.

Parliament imposed the Covenant upon the Irish. The Royalist authorities did all in their power to resist the imposition. The Lords-Justices and the Council laid an embargo on its adoption by the military, and condemned it as seditious. But old Scotch officers, commanding troops in the sister island, heeded not the mandate, and the proscribed symbol received a warm welcome in the camp, and also in the northern cities, where the Protestants rallied around it. With great solemnity, the soldiers swore to it in the church of Carrickfergus. Throughout Down and Antrim it became popular. At Coleraine it contended with opposition, but at Derry, which place abounded in anti-prelatists, it won a tumultuous victory over the opposite party.^[409]

The Solemn League and Covenant.

As it has been from the beginning in the history of tests,^[410] so it was with the Covenant. It bore the character of a compromise; and, accordingly, that which was meant at the same time to declare truth and to accomplish union, received different explanations from different persons. First, the Presbyterians thought themselves bound by it to oppose schism as well as prelacy; next, the Independents, it was said, deeming Presbyterianism superstitious, conceived that the Covenant gave authority to oppose that system; and,

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thirdly, the cavaliers, swearing by it to preserve and defend the King's majesty, concluded they might lawfully oppose both the other parties. In this way the subject is represented in a publication of later date, written by one who had no sympathy whatever with the movement; and there is much truth, no doubt, in the representation, as well as in the following remark by the same writer, in reference to the ambiguity of the terms employed in the symbol: "It must needs own almost anything, especially seeing the sense of it hath never been plainly demonstrated, but left to men's own interpretation in several particulars."^[411] But whilst each could discover something in the Covenant of a negative kind, which he could turn to account in opposing his adversaries, nearly all persons in England, except the most advanced Presbyterians, saw there were things in it of a positive kind, which they knew not how to adopt.

Hence, in spite of its various interpretations, and also in spite of Parliamentary orders and Presbyterian activity, great numbers refused or evaded the test.^[412] Where zealots were able, they enforced it rigorously; but in unsettled times the imposition of anything of the kind is sure to be encumbered by great difficulties. Some even who held Presbyterian opinions disliked this form of expressing them; and we find that Richard Baxter prevented his flock at Kidderminster from submitting to the Covenant, lest, as he said, it should ensnare their consciences; and also he prevailed on the ministers of Worcestershire not to offer it to their people.

The truth is, that while the Covenant in Scotland was a reality, inasmuch as it sprung from the hearts of the people, and expressed a sentiment to which they were devoted, the case was far otherwise in our own country. Imported here, it never rallied around it the sympathies of the nation. Exasperating High Churchmen, it did not please the Puritans. Many could not go so far as it went and many were anxious to go much further still. Moderate Episcopalians were reluctant to adopt it, because they were not prepared for the total abolition of Episcopacy; and, on the other hand, many Independents disliked it, because its condemnation of schism, they knew, was regarded in some quarters as a condemnation of themselves. They were advocates for a liberty and a toleration to which the spirit of the Covenant was thoroughly opposed. That the Scotch should insist upon its adoption by the English, and that the rulers of this country should accept the condition,

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and endeavour to enforce it upon all their subjects, was an unfortunate mistake, destined to be attended in some instances by failure, in others by mischief, in all by disappointment.

The adoption of the Covenant by the Westminster Assembly will be in the reader's remembrance; and to the subsequent proceedings of that venerable body his attention is now to be directed.

1643, September.

The Divines first met in Henry the Seventh's Chapel. That stone building, pleasantly cool in summer, became too cold for them as autumn drew on. They then, by order of Parliament, adjourned to the Jerusalem Chamber.^[413] "What place more proper for the building of Zion, as they propounded it," asks Fuller, "than the Chamber of Jerusalem, the fairest of the Dean's lodgings where King Henry IV. died?" Romance and poetry, through the pens of Fabian and Shakespeare, have thrown their hues over this memorable room; other and higher associations now belong to it as the birth-place of a confession of faith still dear to the Church of Scotland, and as the spot where the Puritan advocates of religious liberty fought one of its early and most earnest battles.

The Chamber adjoins the Abbey, at the south corner of the west front. There is a painted window on the north side, and two plain ones give light on the west. The walls are hung with tapestry, representing the Circumcision, the Adoration of the Magi, and, apparently, the Passage through the Wilderness. A portrait of Richard II.—generally considered the oldest extant picture of an English sovereign—hangs at the south end of the apartment; and a curiously-carved chimney-piece, put up by Williams, Dean of Westminster, spans the fire-place. The room was rather different in appearance at the time of the Assembly. The situation of the fire-place was the same, and the mantel-piece had but just been erected. The arras, however, was brought into the Chamber after the coronation of James II., on which occasion it had been used in the Abbey; and the portrait of Richard II. did not come there till 1755, when it was removed from the Abbey choir.^[414]

The Westminster Assembly.

Baillie paints the place and the Assembly as he saw it. Near the door, and on both sides, were stages of seats; the Prolocutor's chair being at the upper end, "on a

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frame." In chairs before him were the assessors. Before them, through the length of the room, ran a long table, at which sat the secretaries, taking notes. The house, says Baillie, was well hung with tapestry, and a good fire blazed on the hearth—"which is some dainty at London." Opposite the table, to the right of the president, on the lowest of the three or four rows of forms, appeared the Scotch Commissioners, Baillie himself a conspicuous individual of the group. Behind were Parliament members of the Assembly. On the left, running from the upper end to the fire-place, and at the lower end, till they came round to the seats of the Scotchmen, were forms for the Divines, which they occupied as they pleased, each, however, commonly retaining the same spot. From the chimney-piece to the door was an open passage; the Lords who now and then dropped in, filling chairs round the fire. There must have been plenty of room in the Chamber for the accommodation of the Assembly, as ordinarily there were not present above threescore members. Everything proceeded in perfect order, and each meeting commenced and closed with prayer. As we read Baillie's description, we can see the Divines divided into committees, can watch them preparing matters for the Assembly, and can hear them speak without interruption, as each one addresses the reverend Prolocutor. The harangues are long and learned, and are well prepared beforehand with "replies," "duplies," "triplies." Then comes the cry, "Question—question;" the scribe, Mr. Byfield, immediately rises, approaches the chair, and places the proposition in Dr. Twiss's hand, who asks, "As many as are in opinion that the question is well in the stated proposition, let them say Aye;" "As many as think otherwise, say No." Perhaps Ayes and Noes "be near equal;" then the Prolocutor bids each side stand up, and Mr. Byfield counts. When any one deviates from the point in hand, there are exclamations of "Speak to order." Nobody is allowed to mention another by name, but he must refer to him as "the reverend brother who lately or last spoke, on this hand, on that side, above, or below." These methods of proceeding deeply interested Robert Baillie, who, by his minute description of them, greatly interests us. The Prolocutor, far too quiet a man for the Scotch delegate, is represented by him as "very learned, but merely bookish, and among the unfittest of all the company for any action; so after the prayer he sits mute." This, most persons will think, a chairman ought to do; but Baillie wished to have a President with more zeal for Presbyterianism, and therefore he preferred Dr.

Burgess—in his estimation "a very active and sharp man," who supplied, so far as was "decent, the Prolocutor's place."^[415]

Twiss did not long retain the office which his modesty and infirmities had made him reluctant to accept. He fell down one day in the pulpit, and "was carried to his lodgings, where he languished about a twelvemonth," and then expired, July the 20th, 1646.^[416] His preference of a contemplative to an active life appeared in his exclamation after the attack which proved his death-stroke: "I shall have at length leisure to follow my studies to all eternity," and throughout he seems to have been as loyal as he was religious; for he often wished the fire of contention might be extinguished, even if it were in his own blood. A funeral in Westminster Abbey marked the public opinion of his worth; and there Dr. Robert Harris preached a sermon for him on Joshua i. 2, "Moses my servant is dead." The Assembly and the House of Commons followed his remains to the grave. Mr. Charles Herle, educated at Exeter College, Oxford, succeeded him in the office of Prolocutor.

Members of the
Assembly.

There was an overwhelming majority of Presbyterians in the Jerusalem Chamber. Amongst the most eminent were Burgess and Calamy, Marshall and Ash. In the notes of the Assembly's proceedings taken by Lightfoot, these names repeatedly occur, together with the less familiar ones of Herle, Seaman, Cawdry, and others. The Scotch Commissioners, Henderson and Baillie—with whom were associated George Gillespie, a young man of rich promise, and Samuel Rutherford, whose "Letters" on religious subjects are well known—likewise took a prominent part in the debates. It is proper here also to remember that Presbyterianism, predominant in the Assembly, was at the time supreme in the Senate. All the staunch Prelatists, and many moderate Episcopalians, had left the Long Parliament in St. Stephen's Chapel to join Charles's mock Parliament at Christ Church, Oxford. Advocates who exposed ecclesiastical abuses with the view of simply reforming the old establishment had disappeared. Of those who remained it would be uncandid to deny that some were sincere converts to the new system; and it would be credulous to believe that there were not others who, seeing which way the stream flowed, struck in with the current. At any rate, a Presbyterian policy prevailed in 1644. Holles, Glynne, Maynard,

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Rudyard, Rouse, and Prynne, together with Waller, Stapleton, and Massey, were the most distinguished members of the party; yet, though possessing amongst them considerable ability and learning, they were none of them men of great intellectual power or of any political genius.

The Erastians, as they are called, must not be overlooked. John Selden, already noticed, led the van, and his learning and reputation made him a formidable opponent. To gain any advantage when breaking a lance with such a person was counted a high distinction in theological chivalry, and this honour has been duly emblazoned by Scotch heralds more than once in favour of young George Gillespie, whom we have just mentioned. The solid and industrious Bulstrode Whitelocke, and St. John, "the dark-lantern man," helped to form a small body of reserve on the same side, who, on special occasions, behaved themselves valorously in the Westminster field. The chief Divine who thoroughly advocated Erastianism was Thomas Coleman, Vicar of Blyton, in Lincolnshire, of some considerable note in his own day. But a far greater man—acting, however, only occasionally in connexion with the party—was the renowned Dr. Lightfoot, who in rabbinical lore may be regarded as equal, if not superior, to John Selden. [\[417\]](#)

*Members of the
Assembly.*

But another class, entertaining different views, claim our attention: the five dissenting brethren—Nye, Goodwin, Bridge, Burroughs, and Simpson. [\[418\]](#)

Philip Nye, a man of ability in some respects, and of bustling habits, stands out as chief of the five. Zealous in his commendations of the Covenant, he with equal zeal opposed Presbyterianism: the very thing which, according to the fairest rules of interpretation, it must be held to symbolize. He has been charged with disingenuousness; but experience in the matter of subscription makes charitable people slow to urge the charge. Those who vindicate subscription in "non-natural senses" ought to be the last to fling a stone at Philip Nye; and those who take the opposite side can hardly praise him for consistency of conduct. How the Covenant could be adopted by any one professing Independency is a puzzle, and the puzzle in Nye's case is the greater, because, not content with quietly assenting to it as many others did, he appears to have been a chief instrument in bringing it over the border, and in enforcing it upon his companions.

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Thomas Goodwin surpassed Nye in learning and in other respects. His writings present him to us as an accomplished theologian, and a many-sided thinker, and shew that scarcely any forms of thought in metaphysical divinity escaped his notice.^[419] The breadth and excursiveness of his reflective powers are the more remarkable when viewed in connexion with his rigid Calvinism. He joined Philip Nye in a preface to "Cotton's Keys," and in it expounded ecclesiastical opinions, in accordance with those of the New England churches.

William Bridge—once a Norwich clergyman, then a refugee in Holland—won a reputation for learning as well as piety. His library, well stocked with fathers, schoolmen, and critics, so attracted him, that he rose at four o'clock both winter and summer, that he might have time for reading these favourites. Being a man of broad sympathies, he accustomed himself to enquiries beyond the range of his profession, and boldly handled constitutional questions. Adopting the opinion, that "the people formed the first subject and receptacle of civil power;" an opinion which was the mainstay of the Parliament's policy, Bridge shrunk not from declaring, "In case a prince shall neglect his trust, so as not to preserve his subjects, but to expose them to violence, it is no usurpation in them to look to themselves, but an exercise of that power which was always their own."^[420] He had suffered under Laud, and knew what it was to walk in paths of confessorship, so that his exhortations had no little power to comfort, when he said to his people in trouble: "Certainly, if God's charge be your charge, your charge shall be His charge, and being so, you have His bond that they shall never want their daily bread."

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Assembly.*

Jeremiah Burroughs seems to have possessed singular candour, modesty, and moderation, and probably was the gentlest of the five; perhaps he was not always quite consistent, id="FNanchor_421_421"^[421] being no lover of controversy, but a man who felt himself at home in devotional meditations. He died before the Westminster Assembly broke up,^[422] and one of the last sermons which he preached was entitled "*Irenicum*, or an Attempt to heal Divisions among Christians."

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Sydrach Simpson bore a character for learning, piety, and moderation though at one time he was silenced by the Assembly, for differing from them in matters of discipline.

The discussions in which the Independents engaged with their brethren, turned upon the office of Apostles, the distinction between pastors and teachers, the character of ruling elders, ordination, the election of ministers, and the like; but their main controversy hinged on a deeper question. The Presbyterians were anxious to meet the difficulties felt by the Independents, so far as the establishment of one uniform religion would allow; the former were prepared to permit in their large and carefully ramified scheme of ecclesiastical government some little liberty of action, provided that on the whole there was obedience to the established system. Freedom from synodical censure upon certain points was to be conceded to those who upon others submitted to Presbyterian authority. The Assembly would build a huge cathedral for the nation, with small side chapels here and there for the use of certain crotchety people, who might privately pass in and out if they would but always enter through the great door, and walk up the main aisle. This is not what men, calling themselves 'Independent,' have ever liked. The five dissenting brethren did not object to the cathedral being built for those who wished it—but for their own parts, they desired their own places of worship to be quite outside.

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It will be instructive here to pause a moment, and to compare the ground taken by the Independents in this controversy with that occupied by other advocates of toleration of a different class at the same time. Chillingworth, in his famous work on the "Religion of Protestants," observes in a passage of singular eloquence, that the imposing of the senses of men upon the words of God, and the laying of them upon the conscience under penalty of death and damnation—involving the vain conceit that we can speak of the things of God better than in the words of God—is the only fountain of all the schisms of the Church, and that which makes these schisms immortal. He brands the practice as the common incendiary of Christendom, and that which tears into pieces, not merely the coat, but the members of Christ. "Take away," he says, in burning words, "these walls of separation, and all will quickly be one. Take away this *persecuting, burning, cursing, damning* of men, for not

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subscribing to the *words of men* as the words of God; require of Christians only to believe Christ and to call no man Master but Him only; let those leave claiming infallibility that have no title to it, and let them that in their words disclaim it, disclaim it likewise in their actions; in a word, take away tyranny, which is the devil's instrument to support errors, and superstitions, and impieties, in the several parts of the world, which could not otherwise long withstand the power of truth—I say take away tyranny, and restore Christians to their just and full liberty of captivating their understanding to Scripture only; and as rivers, when they have a free passage, run all to the ocean, so it may well be hoped, by God's blessing, that universal liberty, thus moderated, may quickly reduce Christendom to truth and unity."^[423]

John Hales, in his little tract on "Schism," complains that it has been the common disease of Christians from the beginning, not to content themselves with that measure of faith which God and Scriptures have expressly afforded us, but to attempt devising things, of which we have no light, either from reason or revelation; "neither have they rested here, but upon pretence of Church authority (which is none) or tradition (which for the most part is but feigned) they have peremptorily concluded, and confidently imposed upon others a necessity of entertaining conclusions of that nature; and, to strengthen themselves, have broken out into divisions and factions, opposing man to man, synod to synod, till the peace of the Church vanished, without all possibility of recall."

The object of both these great reasoners was, without violating conscience, to secure union. They aimed at comprehension, but it was comprehension such as all Puritans condemned. Chillingworth would have had "the public service of God conducted so that all who believe the Scriptures and live accordingly, might without scruple, or honesty, or protestation against any part, join in it;" and Hales went so far as to say: He did not see that men of different opinions in religion might not hold communion in sacred things, and both go to one church. "Why may I not go," he asks, "if occasion require, to an Arian Church, so there be no Arianism expressed in their liturgy? And were liturgies, and public forms of service so framed as that they admitted not of particular and private fancies, but contained only such things as in which all Christians do agree, schisms on opinion were utterly vanished." It is needless to say that this is a species of latitudinarianism which most

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religious men would consider to be inconsistent with a definite doctrinal belief.

The most remarkable treatise on the subject of toleration belonging to that age is Jeremy Taylor's "Liberty of Prophesying." In point of eloquence no other work of the kind can be compared with it; and though defective it is still worthy, for the sake of its reasoning as well as its rhetoric, to be a text book for the student of religious liberty. The author dwells, in his own matchless way, on the difficulties of Scripture, the uncertainty of tradition, the insufficiency of councils, the fallibility of popes and fathers, the incompetency of the Church, in its "diffusive character," to be judge of controversies, and the impertinence of any pretence to such a possession of the spirit as preserves from error. Reason is pronounced the best interpreter, and, though some causes of error in the exercise of reason are culpable, many are innocent. [\[424\]](#)

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To base toleration on the uncertainty of truth is a very insecure method of proceeding. The alliance of scepticism damages the cause of freedom. Colour is given to the charge, that religious liberty springs from religious indifference. It has cost two centuries of experience and discipline to indoctrinate society with the lesson, that the decision of religious questions without any imposition of human authority is a right of conscience; and that the more earnest we are in the love of truth, the more careful we should be not to sully its sanctity by the unrighteous enforcement of its principles. Taylor fought manfully for freedom, but he did not see the highest vantage ground within his reach. Moreover, in his Essay, comprehension within the Church often seems confounded with religious liberty in the State. No clear distinction is maintained between principles which regulate the one, and principles which vindicate the other. Yet the reader of the treatise may pick out and sort them, for there they are. Taylor teaches the doctrine—that the duty of faith is completed in believing the Articles of the Apostles' Creed; that to multiply tests of orthodoxy and to require assent to points of doubtful disputation "is to build a tower on the top of a bulrush;" and "that the further the effect of such proceedings doth extend, the worse they are." With an amiable self-delusion, characteristic of his pure and child-like nature, he dreamed of a church, combining all varieties of belief consistent

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with faith in the fundamental verities of the gospel. Though protesting against persecution, he contended for discipline, but confined excommunication simply to an act of spiritual severance. It is difficult to catch exactly what he means by "communicating with dissenting churches"—yet the tone of his remarks, and his reference to the Greek Church, prevent us from supposing that he used the appellation in the way it is commonly employed at present. The division of kingdoms seems to have been with him the only justification of a division of churches; and probably his theory of a national church would not be very different from Dr. Arnold's. He, at the same time, claims toleration for all *opinions*, not expressed in overt acts injurious to the State; and though he hampers his principle with certain qualifications, which threaten the civil rights of some persons hostile to Christianity, yet his views, if consistently carried out in his own gentle and charitable spirit, would leave little to be complained of by any one. On the whole, Jeremy Taylor was fuller and more satisfactory in his views of comprehension and liberty than was either Chillingworth or Hales.

Dr. Ralph Cudworth and Dr. Henry More, though they did not propound any theory of toleration, advocated principles and breathed a spirit in their teaching such as could not fail to promote the interests of religious liberty. There is a beautiful sermon by the former of these Divines preached before the House of Commons, in 1647, in which the following characteristic passage occurs:—"The golden beams of truth and the silken cords of love, twisted together, will draw men on with a sweet violence, whether they will or no. Let us take heed we do not sometimes call that zeal for God and His Gospel, which is nothing else but our own temptations and stormy passions. True zeal is a sweet, heavenly, and gentle flame, which makes us active for God, but always within the sphere of love. It never calls for fire from heaven to consume those that differ a little from us in their apprehensions. It is like that kind of lightning (which the philosophers speak of) which melts the sword within, but singeth not the scabbard. It strives to save the soul, but hurteth not the body."^[425]

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More, who went beyond Cudworth in decided attachment to Episcopacy; sharing in the spirit of his great contemporary, strongly condemned rancour and persecution. "He thought," observes his biographer, "that all persons

making conscience of their ways, and that were themselves peaceable and for granting a liberty unto others, ought not to be severely used or persecuted, but borne with as befits weak members till God shall give them greater light."^[426]

The groundwork of toleration selected by the Independents differed from that of the Episcopalians. The Independents had ideas of Christian faith, Christian worship, and Christian discipline far more definite and fixed than those of Chillingworth or Hales, or even Taylor; and could not join in any acts or associations inconsistent with their deeply-formed and devout opinions. Arianism, for example, might be deemed simply an intellectual error by men like Hales; but no Athanasian could be stronger in his maintenance of the doctrine of the Trinity, and the importance attached to it, than were these dissenting brethren. They were as remote as possible from anything like latitudinarian theology. Christian dogmas, so called, were held by them with an intense tenacity. Toleration is sometimes reckoned a daughter of indifference, but most certainly in their case toleration can be ascribed to no such parentage. Moreover, the very general kind of devotion in the house of God which would have satisfied Chillingworth, would have starved the spiritual cravings of Jeremiah Burroughs and his companions.

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Nor did the brethren wish for only one church, as did those eminent Episcopalians. They could not, for it was their primary principle that "churches" or "congregations"—with them identical terms—ought to be many. In the existence of one holy Catholic Church, embracing all true Christians, they firmly believed; but they held in perfect consistency with this, that there must be numerous and distinct organized communities, not only in the world, but in the same realm, to be united only by common Christian sympathies. On this point they would be at issue with Jeremy Taylor, as well as with Chillingworth and Hales. They would object to his notion of national churches, as well as to his standard of Christian faith. Their ideas of communion were much more strict, though the extent of their toleration in some respects was more comprehensive. With Taylor's Catholic predilections they would have no sympathy, nor could they agree with him in all he said about Anabaptists. When they came to the same conclusion with the eloquent Churchman, it was by a different course of reasoning.

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The fundamental principles of Independency, consistently carried out, could not but lead to the advocacy of a perfect freedom of profession and worship. If churches be select communities composed of Christian believers, standing apart from political powers, and independent of each other in their organization, then it clearly follows that no ecclesiastical authority can touch those who are outside the pale of all particular churches that no temporal penalties can be inflicted on those who are within any such pale and that full liberty of action must be allowed to religionists of every class, and to those also who have no religion at all. Accordingly, Mr. Hallam, an unprejudiced enquirer into this subject, has declared that "the congregationalist scheme leads to toleration, as the national church scheme is adverse to it, for manifold reasons which the reader will discover."^[427] A few Independents at an early period discerned the legitimate consequences of their principles. A Brownist petition prepared in the year 1640 prays, "that every man may have freedom of conscience," not excepting Papists; and in a pamphlet published in 1644 it is asked, "whether if security be taken for civil subjection, Papists might not be tolerated? Otherwise," it is added, "if England's government were the government of the whole world, not only they, but a world of idolaters of all sorts, yea the whole world, must be driven out of the world."^[428] But the five brethren did not advocate the cause of liberty to that wide extent; and afterwards, during the civil wars and the Protectorate, many Independent Divines, including the leaders of the party, carefully limited their conception of religious freedom.^[429]

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But there was one Independent clergyman—John Goodwin—not a member of the Westminster Assembly—who with pre-eminent perspicuity and force expounded the doctrine of toleration. Justice has not been often done to this very able man, owing, perhaps, to the prejudice against him on account of his Arminianism, and to his bold defence of Charles's execution. Calvinists and Royalists were likely to look at him with jaundiced eyes; and it cannot be denied that when assailed, as he often was, Goodwin could give a Roland for an Oliver; and that in a way such as severely galled the victims of his criticism.^[430] He remained until 1645 vicar of St. Stephen's, Coleman Street, and at the commencement of the sittings of the Westminster Assembly, though suspected by some of holding Calvinism very loosely, he

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had not yet entirely abandoned that system. Open and earnest in his advocacy of Independent principles, defending them both from the pulpit and from the press, he also, whilst remaining vicar and discharging his parochial duties, gathered in his parish an Independent church; not, however, preaching separately to that community, but in his more private relationship as an Independent pastor, praying and holding religious conversation with them in his own house—whilst the doors were thrown open for any one to attend the meetings who pleased.

Goodwin heartily approved of the "Narration," though he had no part in the composition of that performance, and when it came under the attack of Presbyterians, he broke a lance on its behalf with the assailants, in a very chivalrous fashion. We do not remember any other statement of the doctrine of toleration in the writings of the Independents of that day so unequivocal as his, expressed in the following words:^[431]

"The grand pillar of this coercive power in magistrates is this angry argument: 'What, would you have all religions, sects, and schisms tolerated in Christian churches? Should Jews, Turks, and Papists be suffered in their religions, what confusion must this needs breed both in church and state!' I answer: If, by a toleration, the argument means either an approbation or such a connivance which takes no knowledge of, or no ways opposeth such religions, sects, or schisms as are unwarrantable, they are not to be tolerated; but orthodox and able ministers ought in a grave, sober, and inoffensive manner, soundly from the Scriptures to evince the folly, vanity, and falsehood of all such ways. Others, also, that have an anointing of light and knowledge from God, are bound to contribute occasionally the best of their endeavours towards the same end. In case the minister be negligent, or forgetful of his duty, the magistrate may and ought to admonish him that he fulfil his ministry. If a person, one or more, being members of a particular church, be infected with any heretical or dangerous opinion, and after two or three admonitions, with means of conviction used to regain him, shall continue obstinate, he ought to be cast out from amongst them by that church. If it be a whole church that is so corrupted, the neighbour churches, in case it hath any, ought to admonish it, and to endeavour the reclaiming of it. If it be refractory, after competent admonition and means used for the

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reducing of it, they may and ought to renounce communion with it, and so set a mark or brand of heresy upon the forehead of it.

If, by a toleration, the argument means a non-suppression of such religions, sects, and schisms by fining, imprisoning, disfranchising, banishment, death, or the like, my answer is—*That they ought to be tolerated; only upon this supposition, that the professors of them be otherwise peaceable in the state, and every way subject to the laws and lawful power of the magistrate.*"^[432]

There is a good deal of controversy as to who was first in the field of toleration. The honour most likely belongs to Leonard Busher. He will be noticed hereafter in connection with the early Baptists. But the controversy is of little importance in relation to the general interests of mankind, compared with the fact that John Locke, at a later period, was the apostle to teach the doctrine effectively to the English nation. He discovers who proves, and the merit of discovery is due to him who first establishes a principle; but he, who adopting what was established before, is more successful in his advocacy of it than his predecessors were, will and ought to be regarded as a superior benefactor of his race, though he may have attributed to him more of the merit of originality than he deserves. Locke brought the doctrine of toleration out of the domain of theology, and placed it on the basis of political righteousness;^[433] he established it by common sense reasoning adapted to the English understanding; besides, he did this in the exercise of a peculiar and independent genius; and, what is a more important consideration, his contemporaries were prepared for his instructions by preceding struggles and by possessing already an instalment of legal toleration. Locke is to be distinguished from Busher, Goodwin, and Owen, and from Chillingworth, Hales, and Taylor. He comes more in a line with the first than with the second three names; but he did what they had none of them the power to do—he made the doctrine popular. A parallel may be drawn in this respect between the history of the principle of government non-interference with a man and his conscience, and the principle of government non-interference with commercial interests and the natural laws of demand and supply. Long after the discovery and illustration of the latter principle, a great statesman made plain to the common understanding of his fellow-countrymen what

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had been before apprehended by only a few philosophers. John Locke occupies a position in the history of toleration like that of Richard Cobden in the history of free trade.

After all, the Independents must be reckoned the chief and most influential of the early apostles of toleration, and to their rise and progress we shall direct attention in the following chapter.



CHAPTER XIV.

As Congregational Church existed in London so early as 1568. It consisted of poor people, numbering about 200, "of more women than men," who openly separated from the Establishment, and sometimes in private houses, sometimes in fields, and occasionally even in ships, held meetings, and administered the sacraments.^[434] Some of these early Independents were sent to Bridewell. In a declaration signed by Richard Fitz, the pastor, occurs the following brief statement of principles:—"First and foremost, the glorious Word and Evangel preached, not in bondage and subjection, but freely and purely; secondly, to have the sacraments ministered purely only, and altogether according to the institution and good word of the Lord Jesus, without any tradition or invention of man; and, last of all, to have, not the filthy canon law, but discipline only, and altogether agreeable to the same heavenly and almighty word of our good Lord Jesus Christ."^[435] In these quaint words of Richard Fitz, and his obscure brethren, lie folded up the great truth that the Christian religion is simply a moral power, based on a Divine foundation, not asking, because not needing, support from political governments, or aid from physical force. These humble men really believed that Jesus Christ established His empire upon the consent and not the fears of man, "and trusted Himself defenceless among mankind."^[435] Not caring for earthly sanctions, they threw themselves on the world with only Heaven for their protector. Through Christian faith they did what at the time they could not comprehend, being utterly unconscious of the importance of the act which they performed.

*Early
Congregational
Churches.*

This Church in London existed before the well-known Robert Browne appeared as the advocate of advanced Nonconformist views. In 1571 he was cited on that account before the commissioners at Lambeth; and ten years later the Bishop of Norwich, in a letter to Lord Burleigh, referred to him as a person "to be feared, lest if he were at liberty he would seduce the vulgar sort of the people, who greatly depend on him."

Burleigh said in reply:—^[437]

"I understand that one Browne, a preacher, is by your lordship and others of the Ecclesiastical Commission committed to the custody of the Sheriff of Norfolk, where he remains a prisoner, for some matters of offence uttered by him by way of preaching; wherein I perceive, by sight of some letters, written by certain godly preachers in your lordship's diocese, he hath been dealt with, and by them dissuaded from that course he hath taken. Forasmuch as he is my kinsman, if he be son to him whom I take him to be, and that his error seemeth to proceed of zeal, rather than of malice, I do therefore wish he were charitably conferred with and reformed; which course I pray your lordship may be taken with him, either by your lordship, or such as your lordship shall assign for that purpose. And in case there shall not follow thereof such success as may be to your liking, that then you would be content to permit him to repair hither to London, to be further dealt with, as I shall take order for, upon his coming; for which purpose I have written a letter to the sheriff, if your lordship shall like thereof."^[438]

1581.

Sir Robert Jermyn, in a letter to Burleigh (1581), alludes to Browne as a man who "had many things that were godly and reasonable, and, as he thought, to be wished and prayed for, but with the same there were other things strange and unheard." He further begged the Lord Treasurer to advise Browne to be more careful in his conduct, and to threaten him with sharp censure as an example to others, since he was but a mere youth in age and experience. The Bishop of Norwich, also, writing to the Lord Treasurer about this troublesome clergyman, observed "that Mr. Browne's late coming into his diocese, and teaching strange and dangerous doctrine in all disordered manner, had greatly troubled the whole country, and brought many to great disobedience of all law and magistrates—that yet, by the good aid and help of the Lord Chief Justice, and Master Justice Anderson, his associate, the chieftest of such factions were so bridled, and the rest of their followers so greatly dismayed, as he verily hoped of much good and quietness to have thereof ensued, had not the said Browne returned again contrary to his expectation, and greatly prejudiced those their good proceedings, and having private meetings in such close and secret manner that he knew not possibly how to suppress the same."^[439] Browne, at length, through the influence of his illustrious relative, succumbed to the ecclesiastical

Congregationalism
—Robert Browne.

authority which before he had daringly resisted, and became master of St. Olave's Grammar-school, in Southwark. His subsequent career covered him with disgrace. He had a wife with whom for many years he never lived, a church in which he never preached, and the circumstances of his death, like the scenes of his life, were stormy and turbulent.^[440] Whatever sympathy with some of Browne's principles might be felt by the Independents of the next age, they repudiated any connection with Browne's name, and held his character and history in the utmost abhorrence.

Browne's influence told considerably in the Eastern Counties, where a strong leaven of ultra-Protestantism has existed ever since the Lollard days. Even Kett's rebellion, often treated as a Roman Catholic outbreak, looks more like a peasants' war in aid of the Reformation than anything else. Bury St. Edmunds, where Brownism flourished, witnessed the death of Copping and Thacker, two Congregational martyrs, hanged in 1583. In Essex, a movement which looked like Congregationalism won some measure of sympathy from the upper classes, and even the wife of Sir Nicholas Bacon, Lord Keeper of the Great Seal, attended meetings held in Rochford Hall by Mr. Wright, who had been ordained in the Netherlands. Writing to Lord Burleigh, that lady observed, "I hear, them in their public exercises, as a chief duty commanded by God to be done, and also I confess, as one that hath found mercy, that I have profited more in the inward feeling knowledge of God his holy will, though but in a small measure, by such sincere and sound opening of the Scriptures by an ordinary preaching within these seven or eight year, than I did by hearing odd sermons at Paul's well nigh twenty year together."^[441]

It is a curious circumstance to find Lord Bacon's mother connected with a minister who maintained, as Wright did, that every pastor was a bishop, and that he should be chosen by his own congregation, opinions which constitute the essence of modern Congregationalism. From these opinions the ecclesiastical authorities sought to convert him by imprisonment; and with that forcible argument another was associated, which is so original that we cannot resist the temptation of quoting it. Mr. Barwick, a conforming clergyman, commended to Wright the Church of England as a church most admirable on account of its being free from the two opposite extremes of Popery and Puritanism. "God delights in mediocrity," says this logician, and

the logic is worth being noted for its curiosity: "Man was put in the *midst* of Paradise; a rib was taken out of the *midst* of man; the Israelites went through the *midst* of the Red Sea, and of Jordan; Samson put firebrands in the *midst*, between the foxes' tails; David's men had their garments cut off by the *midst*; Christ was hanged in the *midst* between two thieves."

Perhaps Henry Barrowe,—a lawyer of Gray's Inn, and in his young days a courtier,—of all men in the reign of Elizabeth, propounded the clearest views of Congregationalism. He strongly objected to forms of prayer, especially the Common Prayer Book; to the sacraments, as administered in the Church of England; to the ecclesiastical laws and canons; to the idea that the establishment was a true church; to the extent of the Queen's ecclesiastical supremacy, and to the abolition of the judicial law of Moses. He denied that it was lawful for any private person to intermeddle with the prince's office, and to reform the State without his good liking and licence; but he virtually admitted the right of private Christians to share in the regulation of ecclesiastical matters: for he expressly contended that the government of Christ's Church belongeth not to the profane or unbelieving, neither could it, he said, without manifest sacrilege, be set over parishes as they then stood in confusion, no difference being made between the faithful and unbelieving, all being indifferently received into the body of the Church; but over every particular congregation of Christ he concluded that there ought to be an eldership, and that every such congregation ought to aim at its establishment. [\[442\]](#)

Congregationalism
—Henry Browne.

In 1592 a Church was formed in Nicholas Lane. Spies were on the look out, and a wary doorkeeper admitted the little congregation as they stealthily dropped in one by one. Mr. Francis Johnson and Mr. Greenwood were of the number. The first of these rose and prayed for half an hour, and, opening his Genevan Bible, discoursed to the assembly on the constitution of primitive brotherhood. The brethren formed themselves into such a communion, and gave to each other the right hand of fellowship. Mr. Johnson was chosen pastor, after which he baptized seven persons. "But they had neither godfathers nor godmothers; and he took water and washed the faces of them that were baptized." He afterwards broke the bread, consisting of five white loaves, which, with a cup of wine, were distributed

1593.

amongst the members by Mr. Bowman and Mr. Lee, who had been elected deacons: after which a collection was made for the poor.^[443]

Not only in Nicholas Lane, but in Aldgate and Smithfield, were gatherings of this description, and especially in Islington, where meetings of persecuted Protestants had been held in Mary's reign. As the dew sparkled on the grass, as the birds twittered on the hedges, and as the sun bathed the landscape in golden light—the memories of the congregation in the Islington woods would go back to Roger Holland and his brother confessors, who on that very greensward, and under the shadow of those old trees, had studied their Bibles, and then been burned for doing so.

Barrowe and Greenwood were indicted at the Old Bailey, in 1593, for publishing seditious books, but from the examination preserved in the Egerton papers,^[444] it appears that the specific accusations against them related simply to religious opinions.

*Barrowe and
Browne.*

By a refinement of cruelty these poor men were conveyed to Tyburn in the death-cart—to receive a delusive respite under the gallows-tree—to be brought back again to Newgate—and when they had thought that the bitterness of death was past, to be a second time dragged to the place of execution, to return no more. This extraordinary proceeding, which at first looks like a piece of intentional barbarity, receives its explanation from a contemporary letter in the State Paper Office.

"The Parliament is to end this week. * * * There was a bill preferred against the Barrowists and Brownists, making it felony to maintain any opinions against the

ecclesiastical government, [which by the bishops' means did pass the Upper House, but found so captious by the Nether House, as it was thought it would never have passed in any sort, for that it was thought all the Puritans would have been drawn within the compass thereof. Yet by the earnest labouring of those that sought to satisfy the bishops' humours,] it is passed to this effect: That whosoever shall be an obstinate recusant, refusing to come to any church, and do deny the Queen to have any power or authority in ecclesiastical causes, and do, by writing or otherwise, publish the same, and be a keeper of conventicles also, being convicted, he shall abjure the realm within three months, and lose all his goods and lands; if he return

1609.

without leave it shall be felony. Thus have they minced it, as is thought, so as it will not reach to any man that shall deserve favour in a concurrence of so many faults and actions. The week before, upon the late conventicle you wrote of last, Barrowe and Goodman,^[445] with some others, were indicted, arraigned, and condemned upon the statute of writing and publishing seditious books, and should have been executed, but as they were ready to be trussed up were reprieved, but the day after, the Court House had shewn their dislike of this bill, were early in the morning hanged. It is said 'their reprieve proceeded of [a supplication made to the Lord Treasurer, complaining that in a land where no Papist was touched for religion by death, their blood (concurring in opinion touching faith with that which was professed in the realm) should be first shed. Desiring, therefore, conference to be removed from their errors by reason, or else for satisfaction of the world, touching their opinions, which was communicated by him to the Archbishop of Canterbury, who, notwithstanding, was very peremptory, so as the Lord Treasurer gave him and the Bishop of Worcester some round taxing words, and used some speech to the Queen, but was not seconded by any, which hath made him more remiss, as is thought. It is plainly said that their execution, proceeding of malice of the bishops, to spite the Nether House, which hath procured them much hatred among the common people affected that way.']^[446] * * * *

John Penry, another Congregational martyr—who uttered the following memorable words:—"If my blood were an ocean sea, and every drop thereof were a life unto me, I would give them all, by the help of the Lord, for the maintenance of my confession"—perished on the gallows for the advocacy of his opinions, as if he had been the worst of criminals, at a place in Southwark called St. Thomas-a-Watering. Roger Rippon, of the same religious profession as Penry, died in prison; and his friends, moved by intense sympathy with the sufferer, and by indignation against his unmerited fate, paraded before the house of Justice Young (the magistrate who had committed him) the coffin containing the sufferer's remains, on the lid of which appeared the following inscription:—"This is the corpse of Roger Rippon, a servant of Christ, and her Majesty's faithful subject; who is the last of sixteen or seventeen, which that great enemy of God, the Archbishop of Canterbury, with his High Commissioners, have murdered in Newgate within these four years, manifestly for the testimony of Jesus

Christ. His soul is now with the Lord, and his blood crieth for speedy vengeance against that great enemy of the saints, and against Mr. Richard Young, who in this and many the like points hath abused his power, for the upholding of the Romish Antichrist, prelacy, and priesthood."^[447]

Henry Jacob is a commanding figure in Congregational annals.^[448] Originally a clergyman in the county of Kent, he had written in defence of the Church of England, but afterwards, perhaps influenced by an answer to his book from the pen of Francis Johnson, a zealous separatist, he warmly espoused the cause of Nonconformity.^[449] To him has been attributed a tract, published in 1609, entitled: "An Humble Supplication for Toleration and Liberty to enjoy and observe the Ordinances of Jesus Christ in the Administration of His Churches in lieu of Human Constitutions." In this publication it is maintained, that "our Lord Jesus hath given to each particular church or ordinary congregation this right and privilege, namely, to elect, ordain, and deprive her own ministers; and to exercise all the other parts of lawful ecclesiastical jurisdiction under Him." Toleration is sought in order that "each particular church may put in execution this her particular privilege;" but, the writer adds: "We do humbly beseech your Majesty not to think, that by our suit, we make an overture and way for toleration unto Papists, our suit being of a different nature from theirs. The inducements thereof, such as cannot conclude aught in favour of them, whose doctrine is heresy, and a profession directly contrary to the lawful state and government of free countries and kingdoms, as your Majesty hath truly and judiciously observed."^[450]

*Congregationalism
—Jacob.*

1632, May.

In other tracts which bear Henry Jacob's name,^[451] he explained his views of Independency, and in accordance with them he founded a church in the year 1616. The ceremony connected with the institution is described as consisting of fasting and prayer, and the joining together of the hands of the members as they solemnly covenanted to walk together in all God's ways and ordinances, according as He had already revealed them, or should further make them known. Jacob was succeeded in the pastorate of the Congregational Church by John Lathrop,^[452] who suffered from the tyranny of the High Commission Court. With reference to the proceedings carried

on against him and certain members of his flock, some fresh information may be gathered from one of the Rawlinson MSS. As it illustrates both the extent to which private meetings of the Separatists were carried, and the interruption which they experienced, we will here introduce a few passages from that curious document.

On the 2nd of May, 1632, certain conventiclers, as they are called, were taken at the house of Barnett, a brewer's clerk, residing at Blackfriars.^[453] At first John Lathrop, who is described as their minister, did not appear, "but kept himself out of the way awhile; therefore the man of the house wherein they were taken, was first called." He was asked when he last attended the parish church? He replied that he was present in the parish church at the time when, according to the allegation, the meeting was held at his house, but that his wife did not then attend worship with him. The accused persons were all required to take the *ex officio* oath, but they excused themselves from doing so at least for the present, and requested time for further consideration of that subject. Archbishop Abbot addressed them as follows:

Persecution of
Congregationalists.

"You shew yourselves most unthankful to God, to the King, and to the Church of England, that when (God be praised) through his Majesty's care and ours you have preaching in every church, and men have liberty to join in prayer and participate of the sacraments, and have catechisings, and all to enlighten you, and which may serve you in the way of salvation, you in an unthankful manner cast off all this yoke, and in private unlawfully assemble yourselves together, making rents and divisions in the Church. If anything be amiss, let it be known; if anything be not agreeable to the Word of God, we shall be as ready to redress it as you; but whereas it is nothing but your own imaginations, and you are unlearned men that seek to make up a religion of your own heads, I doubt no persuasion will serve the turn, we must take this course; you are called here, let them stand upon their bonds, and let us see what they will answer; it may be they will answer what may please us." Laud, then Bishop of London, proceeded to observe, in a very characteristic manner—"It is time to take notice of these; nay this is not the fourth part of them about this City. You see these came of set purpose; they met not by chance; they are desperately heretical; they are all of different places, out of

1632, May.

Essex, St. Austin's, St. Martin's le Grand, Buttolph's, Aldgate, Thisleworth, (Isleworth) St. Saviour's; let these be imprisoned. Let me make a motion. There be four of the ablest men of them; let these four answer and be proceeded against, and the while if the rest come in, they shall be received, but if they will not, I know no reason why four or five men should not answer for all."

When Lathrop was present before the Commissioners, the Bishop, after having asked some very insulting questions, demanded, "Where are your orders?" to which Lathrop replied—"I am a minister of the Gospel of Christ, and the Lord hath qualified me." "Will you lay your hand on the book, and take your oath?" enquired the Court; to which question the minister returned a distinct negative. The following curious conversation between the Commissioners and certain accused parties is worth being transcribed. Eaton, together with "two women and a maid," appeared, and were asked by the Court why they were assembled in a conventicle, when others were at church?

Eaton. "We were not assembled in contempt of the magistrate."

*Persecution of
Congregationalists.*

London. "No! it was in contempt of the Church of England."

Eaton. "It was in conscience to God (may it please this Honourable Court); and we were kept from church, for we were confined in the house together by those that beset the house, else divers would have gone to church, and many came in after the sermons were done."

London. "These were first discovered at Lambeth, and then at other places, and now taken here; they have in their meetings books printed against the Church of England."

Archbishop of Canterbury. "Where were you in the mornings before you came hither to this house?"

[*Eaton.*] "We were in our own families."

Canterbury. "What did you?"

Eaton. "We read the Scriptures, and catechised our families; and may it please this honourable Court to hear us speak the truth, we will shew you

what was done, and (free us of the contempt of authority) we did nothing but what you will allow us to do."

London. "Who can free you? These are dangerous men; they are a scattered company sown in all the City, and about St. Michael of the Querne, St. Austin's, Old Jury, Redriffe, and other remoter places. Hold them the book."

Eaton. "I dare not swear, nor take this oath, though I will not refuse it; I will consider of it."

Sir Henry Marten. ^[454] "Hear, hear! You shall swear but to answer what you know, and as far as you are bound by law. You shall have time to consider of it, and have it read over and over till you can say it without book if you will; when you have first taken your oath that you will make a true answer."

Eaton. "I dare not; I know not what I shall swear to."

1632, May.

King's Advocate. ^[455] "It is to give a true answer to articles put into the Court against you, or that shall be put in touching this conventicle of yours, and divers your heretical tenets, and what words and exercises you used, and things of this nature."

Eaton. "I dare not."

Archbishop of Canterbury. "What say you, woman?"

Sara Jones. "I dare not worship God in vain."

Bishop of London. "Will you not swear and take an oath when you are called to it by the magistrate?"

S. Jones. "Yes! I will answer upon my oath to end a controversy before a lawful magistrate."

Earl of Dorset. "What dost thou think, woman, of these grave Fathers of the Church, that these here be not lawful magistrates?"

[*S. Jones.*] "I would do anything that is according to God's word."

[*Richard Neile*] *Archbishop of York.* "Would you? then you must take your oath now you are required by your governors; you must swear in truth, in judgment, in righteousness."

S. Jones. "Yes, and they that walk in righteousness shall have peace; but I dare not forswear myself."

*Persecution of
Congregationalists.*

Canterbury. "Come, what say you?"

Pennina Howes (a maid). "I dare not swear this oath till I am better informed of it, for which I desire time."

Sir Henry Marten. "Must you not be ready to give an account of your faith?"

P. Howes. "Yes! I will give an answer of my faith if I be demanded, but not willingly forswear myself."

King's Advocate. "What, will you take your oath, good woman?"

Sara Barbone. "I dare not swear; I do not understand it; I will tell the truth without swearing."

Archbishop of Canterbury. "Take them away."

So they were all committed to the New Prison. And it was appointed that at the next Court, being a fortnight after this, because of Ascension Day, they should be brought again to the Consistory at St. Paul's, because of trouble and danger in bringing so many prisoners as these were over the water to Lambeth.

These people were immediately committed to the New Prison; and on the 8th of the same month (May) they were brought up again before the same tribunal, when again they declined to take the obnoxious oath. On the 7th of June, it was reported to the Court that some of the conventiclers had escaped; and on the 17th more persons were arraigned, who had been seized at a meeting held in a wood near Newington, in Surrey. These also refused to be sworn, after which the Bishop of London and the Archbishop of Canterbury repeated their expostulations. The High Commission, on the 21st, had brought before it Ralf Grafton, an upholsterer, dwelling in Cornhill, and reported to be a rich man, charged with being a principal ringleader of "those conventiclers that met at Blackfriars." Upon his declaring, "I dare not take the oath, and I am no ringleader of any to evil," the Archbishop said: "You met without law; you had no authority; *pœna ad paucos, metus ad omnes*; wherefore, the Court, for his contempt in refusing to take the oath, set a fine of two hundred pounds upon him, and committed

him to prison." Grafton replied: "I have bail here ready, if you please to take it; I do tender it to you." Upon this the Bishops exclaimed: "No; away with him to prison; if he come not in by the day of mitigation, let the fine stand!"

[\[456\]](#)

In connection with these notices of persecution endured by frequenters of conventicles, we may present the following picture of their method of worship, as depicted by one of their enemies in that style of minute and graphic detail which so characteristically marks the narrative of events given by common people in the sixteenth and seventeenth centuries:—"To shew the manner of their assembling, or dissembling, in that house where they intend to meet, there is one appointed to keep the door, for the intent to give notice if there should be any insurrection, warning may be given to them. They do not flock together, but come two or three in a company. Any man may be admitted thither, and all being gathered together, the man appointed to teach stands in the midst of the room, and his audience gather about him. He prayeth about the space of half an hour; and part of his prayer is, that those which came thither to scoff and laugh, God would be pleased to turn their hearts, by which means they think to escape undiscovered. His sermon is about the space of an hour, and then doth another stand up, to make the text more plain; and at the latter end he entreats them all to go home severally, lest the next meeting they should be interrupted by those which are of the opinion of the wicked. They seem very steadfast in their opinions, and say, rather than they will turn, they will burn."[\[457\]](#)

1630.

Though certain Independents of the seventeenth century disavowed all connection with the Brownists, that name was often applied to them; and in some instances it is difficult to decide whether by the title we are to understand persons whose origin might be traced to the teaching of Cecil's relative, or persons who had been made converts by more recent apostles of Independency.[\[458\]](#) Allusions are discovered in the Corporation Records of Yarmouth for the years 1629 and 1630 to Brownists then living in that town. The Earl of Dorset, writing in the latter of these years to the bailiffs, aldermen, and commonalty, after a reference to the party spirit prevalent in the borough, observes: "I should want in my good care of you if I should not let you know that his Majesty is not only informed, but incensed against

*Independents and
Brownists.*

you for conniving at and tolerating a company of *Brownists* amongst you. I pray you remember there was no seam in our Saviour's garment. *Root out that pestiferous sect forth from your town; they are as dangerous to the soul as the plague is to the body.* But I know not whether in this you be traduced, as well as (I am sure) you have been in other things. They are arrows shot forth from the same quiver, and drawn by the same hands; and perhaps the mark aimed at through that false perspective is but to place in his Majesty an ill opinion of you. If you be innocent, let me know, and I shall endeavour to clear you. Howsoever, I pray, give testimony of your obedience and good zeal to religion in *chasing those companions from your society. God cannot prosper you while they live amongst you, and you willingly protect and harbour them;* and I am sure it will alienate his Majesty's respect from you and enforce him to take some course against you, when you shall so neglect your duties in that kind."^[459]

The Corporation gave heed to the Earl's exhortation, and in reply, dated the 13th of September, 1630, manifested abundant zeal in rooting out schism.

1630.

"Concerning those *separatists* by your lordship mentioned, we must acknowledge that there be amongst us still some persons of that sect, to the number of thirty, and not above; the most of them women; not any one of them ever yet bearing the meanest office amongst us, and, one only excepted, not any one of ability to be a subsidy man. What courses we have taken from time to time for the suppressing of them, the Lord's Grace of York, whilst he was our diocesan, could bear us record, to whom (as we have since done to our present diocesan, as also to the Lord Bishop of London) we tendered an impartial list of all their names, without favour or affection, craving his lordship's aid for their reformation. The ecclesiastical courts have from time to time received presentments of them. The judges of assize have been solicited by us. What authority soever the law has put into our hands, we have not spared to execute to the uttermost, by indicting them constantly at our public sessions, by fining them according to statute, by imprisoning the ringleaders amongst them, and by *forcing some of them to avoid, not only the place, but the kingdom.* If, beyond this, we could be directed by and to any course whereby we might free ourselves of them, we should not only willingly, but thankfully embrace it. In the meantime, vouchsafe the

Independents and Brownists.

acceptance of this our humble protestation, that, as for ourselves, being the representatives of the town, we are, all and every one of us, free from faction and schism, either in religion or discipline, and every ways conformable to the doctrine and government of this Church, whereof we profess ourselves to be members."[\[460\]](#)

In connection with this reference to the Brownists and the poor Separatists of Yarmouth, (for amongst them, it is said, there was not "one subsidy man,") it may be observed that two classes of Independents are distinctly visible at that period. As some Independents, mostly the obscure, went further than others in their doctrine of toleration; so some Independents, principally of the same class, went further than others in the doctrine of voluntaryism. Any broad and philosophical exposition of that now much discussed principle we have not been able to discover in the writings of that day; others, better acquainted with the immense pamphlet literature of the times, may prove more successful. But, at an earlier period, in a Confession of Faith published in 1616, there occurs the following simple and explicit statement on the subject:—"We believe that tithes for the pastor's maintenance under the Gospel are not the just and due means thereof. Howbeit, yet we do not think these tithes absolutely unlawful, if they remain voluntary; but when they are made necessary we think them not to be so lawful. The same do we judge also of whatsoever other set maintenance for ministers of the Gospel is established by temporal laws. We grant, that for the minister's security, such established maintenance is best; but for preserving due freedom in the congregation, sincerity in religion, and sanctity in the whole flock, the congregation's voluntary and conscionable contribution for their pastor's sustenance and maintenance is, doubtless, the safest and most approved—nay, it seemeth the only way; wherewith the Apostles caused their times to be content, neither did they care for other order therein; which certainly they would and should have done if other order had been better. Only they are careful (and that very religiously) to command all churches of conscience and duty to God to give (not sparingly, but liberally, and not as alms, but as duty), for upholding, advancing, and countenancing of the holy worship and service of God, which is either much strengthened or weakened, much honoured or abased among men, according as is the pastor's maintenance."[\[461\]](#) And in

1630.

*Independents and
Brownists.*

other tracts, largely quoted by Mr. Hanbury, in his "Memorials," there are passages expressing ideas on the subject of ministerial support in advance of those which were entertained by more distinguished Independents. The latter countenanced and advocated the acceptance of tithes; but in a Puritan tract, written before, though not published until 1644, notice is taken of a very sharp attack on the tithe system by the sect commonly called Brownists or Separatists. It is objected, say the Presbyterian authors, "that we are not maintained according to the direction Christ hath given in His Testament; but our maintenance is Jewish and anti-Christian." "Our ministers receive maintenance from all sorts of men in their parish without difference." This they call "an execrable sacrilege, and covetous-making merchandize of the holy things of God; a letting out of ourselves to hire, to the profane for filthy lucre." Tithes, in particular, are denounced by these Nonconformists, but the principle of their objection goes to a much deeper point than to touch or remove these particular imposts; it also cuts at the root of all kinds of ministerial support, except that which is exclusively voluntary.^[462] In another publication, written by Burton against his late fellow-sufferer William Prynne, there is a decided assault both on tithes and on parishes; the former being pronounced unapostolic, and the latter a human and political institution. But, whilst maintaining that Christ will provide for His faithful and painful ministers, this champion of voluntary churches puts in a caveat in favour of the state appointing some kind of "maintenance for the preaching of the word, as is done in New England to those who are not members of Churches."^[463] At a later period, Independents objected to tithes, yet they accepted support from the Government in another form.

Upon the opening of the Long Parliament, Congregationalism took deep root, and afterwards spread its branches over East Anglia. As the Dutch church in the city of Norwich, the Dutch aspect of Yarmouth Quay, and the settlement of a colony of Flemings in the village of Worstead, shew that there was an early intercommunication between the inhabitants of the Low Countries and the county of Norfolk; so also the connection between the English Independents in Holland and the Nonconformists of the eastern counties indicate that there was intercourse between the people of the opposite shores at a later period, in relation to Puritanism and

Independency. Links of union appear in the persons of the Congregational pastors, Robinson and Bridge, who each resided one part of his life in Norfolk and another in Holland.

The oldest Congregational Church in the county of Norfolk was formed in Yarmouth, and consisted of persons who had just returned from Holland, where they had been in exile for conscience' sake.

"Inchuraching," as it is quaintly termed, created much solicitude, and the Yarmouth people wrote to Rotterdam for sanction and advice before taking any decided step. In 1642, a formal document of dismissal was sent; after which it became an enquiry, whether the Church should choose Yarmouth or Norwich as the place of assembly. Unable to settle this question, they deferred it for a time, and simply resolved upon "inchuraching, judging ten or twelve to be a competent number." Soon afterwards, an answer came "that Yarmouth was safer for the present," and a Church covenant having been adopted and ratified at Norwich, the people unitedly chose Mr. Bridge as their pastor. The Independents of Norwich held religious worship by themselves in some private house, and joined with the townspeople of Yarmouth only in the celebration of the Lord's supper. But at length, becoming tired of their journeys in passing to and fro, the former constituted themselves a distinct community. [\[464\]](#)

The Presbyterians at Yarmouth betrayed some jealousy of their Independent neighbours; for Sir Edward Owner, an alderman and justice of the peace, who represented the town in the Long Parliament, waited, in company with the Presbyterian Incumbent of the parish of St. Nicholas, upon Mr. Bridge, to express displeasure at his having gathered a Church in what was called the "Congregational way." After this occurrence, the Church resolved "that for a time they would forbear to receive any into their fellowship, until they gave notice to the town that they could forbear no longer."

*Presbyterians and
Independents.*

Mr. Bridge, when elected to the pastorate of this new community, held the office of town preacher in Yarmouth, and was also a member of the Assembly of Divines. He had preached before the House of Commons in February, 1643; and it was in the May of the same year, whilst at home, during a temporary suspension of his Westminster duties, that his brethren called him to be their Bishop. Notwithstanding his position at Westminster

and his Congregational office at Yarmouth, the Corporation retained him in his municipal chaplaincy and allowed him fifty pounds a year during his absence. The continuance of this connection no doubt led to the interference of the bailiffs with his pastoral relations, and explains the effect produced by the interview; but the Church, notwithstanding this circumstance, speedily asserted its independence, and by doing so did not at all affect the public position of their pastor, or diminish the influence which he exercised over his fellow-townsmen.



CHAPTER XV.

Charles went to Oxford after the battle of Edge Hill, and there, during the civil wars, set up his head quarters. Occasionally he was absent with the army, but that central city, which was so convenient for the purpose in many respects, he made his fortress and his home. It underwent great alterations. Fortifications were contrived by Richard Rallingson, who also drew "a mathematical scheme or plot of the garrison;" and in an old print, by Anthony Wood, may be traced the zig-zag lines of defence, which were drawn on every side about the city.^[465] Gownsmen transformed themselves into cavaliers, and exchanged college caps for steel bonnets. Streets echoed with the tramp of war horses and the clatter of iron-heeled hoots. Wagons, guarded by pikemen, and laden with ammunition and stores, rolled through the picturesque gateways; and valiant and loyal subjects rallied around their Sovereign in the hour of his need, ready to shed their last drop of blood beneath his standard. The colleges melted down their plate to supply military chests; and Magdalen especially stood true to the King's cause. Rupert took up his residence there, and the sound of his trumpets calling to horse disturbed the silence of the beautiful cloisters. Whilst most of the Fellows, being Divines, could only help with their prayers and their purses, one of them, who was a doctor of civil law, raised a troop of undergraduates, and fell fighting in his Majesty's service.^[466] Amidst the excitement which followed the King's turns of fortune, he gathered together the relics of his court, and established in Christ Church Hall a mock parliament, which was intended to rival the real one at Westminster. Charles had grasped at absolute power, now nothing remained but the shadow of dominion. At Oxford he but played at kingship.

The Royalist Army.

In the Royal army, of which, perhaps, the worst portion might be found at Oxford, the principal officers were men of high spirit and courage, with a strong dash in them of old English chivalry; but, with some of the virtues of mediæval knighthood, they possessed a more than ordinary share of its vices. In retired parts of the country, especially in

The Royalist Army.

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Cornwall, yeomen and peasants, of pure life and artless manners, followed Royalist commanders with a sort of feudal devotion; but it must be admitted, with regard to most of the regiments who fought for the King, that the men in the ranks were worse than those in command—for, wanting that tone of manners which marks the well-bred gentleman, they had nothing to check the ebullitions of coarse impiety and brutal ruffianism. We are not concerned to vindicate the soldiers on the other side. No doubt they were chargeable with excesses, some of which have been indicated in these pages. Irreligious people mixed with Puritans; tapsters and serving men appeared among patriots; but, whatever the drawbacks on the reputation of the Parliamentary forces, there is but little doubt that the moral character of the men on the other side was far worse. Indeed, this is virtually admitted by Royalists themselves; for Clarendon paints dark pictures of the debauchery of the Lords Goring and Wilmot; and Chillingworth, in a sermon preached at Oxford in the autumn of 1643, while charging the enemy with Pharisaism, hypocrisy, falsehood, want of justice, and pretence of reformation, is also unsparing in his reproofs of Royalist profanity, irreligion, and blasphemy.^[467]

Fiery resentment burned in both camps, and was industriously fanned by the newspapers of the day. Parliamentary journals had nothing but what was good to say of their own party, and nothing but what was bad of their adversaries. Led away by idle rumours, editors and correspondents made mountains of molehills, and often stated as facts what only existed in their own distempered brains; all this the scribblers for the Oxford press paid back with interest.

Reports were industriously circulated throughout the country affecting the religious character of the King and court, upon the tender point of popish sympathies. An Irish minister, who had spent seven weeks at the University in the summer of 1643, afterwards declared that Irish Papists, who had committed atrocious barbarities in the rebellion, were received at court with signal favour; that Franciscans and Jesuits encouraged the soldiers to fight against the Roundheads, and were themselves enrolled as cornets; that Roman Catholic worship was performed in every street, and, *he believed*, that for every single sermon in the city there were four masses.^[468] How much of truth there might be in these broad accusations, it is impossible for us to

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determine; but the adage no doubt is applicable here, that where there is much smoke there is some fire.^[469]

Charles met all such charges with recriminations. He felt shocked, he said, at the impieties and profanations which were committed in sacred places; at the countenance which was given to ignorant and scandalous laymen who had usurped the ministry; at the suspension and reviling of Common Prayer which had become so prevalent; at religion being made the cause and ground of rebellion; and at the destruction of discipline in the "most unblemished Church of Christendom."^[470] Nothing could appear right in his estimation which the Parliament did, and even their ordinances for national fasts were met with counter ordinances for fasts at another season. Prelatists and Puritans would not, even for the sins of the nation, fast on the same day; for as at Westminster one party commanded that the last Wednesday in the month should be devoted to humiliation and prayer, at Oxford the other party denounced that appointment, and substituted the second Friday. The Royalists threatened to sequester the estates of such clergymen as would not obey their command; and, amidst all this most unseemly strife, we hear Thomas Fuller exclaiming, in his "Meditations on the Times," "Alas! when two messengers, being sent together on the same errand, fall out and fight by the way, will not the work be worse done than if none were employed? In such a pair of fasts, it is to be feared that the divisions of our affections rather would increase than abate God's anger towards us. Two negatives make an affirmative. Days of humiliation are appointed for men to deny themselves and their sinful lusts. But do not our two fasts more peremptorily affirm and avouch our mutual malice and hatred? God forgive us: we have cause enough to keep *ten*, but not care enough to keep *one* monthly day of humiliation."^[471]

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To rebut the charge of popery, the King publicly received the sacrament at the hands of Archbishop Ussher, in Christ Church, at the same time making a solemn protestation, that he had prepared his soul to be a worthy receiver, that he derived comfort from the blessed sacrament, and that he supported the true reformed Protestant religion, as it stood in its beauty in the days of Elizabeth, without any connivance at popery. He imprecated, in conclusion, Divine wrath upon himself, if his heart did not join with his lips in this protestation.^[472]

For his conduct on this occasion he is accused of hypocrisy, because a few days afterwards he agreed to a truce with Ireland, and to the toleration of Papists in that country. To grant such a truce and such a toleration would not in the present day be deemed inconsistent with the sincerest Protestantism; but the matter was otherwise regarded at that time, and most advocates of religious liberty then denied the privilege to Roman Catholics, because they knew that Catholics would deny the privilege to them. Indeed, they reckoned such persons no better than social incendiaries, and incorrigible rebels against constitutional government; and, however unreasonable it may seem to us, they considered that to allow any scope for popish worship was to connive at the practices of popish treason. Charles himself was by no means prepared to place the toleration of Roman Catholics on its righteous grounds. He was willing, when it served his purpose, to declare himself of one mind with those who condemned all religious freedom; and he must have wished the declaration made by him, upon receiving the Lord's supper from the hands of Ussher, to be understood as meaning that he would not tolerate popery at all. Therefore, to proclaim toleration to Irish Catholics immediately after this declaration could not but lay him open to the charge of hypocrisy on the part of his contemporaries. But at the same time we have no doubt that his expression of attachment to the Protestant religion as it stood in the days of Elizabeth, understanding by that expression a religion both anti-papal and anti-puritanical, was perfectly sincere. Prelacy was an essential principle in the reformed religion of Charles; and with prelacy were associated in his mind forms of worship which many of his subjects pronounced to be "flat popery." His notions of reformation, perhaps, mainly hinged on a separation from Rome, with the abolition of monachism and the removal of certain gross abuses which had been prevalent in the mediæval church. He inherited, in fact, the Protestantism of the Tudors: but at the same time he had none of the magnanimity of Elizabeth, none of that religious patriotism which made her the idol of her subjects, none of that indignation against popish wrongs and cruelties, which she so strongly felt and expressed—as, for example, when she dressed herself in deep mourning to receive the gay French ambassador after the St. Bartholomew massacre:—in short, Charles had none of that spirit which made Elizabeth appear, without any tinge of hypocrisy, so much more of a Protestant than she really was. And we may add, that he had a trick of saying and doing

The King at Oxford.

things with a smooth artificial gravity which awakened suspicion, so that even when really honest he found it difficult to obtain credit for sincerity.

It is remarkable that we do not find any High Church Bishops with the King at Oxford. Even Skinner, Bishop of the diocese, had retired from the city to the rectory of Taunton. The absence of others may be attributed to personal restraint, or the dangers of travelling in a time of civil war, or a sense of duty towards their scattered flocks, or a disinclination to throw themselves into a military camp. But some other prelates and clergymen of a different character come under our notice, as present at Oxford at this critical period.

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Bryan Duppa, Bishop of Salisbury—whose fine face and silvery locks, set off to advantage by the robes of the Garter, may be seen in his portrait on the walls of Christ Church—upon being stripped of his episcopal revenues waited on his Majesty, and was entrusted by him with business of the greatest importance. Archbishop Ussher preached before the court, carried on his literary labours in the University, and, as an opponent of the toleration of Papists, took part in a discussion held in the royal presence upon that subject. Soon afterwards he further offended the Roman Catholics by a discourse from the words of Nehemiah, iv. 11:—"And our adversaries said, they shall not know, neither see, till we come in the midst among them, and slay them, and cause the work to cease." In this discourse he contended, that no dependence could be placed on Romanists, and that on the first opportunity they would act towards the Protestants of England as they had recently done towards the Protestants of Ireland. He also preached sermons to his Royalist auditory in a tone of remarkable fidelity and earnestness, dwelling upon the folly of expecting that God would prosper the cause of those who provoked Him to anger by the dissoluteness of their lives. [\[473\]](#)

Bishops at Oxford.

Perhaps Jeremy Taylor also might be found at Oxford, after having lost the rectory of Uppingham, in Rutlandshire. Wood says that he preached before the King, and followed the Royal army in the capacity of a chaplain; and probably it was during this part of his life that he reaped some of those military allusions which we find in his sermons. As, for example, when he compares the man who prays in a discomposed spirit, to him that sets up his closet in the outquarters of an army, and chooses a frontier garrison to be wise in: and when he speaks of the poor soldier, standing in the breach,

"almost starved with cold and hunger," "pale and faint, weary and watchful," and of the same person in his tent by dim lantern light, having a "bullet pulled out of his flesh, and shivers from his bones, and enduring his mouth to be sewed up, from a violent rent, to its own dimensions."^[474]

Dr. Thomas Fuller, we may add, after being deprived of his preferment at the Savoy, and leaving behind him his library, found refuge in Lincoln College, and preached before the King; the losses which this cheerful Divine suffered at the time leading him to observe, with his accustomed humour, "that his going to Oxford cost him all that he had, a dear seventeen weeks compared with the seventeen years he spent in Cambridge." Whilst Fuller tarried in the former University, there arrived Lord Hopton, an eminent Royalist officer of moderate opinions and of a pacific disposition. The ejected minister of the Savoy became a chaplain to the regiment of this brave soldier and sincerely religious man, and he hoped by filling this office to wipe off the stain of disaffection with which his enemies had endeavoured to spot his fame. He accompanied Hopton to the west, where he accepted a nominal chaplaincy to the infant Princess Henrietta, who was born at Bedford House, in the city of Exeter, on the 16th June, 1644.^[475]

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Another eminent churchman was now at Oxford. William Chillingworth, after the raising of the siege of Gloucester, left the construction of his Roman *testudines*, and more befittingly employed himself in preaching before the University, and in writing polemical tracts, especially one, entitled "The Apostolical Institution of Episcopacy." This publication, which was not answered for years afterwards, is very characteristic of its author, and takes a ground of defence for the Church of England not at all agreeable to high Prelatists; for he reduces Episcopal government to the smallest dimensions, specifying its essence to be no more than the appointment of one person of eminent sanctity, to take care of all the churches in a diocese—his authority being bounded by law and moderated by assistants. Even this scantling of rule he seems to defend rather than enforce—stating as the ground of adopting it, that there is *no record of our Saviour against it*, that it is *not repugnant* to the apostolic government, and that it is *as compliable* with the reformation of the Church, as any other kind of polity.^[476] Chillingworth did not long survive his employment at Oxford; and the short remaining

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history of his life is so curious, so illustrative of the religious aspects of the war, and of the oddities of people engaged in it, that we venture to transfer it to these pages.

He was taken prisoner in Arundel Castle; whither, in the month of January, 1644, he had repaired, to recover from an indisposition brought on by the inclemency of the winter. As he was not fit to travel to London with the captured garrison, the victorious Parliamentarians removed the distinguished Episcopalian to Chichester, a favour for which he was indebted to Mr. Cheynell, whose story is curiously entwined with his own. Cheynell, a rigid, zealous Presbyterian, "exactly orthodox, and very unwilling that any should be supposed to go to heaven but in the right way," had been ejected from his living in Sussex by the Royalists, and happened to be at Chichester when Chillingworth reached it as a prisoner. With sympathy for his old antagonist, Cheynell procured for him lodgings in the bishop's palace. Chillingworth, who had never been violent enough to please the Royalists, was infamously denounced by one of them; but Cheynell defended his reputation, guarded his health, and, as he informs us, took care of "something more precious than either, to wit, his beloved soul." Yet he wearied him with interrogations and arguments about King and Parliament, Prelate and Puritan. "I desired," he says, "to know his opinion concerning that liturgy, which had been formerly so much extolled, and even idolized amongst the people; but all the answer that I could get was to this purpose, that there were some truths which the ministers of the gospel are not bound, upon pain of damnation, to publish to the people; and, indeed, he conceived it very unfit to publish anything concerning the Common Prayer Book or the Book of Ordination for fear of scandal." "When I found him pretty hearty one day, I desired him to tell me whether he conceived that a man living and dying a Turk, Papist, or Socinian; could be saved." No doubt the question was so pointed, on account of the dying man's reputation for latitudinarianism, or as he believed it to be, charity, and in this respect Chillingworth was consistent to the last. "All the answer that I could gain from him," says Cheynell, "was that he did not absolve them, and would not condemn them." It is pleasant amidst all this gossip, and much more of the same description, to find Cheynell telling his old friend and controversialist that he prayed for him in private, and asking him whether he desired public

intercession as well. He replied, "Yes, with all his heart, and he said withal, that he hoped he should fare better for their prayers."^[477]

After Chillingworth's death, Cheynell had the corpse laid out in a coffin covered with a hearse-cloth. The friends of the deceased were entertained, according to their own desire, with wine and cakes. Those who bore his remains to the grave were Episcopalians; and—as a further touch of description to illustrate those times—it may be added that, according to the custom of the country, they had each a bunch of rosemary, a mourning ribband, and a pair of gloves. Different opinions were expressed as to where the churchman ought to be interred. It was at last decided in favour of Chichester, liberty being granted to "all the malignants" to attend the hearse. When they came to the grave, Cheynell, as he held in his hand what he called the "*mortal* book" of the great Protestant advocate—the very book which has received the praises of all generations since as *immortal*—proceeded with strange infatuation to denounce it in terms of the most violent abuse, after which he flung the volume into the open grave.^[478]

Clergy at Oxford.

Charles, whilst remaining at Oxford, had amongst the Episcopal clergy other staunch friends residing elsewhere. Of this number was John Barwick, a Fellow of St. John's, Cambridge,^[479] who acted as chaplain to Bishop Morton during the civil wars, and who continued with him as long as he remained in Durham House. This he did, his biographer tells us, for the express purpose of being serviceable to the King; concealing himself there "as in a great wood," carrying on a private correspondence betwixt London and Oxford, conveying, on the one hand, to the loyalists his Majesty's orders and commands, and, on the other hand, to his royal master, what he could pick up of the "designs and endeavours of the rebels." Resolving to tell no lies, but rather "with silence to answer all captious and ensnaring questions," he yet clandestinely wrote and received letters in cypher, the key to which he carefully kept. The letters were slid in by stealth, amidst pedlar's wares, and carried to and fro, "as it were through a lattice, and enveloped in mist." He employed adventurous women to disperse everywhere, among friends and foes, books favourable to the Royal cause; such emissaries trudging on foot, receiving the books from bargemen on the Thames, and distributing them wherever they had opportunity. Letters were

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sometimes sewed in the covers of volumes, and secret marks were given to notify their insertion. When the Royal cause became desperate, and the King was shut up "as in a net within the walls of Oxford," he continued to write to Barwick to do what he could, especially by securing, through favour of the Parliamentary authorities, those individuals for his personal attendants, upon whose faithfulness his Majesty could depend. These notices, extracted from "Barwick's Life"—not, on the whole, a very trustworthy book, though accurate enough, no doubt, in reference to his contrivances and intrigues in favour of the King—throw an interesting light upon a great deal which was clandestinely going on at the time in the royal service.



CHAPTER XVI.

The Long Parliament, almost from the beginning, took ecclesiastical affairs entirely into its own hands. It assumed control over church property, not, indeed, touching the rights of Puritan patrons, but interfering to a large extent with those advowsons and presentations which belonged to High Churchmen.

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As time rolled on, and especially when the war began, not only rights of this description which had belonged to Royalists were forfeited entirely; but we may state in passing, that a wholesale sequestration of property followed, it being then enacted that the estates real and personal of Bishops, Deans and Chapters, and other persons, who had either taken up arms against the Parliament, or *contributed aid or assistance* to such as did, should be seized, and employed for the benefit of the Commonwealth.^[480] Such nets swept within their meshes an abundance of spoil. Ecclesiastical corporations and Royalist nobles, squires, and clergymen, suffered the deprivation not only of their ancient privileges, but of their property and possessions. One forfeiture in particular may be mentioned, illustrative of the control which Parliament assumed over the benefices of the Church. An ordinance appeared commanding the Archbishop of Canterbury to collate to benefices such persons, and such persons only, as were nominated by Parliament.^[481] For disobedience to this ordinance he was the following month wholly suspended from the duties and privileges of his office. The temporalities of the archbishopric were claimed by the High Court of Parliament, which ordered that Edward Corbet, a Puritan clergyman, whom Laud had refused to collate, should be by the Vicar General inducted to the living of Chartham, in Kent, a benefice in the Archbishop's gift. The revenues of Deans and Chapters were collected and administered by committees, who paid such sums to such persons for such purposes as Parliament might appoint. The system of pew-rents adopted in some places, like everything else in the Church of England, now came under Parliamentary control. Numerous benefices had been vacated through the death or the ejection of incumbents. How were the vacancies to be filled up? In some instances returned refugees, who had suffered in the days of

Laud, were instituted to the vacant benefices.^[482] Scotch Divines, and ministers of other Protestant Churches, were also declared eligible for appointment. At the same time Episcopal ordinations were not nullified, and the validity of all Presbyterian ordinations, as a matter of course, was acknowledged by a Presbyterian Parliament.

The Committees for *scandalous* ministers had early in 1643 been followed by a Committee for *plundered* ministers, that title being used to designate clergymen who had been ejected from their livings by the Royal army. The Committee for plundered ministers provided them with relief; and the instruction given to this body directed their attention to malignant clergymen, holding benefices in and about town, whose benefices after being sequestered might be appropriated to ministers of a different character. As the plundered were thus put in the place of the scandalous, the Committee for the plundered took cognizance of what had previously been submitted to the Committee for the scandalous. In July they received power to consider cases of scandal apart from charges of malignity, and to dismiss those whose characters would not bear examination. On the 6th of September the Commons ordered the Deputy-Lieutenants and the Committees of Parliament, or any five or more of their number, to take the examinations of witnesses against any ministers who were scandalous in life or doctrine, and also against any who had of late deserted their cures or assisted the forces raised against Parliament.^[483]

Committees for
Ecclesiastical
Affairs.

This order, upon being examined, shews that subordinate authorities were appointed to co-operate with the superior one—that they were commissioned to discharge magisterial functions in the provinces by collecting evidence, which they were required to transmit to the Committee sitting in London. It is also obvious that this parent Committee itself stood in the same relation to Parliament as other Committees, and that its business was to communicate information to the House, not to exercise any independent control. A very notable puritan phenomenon is this often-vilified body, with its manifold provincial ramifications. Persons may fairly object to Parliament men being invested with such ecclesiastical powers, and they may also consistently complain of the innovations made by such an arrangement upon the ancient ecclesiastical system of England; but nobody

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can charge this Committee with setting to work in an unbusiness-like manner, or with acting in an arbitrary and impulsive way. No sinecurists—anything but idle—toiling day by day, and that for several hours together, they did their work from beginning to end by line and rule. No committee ever proceeded with more order and with greater regularity. They had definite principles of action, and they carefully followed them. The minutes which they kept, with the signatures of the chairmen, are still extant,^[484] and speak for themselves.

Therein we see how one day they resolved to report to the House the conclusions at which they had arrived, and the course which they recommended to be pursued; and how, another day, they finally declared what should be done "by virtue of an order of both Houses."

Dipping into these records, we find the Committee resolving upon the augmentation of poor livings. For example, £8 payable to Ussher, Bishop of Carlisle, out of the impropriate tithes of Allhallows, Cumberland, and the further annual sum of £20, out of the impropriate tithes forfeited by a delinquent, are granted, March 3rd, 1646, for the purpose of increasing the stipend of such minister as the Committee should approve to officiate in the church of Allhallows. A grant of £40, out of a Papist's impropriation, is made on the 15th of July, 1646, for the maintenance of a minister to a chapelry in Lancashire, subject to the approbation of the Divines appointed by ordinance of Parliament for examination of ministers in that county. The incomes of several vicarages are noticed as augmented by grants out of forfeited revenues. Grants also appear for weekly lectures by assistant ministers; for instance, at Tamworth, "by reason of the largeness of parish, and the concourse thereto from other places." A petition to the Committee for sequestration which met at Goldsmiths' Hall is reported as coming from the parish of Benton, and from two contiguous chapelries, complaining that there was but one minister for all those places, and that he was a reader and an alehouse keeper; and also stating that, by reason of the corruption of Episcopacy, only £10 a year out of the glebe lands and tithes had been paid to a curate, who, on account of his poverty, was constrained to keep an alehouse.

Tithes, of course, were payable when harvest came. Each rector would, as of old, have the right of sending an agent among the corn shocks, that he might affix to

Tithes.

every tenth some twig or other sign of ecclesiastical appropriation. But the revolution at the commencement of the civil wars had thrown into jeopardy such ecclesiastical claims. Not only could the farmer then, as always, expose the rector to damage and loss, but he could also successfully resist the setting out and appropriation altogether. Greater hazard still, perhaps, attached to the demand "of rates for tithes;" and altogether it is plain that the distress of the clergy must in some cases have been very great.^[485] Consequently, on the 8th of November, 1644, Parliament issued an ordinance stating, that there remained not any such compulsory means for recovery of tithes by ecclesiastical proceedings as before had been the case; and the remedy now provided was to make complaint to two justices of the peace, who were authorized to summon the person complained of, and after examination on oath, to adjudge the case with costs; a method which, at least for its simplicity and summariness, presented a striking contrast to all previous modes of procedure in ecclesiastical or civil courts. In case of non-payment, distraint might be made by order of the justices, and if there remained nothing available for that purpose, the defaulter could be committed to prison.^[486] The city of London was exempted from the operation of the ordinance, an exemption afterwards repealed. We may add that vicars probably would be exposed to special inconvenience in collecting their small tithes, whilst their incomes, even when fully paid, would in many cases be very inconsiderable. Hence, on turning over the Parliament Journals, we find orders given for the Ecclesiastical Commissioners to consider how poor vicarages and cures could be raised to a competent maintenance out of Cathedral revenues and impropriate parsonages.

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We may further observe that in the Norwich Corporation Records there are numerous entries illustrating the ways in which local Committees co-operated with the Committee at Westminster, for uniting parishes, enquiring into cathedral revenues, and supporting city clergymen.

The House however was not content to leave all the details of ecclesiastical business even to their own farreaching and laborious Commissioners, but Argus-eyed, and Briareus-handed, looked into and managed almost everything itself.^[487]

Although Parliament claimed the absolute right to control benefices, there were some things needful for the induction of clergymen which could not be comprehended within the range of Parliamentary functions. Ministers already accredited, having received Episcopal or Presbyterian orders, found no difficulty in the way of collation; but what method was to be pursued relative to ministerial candidates still unordained? To meet this difficulty the Westminster Assembly recommended the temporary appointment of committees for the ordination of ministers—only their temporary appointment—for whenever Presbyterianism should be fully established, then the Church would of course do all things after a Presbyterian fashion. Yet not without difficulty did the Divines reach a conclusion on this subject, as the Independents and Presbyterians differed to some extent respecting the nature of ordination.

*Church and
Parliament.*

The entire control of Church temporalities centred in Parliament.^[488] The arrangement had great inconvenience. How such a scheme (had it continued) would have worked in the long run, may be conjectured from the contests inevitably arising, whenever the civil and sacred authorities have come into such close connexion. The quarrels of Hildebrand and Henry IV. are but conspicuous, perhaps extreme illustrations, of what naturally results from an intimate alliance of two such powers as Church and State when guided by different impulses. Only so long as sympathy prevailed between the two bodies at Westminster could coincident authority continue. The moment that any change of feeling arose between them, their co-operation would be at an end. The temporary rules which were adopted with regard to ordination were the same as those established with a view to permanence the year following.^[489] They required candidates to take the covenant, to undergo an examination in religion and learning, and to prove a call to the ministry. If the candidate happened to be deficient in Hebrew, Greek, and Latin, he had severer tests applied to his knowledge of logic and philosophy. But the machine did not always work smoothly. For example, the Committee for plundered ministers sequestered a Mr. Leader, vicar of the parish of Thaxted, in Essex, and settled in his room a Mr. Hall. The patroness, Lady Maynard, would not present Mr. Hall, and preferred to appoint a Mr. Croxon, a man represented

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as notorious for drunkenness and profanity. Articles accordingly were exhibited against the latter, in consequence of which Croxon was sequestered. Lady Maynard being allowed again to nominate, the well-affected parishioners protested against the concession of that privilege. The Commissioners, however, stood by her ladyship's rights as patroness, and she now recommended another person of the same name as before. But on his being submitted to the Assembly, they would not sanction his appointment. Three times they declined, and the Lords approved of the refusal, yet after all, in some clandestine way, the candidate obtained an order for induction. This person, whom the Divines pronounced the most troublesome they ever had to do with, came to Thaxted Church, and insisted upon preaching. The sequestrators stood at the door of the desk to prevent his doing so; but the mayor and churchwarden espoused his cause, as did also the rabble of the parish. The latter assaulted the sequestrators, tore their hair, rent their neck-bands, and seized their hats and cloaks. "Let them alone," said the mayor, "and let the women decide the case." This fray in the parish church ended in the commitment of parson, mayor, and town-clerk to prison, "whence they were released on submission." This case gives us a curious insight into the local church politics of those days. [\[490\]](#)



CHAPTER XVII.

Laud, the principal author of the evils which induced the revolution, remained a prisoner. He had become a helpless old man; and it would have been better for the Puritans had they checked their resentment, and suffered their vanquished enemy to linger out his days as a captive or an exile; but unfortunately they determined otherwise. The Scotch Commissioners had presented Articles against him in the House of Lords on December the 17th, 1640; and on the following day the Commons had resolved to accuse him of high treason.^[491] In the following February, articles of accusation had been exhibited by the Commons, after which his case had been kept in abeyance for more than two years and a half. Though the idea of bringing him to trial had never been abandoned, mild views of his punishment had been entertained; for, in a newspaper published in May, 1643, it is stated that "the sending of the Archbishop of Canterbury and of Bishop Wren to New England had been agitated in the House, and that Parliament would not banish them without a trial."^[492] In the opening of the year 1644, it was resolved that Laud should take his trial.

The trial lasted from March to July. The accused prelate received three or four days' notice of the time of his appearance, and of the particular articles which were to be alleged against him. From ten until one o'clock the managers of the prosecution stated their case and produced their evidence, when an adjournment followed till four o'clock in the afternoon. Then the prisoner made his defence, and one of the managers replied. The proceedings terminated between the hours of seven and eight, when the fatal boat moored at Westminster,—which had so often glided backwards and forwards on errands of vengeance,—returned with its grey-haired passenger to the archway of the Traitors' Gate.^[493]

Laud's Trial.

The principal managers for the Commons were Serjeant Wylde, Mr. Maynard, and Mr. Nicolas. Prynne acted as solicitor, and arranged the whole proceedings. He had suffered so much at the Archbishop's hands, that, however watchful

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he might be over himself, he could scarcely suppress feelings which were incompatible with a just discharge of his legal responsibilities. With all his learning and great ability, we must admit that he was not remarkable for self-control; and the utmost stretch of candour cannot prevent our receiving, from his conduct on this occasion, the unpleasant impression that, in preparing materials for the conviction of his old enemy, he was swayed, to some extent at least, by personal resentment. [\[494\]](#)

The accusations brought against Laud may be reduced to three: first, that he had aimed at subverting the rights of Parliament; secondly, that he had attempted to subvert the laws of the land by his conduct in reference to ship-money, by his illegal commitments, and by his support of the Canons of 1640; thirdly, that he had endeavoured to alter and subvert God's true religion established in this realm, to set up instead of it Popish superstition and idolatry, and to reconcile the Church of England to the Church of Rome. In support of this grave indictment relating to religion, much stress was laid on such facts as these: his introducing innovations, using images and crucifixes, consecrating churches and altars by superstitious rites and ceremonies, commanding the Book of Sports to be read, upholding doctrinal errors, persecuting Puritans, corresponding with Roman Catholic priests, and discouraging foreign Protestants. [\[495\]](#)

Laud, in his defence, when speaking of his ecclesiastical career, did not profess that he had sought, as the highest objects of his life, the gathering of souls into Christ's fold, and the promotion of truth and charity; but he plainly said that his main endeavour had been to secure an outward conformity. Nor did he, as most men would have done under the same circumstances, qualify his avowal of ritualistic zeal by expressing large and noble Christian sentiments. On the contrary, he simply declared: "Ever since I came in place I laboured nothing more than that the external worship of God (too much slighted in most parts of this kingdom) might be preserved, and that with as much decency and uniformity as might be; being still of opinion that unity cannot long continue in the Church, where uniformity is shut out at the Church door; and I evidently saw that the public neglect of God's service in the outward face of it, and the nasty lying of many places dedicated to that service, had almost cast a damp upon the true and inward worship of God, which, while we live in the body, needs external helps, and all little enough

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to keep it in any vigour."^[496] Yet we must confess that for Laud to adopt this strain was honest; and certainly, amongst his many faults, hypocrisy is not to be reckoned. Indeed, he made it his boast, and he had ground for so doing, that he did not shift from one opinion to another for worldly ends; and that he had never attempted to slide through the difficulties of the times by trimming his religious opinions.

In dealing with the evidence against him, the Archbishop maintained that personal resentment influenced the witnesses in the statements which they made; and in that opinion probably he was to a considerable extent correct. Certain of their allegations had, no doubt, a spiteful appearance; but then it is impossible to forget how this merciless man had provoked such conduct towards himself by his own inexcusable demeanour towards others; and that by a law of Providence, righteous in itself, though executed by instruments not free from blame, such delinquents as Laud, after having sown the wind, are sure, sooner or later, to reap the whirlwind. Prynne, of course, tried to make everything tell against his enemy; yet even he could not help allowing that the prisoner at the bar "made as full, as gallant, and pithy a defence, and spake as much for himself as was possible for the wit of man to invent." This special pleader proceeds however to say, the very moment after making this admission, that Laud spoke "with so much art, sophistry, vivacity, oratory, audacity, and confidence, without the least blush, or acknowledgment of guilt in anything, as argued him rather obstinate than innocent, impudent than penitent, and a far better orator and sophister than Protestant or Christian."^[497] Prynne attributed the Primate's boldness to the King's pardon which he carried in his pocket.

When the whole evidence had been presented, a question arose whether the facts which had been adduced legally proved him to be guilty of the crime of treason. The Peers were not satisfied that such was the case; and in the present day, there are few, if any, constitutional lawyers who would admit that the proofs alleged brought the Archbishop within the scope of the Statute of Treasons. Owing to legal difficulties, the prosecution, in its original form, was dropped, and a Bill of Attainder was brought in. The Bill, after having been read a third time in the House of Commons, was sent up to the House of Lords. They admitted, as they had done before, that the

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accused was guilty of endeavouring to subvert the law, to destroy the rights of Parliament, and to overthrow the Protestant religion; but still, they asked, can all this prove him to be traitor to the King?^[498] The old points were debated over and over again. But what did that avail? Popular feeling against him had become intense; the London citizens were now more earnest than ever in petitioning for speedy justice against all delinquents; and some individuals went so far as to shut up their shops, declaring they would not open them until righteous vengeance fell upon the head of this arch-enemy of the people of God.^[499] Influenced by such clamour, if not convinced by the arguments of the Commons, the Lords present in the House on the 4th of January, 1645, passed the fatal Bill;^[500] and afterwards it was in vain that the condemned produced a pardon, under the great seal, in arrest of execution.

The fatal proceedings against Laud are easily accounted for. The causes are found in the growing power of the anti-Episcopal party; the ascendancy of the Presbyterians, who for a long time had felt the deepest horror at Laud's career; the influence of the Scotch, who had a special hatred to the Primate for his designs on their country; and the activity of Prynne, who certainly had sufficient cause for detesting the mutilator of his ears. But the sentence of death executed upon him cannot be justified. Lord Campbell pronounces it "illegal, barbarous, and unprovoked," "as little to be palliated as defended." Hallam speaks of the whole business as "most unjustifiable," and "one of the greatest reproaches of the Long Parliament." Even Godwin admits that the prelate "fell a victim to the Scots, to the Presbyterians, and to the resentment of an individual who had formerly been the subject of his barbarity."^[501] We may add that the same legal objections apply to the Bill of Attainder against him which are urged in the case of Strafford; and further, that in one respect the treatment of the prelate was worse than the treatment of the statesman; inasmuch as, whilst some persons may defend the putting of the Earl to death as a political necessity, no one can regard in the same light the execution of the Archbishop.

Many men who have committed great errors have afterwards, in the midst of suffering, behaved in such a manner as somewhat to redeem their evil reputation. To a considerable extent it proved so in this instance. On its being proposed to

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Laud's Execution.

him by the renowned Hugo Grotius that he should escape—a step which he believed his enemies were not averse to his taking—Laud replied: "They shall not be gratified by me in what they appear to long for; I am almost seventy years old, and shall I now go about to prolong a miserable life by the trouble and shame of flying?" "I am resolved not to think of flight, but continuing where I am, patiently to expect and bear what a good and a wise Providence hath provided for me, of what kind soever it shall be."^[502] He delivered on the scaffold a speech which was prefaced by the first verse of the twelfth chapter of the Epistle to the Hebrews,^[503] as if it had been a sermon; though, after the exordium, it forsook a homiletic form. He referred to himself as a martyr, declared that he forgave his enemies, and endeavoured to clear himself from the charge of favouring Popery and disliking Parliaments. Then, after praying, and pulling off his doublet, he said that no man could be more willing to send him out of the world than he himself was to go. Upon being asked by Sir John Clotworthy what special text of scripture he found most comfortable, he replied, "*Cupio dissolvi et esse cum Christo*." "A good desire," answered the knight, who added, "there must be a foundation for that desire and assurance." Laud had no notion of Puritan "evidences," and simply rejoined, "No man can express it, it is to be found within." "It is founded," the Presbyterian went on to say, "upon a word though." Laud closed the conversation by adding, "That word is the knowledge of Jesus Christ, and that alone."^[504] The Archbishop's last prayer is the most beautiful thing connected with his history, and reminds us of Shakespeare's words—

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"Nothing in life
Became him like the leaving it."

"Lord, I am coming as fast as I can; I know I must pass through the Shadow of Death before I can come to see Thee, but it is but *umbra mortis*, a mere shadow of death, a little darkness upon Nature, but Thou, by Thy merits and passion, hast broke through the jaws of death; so, Lord, receive my soul, and have mercy upon me, and bless this kingdom with peace and plenty, and with brotherly love and charity, that there may not be this effusion of Christian blood amongst them, for Jesus Christ's sake, if it be Thy will."^[505]

So perished William Laud, a man who has been magnified by one party into a martyr, and degraded by another into a monster. He was neither, but a narrow-minded individual, with little or no sensibility, fond of arbitrary power, a thorough bigot, and a ceremonialist to such an extent, that he acted as if salvation depended on adjusting the position of altars, presenting obeisances, regulating clerical attire, and "adding to it some of the frippery of the Romish ecclesiastical wardrobe, which had lain neglected ever since the Reformation."^[506] His religious weaknesses were not tempered with the smallest degree of Christian charity. Contemptible trifles he pressed upon the consciences of people with an iron hand. Yet Laud's reputation does not come down to us tainted with the vulgarities of avarice or sensuality. He was liberal and chaste; and, though proud, he was not addicted to luxury or ostentation. Possessed of considerable learning, and remarkable for activity and acuteness of mind; he patronized such studies as accorded with his tastes; and it should not be forgotten that, at Windsor, Reading, and Oxford, there still remain noble and lasting monuments of his beneficence.^[507]

Laud's Character.

As one of England's most conspicuous Churchmen, he may be ranked with Dunstan, Becket, and Wolsey;^[508] but he had not the princely bearing, the knowledge of mankind, and the skilful statesmanship of Wolsey—nor did he evince the high-minded spiritual ambition and independence of Becket—nor do we discover in him the mystic tone and artistic taste of Dunstan. But he had the pride, the intolerance, and the superstition of all three. In the middle ages he would have made as to ritualism a good monk, and if severity of discipline be a proof of excellence, by no means a bad abbot.

It was on the very day of Laud's attainder that Parliament established the Presbyterian Directory, and prohibited the Anglican Prayer Book.^[509] That book, profoundly revered by all Anglo-Catholics, and held in scarcely less honour by some doctrinal Puritans, excited only the opposition of the Presbyterians and the other sects. Tracts of the period irreverently represent the liturgy as being the very *lethargy* of worship; the litany, as not merely "a stump, or a limb of Dagon, but the head of the Mass Book;" and the surplice, as "a Babylonish garment, spotted with the flesh," and as worse than the "plague-sore clout," which had been sent "to infect Master Pym,

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and the rest of the House."^[510] For this coarse abuse, the whole Presbyterian party must not be held responsible; but such abuse indicates the existence of feelings with which leading Presbyterians had to deal on their own side.

Many persons disliked all prescribed forms, and represented them as muzzling the mouths of the saints, and stopping the course of the Spirit of God. "True prayer," they said, "is first in the heart, then in the mouth, but this sort of prayer is in the mouth before it can come into the heart at all: it is an abortive birth which never had a right conception."^[511] Yet the chief oracles both of Parliament and the Assembly, though advocates for *extempore* devotion, were not disposed to leave ministers altogether to their own impulses in conducting public devotion. They adopted a middle course, and whilst abandoning particular forms of prayer they provided a General Directory of worship.

Parliament issued an order for that purpose to the Assembly, sometime in October, 1643, but the business stood in abeyance until the following May, when the subject came up for discussion in the Jerusalem Chamber. Minor questions arose, such as whether laymen might assist clergymen by reading the Scriptures—a question determined in favour of probationers; and whether the Lord's Supper might be received by communicants sitting in pews—a question negatived by a resolution of adherence to Presbyterian usage. But the grand debate of the Assembly at that time related to the suspension of improper communicants. This matter involved principles of Church discipline, which could not be settled without much controversy, and which long perplexed statesmen and divines.

The preface to the Directory, which is a very important part of the book, adverts to the liturgy used in the Church of England, as an offence both to many of the godly at home, and to many of the reformed abroad. The imposition of it had heightened past grievances, and its unprofitable ceremonies had been a burden to the consciences of not a few. By it people had been kept from the Lord's table, and ministers had been driven into poverty and exile. While esteemed by Prelates as if it set forth the only way in which God could be worshipped, Papists had counted its use a concession to themselves, and a compliance with their Church. Moreover, a liturgy, it is said, encouraged an idle ministry. Therefore, it was now to be set aside, not from affectation of

The Directory.

novelty, or to the disparagement of the first reformers, but as a further reformation of the Church of Christ, the easing of tender consciences, and the promotion of uniformity in the worship of God. The Directory contains no forms of prayer, but only suggestions as to topics of public supplication.

The Directory, upon being dispatched to Scotland, [\[512\]](#) obtained there the sanction of the General Assembly; and on its return, after the book had been endorsed by the English Commons, it was presented to the House of Lords, who gave it their sanction.

1645, May.

The Directory.

Presbyterian statesmen are sometimes charged with a rash abolition of old ecclesiastical laws, without the previous or immediate institution of others to occupy their room. It is alleged that these men short-sightedly pulled down the ancient buildings and left them in ruins, and that they were for some time not prepared to raise a new structure on the ancient site. This is an incorrect representation. Elizabeth's Act of Uniformity, it is very true, fell into desuetude from the opening of the Long Parliament; also many Puritans in the Establishment laid aside the Liturgy, and even reviled it. Notwithstanding, no specific law appears against it, until the Directory had been sanctioned by Parliament. The same ordinance which forbids the Liturgy enforces the Directory. In the first place that authority rehearses and repeals the statutes of uniformity, and at the same time declares that the Book of Common Prayer should not remain in any place of worship within the kingdom of England or the dominion of Wales. The same ordinance then goes on to declare that the Directory should be observed in all public religious exercises throughout the realm, and that fair register books of vellum for births, marriages, and burials should be kept by the minister and other officers of the Church. It is remarkable that no penalty whatever is mentioned for a breach of this ordinance. So far as the terms of it are concerned, it looks as if it might be broken with impunity; and it was so broken. In country parishes where Royalism was predominant, and such parishes were very numerous, parsons and churchwardens set at nought the enactment of the two Houses, and would not acknowledge as law that which had not received the Royal sanction. The Prayer Book was dear to them from associations with the past in their own lives and those of their fathers; and they were resolved still to read its litany and collects. Finding that simple advice and exhortation produced no effect in many quarters, Parliament adopted more stringent measures. It would appear that, as early

as the month of May, 1645, penalties for contempt of the new enactment were under consideration,^[513] but an explicit threatening for disobedience was not uttered until the month of August. Then came an ordinance^[514] which—after providing for the supply of printed books of the Directory, and commanding that it should be read the Sunday after it was received—proceeded to declare that any person using the Book of Common Prayer in church or chapel should, for the first offence, pay the sum of five pounds, for the second offence the sum of ten pounds, and for the third offence suffer one year's imprisonment. Every minister was to pay forty shillings each time he offended. Those who preached or wrote against the Directory fell under additional liabilities to pay not less than five, and not more than fifty pounds. Thus a new Act of Uniformity succeeded the old one. The High Commission Court had been abolished, but its spirit had migrated into another body. Happily it is no easy thing to change a people's religion by Act of Parliament. Wherever the exercise of reason, and the study of Scripture are neglected, there remain sentiments, perhaps prejudices, which are too deeply sown to be raked out by any legal instrument, however sharp and close-set its teeth may be. Human conscience, whether rude and ill-informed, or disciplined and wise, always hates all tools of state husbandry employed for such ends. Accordingly, a good many people in England, when its rulers would force them into a new form of worship, deliberately and resolutely rebelled, some having to endure a considerable amount of suffering for conscience' sake.^[515]

The Scotch soon began to lament the inefficacy of the new enactment. They complained that the Prayer Book was still used in some parts of England, where Parliament had undisputed authority; and, of course, in a kingdom which was cut up into two hostile camps, where Royalism remained in the ascendancy, the Liturgy would continue to be honoured, and the Directory would be disused. Errors, heresies, and schism were also deplored as still prevalent, by the brethren from the north, who watched with pious zeal all that was going forward on this side the Tweed, and were greatly distressed at the tardy progress of ecclesiastical reform, and at the little enthusiasm which was enkindled by the Covenant. In Ireland, the Directory met with an adverse fate. The bishops and clergy of Dublin in particular remained loyal to the Prayer Book. They pleaded

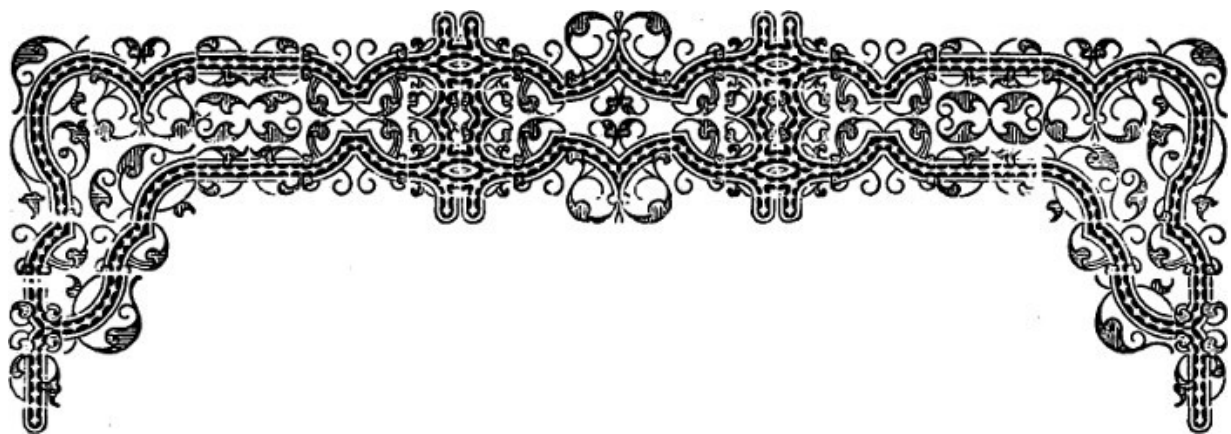
1645, August.

The Directory.

their ordination vows, the oath of supremacy, the Act of Uniformity, the communion of the two Churches of England and Ireland in the bond of Common Prayer, the legality of its use, the freedom of the Church, and the attachment to the Liturgy cherished by the people. The Bishop of Killaloe, and several other dignitaries, signed a protest, and whatever opinions may be formed of their arguments, posterity will do honour to their conscientiousness. This was in 1647. Some persons continued, in spite of Parliamentary orders, to use the Prayer Book. The last instance of its being publicly read in Dublin occurred when the aged and venerable Archbishop Bulkeley delivered to his clergy a valedictory discourse in St. Patrick's Cathedral. [\[516\]](#)

In connection with the Directory, notice should be taken of certain forms of devotion which were published for the use of seamen. A book of that period exists, without date, entitled "A Supply of Prayer for the Ships, that want Ministers to pray with them." The preface states that there were thousands of ships without any ministers, and that the crews, therefore, either neglected religion altogether or used the Book of Common Prayer. What is glanced at as a matter of necessity might perhaps in some cases be matter of preference. Alderman Garroway, in his speech at Guildhall, it will be remembered, spoke of sailors as being fond of the old liturgy; and such sailors must have remained in the fleet even after the Presbyterian Earl of Warwick had become Lord High Admiral. Though the navy, as far as rulers were concerned, might be called Presbyterian, numbers of the men would feel no attachments in that direction. At all events, to avoid inconvenience, it was thought fit to frame prayers for the navy, "agreeing with the Directory established by Parliament." By whom the work was done we do not know, but clearly the spirit of it is Presbyterian. "Heal our rents and divisions," and "preserve us from breach of our solemn Covenant," are expressions found amongst its petitions. Eschewing the Apocrypha, it prescribes psalms and chapters from the Old and New Testament. Forms of devotion are given, rather as specimens and guides than anything else. "The company being assembled, they may thus begin with prayer," are the cautious words employed by the sturdy opponents of ritualism. [\[517\]](#)

1645 August



CHAPTER XVIII.

Proposals were still going on for a Treaty of Peace between the King and the Parliament. His Majesty, from what he heard of dissensions in the popular party, felt encouraged to hope for favourable terms. He had also an idea that the House of Peers, and some in the Commons, really wished for a reconciliation.^[518] Laud's trial was at the time in progress, and the sympathies of the Royalists, of course, were with the prisoner. Accordingly, overtures were forwarded, from Oxford to Westminster, and, in return, Commissioners were despatched from Westminster to Oxford.^[519] Their treatment, however, on reaching the latter city, was not such as to inspire much hope of a prosperous issue. The people reviled them as traitors, rogues, and rebels, and threw stones into their coaches as they rode to the quarters appointed for their entertainment at "the sign of the 'Catherine Wheel,' next St. John's College"—"a mean inn," as Whitelocke describes it, only a "little above the degree of an alehouse."^[520] The conduct of Charles in sending a sealed reply telling the Commissioners they were to carry what he pleased to place in their hands, although it should be but the *Song of Robin Hood and Little John*, certainly did not tend to an amicable adjustment of affairs; and his duplicity in calling the Lords and Commons at Westminster a Parliament, whilst he entered upon record in his council book that the calling them so did not imply that they were such, proves that his only object was to pacify his opponents for a time, that he might do what he liked with them whenever they should be again within his power.^[521]

At length, the preliminaries of a treaty were arranged, and a meeting was fixed to take place in the town of Uxbridge in the month of January, 1645. The propositions of Parliament related to religion, the militia, and Ireland; and the Commissioners were instructed to stipulate that the subject of religion should be considered first, on the ground of its supreme importance.^[522] When they assembled, the town, selected as the theatre of their negotiations, was divided into two parts; the north side of the main street being allotted to the Parliamentarians, the south

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Treaty at Uxbridge.

side to the Royalists. So crowded was every corner of the place, that some of the distinguished personages were, as Whitelocke informs us, "forced to lie, two of them in a chamber together in field beds, only upon a quilt, in that cold weather, not coming into a bed during all the treaty."^[523] The house chosen as most convenient for deliberation was Sir John Bennet's residence,—a picturesque building at the west end, still in existence, containing a "fair great chamber," with curiously wainscotted walls. Courtesies were exchanged between the diplomatists, but it soon plainly appeared that two hostile camps had pitched within the precincts of this little town. On a market day, just as the business of the treaty was about to commence, a lecture had to be preached in the parish church, according to established custom. Christopher Love, a young Presbyterian divine, full of fervour and zeal, happened then to be officiating as chaplain to the garrison at Windsor, and he had just travelled to Uxbridge in order to perform there this popular service. Farmers who came to sell their corn, and even persons in the train of the noble visitors from Oxford, contributed to increase the congregation which crowded the church. The preacher's discourse was reported by certain hearers to the authorities on the south side of the High Street as being of a seditious and intolerable character. On the following morning a paper was handed over to the party on the north side of the street, complaining of the sermon, and alleging that the preacher had gone so far as to declare that the King's representatives had "come with hearts full of blood, and that there was as great a distance between this treaty and peace as between heaven and hell." They therefore desired justice might be executed upon this fomenter of strife. The same day saw an answer returned, to the effect that Love was not included in the retinue of the Commissioners from London; that they wished all causes of offence to be avoided; and that they would report the circumstances which had occurred to the Lords and Commons, who, they were quite sure, would consider the matter "according to justice."^[524] So the matter dropped.

It is curious to find Clarendon lamenting that Uxbridge Church was now in the possession of the Presbyterians, and that, according to the ordinance just issued, the Directory had there taken the place of the Prayer Book. The King's Commissioners, therefore, who would willingly have gone to church, were restrained from doing so, and had to observe days of devotion

1645, February.

in "their great room of the inn," where, as the historian states, many who came from town and from the country daily resorted.^[525] The tables were turned; Episcopalians and Presbyterians had changed places; and his Majesty's followers found themselves at Uxbridge in the ranks of dissent.

Three weary weeks of debate ensued; religion, according to the stipulated arrangement, coming first under discussion.^[526] The four grand ecclesiastical propositions which were placed in the forefront by the Parliamentary Commissioners were the following: *first*, that the Bill for abolishing Episcopacy, which had passed the two Houses, should now receive the Royal sanction; *secondly*, that the Ordinance for the Westminster Assembly should be confirmed; *thirdly*, that the Directory, and the scheme of Church government annexed to it, should be enacted for the reformation of religion and the accomplishment of uniformity; and *fourthly*, that his Majesty should take the solemn League and Covenant, and concur in enjoining it upon all his subjects. Touching these several particulars, there may be seen in Dugdale and Rushworth a mass of papers, very dull and dry to all appearance now, but which had in them abundant light and fire, when they were exchanged and read in that large "fair room" at Uxbridge.

Treaty at Uxbridge.

Before the debates on religion closed, the King made a very plausible shew of concession, by professing his willingness to allow that all persons should have freedom in matters of ceremony, and that bishops should be bound to consult their presbyters, and constantly to reside within their dioceses. He promised, too, that poor livings should be improved, pluralities abolished, and ecclesiastical jurisdiction reformed.^[527] Yet, while making these smooth and pleasant offers—calculated, if not to induce the Parliament to come to terms, at least to raise the Royal cause to a somewhat higher position in public esteem—his Majesty wrote to his secretary, Nicholas, in the following style: "I should think, if in your private discourses, I no wise mean in your public meetings with the London Commissioners, you would put them in mind that they were arrant rebels, and that their end must be damnation, ruin, and infamy, except they repented, and found some way to free themselves from the damnable way they are in (this treaty being the aptest), it might do good."^[528] This double dealing shews that Charles, in his negotiations with Parliament, fancied he had to do with creatures of a

1645, April.

kind fit only to be inveigled into traps and snares; and it also shews that, at least, he had so much of Romish morality as consists in not keeping faith with heretics. His antagonists felt persuaded of this fact, though they could not put their hands so easily on the proofs as subsequent revelations enable us to do. But what they did actually discover made them very suspicious of his Majesty's proceedings, and induced them to act towards him sometimes in a manner which appeared not only ungracious, but inexpedient; we, however, now seeing the whole series of events from beginning to end, are enabled to discern in some of the most repulsive acts of the liberal and popular party the keenest foresight and the broadest prudence.

To return from Uxbridge to Westminster.

*Debates about
Ordination.*

The Presbyterians, working with the best intentions, striving to reform the people of England and to drive out error and evil, had much trouble with other matters besides the enforcement of the Directory. Churches wanted ministers, for scandalous clergymen had been dismissed and aged clergymen had become incapable. Some too had died, and some had removed to take charge of other parishes.^[529] The Oxford University, wholly in the hands of Royalists, yielded no candidates for the ministry, and Bishops would not ordain persons to serve in the new Establishment. In consequence of these circumstances vacancies were irregularly filled up, and uneducated persons were wont to thrust themselves into the sacred office. Amidst this disorder the Presbyterians, sorrowful on the one hand because of such destitution, and displeased on the other with the irregularity in such a mode of supply, and at the same time mortified by the taunts of Royalists and Episcopalians, vigorously devoted themselves to the business of supplying churches and ordaining ministers. In the month of April, 1645, Parliament ordered that no one should preach who had not received ordination in the English or some other reformed Church, or who had not been approved by the authorities appointed for the purpose.^[530]

It was specially enjoined that this rule should be put in force throughout the army, because in some regiments Presbyterian ministrations and worship were not held in high esteem; and the Lords, who cherished strong Presbyterian sympathies, also directed the Assembly to prepare a form according to which clergymen might be ordained without the offices of a diocesan bishop. Long and

1645, April.

tiresome debates arose amongst the Divines in connexion with this latter subject;—Presbyterians, Independents, and Erastians differing from each other in the ideas which they entertained of what ordination meant. This controversy has been long since buried, and we shall not disinter it from amidst the dust of "old diaries" and "grand debates;" but the point raised by the Independents, who contended for the right of each congregation to choose its own ministers, has some vitality for people in these days. Of course the Presbyterians carried the question according to their well-known views, and after they had done so, Parliament, adopting the decision of the Divines, declared by an ordinance, that the solemn setting apart of presbyters to their holy office was an institute of the Lord Jesus Christ; that certain rules ought to be observed in the examination of candidates; that publicity should be given to the testimonial of the examiners; and that ordination should be performed by the laying on of the hands of the presbytery, accompanied by a public fast. It was expressly stated at the conclusion of the ordinance that it should stand in force for twelve months, and no longer—a provision which stamped the arrangements with something of a tentative character. Until presbyteries could be duly organized, the duty of ordination was vested in the Assembly; and no wonder that Baillie, in a letter written from London in February, 1646, laments the onerous and absorbing engagements which this new law entailed upon the Divines. [\[531\]](#)

As the question of Presbyterian discipline came under discussion, the debates in the Assembly increased in energy, learning, and acuteness, as well as in prolixity. No person who has read Dr. Lightfoot's notes of the proceedings can deny the erudition and controversial acumen of the disputants on both sides; and all who have glanced over Baillie's lively pages will admit that this battle for great principles was waged with sincerity and earnestness. A very important point of enquiry arose in the month of April, 1644, Whether "many particular congregations should be under one presbytery?" The Independents pressed to be heard on the negative side, and spent twenty long sittings in advocating their opinion. Goodwin was foremost in the debate, but the rest of the dissenting brethren took their turns. The champions well acquitted themselves, their enemies being judges. "Truly, if the cause were good," wrote Baillie, "the men have plenty of learning, wit, eloquence, and above all, boldness and stiffness to make it out; but when they had wearied themselves, and over-wearied us

all, we found the most they had to say against the presbytery, was but curious idle niceties, yea, that all they could bring was no ways concluding. Every one of their arguments, when it had been pressed to the full, in one whole session, and sometimes in two or three, was *voiced*, and found to be light unanimously by all but themselves."^[532] There can be little doubt of this. The reasoning of the Independents would of course be found wanting when weighed in the Presbyterian balance, and the majority of the Assembly would naturally consider their own votes an ample refutation of their adversaries' arguments. "They profess," says the same authority in another place, respecting the Independents, "to regard nothing at all what all the reformed or all the world say, if *their sayings be not backed with convincing Scripture or reason*. All human testimonies they declaim against as a popish argument." The simplicity of the writer is perfectly amusing as he thus insensibly glides into the position of papal advocates, and tacitly acknowledges the authority of general opinion in the Church; on the other hand, the firmness and consistency of these genuine Protestants is truly admirable, as they resolutely adhere to the only invincible method of argument by which the cause of the Reformation can be defended.

While Independent principles favoured universal toleration, the Presbyterians, by advocating the establishment of classes, synods, and a general assembly, and by calling on the magistrate to enforce the authority of the Church, plainly interfered with the civil rights of the people. The thoughtful among the Independents therefore became more and more averse to the Presbyterian scheme; they saw that it would be fatal to those very liberties for which the nation had so valiantly contended in the field. Accordingly, we find that Philip Nye, in the March of 1644, boldly contended before the Assembly that a presbytery was inconsistent with the civil state. This was a galling accusation, and the Presbyterian party indignantly cried down the assertion as impertinent. Great confusion arose in the Assembly; but, undismayed by the combined opposition of a large majority, the champion of Independency on the following day renewed the impeachment. It was an aggravation of his offence in the eyes of his adversaries, that he took advantage of the presence that day of some distinguished noblemen and others to make his bold avowal. He would enlighten these personages on the great question. He repeated that the liberties for which the people fought would be unsafe if

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Independents.

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Presbyterianism were established. Again the Presbyterians endeavoured to silence him. The meeting was in a tumult. Some would have expelled him; but the Independents rallied round their intrepid friend, declaring their resolution not to enter the Assembly again if he should be excluded. Whether, after this scene of excitement, during which it is not improbable that Nye manifested some warmth of temper, he really became more calm in the advocacy of his principles; or whether it was a mere expression of triumph on the part of one who helped to form the majority of the convocation, and to overcome by clamour the voice of reason, we do not venture to determine,—but the Scotch Commissioner concludes his account of that memorable day's proceedings by observing, "Ever since we find him in all things the most accommodating man in the company."^[533]

As Presbyterians and Independents thus frequently came into collision at Westminster, at last a Committee of Accommodation was appointed, with the view of healing the differences betwixt these two parties. This committee arose out of a suggestion by Oliver Cromwell; and the Parliament who appointed it in 1644 directed the committee, in case union should be impracticable, to devise a plan for meeting the scruples of tender consciences. The committee selected six of their number, including two Independents, to draw up propositions for the purpose; from which it appears that the Independents claimed for their male Church members the power of voting upon ecclesiastical questions, and that they contended for the necessity of signs of grace as a qualification for membership. These positions were irreconcilable with the scheme of their opponents, which placed the Church under the power of presbyters, and admitted to communion all who were not scandalous in their lives. No method could be devised for combining the Independent with the Presbyterian scheme, although the Independents professed themselves ready to make the trial; for the Presbyterians determined in the first instance that their own form of Church government should be settled as a standard, and that until that was done the exceptions of the dissentients should not be taken into consideration. As the Presbyterians resolutely pushed forward the completion of their own model, the dissenting brethren at last abandoned all attempts at comprehension, and drew up a remonstrance complaining that they had been unfairly dealt with. In the month of November, 1645, the Jerusalem Chamber witnessed further debates between the two parties; but

*Committee of
Accommodation.*

1645, November.

the question had now reached this point, how far tender consciences, which cannot submit to the established ecclesiastical government, may be indulged consistently with the Word of God and the welfare of the nation? The Independents pleaded for a full toleration, to which the Presbyterians would not consent, and the former could not without difficulty be brought to propose any measure of liberty to be enjoyed exclusively by themselves; yet urged by their opponents to state what they required in their own case, they replied that they did not demur to the Assembly's Confession of Faith, and that they merely sought liberty to form their own congregations, to have the power of ordination, and to be free from Presbyterian authority. "In our answer," observes Baillie, "we did flatly deny such a vast liberty." All the indulgence conceded was that Independents should not be compelled to receive the Lord's Supper, nor be liable to synodical censure; and this amount of freedom was made dependent upon their joining the parish congregation, and then submitting in all but the excepted particulars to the new ecclesiastical government. Baillie, who supplies some knowledge of party secrets, informed a friend that had not the Presbyterians allowed some indulgence, they would have brought upon themselves insupportable odium, and that in making their limited offer they were persuaded that it would not be accepted. The Independents of course were not content with the result of the controversy, and still sought the liberty of forming Churches of their own.

The threadbare argument about the abuse of liberty and the opening of a door to all manner of sectaries was zealously urged against any such toleration as the Independents claimed. Altar would be set up against altar, it was said, the seamless robe of Christ would be rent, and the unity of the Church would be destroyed. At last, Burroughs rose and declared "that, if their congregations might not be exempted from that coercive power of the classes, if they might not have liberty to govern themselves in their own way as long as they behaved peaceably towards the civil magistrate, they were resolved to suffer, or go to some other place of the world where they might enjoy their liberty. But while men think there is no way of peace but by forcing all to be of the same mind, while they think the civil sword is an ordinance of God to determine all controversies of Divinity, and that it must needs be attended with fines and imprisonment to the disobedient; while they apprehend there is no medium between a strict uniformity and a general

*Committee of
Accommodation.*

confusion of all things;—while these sentiments prevail there must be a base subjection of men's consciences to slavery, a suppression of much truth, and great disturbances in the Christian world."[\[534\]](#) The expression of such wise and beautiful sentiments closed the debates of this fruitless Committee.



CHAPTER XIX.

The Scotch army had crossed the Tweed in the month of January, 1644. Isaak Walton had seen them marching along with their pikes, and wearing on their hats this motto, "For the Crown and Covenant of both kingdoms,"^[535] but the quiet angler was not able to understand clearly what he beheld. These soldiers proved of far less service to England than was expected. The indiscretion of generals in the field involved regiments in disaster, and political and religious jealousy at an early period sprung up between some English and Scotch commanders. Grounds of difference existed, inasmuch as certain of the southern captains felt little sympathy with the covenanting zeal of their northern allies. Both, however, had begun to find out that the enemy was much stronger than they had at first imagined, and Baillie, in the month of March, 1644, deplored the persistent attachment of the Royalists to Episcopacy and absolute monarchy, and the absence from their consciences of all remorse for their past misdoings. Indeed, he speaks of so much confidence existing at Oxford, that the popular cause was there accounted to have sunk into a hopeless state; and the Scotch presbyter himself complains that the ways of the Parliament were endless and confused, being full of jealousy, and of other faults. The Independents, he also says, prevented Church matters from being settled as he wished; Antinomians and Anabaptists were on the increase, and, in short, things were altogether in a bad condition.^[536]

The military prospects of the Parliament did not much improve as the spring advanced. The patriots longed for something to be done. The Earl of Manchester was besieging York, and upon the consequence of the expedition in the north, depended the affairs of the Church, scarcely less than the affairs of the State. When, on July the 2nd, 1644, Cromwell and Leslie met Prince Rupert on Long Marston Moor, it was for the purpose of settling an ecclesiastical as well as a political question.

*Long Marston
Moor.*

The two armies stood face to face on that memorable spot, eyeing each other for hours, within musket shot,

1644, July.

[537] the Parliament horse and foot being ranged along the south side of the moor on rising ground, amidst fields of standing corn, now tall and wet with rain, whilst the King's forces were protected by a deep ditch and hedge in front. When the sun was going down over the wide plain the action commenced. At first it proved in favour of the Royalists, so much so that the Earl of Leven's men fled, and the Scotch might be heard crying, "Waes us, we're a' undone!" Forthwith news of victory flew to Oxford, greeted there by bell-ringing and bonfires, to be only, however, speedily followed by very different tidings; for before midnight Cromwell and Leslie plucked a victory out of the enemy's hands. They charged a brigade of greencoats, and put to the rout the remainder of the Royalist army. The chase was continued to within a mile of the walls of York, the dead bodies, it was said, lying three miles in length, the moon with her light helping somewhat the darkness of the season. [538]

The part which Cromwell took in this fierce battle gave no little triumph to the Independent party, who made the most of the Scotch flight, and hardly did justice to General Leslie. [539] This vexed the Presbyterians, and already the breach between the two assumed a serious appearance.

Though the victory of Marston Moor was of great advantage to the cause of the Parliament, it certainly did not decide the conflict. So far from that being the case, the fortunes of war afterwards favoured the Royalists. In August the Earl of Essex found himself so circumstanced in his western campaign that he suddenly capitulated to the King—an untoward event, which naturally called forth the lamentations of the Westminster Divines. [540] Later still, amongst those persons who were anxious thoroughly to humble their High Church adversaries, and to bring the King to terms of complete submission, there might have been heard complaints to the effect that two summers had passed without the nation being saved; that victories gallantly gotten by the army, and graciously bestowed by Heaven, had been put into a bag with holes; that what was gained one day was lost another, that the summer's victory became a winter tale; and that the whole game had to be played over again. The secret of this want of complete success was said to be the unwillingness of the Presbyterians to crush the Royalists, and their desire for such an accommodation of differences as would place their own ecclesiastical polity close by the side of the English throne. The

Naseby.

Independents, therefore, who were loud in making complaints of the description just indicated, seeing as they did that the Presbyterian scheme threatened the extinction of that religious liberty with which their own interests were identified, resolved that there should be a revision of the whole war policy on their own side, and an entire reformation effected in the character and tactics of the army. Out of this determination arose the famous new modelling of the army, and the self-denying ordinance. These changes were accomplished in the winter of 1644, and the re-organized forces, under Fairfax and Cromwell, were ready to take the field by the spring of 1645. When all this had been accomplished, hopes revived, but the siege and capture of Leicester by the Royalists, at the end of May, inspired new fears.^[541] These, however, were not of long continuance, and were wholly dissipated by the memorable battle in the month of June.

On Saturday, the 14th, in the afternoon, the lines of the new-modelled army were drawn across certain fallow fields in front of the village of Naseby, whose trim hedges, numerous trees, and solitary windmill are quaintly depicted in an old wood engraving inserted in Sprigg's history of the battle; whilst in the open country, in front of the Parliament troops, the King's forces were stretched out in full array. As at Marston Moor, so now at Naseby, victory at first seemed to wait upon Prince Rupert; but he, ever hot-headed, lost his advantage by pursuing the enemy too far, and came back to find the tide of battle turned against him. There had been, during his absence, desperate charges amidst the furze of the rabbit warren, and the swords and pistols of the Ironsides had proved too much for the well-mounted cavaliers.^[542] This engagement proved decisive beyond question, and its place in the history of the Civil Wars is most conspicuous, resembling in this respect the locality where the battle was fought. As Dr. Arnold observes: "On some of the highest table land in England, the streams falling on one side into the Atlantic, on the other into the German Ocean; far away too from any town, Market Harborough the nearest, into which the cavaliers were chased late in the long summer's evening."

Fast as a horse could gallop, the news was carried up to London, and there for days the talk ran on the standards, the field pieces, the much powder and shot, and the royal coach and baggage, with cabinets and

1645, June.

Naseby.

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letters, which had been seized by the conquerors.^[543] The surrender of Leicester to the Parliament resulted from this victory, and as a further consequence came the second relief of Taunton.^[544] That town was held on behalf of the Parliament by Robert Blake—the man who said, when the enemy strove to starve him out, that he had not eaten his boots yet, and who had shewn throughout the siege a patience which was equalled only by his courage. The remembrance continued fresh amongst the Taunton people of the Puritan minister's sermon, preached in the grand old church of St. Mary, on the words, "I am the Lord, I change not: therefore ye sons of Jacob are not consumed;"—and of the shouts of "deliverance!" "deliverance!" which rang through the edifice before the sermon was finished, and which echoed from street to street as Welden's squadron of horse dashed through the east gate to the market-place;—nor could any forget the pause which followed in the church after the tidings had been heard, when all the congregation knelt down and thanked God for their deliverance. And now, again, the faith of the inhabitants was rewarded by the arrival of most timely succour; for the battle of Naseby set Fairfax free to turn his forces southward, and to scatter the forces of Goring, who had been such a pest to the county of Somerset. Not only was Taunton effectually delivered; but Bristol, Bridgewater, Ilchester, and Langport fell into the hands of the Parliament.

As the war proceeded, and as blustering Cavaliers galloped over the country, singing ribald songs and plundering their neighbours; and as Roundheads, equally stern and demure, marched up and down, singing psalms and sacking the houses of Royalist malignants, it necessarily happened that the clergy were great sufferers in the confusion, for they were required to take a side, wherever the soldiers of either army came. Those who went not up "to the help of the Lord, to the help of the Lord against the mighty," fell under a Puritan malediction, very much like that which was imprecated on Meroz. On the other hand, such as held back from fighting the battle of their King, were treated by Royalists as rebellious scoundrels. Between the two, little peace fell to the lot of country ministers where the torch of war happened to be kindled. And, indeed, such were the issues at stake, and so inextricably were religious questions interwoven with political ones, that it seemed next to impossible for any man whose views were not hemmed in by the

*Sufferings of the
Clergy.*

boundaries of his own little parish, not to take part in the far-spreading and momentous strife.

The Puritan who espoused the side of Parliament laid himself open to the violence of Royalists. They would attack his house, break open his chests and cupboards, take away his little stock of plate, cut the curtains from his bed, and steal his linen, even to the pillow-cases. Patience, under such circumstances, became a sign of holy confessorship, and it was told long afterwards with admiration—akin to that of a Catholic repeating the legend of a saint—how a good man so treated, exclaimed with Job, "The Lord gave, and the Lord hath taken away; blessed be the name of the Lord."^[545] If a clergyman or chaplain happened to be discovered as a refugee in any castle or in any camp, he would of course be seized as a prisoner of war; and a story is told of one such, who was sentenced to be hanged unless he would ask pardon of the King; which, if he did, he should have not only his life, but a good church-living; whereupon, conscious of his integrity in the part he had taken, the stout-hearted man replied—"To ask pardon, when I am not conscious of any offence, were but the part of a *fool*, and to betray my conscience in hope of preferment, were but the part of a *knave*; and if I had neither hope of heaven, nor fear of hell, I would rather die an honest man, than live a fool or knave." It was hard to crush or to ensnare any one who was made of this kind of mettle; and this person, whose name was Balsom, after being delivered from the halter, went on preaching to the Royalist garrison, declaring—"While I have a tongue to speak and people to hear, I will not hold my peace."^[546]

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But all Puritans did not adopt the political cause of the Parliament. Some, though incensed at the conduct of Archbishop Laud, still clung to the fortunes of King Charles. They would never wear a surplice, they would never make the sign of the cross; but at any time they would cheerfully die for their sovereign and their country. Such individuals suffered from the Parliament army almost as much as their brethren did from the Royalists. The Rector of Okerton,^[547] whose reverence for the Crown was equalled by his dislike to ceremonialism, was four times pillaged by troops of Roundheads, was twice sent to prison, and was reduced to such straits that he had to borrow a shirt.^[548] Cases also occurred in which ministers disapproved of an appeal to

*Sufferings of the
Clergy.*

arms altogether. A clergyman, who would not keep any days of public fasting and thanksgiving—because, as he said, he would not give thanks to God for one man killing another—was persecuted on that account, and was sent to prison by the governor of Boston for keeping a conventicle. So all drank of the sorrow-cup by turns; it being handed sometimes by one man to another, when both of them were alike Puritans. Walker has collected numerous instances of hardship suffered by the Royalist clergy during the wars. A distinction is to be made between the extravagant statements and vituperative remarks in the first part of his most uncharitable book, and such anecdotes as are related on the authority of correspondents in the second part. These latter partake of a legendary character, and are doubtless coloured highly by their authors; but there is no reason why we should discredit them altogether; and it is very interesting and instinctive to compare them with the traditions of confessorship on the Nonconformist side. Mikepher Alphery, rector of Woolley, in Huntingdonshire, was pulled out of his pulpit by a file of musketeers, and lived for a week in a booth under the trees of his churchyard; Lewis Alcock, rector of North-Stoneham—who seems to have been a "muscular Christian"—when threatened by the Parliament soldiers, brought his bed down into the parlour, and with his gun charged, resolved not to give up his parsonage except with his life. Eldard Alvey, of Newcastle, had to relinquish everything he possessed, and to provide for the safety of himself, wife, and seven children, in the night time, whilst his two curates were threatened with a pistol-shot, if they did not give up reading prayers. Daniel Berry concealed himself under a pile of faggots, where his pursuers discovered him by thrusting their swords into the heap. ^[549] Other similar cases might be mentioned.

The largest amount of suffering experienced by the clergy belongs to the period when men's passions were exasperated by war. Soldiers on both sides were the ministers of vengeance. The fiery excitement kindled in the battle-field was carried into peaceful homes, which became identified with the camp; and ministers of religion, pious, faithful, and devoted, might be found, who, if they did not privately prompt, failed publicly to disapprove of the persecution of their brethren. In many of the biographical sketches supplied by Walker, no indications of spiritual religion appear on the part of those whose livings were sequestered. By some, too, as is evident from the instance just cited, the most determined

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resistance was offered to their persecutors. The spirit of the High Churchman during the civil wars comes out occasionally in strong contrast with that of the Puritan after the Restoration. Yet we cannot doubt but that on the Anglican as well as on the Puritan side there were sufferers, who bore their Master's cross; that for His sake, from loyalty to what they conscientiously regarded as His truth, they bravely endured reproach and wrong. It is amongst the mysteries of Divine Providence, that holy men in this life have to suffer sometimes in a cause which, although by themselves accounted good, is by brethren, equally honest, branded as evil; and that thus there comes to be, in ecclesiastical conflicts, so much pain, at once conscientiously inflicted, and conscientiously endured. No calm thinker can fail to discern the anomaly; and no loving heart but must long for that blessed future, when the fruits of such strange discipline will be reaped by souls now divided on earth, but who will then be united in Heaven amidst the purest charity and the humblest joy.

Only ignorance of the history of those times can lead any one to suppose that the main ecclesiastical questions at issue were settled entirely, or even chiefly by the debates of either divines or of statesmen. What occurred far away from the Jerusalem Chamber, and from St. Stephen's Chapel, had much to do with the proceedings within those walls. Naseby fight struck the last blow in the struggle with Episcopacy, and by crushing the Royalist party, rendered the cause hopeless; and it also, though in a less obvious manner, materially affected the fortunes of Presbyterianism, by controlling its excesses, and preventing the concession of its inordinate demands.



CHAPTER XX.

The Naseby triumph was won, not by the Scotch army, or by the English Presbyterian generals, but chiefly by Cromwell and his Independent Ironsides. They sustained the hottest brunt of the battle, their charges bore down the brilliant cavaliers; and they, therefore, claimed the greenest laurels reaped on that memorable field. They had become the sworn opponents of the men who were so busy in laying the corner-stones of the new ecclesiastical establishment. Jealousy of Presbyterian power was an influence which, combined with a disapproval of the mode of carrying on the war, produced the self-denying ordinance, by which certain officers of that persuasion were removed from command. Not that Cromwell and others had any great distaste for Presbyterianism considered in itself, since in doctrinal tenets and religious feeling they agreed with the Genevan school; but with the exclusiveness and intolerance of its ecclesiastical polity they were at issue: and they were determined that, while they had tongues to speak and hands to fight, they would not allow a Presbyterian any more than an Episcopal Church to trample upon the liberties of other denominations. They had fought for religious freedom as their own right, and were prepared to concede it, with certain limitations, to their brethren; nor would they now, in the hour of their success, surrender the prize for which they had fought and bled. As the Naseby heroes assumed an attitude of resolute opposition to the Presbyterians, the effect soon became visible at Westminster.

New elections contributed to alter the relative position of these parties. New writs were issued by the Speaker of the House of Commons, in August, to fill up vacant seats. Before the end of the year, one hundred and forty-six fresh members took the oath; and within twelve months eighty-nine more did the same, amongst whom were Blake, Ludlow, Algernon Sidney, Ireton, Skippon, Massey, and Hutchinson.

*Unpopularity of the
Scotch Army.*

There was another cause at work in the same direction. The Scotch army had been the main pillar of

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Presbyterian hope. In almost every letter which the indefatigable Robert Baillie wrote home to his friends this fact appears. No doubt, in the simplicity of his heart, and without any consciousness of inconsistency, he could stand up in any Edinburgh or London pulpit and take for his text, "The weapons of our warfare are not carnal;" and yet, no man was more filled with the idea that the success of Presbyterianism in England depended upon Scotch soldiers. To take one instance from a sheaf of quotations. "If by any means we would get these our regiments, which are called near thirty, to sixteen thousand marching men, by the blessing of God, in a short time we might ruin both the malignant party and the sectaries. The only strength of both these is the weakness of our army. The strength, motion, and success of that army, in the opinion of all here, is their certain and quick ruin.... It's our only desire to have the favour of God, and to hear of the speedy march of our army."^[550] But at the time of which we now speak the Scotch soldiers had become very unpopular. Our laborious correspondent expostulates with the authorities of his own country, not only on the dilatoriness of their military movements, but on the demoralized condition of their troops; so that, as he said, if justice were not done "on unclean, drunken, blasphemous, plundering officers," Scotland would "stink in the nose" of England. He was frightened to hear what many told him of ravishers, blasphemers, and Sabbath-breakers, being left unpunished. No one could be more zealous for the discipline of the forces than he who thus discloses his bad opinion of their character and his fear of the ruinous consequences. Letters in the State Paper Office indicate what ground there was for Baillie's apprehensions. These letters complain of the lawless behaviour of Major Blair's men, stationed in Derbyshire, who broke open houses, beat women, and robbed the carriers as they came to Winkworth market. And so it happened, that while the Scotch Presbyterian army, which was meant to be England's saviour, was sinking into had repute, Cromwell's Independents were being praised up to the very skies.^[551]

The case stood thus. The Scotch and most of the Presbyterians of the Westminster Assembly were, on the one side, for putting down the sects, and setting up an ecclesiastical rule which should have government support without government direction, and exclude from toleration systems different from their own; and on the other side were the army, the Erastians, and the Independents, who, differing from each other in religious opinion

and character, were politically united, forming an irresistible phalanx, which exhibited as its watchwords such mottoes as these: "State Control over a State Church;" "For other Churches full Toleration." Two questions had to be decided. Should not Presbyterianism, established by the civil power, be subject to the interference of that power? Should not freedom of worship and polity be allowed to sects dissenting from the Establishment? There was also a third—Was Presbyterianism of Divine right?

Let us see how the three were handled.

I. The question touching "the Power of the Keys" was debated in the Assembly, and then in the House of Commons. According to Presbyterian doctrine, the keys of the Kingdom of Heaven were committed to the ruling officers of the Church. They had power to call before them any member, to enquire into his spiritual state, and to suspend him from the Lord's Supper, if found unworthy of communion. Church censures, however, while independent of the magistrates' authority as to their origin, were, in their execution, if necessary, to be supported by the magistrates' assistance. The Independents agreed with the Presbyterians thus far, that the most careful order ought to be maintained in the Church of Christ; but the Independents contended that discipline was a duty pertaining to the congregation at large, and that no individual should be set aside, or cut off from Christian privileges, except by the votes of the community. At the same time, they excluded all magisterial interference, and could not accept of any enforcement of their own decisions by legal penalties. The Erastians took a very different view, and believed that communion ought to be perfectly open, and that it should be left to every man's conscience to decide respecting his own fitness for receiving the Lord's Supper. Crimes only, they said, deserved social penalties, and these were to be adjudged by civil tribunals. The Presbyterians carried their own point in the Westminster Assembly. The keys, contrary to the Independent idea, were to be in the hands of Church officers, and not to be held by the congregation at large. The keys, contrary to Erastian notions, were to be exclusively under spiritual, not at all under civil control.

*The Power of the
Keys.*

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When this question passed from the Assembly to the Commons, and the time came for deciding the matter, the conclusion of the Assembly was annulled. The House determined, that if any person found himself aggrieved

by the proceedings of a Presbytery, he might not only appeal to a superior Church tribunal, but he might bring his case for final adjudication before the High Court of Parliament. Criminal charges were reserved entirely for the magistrates' decision, whose certificate was necessary for the suspension of offenders. A committee of Lords and Commons also had vested in them a discretionary power to adjudge any cases of scandal unspecified in the rules for suspension which had been drawn up by the Assembly.^[552]

The Erastians, who were at this time the leaders of the political Independent party in the House of Commons, thus defeated their opponents. By fixing the control of ecclesiastical judicature in the civil magistracy and in Parliament, they established their own distinctive principle, which was utterly subversive of the polity advocated by the Presbyterians. The Church was altogether degraded from its position as a kingdom not of this world; and also discipline became so fettered, that in many cases its exercise proved to be impossible. The rules prepared by the Assembly, and sanctioned by the Commons, appeared sufficiently formidable to fence the Lord's table against the approach of improper communicants; yet the very minute specification of sundry offences, as in all cases of precise canon law, really presented an obstacle in the way of discipline respecting unspecified offences against morality and religion. All such minute rules are inherently vicious, and are singularly out of harmony with New Testament methods of legislation. Moreover, the interference of magistrates and of senatorial committees were likely to render these rules inoperative; and in cases which the rules did not reach, such interference was not calculated to produce ecclesiastical purity.

*The Power of the
Keys.*

One object of the Presbyterians was the establishment of a Church of incorrupt religion and of undefiled morality. The Puritan Presbyter resembled the Anglican Archbishop as an apostle of uniformity; but the former thought much more of moral reformation, and much less of ritual worship, than the latter. The Church discipline of Presbyterian courts came nearer to the Church discipline of Archdiaconal ones than many people suppose; but what is truly moral and religious was raised by Presbyterians above what is ceremonial in a measure far beyond the conception of Romanists or Anglo-Catholics. The old ecclesiastical courts were

overturned, many cases of immorality were no longer subject to jurisdiction; and Presbyterians, who, like Anglicans, treated the nation as a Church, aimed by their own system to supply what they considered a great defect in the moral government of the people.

The English Presbyterians essayed to walk in the path of their Scotch brethren; and the general conviction of the latter as to the divinity of that system must be borne in mind. Amongst an equal number of persons, where one man in England believed prelacy to be a divine institution, a dozen might be found in Scotland, who were not only assured that their Church rested upon the foundation of apostles and prophets, but were resolved also, in its defence, to go to prison, to the gallows, or to the stake. Church power bore in their eyes the stamp of Heaven, and owed nothing to Acts and Ordinances of Parliament. In Scotland, the Reformation had not been, as in England, mainly the revolt of the laity against the clergy. The clergy had led the way, like a grand prophet choir, they had headed the host. They had been in the van as the nation marched out of Egypt; and Moses did not more rejoice over Pharaoh than John Knox had done over the Man of Sin. Some will say there was plenty of fanaticism in the Reformation on the other side the Tweed; but it must be admitted that there was certainly no time-serving. Braver men never trod God's earth; and the sons now brought some of their fathers' fire over the border.

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But, however admirable the purpose of the Presbyterians might be, the means employed for its accomplishment were inappropriate, dangerous, and unjust. They were *inappropriate*, because purity of discipline has ever been found impossible in a State establishment, whether it be the superior, the ally, or the subordinate of the civil power; for a Church which comprehends, or is meant to comprehend, a whole nation within its pale, must necessarily be open to great laxity of communion. The means, too, were *dangerous*, because to vest the power of discipline, entailing civil consequences, in a body of local officers, was to place the social position and interests of individuals at the mercy of a few in their own parish, who possibly might be induced by unworthy motives to give trouble and annoyance. And the means also were *unjust*, because the penal enforcement of uniformity in doctrine, worship, and polity, contravened the rights of conscience, and deprived all Nonconformists of religious liberty. It was not

on the side of opposition to strict discipline and pure fellowship that religious Independents had any sympathy with the Erastians in their anti-Presbyterian warfare. Most earnestly did the former inculcate the importance of these very things, and, for the sake of them, were prepared to sacrifice many temporal advantages. What they objected to was, first, the secular power which the new Church wished to manage and employ for its own purposes; and secondly, the intolerance towards rival sects with which the supremacy of that Church would be connected. The Independents maintained, what wise and thoughtful men, though widely removed from Erastian tendencies, have ever since done, that if there be an Establishment at all, it is far better that the State should be mistress of the Church than that the Church should be mistress of the State. No doubt, the political alliance between the Erastian and the Independent damaged somewhat the apparent consistency of the latter; but in this respect, as to what he suffered, he only shared in the common fate of religious persons when entering into political combinations; and as to what he did, he only acted like many individuals since of eminent conscientiousness; for in fact he was glad of help, from whatever quarter it might come, in his endeavours to prevent despotism and to resist intolerance.

II. The question of the keys, if it did not exactly involve, certainly approached the question of *toleration*. At any rate, Church censures, when left to the presbytery of a parish, gave little hope of religious liberty being conceded to the parishioners. But, beyond mere implication and probable contingency, there existed the fact that the Presbyterian regarded the suppression of opinions and usages contrary to his own as an inexorable obligation. In addition to the legal enactment of discipline, he asked power to punish sectaries. The ministers were ardent in endeavouring to prove the magistrates' duty to put down heresy and schism. It formed the theme of numerous sermons preached in St. Margaret's to the House of Commons. The City Divines, in their weekly meetings at Sion College, debated upon the best method of securing that end. The zealots of the party would, if possible, have moved the Corporation of London to throw its influence into their scale; but, just then, certain political complications checked the movement, and deep lamentations over the faithless citizens immediately ensued. So far did some of the Londoners go in this kind of backsliding, that they even spoke of the Assembly being

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dissolved^[553]—an extreme measure, which the Lords Say and Wharton, in their jealousy of ecclesiastical encroachments upon the liberties of the people, had also proposed in the Upper House.^[554] At the same period, books and pamphlets were written by Prynne and others, to establish the claims of the new ecclesiastical polity, and the righteousness of treating all sectaries as obstinate offenders.^[555] One of their advocates, in the heat of his eloquence, declared, "that to let men serve God according to the persuasion of their own consciences is to cast out one devil, that seven worse might enter."^[556] The Scotch were too much interested in the subject, and took too prominent a part in the settlement of ecclesiastical affairs in England, to be silent at this crisis.^[557] But the style of the letter which they sent to Parliament ruffled the tempers of many of the members, though it received at the time a courteous and dignified notice; but two months afterwards, when another address of a similar character, yet less offensive in style, came from the same quarter, and was published without authority, the Houses voted the "papers false and scandalous, and, as such, to be burnt by the hand of the hangman."^[558]

The Presbyterian advocates, as they insisted upon the excision of heresy and schism by the sword of the State, never attempted to do so on grounds of political expediency with the idea, that by hunting out heresy and schism they would be getting at serpents of treason hidden underneath. Very different were the grounds of their policy from some selected by the Anglican Church at the Restoration. Fidelity to Christ's crown—pure zeal for His covenant—were put forth, and sincerely felt in a number of cases, as the main, if not the sole, motive of the Presbyterian crusade against hated sects. Perhaps sometimes Independents and Presbyterians did not clearly understand one another. The former might, at times, seem to countenance the moral toleration of error and sin, and to be thinking more of liberty than of truth. On the other hand, the Presbyterian polemic might sometimes only intend to pour out his fiery wrath upon sympathy with falsehood and evil when he denounced toleration; but certainly this was not always the case, and it may be added that, generally, he prized truth much more than liberty. Neither side seemed to discern that the defence of freedom in religion must rest simply on the *civil right* of every man to pursue his own course, to declare his own

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opinions, and to act according to his own convictions, so long as he does not interfere with his neighbours who wish to do the same. We are prepared to judge favourably of the motives of the Presbyterians; but if their motives in some degree redeem their character, it must be admitted that men holding the opinions of toleration which many at least of that party did, though they may act under the influence of the best feelings, are very dangerous persons to be at the head of public affairs. If, under the idea that they have a mission from Heaven for the purpose, and with a desire to promote the glory of God, they set to work to gather the tares from amidst the wheat, woe be to the culture of the field altogether, and to the growth even of the good grain. He who perfectly understood this subject interdicted all such interference, no matter how pious the intent, and laid down a law which is utterly inconsistent with all intolerance—"Let both grow together to the harvest." After His decision on the subject, for any persons, however wise and good in other respects, to attempt the extermination of error and evil by the scythe of civil penalties, is sheer fanaticism, whether the endeavour be made by a Protestant ecclesiastical court or by a Roman Catholic inquisition.

III. The doctrine of the *Divine right of Presbyterianism* was bound up with its scheme of discipline and its principle of intolerance. The majority of the Westminster Assembly would not rest content with the establishment of their Church by the simple decree of Parliament. They required it to be recognized by the State as *of Divine authority*. Not only did the Presbyterian say that he believed—which was consistent and proper—that his own system rested upon the teaching of the New Testament; but he demanded that the highest power in the realm should say the same, and enforce its peculiarities, as requirements clothed with a celestial sanction. This doctrine the Independents opposed, on the ground that they considered their own Church polity to be nearer the Word of God. The Erastians also opposed it, because they did not believe in the Divine foundation of any ecclesiastical rule at all. Both parties alike opposed it on the principle, that if the State chose to endow a Church, the State must be left to do so on its own terms. In this way it happened, as it often does in controversy, that parties proceeding from different and even opposite points, found themselves at length side by side, in honest and hearty alliance, so far as related to a resistance of common foe. But it should be borne in mind that it

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was not in the character of religionists that Independents and Erastians formed their combination, but in the character of patriots and politicians, who were agreed in resisting a body of men whose success in the advocacy of intolerance they judged would be as inimical to the temporal welfare as it would be destructive to the religious liberties of the nation.

There were debates on the *jus Divinum* in the Assembly, and sterner and more important debates on the same subject in the House of Commons. The five brethren argued from Scripture for Congregationalism against Presbyterianism; and Whitelocke and Selden employed their learning and logic to prove that the Bible did not decide the question one way or the other. At length a crisis came. The Presbyterians of the Assembly, in concert with their Scotch brethren, complained of the Erastian clauses in the Parliamentary ordinance for discipline, and asserted the Divine right of the scheme of government. The House of Commons declared that the Assembly had no right to complain of the decision of Parliament, since the Divines had been called together simply to give advice, and that with giving advice their functions came to an end. Members spoke of the penalties of a *præmunire*, and held up that which has been described as the "fatal spell before which spiritual pretensions sunk exorcised, mysterious as excommunication and no less terrible in its vagueness."^[559] At the same time, they called on the Assembly to answer certain queries as to the nature and extent of the *jure Divino* claim. This was done simply with the view of putting off a serious collision with the Assembly. But whatever want of earnestness there might be on the side of Parliament in proposing the questions, no want of earnestness is seen on the side of the Assembly in answering them. Yet, when the replies were ready in July, 1646, the Assembly became afraid of a final rupture, and, under the terror of a *præmunire*, abstained from publishing what they had prepared. The Divines of Sion College, however, took up the controversy, and would have vigorously pursued it, had not Parliament cut short the matter by peremptorily insisting that the ordinances issued in March should be obeyed. After relieving their consciences by an explanation of their views, these reverend persons submitted^[561] to the authority which they found it impossible to resist.

As we shall not have occasion again to notice the Westminster Assembly, it is convenient here to conclude its history. No Convocation ever sat so long. Gathered in the summer of 1643, it pursued its work till the autumn of 1647, when, the main business of the ecclesiastical commission being completed, the Scotch members took their leave. But from that time up to the winter of 1648-9, a few of the Divines continued to examine ministerial candidates; and afterwards a small committee met for the same purpose every Thursday morning, even as late as the spring of 1652. Upon the breaking-up of the Long Parliament by Oliver Cromwell, this appendage silently disappeared without any formal dissolution. Neither before nor since did any convocation of the Church in England go over so much ground, and accomplish so much work. In this respect it rivals the Council of Trent. The whole range of dogmatic divinity, together with ecclesiastical polemics, and devotional formularies, came under discussion. Notice has been taken of the partial revision of the Thirty-nine Articles, of the Directory for worship, and of the humble advice for the ordination of ministers, and the settling of Presbyterian government. It is almost needless to say that the Westminster Divines prepared a confession of faith. A committee, including Reynolds, afterwards Bishop of Norwich, drew up this document. They divided themselves into sections, each taking a specific topic. When a chapter had been fully prepared it was submitted to the Assembly, and then again subjected to minute examination, sentence by sentence, and word by word. There were long and tough debates on the doctrine of election. Neal says, "All the Divines were in the anti-Arminian scheme, yet some had a greater latitude than others. I find in my MS. the dissent of several members against some expressions relating to reprobation, to the imputation of the active as well as passive obedience of Christ, and to several passages in the chapters of liberty of conscience and Church discipline; but the confession, as far as it related to articles of faith, passed the Assembly and Parliament by a very great majority."^[561]

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The confession consists of thirty-three chapters—the first on the Holy Scriptures, the last on the final judgment. The doctrines of Calvinism are sharply defined in an order and in a form which many theologians of the present day, substantially Calvinistic, cannot adopt. Certain chapters, interspersed with the rest—the twentieth, on Christian liberty and liberty of conscience,

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the thirtieth, on Church censures, and the thirty-first, on synods and councils—plainly exhibit the intolerance of the times in connection with the principles of Presbyterian government. As everything which the Assembly did had to be submitted to Parliament for its sanction, this theological manifesto came under the consideration of that supreme court. The doctrinal portions were ratified by the two Houses, but the particulars as to discipline were "recommitted;" which, under the circumstances, though it did not amount to a formal, yet proved a virtual rejection. ^[562]

Two catechisms, the longer and the shorter, were also prepared at Westminster,—the last of which, with its scripture proofs, was much more familiar to the children of Nonconformists in past generations than in the present. The Annotations which bear the name of the Assembly were, in fact, the production of a committee appointed by Parliament, including learned men who never belonged to the Assembly at all. The Assembly also undertook the revision of psalmody, which has obtained less notice than it deserves. Congregations were getting tired of Sternhold and Hopkins; consequently Parliament recommended there should be a new version. One, by Mr. Rouse, found favour with the Commons, and was submitted to the consideration of the Divines, who, after a careful perusal and some emendations, pronounced it "profitable to the Church, should it be publicly sung." But Mr. Rouse had a rival in Mr. Barton, who likewise had prepared a new psalter. He petitioned the Lords in favour of his own work, and obtained their patronage. They passed a resolution, enquiring of the Divines why Mr. Barton's book might not be used as well as others? The Lower House soon afterwards decided that Mr. Rouse's psalms and no others should be sung in all churches and chapels within the kingdom of England, the dominion of Wales, and the town of Berwick-upon-Tweed. The Assembly, in answer to the queries of the House of Lords, replied that, if liberty should be given to people to sing whatever translation they liked, several different books would be used even in one and the same congregation at the same time, "which would be a great distraction and hindrance to edification." This was such an extraordinary contingency, that to contemplate it as at all probable, indicated the existence of an astonishing amount of disunion and obstinacy. It is a significant fact that, whilst in the Episcopal Church of England, after the imposition of the Prayer Book, the choice of a form of psalmody was left to the discretion of the clergy and their congregations, the Presbyterians, when in power, would

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not allow such liberty, but endeavoured to secure uniformity in the worship of praise, such as in the worship of prayer they did not even permit. ^[563]

The Westminster Assembly has seldom been treated with justice. By Episcopal Churchmen, too generally, it is depreciated; and by some it is dismissed with a few words of unconcealed contempt. Scotch Presbyterians have extravagantly extolled it; and Neal, the Independent historian of Puritanism is accused of damning it with faint praise. Clarendon speaks of the Assembly in words of scorn; and Walker, still more deeply prejudiced, writes against it with wearisome vituperation. Milton, who had incurred the censure of the Divines by his doctrine of divorce, could not be expected to pronounce an equitable judgment on their merits; and we do not wonder at the resentment which burns against his censurers through certain magnificently sonorous sentences in the third book of his History of England. ^[564] Baxter's words have been often quoted on this subject, and though not free from partiality, they deserve more than those of any other man to be repeated: "The Divines, there congregate, were men of eminent learning and godliness, and ministerial abilities and fidelity; and being not worthy to be one of them myself, I may the more freely speak that truth which I know, even in the face of malice and envy, that, as far as I am able to judge by the information of all history of that kind, and by any other evidences left us, the Christian world, since the days of the apostles, had never a synod of more excellent Divines (taking one thing with another) than this synod and the synod of Dort were." ^[565]

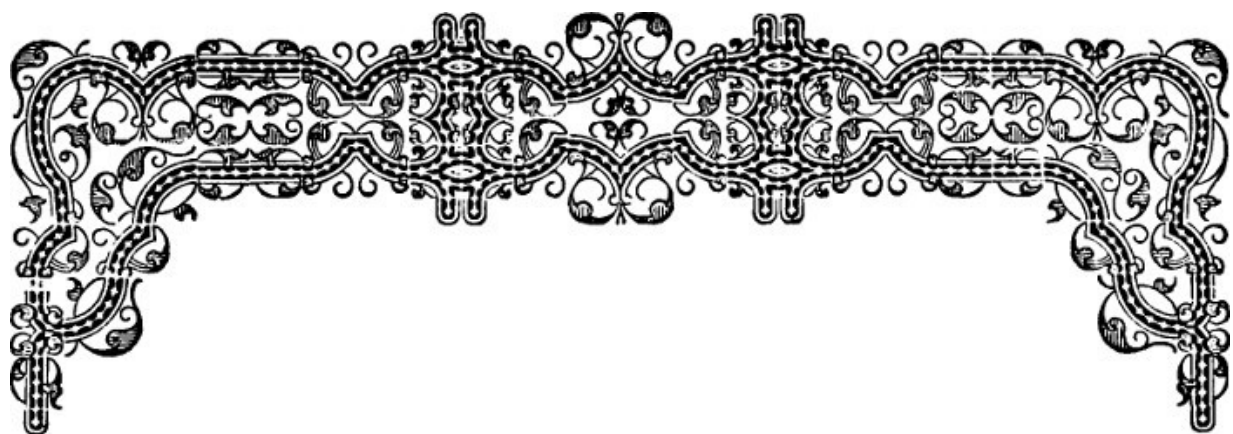
This is high praise; but it comes nearer to the truth than the condemnatory verdicts pronounced by some others. The godliness of the men is proved by the spirit of their writings, and by the history of their lives. Their talents and attainments even Milton does not attempt to deny. No one would think of comparing any of them with Jeremy Taylor in point of eloquence; and in breadth of sacred learning, in a certain skilful mastery of knowledge, and in the majesty and grace of polemical argument, the best were not equal to Hammond and Pearson. Cosin would surpass them all in some branches of study, which they would account useless. Certainly, none of them had the sagacious quaintness of Bishop Hall, or the inexhaustible wit of Thomas Fuller; but quaintness and wit are qualities not

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needed in theological conferences. Even superior eloquence and large accomplishments may, in such case, be dispensed with. The Westminster Divines had learning—scriptural, patristic, scholastical, and modern—enough, and to spare; all solid, substantial, and ready for use.^[566] Lightfoot and Selden were of ponderous but not unwieldy erudition; and Arrowsmith and Calamy, though less known to literary fame, were ripe and ready scholars. Caryl and Greenhill had abundance of knowledge; Dr. Goodwin was, in many respects, the greatest Divine amongst them all. Moreover, in the perception and advocacy of what is most characteristic and fundamental in the Gospel of Jesus Christ, they were, as a body, considerably in advance of some who could put in a claim to equal, and perhaps higher scholarship. They had a clear, firm grasp of evangelical truths. The main defect and the chief reproach of the Assembly consisted in the narrowness and severity of their Calvinism, and in the fierce and persistent spirit of intolerance manifested by the majority.



CHAPTER XXI.

The new modelling of the army was a necessary measure, and produced a very great moral improvement. Even Hampden had spoken of the insolence of the soldiers, and, after the fall of Reading, complaints of their conduct reached the Earl of Essex. It was declared that they had grown "outrageous," and that they were "common plunderers." According to report, they had ransacked five or six gentlemen's houses in a single morning. In fact, the Roundheads, in some instances, had grown to be as odious as the Cavaliers; and, without better discipline, they were threatening to prove a ruin, rather than "a remedy to this distracted kingdom." Having claimed an independence incompatible with military subjection, these volunteers needed a thorough re-organization, such as was accomplished by the new model. Fairfax, in his first march after the reform had commenced, resolved on "the punishment of former disorders, and the prevention of future misdemeanours." Offenders were tried and justice was summarily executed. A "renegado" was hanged *in terrorem* upon a tree at Wallop, in Hampshire, as certain troops were marching through that parish; and the next day a proclamation was issued, threatening with death any one who should dare to commit any act of plunder. There is no reason to doubt the testimony of Joshua Sprigg, Fairfax's chaplain, that a moral reformation ensued upon the adoption of the new military constitution, and that the men became "generally constant, and conscientious in duties; and by such soberness and strictness conquered much upon the vanity and looseness of the enemy."

But the state of religion chiefly concerns us. If the church at Oxford had been turned into a Royalist camp, the camp of Fairfax and Cromwell might now be said to be turned into a Republican Church. Not that there existed any organized ecclesiastical government, or any uniformity of worship; but, according to the authority just quoted, "the officers, many of them, with their soldiery, were much in prayer and reading Scripture," an exercise which before they had "used but little." "Men conquer better," adds the chaplain, "as they are saints than soldiers; and in the countries where they came they left

something of God as well as of Cæsar behind them—something of piety as well as pay."^[567]

Richard Baxter spent some time with the army, and has largely recorded his opinion of its condition. He found that an "abundance of the common troopers," and that many of the officers were honest, sober, and orthodox; but he complains of a few proud, hot-headed sectaries, amongst Cromwell's chief favourites, who by their "heat and activity bore down the rest, or carried them along with them." Baxter, with all his large-hearted charity, was not free from prejudice with regard to this subject, and his accounts of the "sectaries" must therefore be received with caution. He tells us they were hard upon the Presbyterian ministers, putting some gall into their wit, calling them "priest-byters, dry-vines, and the dissembly men." Honest soldiers of weak judgments, and little theological knowledge, were seduced into a disputing vein, sometimes for state democracy, and sometimes for church democracy, sometimes against forms of prayer, and sometimes against infant baptism,—sometimes against set times of prayer and the binding themselves to any duty before the Spirit moved them, and sometimes about free grace and free will, "and all the points of Antinomianism and Arminianism." We are by this reminded of the description of the Eastern Church by Gregory, of Nyssa. He tells us that knots of people at the street corners of Constantinople were discussing incomprehensibilities; in the market-place money-changers and shopkeepers were similarly employed. When a man was asked how many *oboli* a thing cost, he started a discussion upon generated and ungenerated existence. Enquiries of a baker about bread were answered by the assertion—that the Father is greater than the Son. When anybody wanted a bath, the reply was, the Son of God was created from nothing.^[568] With some allowance for the extravagance of the satire, and with a change of terms to suit the Commonwealth controversies, the description of his countrymen by the Greek preacher may be applied to many of the soldiers of the new-modelled army. Here a field opened for controversy, adapted to Baxter's subtle and debate-loving nature. Honest as the day, with a passionate desire to reform the army, he went from tent to tent, with the Bible under his arm, whilst his eyes flashed with fire burning in the very depths of his soul. Everybody who knows the man will believe him when he says: "I was

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almost always, when I had opportunity, disputing with one or other of them, sometimes for our civil government, and sometimes for church order and government, sometimes for infant baptism, and oft against Antinomianism and the contrary extreme." Well armed with theological weapons, he was as much in his element with "the sword of the Spirit," cutting down regiments of ghostly errors, as any pikeman or trooper could be as he was stabbing an enemy or firing a pistol at his breast. Baxter particularly records an encounter he had at Amersham. Bethel's troopers, with other sectarian soldiers, accompanied by some of the inhabitants of Chesham, had a pitched battle with the Presbyterian Divine. He occupied the reading pew, and his antagonists, "Pitchford's cornet and troopers," took their place in the gallery: the church being filled "with poor, well-meaning people, that came in the simplicity of their hearts to be deceived." The debate went on till nightfall; Baxter stopping to the very last, lest his retirement should be construed into a confession of defeat.

It is remarkable that this champion of orthodoxy assures us that he found nearly one half of the religious party either sound in their belief, or only slightly tinged with error; and that the other half consisted of honest men, who, with kindly and patient help, seemed likely to be recovered from their theological mistakes. There were, in his judgment, only a few fiery spirits, and they made all the noise and bustle. One of the heaviest charges which he brings against the sectaries will, in the present day, redound to their honour; for he observes: "Their most frequent and vehement disputes were for liberty of conscience, as they called it, that is, that the civil magistrate had nothing to do to determine anything in matters of religion, by constraint or restraint, but every man might not only hold, but preach and do, in matters of religion, what he pleased—that the civil magistrate hath nothing to do but with civil things, to keep the peace, and protect the Churches, liberties."[\[569\]](#) In short, it appears that the Roundhead army really contained a set of men who anticipated John Locke's doctrine of toleration, and something more.

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The chaplain of Fairfax was Joshua Sprigg, an Independent minister, already mentioned. Breathing the spirit then prevalent in the camp, he advocated the toleration of extreme opinions; but does not appear himself to have been a man of extravagant views. His history of the army is creditable to his

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intelligence and judgment; and, though tinged with the peculiar rhetoric of the day, it is singularly free from all fanaticism. Another Independent Divine holding a chaplaincy under General Fairfax was the celebrated John Owen. The General had his head quarters for a time at Coggeshall, where Owen officiated as vicar, and in 1648 he preached before his Excellency and the Committee two sermons, which are published.^[570] They commemorate the surrender of Colchester, and the deliverance at Rumford; and with an oratorical flourish, which has been severely criticised,—but which really means nothing more than that Providence had given success to the arms of the Parliament—the preacher speaks of the God of Marston Moor. The accommodation of the passage in Habakkuk—"God came from Naseby, and the Holy One from the West; His glory covered the heavens, and the earth was full of His praise," is less defensible—though the excitement of the moment, the flush of victory, and the aspect of a military audience, may be allowed to mitigate our censure of Owen's want of taste on the occasion;—and taste is hardly to be looked for in a military preacher, amidst the throes of a revolution full of fire and blood. The martial zeal appearing in some parts of these discourses is only a specimen of what blazed up much more fiercely in the addresses of other ministers who fulfilled their vocation in garrisons and tented fields. What must some of the sermons have been, where there was not Owen's learning, judgment, and devoutness to check the orator! And let us not here omit to remark, that Owen was true to the principle which was the guiding star of the new army, and insisted strongly in these sermons upon the iniquity of persecuting men for religion. In this respect there were few, if any, of the religious teachers popular amongst Cromwell's troops, who did not sympathize with the Coggeshall Divine.

It is useless to pick out the names of chaplains now unknown. Many of them, no doubt, if we were fully acquainted with their history, would be found more respectable and worthy men than were others whom we see thrown conspicuously on the surface, to attain by no means an enviable notoriety. Hugh Peters is chief of this class. He certainly must have been a man of considerable ability to have gained the influence which he possessed; and in earlier life he could have been no worse than a coarse but energetic preacher, followed by crowds of the common people. Escaping to Rotterdam to avoid persecution, he became colleague with the learned Dr.

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William Ames in the pastorate of an Independent Church.^[571] The man bore a good reputation then, and, it is said, procured £30,000 for the relief of the Irish poor. He also visited New England, and for a long time after his return did not give up the idea of going back to America. In Sprigg's "History of the Army," Peters, who early became a military chaplain, is introduced repeatedly as a messenger to Parliament with tidings of victory, for which he received handsome rewards. A chaplain might have been better employed than in conveying messages of this nature, yet such an occupation was not so unsuitable to his sacred character as some other employments in which he was engaged; for it is related of him that he acted as a recruiting officer in market towns, entered into treaty with Royalist commanders for the surrender of garrisons, and even acted as a general of brigade against the Irish rebels.^[572]

Another individual, less known to posterity, who combined the offices of chaplain and captain, was Thomas Palmer, of Nottingham, the account of whom by Lucy Hutchinson gives us an insight into a kind of character then very common. He had a bold, ready, earnest way of preaching, and lived holily and regularly as to outward conversation, whereby he obtained a great reputation, which swelled his vainglorious, covetous, contentious, and ambitious spirit. He had insinuated himself so far as to make these godly men desire him for their captain, which he had more vehement longing after than they, yet would have it believed that the honour was rather forced upon him. Being at that time in the castle with his family, he came to the governor and his wife, telling them that these honest people pressed him very much to be their captain, and desiring advice on the subject. They freely told him, that, as he held a charge of another kind, they thought it not fit for him to engage in this new one, and that he might equally advance the public service and satisfy the men who made the request by marching with them simply in the character of chaplain. He went away, she said, confused, observing that he would endeavour to persuade them to be content; but afterwards he informed her that they would not be otherwise satisfied, and so he was forced to accept the commission.^[573]

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Allowing for the lady's prejudices, her story of Palmer may be admitted in the main; and we may add that, in another part of her narrative, she mentions four hundred people, whereof "more than half were high

malignants, who enlisted under one Mr. Coates, a minister and a godly man."

John Saltmarsh, another of the army chaplains, was a somewhat different character. He must have been a man of irreproachable spirit, for, according to a report preserved by Anthony Wood, "he always preached the bonds of love and peace, praying that that might be the cord to unite Christians in unity." "He meddled not in the pulpit with Presbytery and Independency," but only "laboured to draw the soul from sin to Christ."^[574] Yet strange stories are told of him. He had visions just before his death. He visited Windsor Castle, where he refused to take off his hat to Fairfax and Cromwell, because, he said, the Lord was angry with them for committing the saints to prison. After administering reproof which was equally distinguished by faithfulness and fanaticism, he took his leave, remarking that he had finished his errand and must depart never to see the army any more. Returning home, cheerful and in health, to his wife at Ilford, he told her he had finished his course and must go to his Father; and then lying down immediately afterwards upon his bed, he died quietly the next day. These facts taken together indicate a disturbed condition of the brain just as the soul was about to shake off its mortal coil. But on turning to Saltmarsh's "Sparkles of Glory, or Some Beams of the Morning Star," the only book which we have read of his, we notice in it some of the clearest expositions of religious liberty which can be found in the literature of those times. The spirit of the treatise is singularly beautiful, and the teaching of such a man must have been of a healing tendency. It is very true he undervalued the baptism of water, and depreciated all outward ceremonies—in fact, entertained many opinions in common with Quakers; but he had an intense craving after spiritual unity, believing that he found God in lower as well as in higher things, in purer as well as in more corrupt administrations, and expressing "his tenderness and respect towards Episcopalians at home and abroad, though he did not approve of their forms." A mystical element pervades his books, strongly reminding us of John Tauler; and that person is to be pitied who can read the writings of such men without deriving interest and edification. Each exhibits an imaginative mind, striving eagerly to catch glimpses of the infinite and eternal, united to a tremulously sensitive heart, which reacts on the intellect and electrically touches it, so as to make every idea quiver with emotion. There was an abundance of mysticism in the Parliamentary camp;

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it might and did run into phantasies; but beneath much of what some keen men of the world would ridicule as jargon and absurdity, there may be felt the pulsations of the old patriarch's desire, "O that I knew where I might find HIM!"

The religion of the camp, in which Fairfax and Cromwell had the rule, will not be fully understood unless we notice the ministrations of those officers who became theological teachers, although they claimed no clerical character. By them indeed the distinction between clergy and laity was quite broken down. Cromwell, Harrison, Berry, and others, preached and prayed in a manner esteemed by many of the soldiers more edifying than that of some Presbyterian, or even some Independent clergymen. It would be idle to judge of them by rules applicable to the arrangements of a standing army of the present day; although few now would object to religious efforts for the welfare of soldiers such as were employed by the late lamented General Havelock. But, nobody can deny that fondness for preaching became a monomania in the Parliamentary army. It led to inflammatory harangues, and also to dry and distressing diatribes. Ninety-seven divisions might be numbered in discourses by these sermonizing majors.^[575] A preference for the style of preaching peculiar to such persons, or a prejudice in favour of doublet and cuirass over Genevan cloak and bands, or a belief in current scandals touching the parochial clergy, made the Roundhead soldiers at times disgracefully impatient under the preaching of regular ministers:—as, for example, when Captain Pretty, at Taunton, "with much admirable incivility," commanded the Presbyterian, Master Shepherd, to come down from the pulpit, publicly charging him with a "disorderlie walk."

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*Religion in the
Camp.*

Thank God, by the side of this fanatical folly, and even mixed up with it, there may be discovered also much of honest devotion and Christian morality. In many a military assembly during the civil wars, gathered in town or country church—or under some canvas roof in the midst of a camp—or in the open air by the hill-side—or in the depth of a valley—or upon a village green—or under the shadow of a secluded grove—where some unlettered soldier preached the gospel and prayed with his comrades—though there might be not a little to shock a cultivated taste, there would be very much more

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which was acceptable to Him who is a Spirit, and who overlooks much which is annoying to us, if men do but worship Him in spirit and in truth. Favourably would these simple and irregular forms compare with more orderly and imposing modes of religious service in cathedrals and churches and chapels,

"Where men display to congregations wide, Devotion's every grace except the heart."

Those who fought at Marston Moor and Naseby could not have cultivated so much communion with the Invisible as they did, without thereby gaining strength for carrying the daily burdens and fighting the common battles of human life. There is hardly more of poetry than of truth in the picture of a Puritan trooper with his helmet on the ground, and his sword-belt unfastened, sitting by his tent door in the heat of the day, to talk with the angels of God, whom faith in the well-worn book on his knee had enabled him to behold:—or, of another veteran of the same class, the night before a great battle, with clasped hands, looking up to the bright stars, seeking by prayer the help which he needed from the God above them. And all this kind of experience must have made such people not only better soldiers, but better men. It might not correct those obliquities of vision with which they regarded the character of their own cause, and the conduct of its enemies; but, where the great questions of the day did not interfere with their judgment and their will, prayer and the Bible helped to make them what it was their duty to be in the common relationships of human life, in their neighbourly charities, and in their habitual behaviour as fathers and husbands, as brothers and sons, as friends and citizens. We are convinced that multitudes of those who fought for the liberties of their country in the civil wars, were not the contemptible fanatics which they are frequently represented as being, but noble-hearted men, of whom the world was not worthy, and England may well be proud.

Some years afterwards, Whitelocke, the Commonwealth Ambassador to Christina of Sweden, had a curious conversation with her Majesty, respecting the religion of the army. "I have been told," said the Queen, "that many officers of your army will themselves pray and preach to the soldiers; is that true?" Whitelocke replied, "Yes, madam, it is very true. When their enemies are swearing, or debauching, or

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pillaging, the officers and soldiers of the Parliament's army used to be encouraging and exhorting one another out of the Word of God, and praying together to the Lord of Hosts for His blessing to be with them; who hath shewed His approbation of this military preaching by the successes He hath given them." "That's well. Do you use to do so, too?" asked the Queen. "Yes," said the Ambassador, "upon some occasions in my own family, and think it is as proper for me, being the master of it, to admonish and speak to my people, when there is cause, as to be beholden to another to do it for me, which sometimes brings the chaplain into more credit than his lord." "Doth your General and other great officers do so?" she proceeded to enquire. "Yes, madam," returned Whitelocke, "very often, and very well. Nevertheless, they maintain chaplains and ministers in their houses and regiments; and such as are godly and worthy ministers have as much respect and as good provision in England as in any place of Christendom. Yet 'tis the opinion of many good men with us, that a long cassock, with a silk girdle, and a great beard, do not make a learned or good preacher, without gifts of the Spirit of God, and labouring in His vineyard; and whosoever studies the Holy Scriptures, and is enabled to do good to the souls of others, and endeavours the same, is nowhere forbidden by that Word, nor is it blameable. The officers and soldiers of the Parliament held it not unlawful, when they carried their lives in their hands, and were going to adventure them in the high places of the field, to encourage one another out of His Word, who commands over all; and this had more weight and impression with it than any other word could have, and was never denied to be made use of but by the popish prelates, who by no means would admit lay people (as they call them) to gather from thence that instruction and comfort which can nowhere else be found." The Queen complimented the theological envoy. "Methinks you preach very well, and have now made a good sermon. I assure you I like it very well." The politeness of a courtier was not wanting in return. "Madam, I shall account it a great happiness if any of my words please you." Her Majesty continued to say, "Indeed, Sir, these words of yours do very much please me; and I shall be glad to hear you oftener on that strain. But I pray, tell me, where did your General, and you, his officers, learn this way of praying and preaching yourselves?" "We learnt it from a near friend of your Majesty," he added, with truth and adroitness, "whose memory all the Protestant interest hath cause to honour." "My friend," replied the Queen, "who was that?" "It was your father,"

rejoined Whitelocke, "the great King Gustavus Adolphus, who upon his first landing in Germany (as many then present have testified) did himself in person upon the shore, on his knees, give thanks to God for His blessing upon that undertaking; and he would frequently exhort his people out of God's Word; and God testified His great liking thereof, by the wonderful successes He was pleased to vouchsafe to that gallant King."^[576] But we must leave the religious exercises of Cromwell's army, as our history now requires us to follow King Charles to the Scotch camp.

From May to July the Divine right of Presbyterianism formed a salient topic of conversation and debate amongst citizens and statesmen.^[577] From May to July the same question was agitated at Newcastle between King Charles and Alexander Henderson.

The backbone of the King's strength having been broken at Naseby, and his midland capital being environed with a Parliamentary army, the monarch, defeated on all sides, resolved to flee. Though every reasonable hope had vanished, still he kept up his spirits—trusting to his own talent for intrigue, to some wonderful interposition of Divine Providence, and, above all, to that divinity which "doth hedge a king."

*Charles I. and
Henderson.*

In a state of entire indecision as to whither he should bend his steps, the royal fugitive rode out of Oxford, and pursued the road to London. A thoughtful journey it must have been; and, at last, as he approached the metropolis, at Hillingdon, his heart sunk within him, when, pulling his bridle to the left, he galloped off through a cross country to the Scotch camp at Newark.^[578] Arrived there, his treatment by those into whose arms he threw his fortunes without his confidence, was sufficient to cast him into absolute despair but for that strange hopefulness to which we have just referred. Removing with the army from Newark to Newcastle, the annoyances of his position considerably increased.^[579] In his letters to Queen Henrietta Maria—his dear heart, as he fondly called her—he complained of being barbarously baited and threatened, of new vexations which happened to him every day; declaring to her that there never was a man so lonely as he, and then with a beautiful touch of tenderness he assured the woman—really the star of his evil fortunes—that she was his

last comfort, and that her letters in cypher were around him all day, and under his pillow all night.^[580]

Alexander Henderson sought to effect the King's conversion. Sheets and sheets of closely-written paper passed between them throughout those wearisome months. Each did his best. Day after day, night after night, these controversialists read and reflected, wrote and revised, and it must be allowed, to the credit of the King, that the intelligence and acuteness which he brought to this undertaking appear exceedingly respectable, even in comparison with all the accomplishments of his clerical antagonist.^[581] Charles contended for the *jus Divinum* of Episcopacy, and the apostolical succession of bishops; Henderson for the *jus Divinum* of presbyteries and the human origin of prelacy. The monarch upheld the authority of the Fathers as interpreters of the Bible; the minister the interpretation of Scripture by Scripture—declaring patristic writings and traditions to be unworthy of trust. The royal disputant contended that inferior magistrates and the people had no power to reform religion; the clerical respondent that such persons did possess it, and that it became them to exercise it when even kings failed to perform their duty. The Prince urged that he was bound by his coronation oath to preserve the Church of England, and that he could be released only by the voice of the Church itself; the Presbyterian that Parliament had sufficient authority to remove this obligation. His Majesty asked what warrant there was in the Word of God for subjects to force the royal conscience, and to make a ruler alter laws against his will? The reverend gentleman replied that when a man's conscience is misled, he necessarily does that which is amiss, and that his duty is to have his conscience better informed, and not to move till he has struck a light, and made further discoveries. This question involved another, as to the right of the subject to take up arms, which, of course, Charles held to be absolutely unlawful; whilst Henderson asserted the right of defensive war against unjust authority. It is enough to give this summary. Inconclusive arguments were advanced on both sides, and each was more powerful in attack than he was in defence. Under the circumstances, no good could come out of the controversy, for neither of the disputants would concede one jot; and what is still more important to be borne in mind is this, that the arbitrament of the question between them now rested in other hands.

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Charles I. and
Henderson.

The Parliament in July again held out propositions for peace. Papers duly signed by the clerks of both Houses were formally entrusted to the Earl of Pembroke and Montgomery, to the Earl of Suffolk, and to other commissioners, attended by Stephen Marshall, who acted as their chaplain. They travelled to Newcastle on the 24th of July. Thither they and the Scotch commissioners went in their coaches, at two o'clock in the afternoon, to wait upon his Majesty. He resided in a fine old house, with ornamented gables, goodly bays, mullioned windows, and a door-way guarded by columns—a mansion now totally demolished, but once the pride of Anderson's-place, in that famous town on the banks of the Tyne. When the visitors had entered this temporary palace, the King came forth into a large chamber which was made use of for the chamber of presence, and there stood at the end of a table until each had kissed his hand. He intimated his pleasure that they should follow him into another room, where the Earl of Pembroke stated that they had brought the Parliament's propositions for his Majesty to consider. "Have you power to treat?" asked the monarch, anxiously looking at the commissioners. "No," they replied; upon which he uttered one of those blunt, petulant speeches which did him almost as much damage as his proverbial insincerity. "Then, saving the honour of the business, an honest trumpeter might have done as much." As the propositions were read, the King listened attentively, and at last observed: "Gentlemen, I hope you do not expect a very speedy answer, because the business is of high concernment." They said their stay was limited to ten days, whereupon he promised despatch, and so terminated the interview. Mr. Marshall preached the next Sunday before the King, and took as the subject of his discourse, Isaiah xxxii. 17, "And the work of righteousness shall be peace, and the effect of righteousness quietness and assurance forever."^[582]

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The propositions stipulated, that his Majesty should call in his declarations against the Parliament; place the control of the militia in its hands for twenty years; make void all peerages which had been conferred since May the 20th, 1642; punish such delinquents as had been proscribed; and disannul the Irish treaty. With these political demands others were coupled in relation to the Church. First, his Majesty must take the Covenant, and enjoin the same on his subjects; next, the ecclesiastical reformation must be completed, and Popery for ever crushed. Moreover, the bill, which had been transformed

Newcastle Treaty.

into an ordinance for constituting the Westminster Assembly, must receive the royal assent; and besides these, other measures, five in number, which he had not sanctioned, and which he was desired to confirm, were repeatedly mentioned in the negotiations: (1) The abolition of the hierarchy; (2) the due observance of the Lord's Day; (3) the suppression of innovations; (4) the advancement of preaching; and (5) the prevention of non-residence. Such were the objects to which the old bills referred, and a new one is mentioned as about to be framed for regulating the Universities and Schools of England.^[583]

Charles did not at once break with the Presbyterians when these proposals were made to him; on the contrary, he professed a conciliatory spirit, and kept alive their hopes of his at last making some considerable concessions;^[584] yet all the while he felt a most intense antipathy to their whole system. As a staunch Episcopalian, he hated Presbyterianism in itself, and he hated it also, and perhaps still more, because it touched his royal prerogatives, and because, if established, it would leave him only the name of a King; since, under pretence of a thorough reformation of religion, it would in reality take away all ecclesiastical power from the crown. All this he had said in letters which he wrote to the Queen; and, in one written from Newcastle (September the 7th), six weeks after the Parliamentary Commissioners had read their paper to him in the Council-room, he thus expresses himself to his "dear heart:"—"I assure thee that (by the grace of God) nothing can be said or done to me which shall make me quit my grounds; as, for instance, neither to grant the London propositions as they are (without great amendment), or sign or authorize the Covenant, without which, I must again tell thee, I am more and more assured that nothing can be expected from the Scots."

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Allusions in his private correspondence to the Covenant for awhile betray no excitement: they are calmly expressed; but at last, doubtless harassed by solicitations on that point, enough to try any man's temper, he bursts into a violent passion, and writes to his wife in the following language: "This damned Covenant is the child of rebellion, and breathes nothing but treason, so that, *if Episcopacy were to be introduced by the Covenant, I would not do it.*"^[585] It was impossible for him to have said anything stronger than this; and with such feelings on the part of the King, the Newcastle Treaty came to an end.

If a good deal of manœuvring appear in the negotiations with the Presbyterians carried on by Charles at Newcastle, there is as much downright intrigue with other parties to be discovered in his conduct at the same time. He inherited some portion of his father's love of kingcraft, and he employed to the utmost whatever ability of that description he possessed. To repair his broken fortunes, he sedulously endeavoured to make tools of the Independents, watching with great satisfaction the animosity existing between them and the Presbyterians, and hoping, as he says, that one of the factions would so address him that he might without difficulty attain his ends.^[586]

Newcastle Treaty.

And with the one great object of this part of his life in view, he was prepared to make terms with the Papists. In a letter from Oxford, March the 12th, 1646, addressed to his wife, he speaks of a former communication in which he had said: "I will take away all the penal laws against the Roman Catholics in England as soon as God shall enable me to do it, so as by their means I may have so powerful assistance as may deserve so great a favour and enable me to do it; and furthermore I now add, that I desire some particular offers by or in the favour of the English Roman Catholics, which, if I shall like, I will then presently engage myself for the performance of the above-mentioned conditions. Moreover, if the Pope and they will visibly and heartily engage themselves for the re-establishment of the Church of England and my crown (which was understood in my former offer) against all opposers whatsoever, I will promise them on the word of a King to give them here a free toleration of their consciences."^[587]

Of course, all this intriguing involved much duplicity. The collection of letters which were written by Charles in 1646, and which are now published, will be found to exhibit this prominent feature of the King's character. Whenever he formally conceded any point, some quibbling about words, some dishonest reserve, some loophole out of which he might wriggle, is sure to appear in connection with a Jesuitical conscientiousness which was ever weaving casuistic theories, and starting ethical questions, in order to cover with a veil of seemliness the most dishonest and fraudulent acts. Charles was not rashly false; he did not heedlessly tell lies; he had undoubtedly certain notions of rectitude, which served occasionally to disquiet his spirit; and he

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wished to appear to himself honest and true, even at the moment of his wishing to deceive others. His mind, however, in these respects, is but a specimen of a large class of persons in this world of many-coloured falsehoods and delusions.



CHAPTER XXII.

Before Parliament sent its propositions to Newcastle, it had commenced the business of establishing Presbyterianism. The Directory had been ordained, and the Prayer Book abolished. Still more was done.

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On the 7th of July, 1645, the Westminster Assembly sent up to the two Houses a thoroughly-digested and complete scheme of Presbyterian government.^[588] Modified as already represented, the scheme was embodied in an ordinance on the 19th of August, establishing a Presbyterian polity in the city of London. This ordinance commanded that a Congregational Assembly should be formed in each of the city parishes, and that a Classical Assembly should be gathered in each of the twelve classes, or districts, into which the ecclesiastical province of the metropolis was by the ordinance divided. Towards the end of September, the Houses decided that certain persons should try the fitness of lay elders; the triers being three clergymen and six laymen for each class. This was an Erastian arrangement, very displeasing, of course, to the Presbyterians, and, consequently, they refused to carry the measure into effect. In the March following (1646) it became loaded with an additional and still more objectionable provision. Instead of Parliament being constituted simply a final court of appeal, it was now to choose certain Lay Commissioners, who were to act in the first instance as judges of scandalous offences—in fact, were to have in their hands the entire control of Church discipline.^[589] This was a measure which weighed too heavily on Presbyterian forbearance; and, therefore, a compromise followed in the month of June, when the Lay Commissioners were withdrawn, and a committee of Lords and Commons was appointed to determine such cases of scandals and offences as had not been already specified. This plan was in accordance with an earlier direction, to the effect that Members of Parliament sitting in the Westminster Assembly should be constituted a tribunal to decide respecting causes of suspension from the Lord's Supper. On the 2nd of October, the county palatine of Lancaster was divided into nine classical presbyteries;^[590] and on the 21st of January,

1647, a committee of the two Houses ordered that Essex should form a province including fourteen classes.

Still, presbyteries were not actually formed. In April, 1647, appeared resolutions of the Houses, entitled, "Remedies for removing some Obstructions in Church Government;" and after this, on the 3rd of May, the first Provincial Assembly met in the Convocation House of St. Paul's, including about 108 members. Dr. Gouge, the prolocutor, opened the meetings by a sermon in his own parish church of St. Anne, Blackfriars.^[591]

*Presbyterian
Church
Government.*

On the 29th of the January following (1648), another Parliamentary ordinance appeared, commanding the committees and commissioners throughout the country—with the assistance of ministers—to divide their respective counties into distinct classical presbyteries; and also specifying that the Chancellors, Vice-Chancellors, and heads of houses should establish the same in the two Universities, and certify the accomplishment of the fact before the 25th of March.

On the 29th of August, a more elaborate order issued from the Lords and Commons, to the effect that all parishes and places whatsoever in England and Wales should be under the government of Congregational, Classical, Provincial, and National Assemblies.^[592] To see how the system thus elaborated upon paper, and thus enforced by successive ordinances, worked in this kingdom; or rather, with some exceptions, failed to work at all, we must wait till we reach the history of the Commonwealth Church in the next volume.

It is now time to direct attention to the final measures adopted with reference to Episcopacy. There remained the old bill of 1642, which had been bandied about between the Parliament and the King, to which the latter had never given consent, and which, therefore, according to the monarchical constitution of the country, had never become law. Virtually it took effect, but constitutionally it had no authority. Other measures were in the same predicament. Parliament, therefore, in the autumn of 1646, commenced a revolutionary proceeding, which really turned England into a republic. The Houses determined that their own ordinances should be valid and sufficient. Ecclesiastical changes were amongst the first to be ratified by this

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proceeding. The old bill relative to Episcopacy being thrown aside, a new one came before the Lords and Commons, and received the sanction of both Houses on the 9th of October.^[593]

This ordinance abolished the titles, sequestered the Church property, and extinguished the jurisdiction of the hierarchy of England.^[594]

The name, style, and dignity of archbishop and bishops were to be known no more. At one sweep church property belonging to them was transferred to other hands. "All counties palatine, honours, manors, lordships, stiles, circuits, precincts, castles, granges, messuages, mills, lands, tenements, meadows, pastures, parsonages, appropriate titles, oblations, obventions, pensions, portions of tithes, parsonages, vicarages, churches, chapels, advowsons, donatives, nominations, rights of patronage and presentations, parks, woods, rents, reversions, services, annuities, franchises, liberties, privileges, immunities, rights of action and of entry, interests, titles of entry, conditions, common court leet, and courts baron, and all other possessions," with all and every their appurtenances, became vested in ecclesiastical commissioners. Another ordinance, bearing date the 16th of November, gave authority to the commissioners to sell such property for the benefit of the Commonwealth, with a special reservation in favour of the *jura regalia* of the palatine of Durham, and the *jura regalia* of the bishopric of Ely.^[595] No cathedrals, churches, chapels, or churchyards, however, were to be disposed of; neither was anything in the ordinance to affect the property of Serjeants' Inn, or Lincoln's Inn. Careful provision is made by the ordinance for securing the property to purchasers, and for preserving the funds so realized. The first of these ordinances also stated that no one was to use any archiepiscopal or episcopal jurisdiction; that the sheriffs of counties where any felony was to be tried should present to the judge some fit person to do such things as, by the office of the ordinary, had used to be done, and "that all issues triable by the ordinary or bishop shall be tried by jury in usual course."

Ecclesiastical
Courts.

That last line legalized an extensive revolution. Ecclesiastical Courts in England, as noticed in our introduction, were of high antiquity and of large jurisdiction. From the time of the Conqueror they had

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Ecclesiastical

taken cognizance of church matters and public morals.

Courts.

After the Reformation their authority continued. Moral offences, not provided for by common law, heresy, schism, and ecclesiastical disobedience, questions touching marriage and divorce, together with the proving of wills, remained, as before, subject to the ecclesiastical courts. Though interfered with to some extent by the Court of High Commission, the old Church Courts retained much of their former business down to the time when the Long Parliament was opened. Consistories held in provincial cathedrals might be somewhat quiet, but proceedings before Archidiaconal tribunals were often exciting enough when enquiries were made into village scandals; whilst Doctors' Commons continued a centre of the greatest activity. There sat the Consistory Court of the Bishop of London, the Prerogative Court of Canterbury, and the Court of Arches. The judges and advocates received no small attention, and were paid no little reverence, as they appeared in black velvet caps and hoods lined with taffeta or miniver; the proctors being only a little less dignified with their hoods of lambskin, whilst actuaries, registrars, and beadles were busy in their attendance. Citations, bills, and answers, proofs, witnesses, and presumptions, with all their slow and expensive machinery, were patiently kept at work by ecclesiastical lawyers, and were anxiously waited for and watched by ecclesiastical and lay litigants. But with the opening of the Parliament came a change. Amongst the many *jeu d'esprits* of the time is one belonging to the year 1641, entitled, "The Spiritual Courts epitomised in a Dialogue between two Proctors, Busy-Body and Scrape-All," with a woodcut on the title page representing the Bishops' Court in great confusion.^[596] Complaints couched in very exceptionable phraseology indicate that the Prerogative, the Consistory, and the Archdeacon's Courts, which "used to be crowded like money in a usurer's bag, are very quiet and peaceable now;" "no more false Latin," no more "ten pounds for a probate to Mr. Copper-nose, the English proctor," "and no more prying into people's actions." An end had come to inventories, such as terrified all Bloomsbury, Covent Garden, Long Acre, and Beech Lane. No more pretended caveats, and bills which would exceed a tailor's. On a curious broadside, entitled, "The Last Will and Testament of Doctors' Commons," the same exultation over the decline of the courts is rudely and vulgarly expressed in very queer cuts and in very bad English. The Court is represented as very aged, and sorely shaken both in body and mind by a Westminster ague. That which

affected Doctors' Commons would shake all the consistorial and commissory courts throughout the country.

Ecclesiastical causes necessarily fell into confusion. The ordinance, however, of October, would settle the question, and sweep all issues, determinable of old by the ordinary or bishop, into the common law courts, there to be tried by juries in the usual way. This would effect not only a great professional change disastrous to ecclesiastical lawyers, and apparent in the deserted yard of Doctors' Commons, but would occasion a great social change also. People would now carry cases touching marriage and divorce to the sessions or the assizes. As to one important point, however, that of wills, the authority of the old courts of registration survived the ejection of bishops, and the abolition of their order. In the Bishop's principal Registry and Consistory Court at Exeter, wills are found in the first case up to the year 1653, in the second, up to the year 1650, when a gap occurs as far as 1660. In the Archdeacon of Sudbury's Registry, wills also are found belonging to 1652, and the years preceding. In the Chapter House of York, there are transcripts of wills to 1650, and from 1650 originals occur. In the Archdeaconry of Taunton, wills did not cease to be registered till 1649, in the Archdeaconry of Huntingdon, not till 1653.^[597] A new law with respect to the probate of wills was passed in the last-mentioned year.^[598]

The effect, in relation to public morals, of the abolition of Bishop's Courts, and of the disuse of those which were Archidiaconal, has been too much overlooked. Though the old church discipline, by calling in the aid of the civil power, contradicted the spirit of Christianity, though it was often completely frustrated, and though for really religious ends it proved generally ineffectual; yet it would, in some cases, check the immorality of a parish, whatever might be the evils—in the way of slander, injustice, and heart-burning—which it called into existence. And, at any rate, the destruction of a tribunal before which people were liable to be cited for unchastity and other vices not cognizable by the secular courts, is an important fact in the history of those times, and indicates the occurrence of a considerable judicial and social revolution. No doubt the Presbyterians, in their scheme of discipline, and the Long Parliament, in its acts against immorality, endeavoured to supply what they considered a defect, after they had accomplished the abolition of the old system.

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The ordinance just described only transferred into the hands of commissioners the property and revenues pertaining to bishoprics; it did not touch advowsons and tithes in general, or affect parochial and other ecclesiastical edifices. The right of presentation to livings remained in the hands of patrons, where the right had not been forfeited by delinquency, and tithes continued to be claimed as in former days; but the method of recovering them had undergone a change. Public opinion appears to have become altogether unsettled respecting the question of ministerial support.

Payment of Tithes.

In the month of November, 1646, "The Moderate Intelligencer" informs its readers of a petition from the county of Kent being presented to Parliament against the support of ministers by the payment of tithes. It was submitted to the legislature that all clergymen should receive the same amount of salary, according to the part of England in which they resided. These Kentish advisers recommended that in parishes north of the river Trent the stipend should be £100 per annum; and that on the south side of it ought to amount to £150. The reason alleged for equal salaries being paid to all incumbents in each of these districts was, that the arrangement would prevent ministers from hunting after preferment. The petitioners notice that some people said—who had "little scripture or reason for their opinion"—that tithes were unlawful, and that "men should be at the pleasure of the people," in other words, should be left to be provided for on the voluntary system; others, it is observed, would, to avoid strife, fain have ministers paid their tithes in money, not in kind, and they also advocated the repeal of statutes forbidding the clergy to hold farms, or to cultivate the practice of husbandry. It is also mentioned that some persons advocated a new division of parishes, making them all of the same size.

However truly the newspapers might reflect diversities of opinion on this subject, whatever sympathy some puritan farmers or some puritan parsons might feel with these inhabitants of Kent, Parliament firmly maintained the rights of tithe property. In August, 1647, came forth another ordinance, [\[599\]](#) confirming the prior one of 1644, and removing doubts raised as to whether it extended to ministers inducted by parliamentary authority. It mentions appeals brought into Chancery for vexation and delay, and ordains that no such appeals should be admitted until the party appealing paid into court, or

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into the hands of justices of the peace, the value of the tithes in dispute. This ordinance was to continue in force until the first of November, 1648. The April of that year brought another ordinance,^[600] cancelling a proviso in the ordinance of 1644, for placing beyond its reach the city of London, and committing the enforcement of these ecclesiastical dues to the Lord Mayor and justices within their jurisdiction.^[601]

A newspaper of the 4th of November, 1646, informed the public of a bill introduced that day for repairing churches, and for giving power to compel people to contribute towards needful and pious works; the power to be vested not merely in churchwardens, but in justices of the peace. Mention is also made of a committee to meet in the Star Chamber, for the purpose of considering what course had best be adopted, whether by commitment or otherwise, in order to compel payment from those who refused to contribute according to the ordinary assessments. More than a year after these reports were printed, the Lords and Commons, on the 9th of February, 1647-8, ordained that churchwardens should be chosen annually by the inhabitants of every parish and chapelry, on the Monday or Tuesday of Easter Week, and that they, with the overseers of the poor, should, upon public notice, "make rates or assessments by taxation of every inhabitant." Churchwardens were also to receive any rents and profits which had been given for repairing parochial edifices; and, when churchwardens became negligent of their duties, two neighbouring justices of the peace were empowered to interfere, and to give order for necessary repairs. The ordinance was not to extend to churches "ruined" by the "unhappy wars, extremity of age, or other casualties," nor was it to apply to any cathedral or collegiate churches, all of which were "to be repaired as formerly they have been used and accustomed."^[602]

Church Dues.

Apart from sweeping revolutions in cathedral establishments, the colleges of Westminster, Eton, Christ Church, and Winchester experienced changes peculiar to themselves. It was provided in 1642 that none of the revenues assigned for scholars and almsmen should be interrupted in consequence of the sequestration of the rents and profits of Archbishops and Bishops, Deans and Chapters. In 1645, a special ordinance provided both for the college and the collegiate church of Westminster, the Deanery being virtually extinct. The Dean and prebends had become delinquents, with the exception

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of Mr. Lambert Osbolston, who, whilst being a canon of the cathedral, was also master of the school. The school, the almsmen, and the offices, having no one to take care of them now that the ecclesiastical corporation of the Abbey had been dissolved, Parliament proceeded to nominate commissioners, consisting of the Earl of Northumberland and others, who were invested with powers similar to those previously possessed by the Dean and Chapter. Mr. Osbolston was exempted from the forfeiture of the prebendal income, which had been inflicted on all his brethren occupying stalls in the Abbey. With the new Commissioner, the Master of Trinity College, Cambridge, and the Master of Westminster School, were associated in the election of scholars for the latter foundation. The Committee was also directed to make allowances out of the revenues of the collegiate church to the minister who should perform Divine service within its walls. ^[603]

The sequestered estate and profits of the provost of Eton were entrusted to Sir H. Cholmeley, without prejudice either to scholars or fellows. Dr. Richard Stewart was ejected from the provostship, and Francis Rouse appointed in his room. ^[604] After some discussion, Parliament left new elections in the hands of the provost and fellows.

Universities.

Great changes came over the Deanery of Windsor and the Chapel of St. George. Spoliation went on without mercy. Precious treasures were seized for military uses. The revenues were sequestered, and out of them the yearly sum of fifty pounds was voted for any such minister as should officiate in the parish church. ^[605]

As the educational uses of Eton, Westminster, and other public foundations of the kind, preserved their revenues from confiscation, the same also was the case with the two Universities. Their history, which we have hitherto passed over, now demands our attention, and requires us to go back for a few years.

In the battle which the Parliament had to fight with the heads of houses, Cambridge commenced hostilities. In 1642, the Masters and Fellows of the Colleges there sent money and plate to the coffers of the King at York, "many wishing," says Fuller, "that every ounce thereof were a pound for his sake, conceiving it unfitting that they should have superfluities to spare

whilst their sovereign wanted necessaries to spend."^[606] The University press was employed in printing the King's declarations, and the University pulpit was made to resound with diatribes against the King's enemies. When a demand came for contributions to the Parliament, the University returned a blank refusal. The men who thus took part in the opening strife subjected themselves of course to the fortunes of war. The kingdom being rent in twain, two encampments being pitched face to face, such as threw themselves into the one had no friendship to expect from the other. Hence there followed imprisonments for the plate business, and for like belligerent acts. The Masters of St. John's, Queen's, and Jesus, were lodged in the Tower, where they were joined afterwards by the Vice-Chancellor. Thus far the collision was purely political. University men were treated as malignants.

But in January, 1644, another issue was raised. Political delinquency being still prominently kept in view, it became associated with religious and ecclesiastical criminations. Many complaints—said the ordinance for regulating the University of Cambridge—were made that the service of the country was retarded, that the enemy was strengthened, that the people's souls were starved, and that their minds were diverted from the care of God's cause by the idle, ill-affected, and scandalous clergy. Commissioners therefore were empowered to call before them all provosts, masters, fellows, students, and members who were scandalous in their lives, or ill-affected to the Parliament, or fomenters of the war, or that should wilfully refuse obedience to the orders of the two Houses, or desert their ordinary places of residence. Persons found guilty of any such offences were to suffer the sequestration of their estates and revenues; at the same time, ministers approved by the Westminster Assembly were authorized to succeed to the vacant posts. The Commissioners had power to administer the Covenant under penalties, and to examine and inhibit all persons who should obstruct the reformation sought to be accomplished by the Parliament and the Assembly. The ordinance evidently placed at the mercy of this new Committee every one who, though *not scandalous in life*, should decline the Covenant or oppose the Westminster decisions. This document bears date the 22nd of January. On the 30th of the same month, an order appeared to make void the places of all officers, ministers, or other attendants upon Chancery, the King's Bench, and the Common Pleas, who

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should be guilty of the same offences.^[607] The ground on which the Presbyterian party now in power chose to place the controversy with the authorities at Cambridge and elsewhere is sufficiently apparent.

The justice of their final policy ought to be tested by the principles upon which it was avowedly based, not by any laxity of method in the carrying of it out. It is said that, in several instances, those who were entrusted with the execution of the ordinance were very lenient, and did not eject all who refused submission; but this does not affect the character of the enactment. According to Archbishop Tillotson, most of the fellows of King's were exempted through the interest of Dr. Witchcot—an exception which is not at all irreconcilable with Fuller's statement—himself a Cambridge man—that "this Covenant being offered, was generally refused, whereupon the recusants were ordered without any delay to pack out of the University three days after their ejection." Fuller does not say that the order took effect in all cases.^[608]

A document in the State Paper Office opens a window through which one can plainly see how sequestrations went on at Cambridge. Houses were rifled, and goods seized. The effects were sold according to appraisements. The books of Dr. Cosin, Master of Peter House and Dean of Durham, were valued at £247 10s., and must have formed a good library for those days. The furniture of Dr. Laney, Master of Pembroke, is all inventoried, down to "blankets," "leather chairs," and "fire irons." The books of Mr. Heath, of Barnet College, are valued at £14; and Mr. Couldham's, of Queen's, at £10. Horses and furniture are mentioned, and articles are described as taken away in carts under the care of soldiers. Zealous partisans received rewards for information relative to concealed property. An infamous soldier was paid for divulging the secret where books belonging to his brother might be found.

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Thus a political offence provoked the anger and occasioned the interference of Parliament. But the interference aimed at a religious result through a revival of Puritanism. The East-Anglian University, true to its traditional liberality, fostered that movement towards the end of the sixteenth century, as it had promoted the Reformation fifty years before. In 1565, the University was restive under the yoke of ceremonies, and almost all the men of St. John's

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came to chapel without hoods or surplices.^[609] When Mildmay had founded Emmanuel College (1585), the Queen said: "Sir Walter, I hear you have erected a Puritan foundation." He replied: "No, madam; far be it from me to countenance anything contrary to your established laws; but I have set an acorn, which, when it becomes an oak, God alone knows what will be the fruit thereof."^[610] The fruit proved Puritan to the heart's core; and the fact is commemorated in a satire about thirty years afterwards. Its unconsecrated chapel, standing north and south, instead of orientating after the prescribed fashion, has been pronounced "typical of its doctrinal sentiments."^[611] Sidney, too, was Puritan, and so was Catherine Hall, the last so persistently, and to such a degree, that it is said not to have contributed one fellow or scholar to the number of the ejected in 1644.^[612] Cambridge had the credit of being "a nest of Puritans" in the middle of King James's reign. Perkins and Sibbs, ministers of that class, were exceedingly popular with both the gownsmen and the townspeople. The University for many years supplied by far the majority of the leading Presbyterian Divines,^[613] and four out of the five dissenting brethren at Westminster were from Cambridge.^[614] Traces of Puritanism existed in Trinity College even so late as 1636. In some tutors' chambers "the private prayers were longer and louder by far" than in chapel.^[615] But, before the civil wars, a change in the opposite direction set in. Peter House under Cosin, St. John's under Beale, Queen's under Martin, and Jesus under Sterne, were becoming more and more centres of Anglo-Catholicism. The influence of Laud may be distinctly traced through the last two of these heads of houses—Martin and Sterne having been chaplains to the Archbishop. Nor was the Archbishop himself inactive at Cambridge. The reports about Trinity just noticed were placed in his hands preparatory to his intended visitation in 1636. So far did some go in the anti-Puritan movement that, according to report, at the commencement, in July, 1633, Dr. Collins eulogized Bellarmine, and Dr. Duncan defended some of his theses.^[616] Complaints were made by Puritans of altars, vestments, and Jesuit activity. Organs were erected, and the worship in Peter House Chapel incurred the displeasure of the Long Parliament.^[617] To judge of the extent to which anti-Presbyterian views prevailed at Cambridge in 1644, we may state that, of residents, it seems about a tenth part of the number was ejected.^[618]

The history of Oxford is not altogether like that of Cambridge. The source of three religious impulses of very different kinds, connected respectively with great theological names of very different character—Wesley, Pusey, and Jowett—the Midland University, central and many-sided in its religious spirit, as it is in its geographical position, did much to promote the Reformation, and did something to foster Puritanism. It produced Reynolds, the Presbyterian, and Owen, the Independent. A Puritan wave stirred the waters of the University in 1640. But influence of that kind at Oxford was feeble, compared with its sweep at Cambridge; and the Laudian impetus to Anglo-Catholicism most strongly marked the elder University. Laud was Chancellor of Oxford, and here, of course, his restless brain and untiring hands would specially prosecute the favourite business of his life. Accordingly, instances of his minute, constant, and zealous interference abound throughout his memoirs and papers.^[618] He had a very large share in producing that opposition to Puritanism and the Parliament, which characterized Oxford at the commencement of the civil wars.

Phases of conflict, similar to those in the case of Cambridge, may be recognized with greater distinctness in the case of Oxford. We have seen already, from our account of the military occupation of the latter University by the King, that it assumed an attitude of determined defiance towards the Parliament. What would be figurative in reference to Cambridge is perfectly literal in reference to Oxford. Colleges became barracks, and gownsmen soldiers. The University therefore could not be regarded as otherwise than in a state of rebellion against the Parliament—now actually the supreme power. Consequently, when the city was taken, the University was treated as a conquered enemy. To demand subscription and fealty was the least thing which the conquerors could do. To remove from office those who were disaffected was but a measure of common prudence. Besides, such a state of demoralization had come over the whole institution,^[620] and war had so driven away learning and discipline, that reformation was imperative. Accordingly, in September, 1646, Commissioners went down to Oxford. Citations were issued requiring officers, fellows, and scholars, to appear at the Convocation House, between the hours of nine and eleven o'clock in the forenoon. The Presbyterian visitors had worship, and a sermon, which detained them till

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nearly eleven. A story is related, that the Vice-Chancellor, Dr. Fell, had the clock put forward, so that it struck the hour before the Commissioners arrived. At all events, as the latter were coming in, they were met by the University authorities going out, the beadle in attendance, exclaiming, "Make way here for Mr. Vice-Chancellor." The visitors did so, when Mr. Vice-Chancellor moving his hat, passed by them, saying, "How do ye, gentlemen, 'tis past eleven o'clock." After this indignity a new Commission was appointed, but the visitors on the second occasion fared no better than their predecessors. Their orders were not only disobeyed, but also "despised and contemned." The heads of Colleges asked, by "what authority they were summoned;" and resolutely refused to give up books and papers, the keys of the Convocation House, and the beadles' staves. The Proctors protested against the citation they had received as illegal, and claimed to be exclusively under the authority of the King and his visitors. Patiently persisting in the assertion of its own power, Parliament allowed the malcontents to be heard by counsel; after which, their answer was pronounced an insult to the authority of the two Houses. Fell was then declared to have forfeited, by his contumacy, the deanery of Christ Church; but the declaration, when posted on the walls of that establishment was torn down and trampled under foot. Mrs. Fell also gave much trouble, and being imbued with an obstinacy like her husband's, had to be forcibly carried out in her chair, by the hands of the soldiers, into the quadrangle. Possession could not be taken of Magdalen, All Souls, and other Colleges, without breaking open the doors. [\[621\]](#)

There, as in Cambridge, notwithstanding the virulence of the opposition, some of the Parliamentary party were willing to wink at evasions of the Covenant.

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Isaak Walton tells a story of some one who, "observing Dr. Morley's behaviour and reason, and enquiring of him, and hearing a good report of his morals, was therefore willing to afford him a peculiar favour." He proposed that Morley should ride out of Oxford as the visitors rode in, and not return until they left again, undertaking to secure for him his canonry without molestation. The kind offer, though gratefully acknowledged, was respectfully declined. [\[622\]](#)

An instance of practical gratitude may also be mentioned in connexion with the Oxford ejectment. Dr. Laurence, Master of Baliol, and Margaret

professor, had, during the wars, shewn marked kindness to Colonel Valentine Walton, an officer in the Parliament army, who had been taken prisoner after Edge Hill fight, and confined at Oxford—the prisoner being indebted to the professor for his release. The obligation thus contracted, Walton repaid when Laurence suffered ejection. He settled on his friend a little chapelry called Colne, in the parish of Somersham in Huntingdonshire, augmenting its value by adding to it the tithes of Colne. This benefice Laurence had become qualified to enjoy, by receiving a certificate of the Oxford Commissioners, to the effect, that he had engaged to observe the Directory in all ecclesiastical administrations—to preach practical divinity to the people—and to forbear teaching any opinions which the reformed church condemned. ^[623]

After the University in general had been subdued, a few scholars continued incorrigible. They abused the new authorities, and scattered about the streets scurrilous tracts, entitled, "Pegasus taught to dance to the tune of Lachryme"—"The Owl at Athens"—"The Oxford tragi-comedy," and many more. ^[624] At last, a serjeant, attended by a file of musqueteers, published before all the College gates by beat of drum a proclamation, that if any persons expelled by the visitors should persist in remaining within the precincts of the University, they should be taken into custody. And a few days afterwards another proclamation appeared, to the effect that if any of the proscribed individuals tarried within five miles of the city, he should be deemed a spy, and be punished with death. This was enough. Oxford was soon cleared of its obnoxious inmates. Probably the University had been encouraged in its resistance by the knowledge of the differences existing between the Parliament and the army. These differences had become so serious, and had been brought so near, that some of the soldiers in the Oxford garrison, sympathizing with the army at head quarters, refused to obey the order of Parliament. Like King Charles, the University hoped to escape under cover of the strife between the two parties who had become their conquerors. In that hope, however, the University, like the King, proved to be mistaken.

Looking at the quarrel between the Parliament and the University, we must admit that the Parliament had on its side a right such as invariably follows victory, and such as always waits on established government. But another aspect of this

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affair remains to be considered, corresponding with the second phase of the Cambridge proceedings. What was ecclesiastical became mixed up with what was political. Not content with requiring obedience to the civil authority, the victors aimed at extinguishing all spiritual power in Oxford save their own. If, in justification or excuse it be pleaded that this came as a necessity, arising out of the civil establishment of religion, then the same plea of justification or excuse is valid in relation to the conduct of the now ejected, but afterwards restored Prelatists, when they turned out Presbyterians and Independents in 1662. The cases, so far as ecclesiastical imposition is concerned, appear to be alike. Those who think the proceedings of 1662 were unrighteous, and that national universities ought not to be subjected to ecclesiastical tests, must, if consistent, also think that the proceedings of 1644 and 1647 were unrighteous in the very same respects.

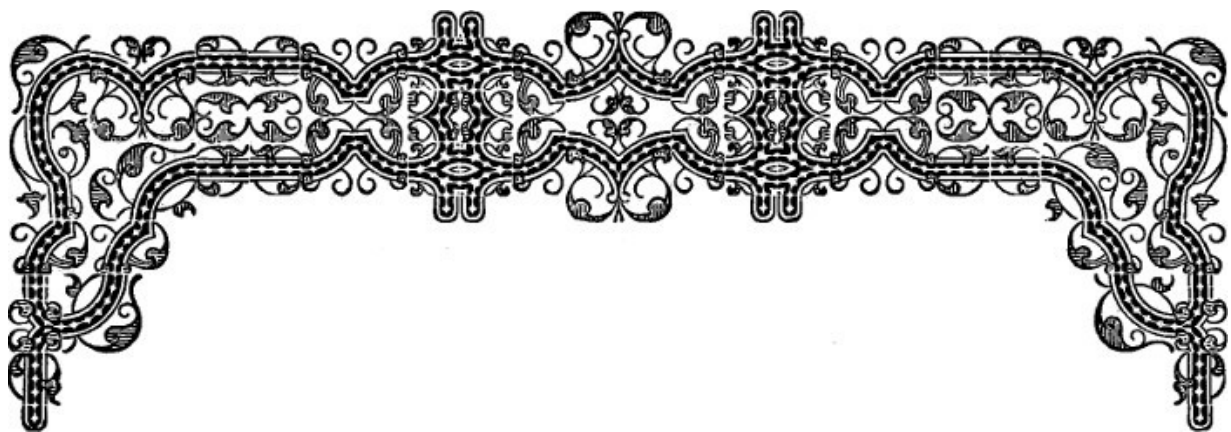
To remove men of scandalous life was proper, and nobody could complain of the punishment of those who violated university statutes, or wasted university property. Persons also who had taken up arms against the Parliament might be justly considered liable to some kind of penalty. But the articles of enquiry, instead of being confined to such points, were extended so as to embrace the neglect of the Covenant, and all opposition made to the Directory, or to any doctrine, "ignorance whereof doth exclude from the sacrament of the Lord's supper. ^[625]"

This kind of ecclesiastical inquisition served, as it often did, to put Parliament in an utterly false position. Armed in this manner, the ruling power stood up, not as the shield-bearer of order, but as the sword-bearer of persecution. The University availed itself of the circumstance, and instead of attempting to justify its resistance of the new government—which would have been a difficult task—it immediately betook itself to the doing of what was easy, and employed its ablest pens in drawing up an elaborate paper in Latin and English against the imposition of the new spiritual tests. In this way, men who only paid the penalty of insubordination were enabled to appear, as if carrying in their hands the martyr's palm. The Oxford champions did not plead for religious liberty. They did not found their case on any broad principle of toleration. They did not assert the rights of conscience, or expose the evils of persecution.

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Sentiments in favour of arbitrary government occurred even in this very manifesto, and a good deal of the reasoning they employed was one-sided, full of special pleading, and altogether unsatisfactory. Yet some of their objections were forcible, as when they urged that the adoption of the Covenant would be incompatible with their subscription to the Prayer Book, and when they complained of Prelacy being ranked with Popery and profaneness. They slyly intimated that they thought reform a necessity in Scotland, as well as in England, and truly said that the policy of the Parliament made the religion of England look like a Parliamentary religion. The following remark, which they offered on the fourth article of the Covenant, was not more galling than it was just:—"That the imposing the Covenant in this article may lay a necessity upon the son to accuse the father, in case he be a *malignant*, which is contrary to religion, nature, and humanity; or it may open a way for children that are sick of their fathers, to effect their unlawful intentions, by accusing them of malignity; besides, the subjecting ourselves to an arbitrary punishment, at the sole pleasure of such uncertain judges as may be deputed for that effect, is betraying the liberty of the subject."[\[626\]](#)



CHAPTER XXIII.

Oliver Cromwell, in a letter from Bristol, after its surrender in 1645, makes this remark:
—"Presbyterians and Independents all have here the

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Independents.*

same spirit of faith and prayer. They agree here, and have no names of difference. Pity it is it should be otherwise anywhere." A pamphlet entitled "The Reconciler," published in 1646, affords another example of the spirit which was thus manifested by the illustrious general, and abounds in sensible remarks and salutary reproof applicable to both parties. In other places, also, besides Bristol, persons bearing these different religious names lived in unity and co-operated in the promotion of the spiritual welfare of their fellow-citizens, and in other publications besides the "Reconciler," sentiments of candour and charity were expressed.^[627] But, for the most part, the contention between Presbyterians and Independents was absurdly fierce, and numerous tracts appeared on both sides filled with unchristian and disgraceful invectives.

The city of Norwich supplies a remarkable instance of this kind of strife. Puritanism had strongly established itself there before the civil wars, and had borne earnest witness against the innovations of the Anglo-Catholics. When Episcopacy had been dethroned, numbers of the clergy and citizens shewed themselves zealous in supporting the Covenant and the Directory,—backed, as they were, by an order of Parliament bearing the name of the Speaker.^[628]

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They endeavoured to set up in all the churches which crowded the narrow streets of that hive of manufacturing industry on the banks of the Wensum, the new model of worship, and to fashion the religion of all the inhabitants after the newly authorized type. But Independency had also grown up, and was beginning to flourish within the walls; the Church planted in 1642 presented signs of vigorous vitality, and probably other persons, not in religious communion with it, favoured its interests from political motives. The Episcopal party remained strong, and succeeded in resisting, to some extent, the reforming policy of their energetic Puritan neighbours;^[629] but the latter, instead of uniting all their

strength to maintain a common cause against those who were opponents to them in common, engaged in a vehement paper war one against another, which threw the whole city into a state of feverish excitement. There are extant two curious publications, the one entitled "*Vox Populi*," an organ of the Independents, and the other, bearing the name of "*Vox Norwici*," issued by the Presbyterians. In the Independent "*Vox Populi*," we find the authors maintaining that every man ought to be left to the liberty of his own conscience; that the Solemn League and Covenant was the same engine of tyranny in the hands of the presbyter that the massbook had been in the hands of the priest, or the Book of Common Prayer in the hands of the prelate; that immoral ministers were allowed to remain in their incumbencies without any attempt to remove them; that nothing was heard in parish pulpits but the subject of church discipline and ecclesiastical uniformity; that the Presbyterian clergy domineered over the Corporation; and that they were actuated mainly by self-interest, inasmuch as they had been at one time as ready to submit to surplices, tippets, liturgies, and canons, as they were now zealous in casting such things away. The object and animus of this publication cannot be mistaken; and the character of the "*Vox Norwici*" is equally intelligible.^[630] It leaves what the Independents had said in reference to the Covenant to be censured by authority, and to be confuted by the pens and tongues of learned men. It vindicates the character of the Presbyterian ministers, and declares that if in their preaching they ever meddled with the topic of discipline and uniformity, it was "but a touch and away." It asserts that when they attended the court of the City Corporation, it was as petitioners, "with their hats in their hands," and that they were, notwithstanding the imputations cast upon them, disinterested men, as proved by their conduct, and the amount of their preferments. It affirms that the covenants of congregational churches—which had incurred the disapproval of Presbyterians—were vague and useless, and allowed people to draw their necks out of Christ's yoke. The tract proceeds to maintain that it was owing to the influence of the Presbyterian clergy that the magistrates of the city had doubled the poor-rates, so that the condition of the lower class had become considerably improved; but at the same time it admits that in congregational churches the poor were still better off, owing to their small number—poor members not being so easily admitted to such communion as were sisters in "silk-gowns." And then, as a last sting for their adversaries, the Presbyterians add this curious observation:

"Besides, you can get so many good women to you, that their husbands cannot bear the charge of our poor, because their wives prove so chargeable to them."

It has been pointed out in these pages already how the military success of Cromwell, and the unpopularity of the Scotch, together with changes in the House of Commons, helped the political Independents to curb Presbyterian churchmanship and intolerance. But in those outside circumstances, if we may so express it, which materially affected the interests lying within the proper sphere of religion, a considerable change occurred during the latter part of the year 1646. A lull of peace in the midst of the civil wars, through the complete defeat of the King's army, and the capture of his strongholds, had deprived Cromwell and his soldiers of any further opportunity to increase their laurels. The Scotch, having the King in their camp, and being engaged in negotiations with Parliament for the payment of arrears, occupied an improved position, and further changes in the Lower House, altered again somewhat the relative strength of the two great parties. The policy of the Presbyterians on political questions, was moderation. They were averse to republicanism, and wished to retain the old constitution of King, Lords, and Commons. Some of the new members with strong revolutionary sympathies, who had entered the House in 1645, came by a natural influence to be more moderate when called themselves to bear the responsibilities of legislation, and when brought into close contact with persons against whom they were previously prejudiced. These now felt disposed to side somewhat with the Presbyterians.^[631] Moreover, new members had been returned by constituencies loyal to the King, and they thought they should best aid the royal cause by voting with the Presbyterians. Consequently, the Independent party lost ground a little in the arena of their recent victories,^[632] and the alteration speedily manifested itself in the turn given to ecclesiastical proceedings. The Presbyterians availed themselves of their partially recovered supremacy to attack once more the hateful sects, and, by the iron foot of penal law, to crush out the life of error and evil. On the 26th of May, 1646, the Corporation of London, whose courage revived after the debates upon "the keys," presented a remonstrance to the Lords and Commons, in which they expressed their devotion to the Covenant, gave

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Parliament credit for not desiring to let loose "the golden reins of discipline and government," and complained of private and separate congregations daily erected in divers parts of the City, and commonly frequented; and of Anabaptism, and Brownism, and all manner of schisms, heresies, and blasphemies vented by such as, touching the point of Church government, professed themselves to be Independents. So that they go on to say: "We cannot but be astonished at the swarms of sectaries, which discover themselves everywhere, who, if by their endeavours they should get into places of profit and trust in martial and civil affairs, it might tend much to the disturbance of the public peace both of the Church and Commonwealth."^[633] The Presbyterians made a motion that the House would take the matter into consideration, which upon a division they were able to carry.^[634] In the winter of 1646, the Clergy of London, whose influence was paramount with the citizens, made the pulpits ring with invectives against parliamentary delay in the work of lifting the Church above the State; and when December came, the Lord Mayor and Corporation clamorously beset the House with their grievances. Contempt, they said, was put on the Covenant. Heresy and schism were still growing. Soldiers usurped the ministry and appeared in the pulpit. The petitioners entreated that the Covenant might be imposed on the whole nation, under penalties such as Parliament might think fit, that nobody should be allowed to preach who was not an ordained covenanter, and that separate congregations, which were all "nurseries of damnable heretics," might be suppressed.^[635] Upon this appeal a parliamentary declaration appeared in condemnation of a lay ministry, of everything derogatory to presbyterian government, and of those who should disturb any preachers in holy orders. Shortly afterwards, the London clergy, assembling at Sion College, published a treatise, entitled, "A Testimony to the Truth of Jesus Christ, and to our Solemn League and Covenant, as also against the errors, heresies, and blasphemies of these times, and the toleration of them, to which is added a Catalogue of the said Errors." The ministers of the counties of Gloucester, Lancaster, Devon, and Somerset declared their concurrence with the London brethren.^[636]

Other circumstances contributed to augment the confusion of the times. In the newspapers and pamphlets of the latter part of the year 1646 there are several traces

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of terrific apprehensions entertained by religious people, such as greatly increased the excitement of the period. The harvest was late. In October, lamentations appear of corn in the north not gathered in, and of vetches still standing in the fields. A famine threatened the population; and such a calamity appeared the more probable from the continuance in England of the Scotch army, which, of course, consumed a large quantity of provision. Wailings over heavy rains and floods in the months of November and December were of frequent occurrence. "Where are our dry days," it was asked, "the divers-coloured bow of heaven? If the weather continue, the nation must abandon their walls of stone, and have recourse to walls of wood. Heaven weeps for us, yet we cannot weep for ourselves, because we have hearts of stone; like the offspring of Deucalion's people, we must partake of Deucalion's punishment."

It will help to illustrate the superstitious feelings which mingled with such fears if we notice the frequent references to supernatural portents about this time. In a curious quarto tract, entitled "Strange Signs from Heaven," published in the spring of the same year, we read the following passage:—"At Brandon, in the county of Norfolk, the inhabitants were forced to come out of their houses to behold so strange a spectacle of a spire-steeple ascending up from the earth, and a pike or lance descending downward from heaven. The Lord in mercy bless and preserve His Church, and settle peace and truth among all degrees, and more especially among our churchmen! Also at Brandon, in the county aforesaid, was seen at the same time, a navy or fleet of ships in the air, swiftly passing under sail, with flags and streamers hanged out, as if they were ready to give an encounter. In Marshland, in the county of Norfolk aforesaid, within three miles of King's Lynn, a captain and a lieutenant, with divers other persons of credit, did hear in the time of thunder a sound, as of a whole regiment of drums beating a call with perfect notes and stops, much admired at of all that heard it. And the like military sound was heard in Suffolk upon the same day, and in other parts of the Eastern Association. In all these places there was very great thunder, with rain and hailstones of extraordinary bigness, and round, and some hollow within like rings. The Lord grant that all the people of this kingdom may take heed to every warning trumpet of His, that we may speedily awaken out of our sins, and truly turn to the Lord, fight His battles against our spiritual enemies, and get

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those inward riches of which we cannot be plundered, and so seek an inward kingdom of righteousness and peace, that we may be more capable in His good time of a settled peace and state in the outward kingdom, and all through our Lord Jesus Christ!"

While Heaven was interpreted as frowning upon the earth, people were accused of indifference to religious duties. A religious newspaper, called the "Scottish Dove," described as "sent out and returning the 28th of October and the 4th of November"—after quaintly remarking that the Dove had rested on the public fast—goes on to inform the reader how the country neglected, slighted, and contemned the ordinance of God, and of the Parliament for days of humiliation—not only in the country towns, where ignorant people ordinarily ploughed, threshed, hedged, and ditched, but also in the great city of London. Though the country was suffering, how thin were the congregations on a fast day! How full the cookshops, ordinaries, and taverns! "Do men indeed believe there is a God?" asks the indignant editor. Such lamentations remind us of similar ones expressed by St. Chrysostom, when comparing the scanty attendance at church with the multitudes assembled in places of amusement.

Amidst all these fears and complaints, negotiations were continued between the Presbyterians in Parliament, and the Scotch authorities relative to the payment and the disbanding of their troops and the surrender of the King into English hands. When arrangements for the purpose had been effected between the two parties, his Majesty, at the end of January, 1647, delivered himself up to the Parliamentary Commissioners at Newcastle, whence he was conducted to Holdenby House, in the county of Northampton—a stately Elizabethan mansion, which had been built by Sir Christopher Hatton—a retreat, however, certainly not selected in consideration of the fallen monarch's feelings, since it was within a short ride from Naseby, the scene of his final and most inglorious defeat. Notwithstanding this circumstance, he graciously expressed himself as glad to come a little nearer to his Parliament; and no doubt, with all sincerity, he also declared his perfect willingness to bid farewell to his northern hosts. His journey was retarded by unfavourable weather, yet thousands of spectators greeted his approach to the old mansion; whilst bells rang and cannons fired "with a gallant echo."^[637] The English Presbyterians were

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greatly elated on obtaining the charge of the royal person, a prize which, they hoped, would bring to them other advantages in its train.^[638] Charles, after reaching Holdenby House, requested to be allowed the attendance of his episcopal chaplains. The request was refused. He was informed that no one who did not take the Covenant could be permitted to remain in his household. It is very well known how his Majesty amused himself whilst at Holdenby—sometimes walking in the pleasant neighbourhood; sometimes riding over to a bowling-green a few miles distant. Other matters, too, not often noticed by historians, but characteristic of the royal prisoner, occupied his attention. As the opening spring covered with bright green the Northamptonshire fields, and as the pear trees in the orchards of Holdenby exhibited their snowy types of the resurrection, the royal and episcopalian churchman naturally desired to commemorate the holy festival of Easter, so endeared of old to the hearts of Christians.

"I desire," said Charles, in a paper he wrote at this time, "to be resolved of this question: Why the new reformers discharge the keeping of Easter? The reason for this query is, I conceive, that the celebration of this feast was instituted by the same authority which changed the Jewish Sabbath into the Lord's Day, or Sunday; for it will not be found in Scripture when Saturday is discharged to be kept, or turned into Sunday, whereas it must be the Church's authority that changed the one and instituted the other. Therefore, my opinion is, that those who will not keep this feast may as well return to the observation of Saturday, and refuse the weekly Sunday. When anybody can shew me that herein I am in error, I shall not be ashamed to confess and amend it. Till then, you know my mind.—C. Rex."

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To this, Sir James Harrington—who had been appointed by Parliament to attend upon him at Holdenby—replied, that the changing of the Sabbath and the instituting of Easter were "not by one and the same equal authority and ecclesiastical decree, upon which the reason of his Majesty's query seems to be built." "The Easter festival is a church appointment; but the observance of the Sabbath is according to the fourth commandment, and in the New Testament there is evidence of the change of the day."^[639]

With the King in their keeping, and with a majority still on their side in the House of Commons, the Presbyterians were full of confidence, and their religious

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affairs seemed to promise a favourable issue. But the army became to them an increasing difficulty. To disband it appeared most desirable; but how to accomplish that object was the question. The soldiers did not choose to be disbanded. They said they were not Turkish janissaries, nor Swiss mercenaries—not mere adventurers of fortune, paid to throw their lances in a cause they did not care for—but Englishmen, who had been struggling for their rights, fighting in defence of hearth, home, and a free church; and, before they laid down their arms, they would know that their country had obtained what they and their brave comrades had shed their blood to win. They were entitled to be paid before they were dismissed, and paid they would be; but, what was more precious to them far than pay, they would secure for themselves and their fellow-countrymen liberty of conscience. To use Clarendon's words: "Hitherto there was so little security provided in that point, that there was a greater persecution now against religious and godly men than ever had been in the King's government, when the bishops were their judges."^[640] This is exaggeration; yet it was thus that men talked around their camp-fires on frosty nights during that memorable winter. The army petitioned Parliament in the spring of 1647. Parliament objected to army petitions. The petitioners vindicated their rights in this respect; and some troopers boldly sent a letter to the honourable House, declaring that they would not disband until their requests were granted, and the liberties of the subject were placed beyond peril. A debate followed this appeal, and speeches were prolonged to a late hour. Denzil Holles, the Presbyterian leader, full of that passion and prejudice which often blinded his strong intellect and pushed on his resolute will, then hastily took a scrap of paper, and wrote across it, as it lay upon his knee, a resolution declaring the petition to be seditious, and that to support it was treason. Holles' resolution fell like a spark upon an open barrel of gunpowder.

This was in the month of April. In March, the House had resolved that every officer in garrison, and under the command of Fairfax, should take the Covenant, and conform to the Church by ordinance established. The vote aimed a blow at the Independents, and those who sympathized with them—Cromwell, Blake, Ludlow, Algernon Sidney, Ireton, Skippon, and Hutchinson.

The Presbyterians were now walking in the dark on the edge of a pitfall. Their great general, the Earl of

Earl of Essex.

Essex, was dead.^[641] The only son of Robert, Queen Elizabeth's favourite, he had enjoyed much of his father's popularity. Trained to arms in the Netherlands, he became an accomplished soldier of the old school; and, having served with distinction in the wars of the Palatinate, he had acquired the reputation of a Protestant champion before he was called upon to draw his sword within the shores of his native land. His military fame and his religious character pointed him out as a Parliamentary commander at the outbreak of the civil wars. A moderate Episcopalian in the first instance, yet wishing to see bishops excluded from the peerage, he glided into Presbyterianism, and at last would have been glad to bring about such a settlement of affairs as would give ascendancy to that system without the destruction of monarchical rule. In all respects moderate—fearing a decisive victory, such as would crush the King, scarcely less than he feared such a defeat of the Parliamentary army as would restore him to his former power—the history of the military career of the Earl of Essex in England was more cautious than brilliant, and from first to last abounded in Fabian delays. Nominally retaining supreme command of the forces till the year 1645, the influence of this nobleman had declined with the siege of Gloucester, in 1643.

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The surrender of his army in the west, in the autumn of 1644, brought a cloud over his military career, though it left untarnished his personal honour. The old officers being displaced by the self-denying ordinance, Essex had to resign his baton. Without military command, he notwithstanding continued to be a man of great influence; which personal vanity, as well as higher considerations, prompted him to employ. Sympathizing with Presbyterians, and jealous of Independents, he incurred Cromwell's displeasure; and Cromwell, after the passing of the self-denying ordinance, became disliked by him. Had Essex lived, it was thought—though without sufficient reason—that he might have allayed party feeling and have prevented the terrible catastrophe which was not far distant. His death, however, struck at the hopes of compromise cherished by his Presbyterian friends, whilst, by that event, Cromwell and his party, as Clarendon reports, were wonderfully exalted, Essex being the only one "whose credit and interest they feared without any esteem of his person."

^[642]

It should also be considered how unwise the Presbyterians had been in paying off and dismissing the Scotch army, which, so long as it continued on English ground, might be reckoned as an ally and a defender of the new Church. At least, that army remaining here would have served to hold the English one in check, and to render its commanders more prudent, if it did not make its men less bold. But the march of the Presbyterian regiments over the border left Cromwell and his brother officers free from all apprehensions of military resistance. The Independents thus became masters of the situation.

*The King and the
Independents.*

A very bold stroke they in their turn struck at Presbyterian plans, when, in the month of June, they sent Cornet Joyce to fetch his Majesty from Holdenby House that they might take care of him themselves,^[643] and they almost reconciled him to his new captivity by relaxing the restraints which he had endured, and by allowing him to have his own chaplains. Sheldon, Morley, Sanderson, and Hammond, now "performed their function at the ordinary hours in their accustomed formalities; all persons, who had a mind to it, being suffered to be present, to his Majesty's infinite satisfaction."^[644] The restored surplice and prayer book were a great comfort to the unhappy prince. The concession appears to have resulted from policy; for as the Presbyterians had been in treaty with him for the furtherance of their ends, some of the Independent officers now thought of effecting their own reconciliation on terms of their own. Into the story of the conferences between Sir John Berkely and the King on the one hand, and between Sir John Berkely and certain chieftains of the army on the other, it is not our business to enter. We would only say that the sincere purpose of Cromwell, in reference to ecclesiastical matters, seems to have been to secure toleration, within certain limits, for the religious opinions and observances both of the people and of the Monarch, and to prevent the exercise of either Episcopalian or Presbyterian tyranny. We are inclined to believe that, on such a basis—with due securities for political liberty, and in connection with official arrangements, in which, of course, so distinguished a man could not but expect to have some conspicuous place—Cromwell felt not unwilling to aid in the restoration of Charles. But the insincerity of the latter and the opposition of the republicans prevented the scheme from proceeding far.

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Cromwell also aimed at reconciling the factious members of the two parties. He invited certain Presbyterians and Independents to dine with him at Westminster, and he held conferences with the grandees of the House and with the grandees of the army. All this, however, proved to be of no effect. Ludlow tells a story of the hero of Naseby, at the end of a conference, flinging a cushion at his head and then running down stairs, and of his overtaking the general with another cushion, which "made him hasten down faster than he desired."^[645] Ludlow, with all his prejudice against Cromwell, was not the man to invent an untruth, even in so small a matter; and one may note this flash of fun after severe debate, as indicating a genuine Teutonic temperament in the two rough soldiers, akin to what we read of in old Norse mythologies, of grotesque tricks played by Woden-like chiefs, and quite in keeping with what we know of that Teutonic hero, Martin Luther, who could laugh and joke, as well as preach and pray.

Although Cromwell could not reconcile ecclesiastical adversaries, or come to terms with the captive King, there remained no hope for Presbyterian uniformity.

*Royalist
Demonstrations.*

Active men in the undisbanded army, true to their purpose, still insisted upon securing the right of toleration, together with certain other points of a political nature; and, seeing that there were Presbyterians at work in the House of Commons with a view of thwarting their designs, they boldly impeached eleven of them.

Immense excitement ensued. Trained-bands, apprentices, mariners, and soldiers, petitioned that the King might be brought to London, with the hope of securing a reconciliation. Riots followed. The House of Commons was besieged; and Sir Arthur Haselrig, the political Independent, persuaded the Speaker, at the head of a large number of members, to leave Westminster, and to fly for protection to the camp. The Speaker, having "caused a thousand pounds to be thrown into his coach, went down to the army, which lay then at Windsor, Maidenhead, Colnbrook, and the adjacent places."^[646]

Notwithstanding these extraordinary attempts on the part of the opposition, the Presbyterians did not lose their ascendancy in the House of Commons.^[647] Their cause received vigorous and influential support from the London ministers.

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The Corporation also manifested similar zeal by taking care to place in all municipal offices Presbyterians of a true blue tint. The party further strengthened itself in some quarters through its Royalism, and in consequence of the repugnance which was felt by numbers of people at the growing Republicanism of the Independents. Republicanism, besides its inherent defects, had the disadvantage of appearing to the practical minds of Englishmen as at the best an untried theory, which, whatever advantages it might seem to promise, would be found miserably wanting when tested by being put into practice.

Outbursts of Royalist violence occurred in the spring of 1648. The city of Norwich had a Royalist and Episcopalian mayor, whom the Parliament deposed from office, appointing another alderman in his place. The citizens who took part with the disgraced chief magistrate abused his successor, and threatened to hang the pursuivant and sheriff upon the Castle Hill. It being reported that the gentleman who had been thus set aside would be carried off by his enemies in the night, his friends seized the keys of the many-gated city, and assembled in the market-place, giving out as their watchword, "For God and King Charles." Large crowds afterwards openly avowed that they were for his Majesty, and that they would pluck the Roundheads out of the Corporation, and put in honest men who would serve God and go to church. The city found itself filled with rioters who were breaking windows, entering houses, plundering them of food, wine, and beer, and seizing the fire-arms kept in the magazine. All was confusion, and the tradesmen shut up their shops. But Colonel Fleetwood's troopers, then in the county, were quickly despatched to quell the riot. The rebels ran away after being attacked by the soldiers, and retired to the Committee House, where the county ammunition was kept. By accident or from design ninety-eight barrels of gunpowder there exploded, which not only blew up several persons "into the air, but by the violence of the shock, which was perceived in the greatest part of the county, many windows were shattered in pieces, and much mischief done by the stones and timber at a great distance."^[648] A riot of a similar kind happened at Bury St. Edmunds.^[649]

Out of these Royalist demonstrations Parliament made capital at the moment of putting them down. On the 28th of April, 1648—two days after the Norwich Corporation had determined on a thanksgiving for the suppression of the

*Laws against
Heresy.*

tumult^[650]—the House of Commons carried a resolution that the future government of England should be by King, Lords, and Commons, and that a treaty should be opened with Charles for peace and settlement. What kind of settlement it was to be, ecclesiastically considered, the Presbyterian Commons foreshadowed by a law made a few days afterwards.

As early as April, 1646, a bill had been in preparation for preventing heresies and blasphemies. In the September of that year it had been read a first and second time. In the following November the House had voted that the penalty for such offences, in certain cases, should be death. Subsequent political confusions had arrested for a while the progress of this measure, but now, on the 2nd of May, 1648, under the renewed ascendancy of Presbyterianism, an ordinance came forth of the following character:^[651]—The denial of God by preaching, teaching, printing or writing, of His perfections, or of the Trinity, or of the two natures of Christ, or of His atonement, or of the canonical books of Scripture, or of the resurrection of the dead and a final judgment, was to be deemed a capital offence; and the offender was to "suffer the pains of death, as in case of felony, without benefit of clergy." In case of recantation, he was to remain in prison till he found two sureties who would answer for his never again broaching the said errors. The ordinance specified a second class of heresies:—That all men shall be saved—that man by nature hath free will to turn to God—that God may be worshipped by pictures and images—that there is a purgatory—that the soul can die or sleep—that the workings of the Spirit are a rule of life, although they be contrary to the written Word—that man is bound to believe no more than his reason can comprehend—that the moral law is no rule of Christian life—that a believer need not repent or pray—that the two sacraments are not of Divine authority—that infant baptism is unlawful or void—that the observance of the Lord's day, as enjoined in this realm, is not according to the Word of God—that it is not lawful to join in public or family prayer, or to teach children to pray—that the churches of England are not true churches—that Presbyterian government is anti-Christian—that the magistracy established in England is unlawful, or that the use of arms is not allowable. To publish or maintain any of these doctrines, entailed imprisonment until the offender found sureties for his not offending any more. In conclusion, it was

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provided that no attainder by virtue of the ordinance should extend to a forfeiture of estates or a corruption of blood. We have given this piece of legislation almost entire. It throws light on the nature of the errors which at that time were prevalent. The ordinance is pointed at Atheism, Infidelity, and Socinianism, also at Pelagianism, Universalism, and Popery. It levels its bolts at Quakerism, Antinomianism, and Anabaptism. It fixes its eyes on fifth monarchy men, and will allow no anti-Presbyterian to escape its vengeance. But, in seeking to crush what were mischievous errors, these legislators really brought within danger of prison and death a number of persons who, though belonging to none of the proscribed sects, yet might refuse the exact formulary of belief which the words of the act enjoined. A person might devoutly believe in the divinity of Christ, and yet he might object to a definition of the Trinity; he might accept the Scriptures as Divine, and yet he might doubt the canonicity of certain books. Notwithstanding such a man's substantial faith, the ordinance threatened him with a felon's doom. Some of the opinions specified were merely intellectual, and, socially considered, perfectly innocuous. But, supposing a man entertained the very worst sentiments coming within the view of this minutely specific law, such an enactment only served in the instance of a courageous heresiarch to make him all the more obstinate in his misbelief. And then the folly of requiring in such cases sureties for good behaviour! No doubt the statesmen who thus meddled in the region of religious opinion, proceeded upon other principles than those of mere political expediency, and would have met all objections based on the inefficacy of their policy for good, its social injustice, and its violation of the rights of conscience, with this argument—that the highest duty of the magistrate is simply to maintain God's truth irrespective of all consequences; that as a defender of the Church he is not to bear the sword in vain; and that he is to tread in the steps of Israel's heroes, walking through the camp of God, Phineas-like, javelin in hand. But however disposed one may be to do justice to the motives of these men, as honestly desiring to advance the glory of God, it is impossible not to regard proceedings like theirs in the instance before us as inspired with a monstrous fanaticism. [\[652\]](#)

In the month of September, 1648, not long after the ordinance had been passed for more effectually settling Presbyterian government, boats crossed the water between the Hampshire coast and the Isle of Wight, conveying Noblemen,

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Gentlemen, Divines and Lawyers to take part in a new conference with the fallen sovereign.^[653] He was allowed to have, as assistants in the discussion, certain learned Episcopalians, including Juxon, Hammond, and Ussher, who were to stand behind his chair; but they were not to speak except when the King might wish for their advice, which could be given by them only in another room. The Parliament sent down on its own behalf five noblemen, with four Presbyterian Divines—Dr. Seaman, Mr. Caryl, Mr. Marshall, and Mr. Vines. The principal topics debated were of an ecclesiastical nature—as on other points the King, being now reduced to the last extremity, yielded his consent to the demands of Parliament. He took his stand on the merits of Episcopacy, and the demerits of the Covenant. His arguments were in the main the same as those which he had adduced at Newcastle, and some Episcopalians have thought that the royal theologian, in this renewed controversy, derived little benefit from his Episcopal advisers.^[654]

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Circumstances compelled him now to make large practical concessions. He would abolish the hierarchy, except the simple order of bishops. He would for the space of three years allow no other ecclesiastical government than the Presbyterian, and afterwards would not permit any Episcopal rule to be exercised except such as Parliament might allow; indeed, he went so far as to say if he could be convinced that Episcopacy was not agreeable to the Word of God he would take it entirely away. Afterwards he promised that for the next three years he would appoint no new Bishops, that Bishops should receive no persons into holy orders without the consent of the Presbyters, that another form than the Common Prayer should be used in the royal chapel, and that mass should never be said at Court.^[655]

Charles at last resolved to make no further concessions. To the three demands made by Parliament through the Commissioners, first, for the abolition of Bishops, secondly, for the sale of their lands, and thirdly, for the use of the Directory by himself, he gave a decided denial. If, said he, the Houses thought it not fit to recede from the strictness of their demands in these respects, then he would with all the more comfort cast himself upon his Saviour's goodness to support him and defend him from all afflictions.^[656]

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A Royalist reaction now sprung up amongst the Presbyterians, and the former alienation between the army and the Parliament burst into open warfare. The army, tired of treaties which made not the slightest provision for religious liberty, tired also of one-sided Presbyterian zeal, which sacrificed the liberties of the country to the adored ideal of a covenanted uniformity, and further tired of long and fruitless negotiations, addressed a stern remonstrance to Parliament—as long too as it was stern—demanding justice upon the misguided monarch.^[657] Then came a declaration of the advance of the army towards the City of London. Thus threatened, the Presbyterians were put on their defence. To submit to the army would be to give up their idol. More hope remained for Presbyterianism now in pushing a treaty with the King than in yielding to the pressure of the Independents. The courage and calmness of the advocates of this policy at such a moment command our admiration. Amidst all their fondness for the Covenant, and all their aversion to Episcopacy, there appeared a disinterested spirit of loyalty to the King's person, and of great anxiety for the preservation of the King's life.

Newport Treaty.

On Monday, December the 4th, after tidings had been received of the removal of Charles across the water from Carisbrook to Hurst Castle, by officers of the army—the Commons were in deep debate. They declared that the removal had been accomplished without their consent or knowledge, and then they grappled with the all-absorbing question, whether the royal answers to the propositions of both Houses could be considered satisfactory. Whilst Sir Harry Vane, Mr. Corbet, and others of the Independent party contended that those answers were not satisfactory, the Presbyterians put forth all their remaining strength to save his Majesty. Sir Benjamin Rudyard, Sir Harbottle Grimstone, and Sir Symonds D'Ewes came to the rescue; but Mr. Prynne stood forward as the chief advocate of the false and fallen prince. In a speech, continued long after candles had been lighted, he went over the whole ground of the long dispute. He could not, as he said, be suspected of any undue partiality for his Majesty, seeing that all the royal favour he had ever received was shewn in cutting off his ears; but still he argued with immense elaboration and great ability that there was enough in the results of the recent negotiations to warrant the conclusion of a treaty. The political concessions which had been made he maintained were amply sufficient.

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Such as were ecclesiastical, he proceeded to observe, though they did not meet the Parliament's demands, yet went so far as to warrant a hope of a satisfactory issue. For hours he continued his speech, and at the end of it the majority—so the orator himself reports—declared both by their cheerful countenances and by their express words that they were abundantly satisfied. After the Speaker had taken some refreshments there came a division on the question, that the answers of the King "are a ground for the House to proceed upon, for the settlement of the peace of the kingdom." Ayes, 140, Noes, 104. It was Tuesday morning; the clock had now struck nine, and the debate had lasted from the morning of the previous day. Although the doors had never been locked, there were present in the House at one time as many as 340 members: many of them, however, because of age and infirmity, could not remain throughout the night. [\[658\]](#)

Whatever opinion may be formed of the Presbyterian policy, everybody must acknowledge that such a debate with the army at the door brought out some noble characteristics, and that Prynne shewed himself a brave man, with such armed odds against him, thus to stand up for peace with Charles, at the moment when his death-knell had begun to be rung in the camp. Zeal for Presbyterianism, hatred of Independency, and jealousy of the army were powerful motives with this singular person; yet with these feelings were blended sentiments of the purest loyalty.

But eloquence proved no match for steel. The Scotch army had set up the Covenant; the English army now pulled it down. As at the beginning of that great mistake, so at the end, force had more influence than reason, violence than argument. Pride's purge carried all before it. Prynne had not recovered from his exhaustion before the army had cleared the House of all opponents. Above one hundred members were excluded before the end of December; others withdrew. Thus by one and the same blow the fate of monarchy and of Presbyterianism was decided. It is vain to talk about constitutionalism at such a crisis. Revolution had marched through England gaunt and grim. Its black shadow had darkened the land, and now it fell over Parliament itself. The army had fought for liberty of conscience, certainly not the least of the prizes in dispute, and that being now in jeopardy, a strong hand was put forth very unceremoniously to beat down the obstacle which hindered its attainment.

As it was with Lord Strafford and with Archbishop Laud, so it was with King Charles I. The noblest scene in his whole life was the last. He appeared to infinitely greater advantage at the bar, and on the scaffold, than he had ever done before. His religious demeanour, when he came to die, was all which his admirers could wish. Without refusing the prayers of Presbyterians and Independents, he availed himself of the counsels and devotions of Bishop Juxon; and he said to that prelate on his offering some expressions of condolence—"Leave off this, my Lord, we have no time for it. Let us think of our great work, and prepare to meet the great God to whom ere long I am to give an account of myself, and I hope I shall do it with peace, and that you will assist me therein. We will not talk of these rogues in whose hands I am. They thirst after my blood, and they will have it, and God's will be done. I thank God I heartily forgive them, and will talk of them no more." In a message to his son, he declared his faith in the apostolical institution of Episcopacy, and, as a last request, earnestly urged him to read the Bible, which in his own affliction, he remarked, "had been his best instructor and delight." He said to his attendant, on the morning of his execution, "Herbert, this is my second marriage day, I would be as trim to-day as may be, for before night I hope to be espoused to my blessed Jesus." "I fear not death, death is not terrible to me. I bless my God I am prepared."^[659] On his way to the block he hastened his attendants, remarking that he now went before them to strive for a heavenly crown with less solicitude than he had often encouraged his soldiers to fight for an earthly diadem.

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His words, as he stood with Juxon at his side,^[660] before the axe of the masked executioner, were broken and confused; but he declared himself a Christian, and a member of the Church; that he had a good cause and a gracious God, and was going from a corruptible to an incorruptible crown.

The impression which the tragedy produced on two eminent persons has been fully recorded. Parr, in his *Life of Ussher*,^[661] relates how the Irish primate came upon the leads of Lady Peterborough's house, "just over against Charing Cross," as the King made his final speech, and how, when his Majesty "had pulled off his cloak and doublet, and stood stripped in his waistcoat," and the men in vizards put up his hair, the good Bishop, unable to bear the dismal sight,

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grew pale and faint, and would have swooned away had not his servants removed him. He could vent his excitement only in prayers and tears; and ever afterwards he observed the 30th of January as a private fast. Matthew Henry states that his eminently-godly father witnessed the execution, and used to tell his children, at Broad Oak, of the dismal groan amongst the thousands of the people when the axe fell—a groan the like of which he had never heard before, and hoped he should never hear again; and he would also mention the circumstance of one troop of horse marching from Charing Cross to King Street, and another from King Street to Charing Cross, to disperse the crowd as soon as the awful deed was done.^[662]

The execution of Charles, however it may be deplored as mischievous, criticised as impolitic, or condemned as unjust, was perhaps—looking at the natural resentments and fears of men under the circumstances—only such a sequel to the civil wars as became probable after long experience of the King's invincible duplicity. Like Strafford, he had become too dangerous to live; and now it was thought that, like Strafford, he must die. Moreover, visions of republican bliss dazzled the imagination of a few who believed that they would be nearer the attainment of their hopes when the head of Charles should have rolled in dust.^[663] One result, it appears, they did not contemplate. They made a martyr of their victim, and thus so deeply stained their cause in the estimation of the largest portion of posterity, that all their patriotism and religious consistency in other respects have not sufficed to wipe out the blot.

The Presbyterians ought not to be reproached for the fate of Charles. Their statesmen did what they could to prevent it; and their Divines courageously protested against his being put to death, as a national crime. Nor should the Independents, as a religious sect, be made to bear the responsibility. It is true that some of them were members of the High Court of Justice—Bradshaw, the president, and Corbet, to mention no others, were in communion with Congregational Churches^[664]—but there were also Independent ministers who openly declared against the sentence; and the silence of others upon the subject is no more to be construed into approval than is the silence of Episcopalians.^[665] What extravagant things might be said by such a man as the notorious Hugh Peters, or even by John Goodwin—a different sort of person it is true—ought not to be charged upon the

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Independents in general. Yet some amongst the best of them, it must be acknowledged, approved of the deed. Lucy Hutchinson relates the conflicts of her husband, shewing how a sense of duty decided him in the part he took in the proceeding. Dr. Owen preached before Parliament the day after the King was beheaded; and though he does not allude to the event of the preceding morning, he preached in a strain not at all consistent with any reprobation of it, as an act of injustice. Although, in our opinion, it was a blunder, it has been vindicated even in the present day by writers of undoubted piety and honour: no wonder that good men, amidst a struggle which we can imperfectly imagine, were impelled to do what good men in the serener atmosphere of two centuries later deliberately justify.

The King was buried at Windsor on the 9th of February. Thither his remains were conveyed by Mr. Herbert and others; some of his faithful nobility, accompanied by Bishop Juxon, arriving at the Castle next day. They shewed the Governor-General, Whitchcot, ^[666] an authority from Parliament for their attendance at the funeral, and requested that the body might be interred according to the rites of the Church of England. The Governor refused, on the ground that the Common Prayer had been put down. To their solicitations and arguments he replied it was improbable that the Parliament would permit the use of what it had so solemnly abolished, and thus virtually contradict and destroy its own act. To which they rejoined: "There was a difference betwixt destroying their own act and dispensing with it, or suspending the exercise thereof; that no power so bindeth up its own hands as to disable itself in some cases to recede from the rigour of their own acts, if they should see just occasion." The plea proved unavailing. Whitchcot would not yield. As the funeral procession moved from the great hall in the Castle, and entered the open air, "the sky was serene and clear; but presently it began to snow, and the snow fell so fast that by that time the corpse came to the west end of the Royal Chapel, the black velvet pall was all white." The soldiers of the garrison carried the body to its resting-place under the choir. Over the coffin hung a black velvet hearse-cloth, "the four labels whereof the four Lords did support. The Bishop of London stood weeping by, to tender his service, which might not be accepted. Then was it deposited in silence and sorrow in

The Funeral.

1649, February.

the vacant place in the vault (the hearse-cloth being cast in after it) about three of the clock in the afternoon."[\[667\]](#)

FOOTNOTES:

[1] There is a document amongst the State Papers, headed "Proceeding to the Parliament of the Most High and Mighty Prince, King Charles, on Tuesday, the 3rd of November, 1640, from Whitehall by water to Westminster Stairs, and from thence on foot." The document is interesting in connection with Clarendon's statement: "The King himself did not ride with his accustomed equipage, nor in his usual majesty, to Westminster, but went privately in his barge to the parliament stairs, and so to the Church, as if it had been to a return of a prorogued or adjourned Parliament."—*Hist. of Rebellion and Life* (in one vol.), 68. The paper exhibits the following programme: "Messengers; trumpets; the Sergeant-trumpeter alone; Master of the Chancery; the King's Puisne Sergeants-at-law; the King's Solicitor and the King's Attorney-General; the King's two ancient Sergeants-at-law; Masters of the Requests, two and two; Barons of the Exchequer; Justices of the Common Pleas; Justices of the King's Bench; Lord Chief Baron of the Exchequer: Master of the Rolls; the two Lords Chief Justices; Pursuivants-of-Arms; Privy Councillors; Herald; Lord Finch, keeper of the Great Seal of England, and many other lords and gentlemen."

[2] See *Journals of the Lords*, to the words of which I have closely adhered, and *Parliamentary History*. (Cobbett), ii. 637.

[3] No one can see more clearly than myself the defectiveness of these views of the state of parties. We must begin somewhere. To go very far back is unsatisfactory, because the glimpses given of remote periods must be indistinct and confused, and are apt to convey inaccurate impressions. To commence with notices of what took place just before our history opens, is also exposed to objection, because it leaves out of sight so much which served to prepare for what followed. The history of the Commonwealth requires a previous study of the history of the Reformation, and that again the history of the Middle Ages. Notices of the early Presbyterians, Independents, and Baptists will be found in subsequent chapters.

[4] This oft-told story rests on the authority of his friend, Lord Clarendon.—*Hist. and Life*, 928.

[5] *Stat. 1 Eliz. C.Q.*, lv. 3, 15.

When the Bills of Supremacy and Uniformity were read a third time in the House of Lords (April 26 and 28, 1558), the Bishops of York, London, Ely, Wigorn, Llandaff, Coventry and Litchfield, Exon, Chester, Carlisle, are mentioned in the Journals as dissentients from both the Bills.—*Strype's Annals of the Reformation*, i. 87, (Oxford edition.) In connection with the history of the Bill of Supremacy in *Strype's Annals* the student should read the history of convocation in *Strype's Memorials*, Vol. i. Chap. xvii. An extraordinary paper in favour of the King's supremacy, attributed to Gardiner, is given, p. 209.

[6] 8 Eliz. c. 1, "declaring the manner of making and consecrating of Archbishops and Bishops of the realm to be good, lawful, and perfect."—*Strype's Life of Parker*, (Oxford edition) i. 109-121. See also "paper of

arguments for the Queen's supreme power in causes ecclesiastical."—*Strype's Life of Whitgift*, iii. 213.

[7] Selden says so in his *Table Talk*, 38. Mr. Bruce informs me, "I have no doubt that Selden was right. Many great persons holding offices in the State and Household were appointed Commissioners by reason of their offices, but never attended. The business fell into the hands of the Bishops (or rather some three or four of them) and a few civilians from Doctors' Commons—the Judge of the Arches, the Judge of the Prerogative Court, and a few other such persons. The sentences that I have seen have been signed by from 15 to 20 persons, generally such as I have indicated."

[8] "Turning her speech to the Bishops, she gave them this admonition, 'That if they, the Lords of the clergy (as she called them), did not amend, she was minded to depose them, and bade them therefore to look well to their charges.'"—*Strype's Whitgift*, i. 393.

[9] *Strype's Whitgift*, i. 391. Whitgift has been called an Erastian, and Warburton (*Works*, xii. 386), on Selden's authority, attributes to him the publication of the *De excommunicatione*, under fictitious names of the place and printer. I do not know the ground of Selden's statement. The proceedings of Whitgift were inconsistent with Erastianism. The famous work of Erastus will be noticed hereafter.

[10] *Strype's Whitgift*, i. 559. See Sir Francis Knolly's objection to Bancroft's doctrine, reduced to a syllogistic form (560). Knollys had encouraged Parker to oppose the use of burning tapers, and of the cross, in the Queen's chapel.—*Strype's Parker*, i. 92.

[11] Parker was kept up to the mark in enforcing uniformity by the Queen, who in this and some other points was more decidedly Anglo-Catholic than her Protestant prelates. See her letter to him "roundly penned." *Strype's Parker*, ii. 76.

[12] Strype, (in his *Annals*, i. 106,) says 177. He adds "In one of the volumes of the Cotton Library—which volume seemeth once to have belonged to Camden—the whole number of the deprived ecclesiastics is digested in this catalogue: Bishops, 14; Deans, 13; Archdeacons, 14; Heads of Colleges, 15; Prebendaries, 50; Rectors of Churches, 80; Abbots, Priors, and Abbesses, 6; in all, 192. Camden, in his *Annals*, little varies, only reckoning 12 Deans and as many Archdeacons."

[13] Paper endorsed—Dr. Bardesy; "Of my Daughter's Death, 1 April, 1641;" 1/4 ho. ante ho. 9, post Mer.—*State Papers. Charles I. Domestic*.

[14] *Mr. Bruce's Calendar of State Papers, Domestic*, 1633-4, p. 275; and *Preface*, xviii.

[15] *Lathbury's History of Convocation*, 253.

[16] This is illustrated in the Tractarian movement, as appears in *Dr. Newman's Apologia*.

[17] Roger Ascham's application to Cranmer in the reign of Edward VI., for a dispensation during Lent is very curious. So is the grant of it in the King's name

under the Privy Seal, at the Archbishop's suggestion.—See *Strype's Cranmer*, i. 238, 240.

[18] "Many choose to be wanton," it is said, "with flesh at that time, rather than at others." February 13.—*State Papers, Domestic*.

[19] See "*The Arminian Nunnery, or a brief description and relation of the late erected monastical place called the Arminian Nunnery at Little Gidding, in Huntingdonshire*." 1641. Compare *Walton's Lives*, 335.

[20] *Rushworth's Historical Collection*, ii. 324. No doubt, sometimes the charge of Popery was unjustly made, and there is force in what Sanderson says in the Preface to his Sermons, p. 74. The passage is too long for quotation.

[21] See *Hale's Precedents and Proceedings in Ecclesiastical Courts*. Introductory Essay, xxxiv. Compare *Hallam's Const. Hist.*, i. 99.

[22] See *New Canons*, iii. to xii., made in 1604.

[23] Whitelocke, when Recorder of Abingdon, was accused and cited before the Council Table because "he did comply with and countenance the Nonconformists there, and refused to punish those who did not bow at the name of Jesus, and to the altar, and refused to receive the sacrament kneeling at the high altar, &c."—*Whitelocke's Memorials*, 23.

[24] *Hale's Precedents in Criminal Causes*, xxxix., xliii.; compare *Hallam's Const. Hist.*, i. 180. The extracts from Court Books in Hale are my authority for what follows. I may add here that, soon after the accession of Elizabeth, the bishops complained of interference with their office in discipline, and correction of evil manners, by inhibitions obtained from the courts of the Archbishop of Canterbury.—*Strype's Parker*, i. 161.

[25] A clear account of compurgation, transferred from old ecclesiastical courts to the Court of High Commission, is given by Mr. Bruce in his *Preface to the Cal. Dom.* 1635-6, xxxi. A man was restored "to his good name" by swearing to his own innocence when objectors did not appear, and his neighbours, the compurgators, swore that he was to be believed.

[26] It is very remarkable that this Act, the only one which fixes the authority for deciding what heresy is, vests that spiritual power in the secular government, only with clerical "assent."—*Stat. 1 Eliz.*, c. 1, s. 36.

[27] 1562, July 20. A commission was issued for ecclesiastical causes in the diocese of Chester.

1576, April 23. A commission was given to Grindal, Archbishop of Canterbury, and other bishops, for exercising ecclesiastical jurisdiction throughout the nation.—*State Papers*, cviii., No. 7.

The "proceedings of the Archbishop of York" in 1580 are preserved in the State Paper Office, cxli., No. 28. At a private meeting on the 2nd of August, 1580, held in Richmond, "the Court is informed that Robert Wythes, of Copgrave, gentleman, made fast his doors against the messenger; that a little damsel was set to attend at the door, who made answer he was not at home, and refused to receive the process, so the messenger waxed it to the door." Vol. cxli., No. 3.

[28] *Neal*, i. 410, gives a copy of the commission from a MS. I have sought in vain for the original. Mr. Bruce informs me it is not preserved among the *State Papers*.

Neal, i. 414, explains "all other means and ways they could devise" as including the rack. Brodie (*British Empire*, i. 197) disputes this, saying, "Besides that, the rack never was attempted; the other clauses distinctly show that it never was contemplated." On carefully examining the commission printed in *Neal*, it will be found that the qualifying expressions "lawful," &c., are connected with the infliction of *penalty*, not the business of *enquiry*. The penalties were to be according to law, but that restriction would not necessarily apply to the mode of examination. I do not see that Brodie's argument is conclusive; still I do not think that the rack was used. The absence, however, of the word "lawful" in connection with "ways and means" in the first clause is remarkable.

[29] *Brodie*, i. 198. He adds: "Though fines were *imposed*, not one was *levied* in Elizabeth's time by any judicial process out of the Exchequer, 'nor any subject, in his body, lands, or goods, charged therewith.'"—*Coke's 4th Inst.*, 326, 332; *4th Inst.*, 331.

In various printed books the legality of the Court was questioned. The *ex officio* oath was objected to as a sinister practice of the Romish clergy, and contrary to fundamental laws of liberty.—*Burn's High Commission* (a pamphlet published by J. Russel Smith, 1865), 14.

[30] "To you, or three of you, whereof the Archbishop of Canterbury, or one of the bishops mentioned in the commission, or Sir Francis Walsingham, Sir Gilbert Gerard, or some of the civilians, to be one."—*Neal*, i. 410.

There are subsequent commissions for the diocese of Norwich, 1589; for Manchester, 1596, 1597; for England and Ireland, 1600.—See *Rymer*, Vol. vii. 173, 194; xvi. 291, 400.

A commission was issued, 1629, to the Archbishop of Canterbury, &c., to exercise all manner of jurisdictions, privileges, and pre-eminences, concerning any spiritual or ecclesiastical jurisdiction within the realm; also to enquire, hear, determine, and punish all incests, adulteries, &c., and disorders in marriage, and all other grievous and great crimes.

[31] Four folio books of proceedings, from 1634 to 1640, are in the State Paper Office. At Norwich there is a book of proceedings from 1595 to 1598, and at Durham two volumes of Acts and Depositions from 1626 to 1639. These are the only records known to exist.—*Burn's High Commission*, 44 & 52.

[32] See *Cal. Dom.*, 1633-4, 1634-5. Lady Eleanor Davies alias Douglas, (evidently insane) is mulcted to the extent of £3,000 for certain fanatical pamphlets. Richard Parry has a fine of £2,000 for disturbance of divine service and profane speeches, mitigated to 1,000 marks.—*Cal.* 1634-5, 176. A fine of £1,000, from Theophilus Brabourne, for maintaining and publishing heretical and Judaical opinions touching the Sabbath, is repeatedly mentioned, with notices of respites, suspension of sentence, and mitigation. A silk weaver was committed to the Gate House for fetching a parcel of schismatical books. The most preposterous suspicions were entertained, leading to outrageous injustice, as in the case of "two poor foolish boys, taken amongst others, at Francis Donwell's house, the aleholder, at Stepney," for "sitting at the table with Bibles

before them." "They were, by order of the court, discharged," but not till after many days' imprisonment. "They were taken on Sunday last past was fortnight, the 1st of October, 1635."

The following entry occurs relating to Richard Walker Clerk, prisoner in the Gate House: "Defendant having lain a twelvemonth in prison for preaching a scandalous and offensive sermon here in London, and having promised by his subscription to carry himself peaceably and conformably to the orders of the Church of England, he was ordered to be enlarged." *Cal.* 1634-5, p. 544.

[33] *Cal.* 1634-5, p. 177, 118, & 110.

[34] Some strange specimens of puritan "faithfulness" are given; (*Cal.* 1634-5, p. 319,) but the question arises, were the passages we find correctly reported?

[35] Some things appear in the Commission Records strangely illustrating the state of society. Sir Richard Strode and Sir John Strode, near kinsmen, quarrelled about the possession of an aisle in the parish church of Cattistock. Sir Richard came with his lady on Easter-day to receive the sacrament armed with a pistol charged with powder and small shot, and directed his servant to carry a sword. He was also accused of entertaining a degraded minister, who "pronounced prayers extempore, and expounded a passage of scripture. On behalf of Sir Richard, it was proved that he carried the pistol secretly, and that no disturbance ensued."—*Cal.*, 1634-5, p. 121.

Since writing this Introduction I have been permitted to peruse the *Rawlinson MS.*, A., 128, which affords many new illustrations of the proceedings of the High Commission and of the Star Chamber also. I shall have occasion hereafter to notice some parts of this *MS.* The whole will be published by the Camden Society.

[36] The Court was threatened before the opening of the Long Parliament.

"We are growing here at London into some Edinburgh tumults, for upon Thursday last, the High Commission being kept at St. Paul's, there came in very near 2,000 Brownists, and, at the end of the court made a foul clamour: and tore down all the benches that were in the consistory, crying out they would have no Bishops nor High Commission. I like not this preface to the Parliament, and this day I shall see what the Lords will do concerning this tumult."—*Laud's Letter*, 186. *Works*, vi. 585. Oxford edition. *Diary*, Oct. 22, 1640, iii, 237.

[37] *Rushworth*, i. 423. After Worrall, Laud's chaplain, had signed the Imprimatur to Dr. Sibthorpe's famous sermon, 1627, Selden told him, "When the times shall change, and the late transactions shall be scrutinized, you will gain a halter instead of promotion for this book." Worrall withdrew his signature, but Laud appended his own.—*Life of Selden*, p. 129.

[38] *Rushworth*, i. 594.

[39] See *Hallam's Constitutional History*, i. 456; and *Eliot's Life*, by Forster, i. 246; ii. 398; 409; 450.

[40] In *Rushworth*, ii. 77, is a full account of these ceremonies, with notices of Laud's defence. The latter is found more fully in the history of his *Troubles and Trial*. *Works*, iv. 247. He denied he threw up dust, but leaves it to be inferred that he threw up ashes. He also contradicted other statements made respecting

this famous consecration. Whatever exaggeration there might be, enough is proved to show the extraordinary superstitiousness of the proceeding.

[41] Bunsen's *Hippolytus*, iv. 197.

[42] Wearing a cope in cathedrals at the Communion by the principal minister, is, however, prescribed by Canon xxiv.

[43] Southey says of Laud, "Offence was taken because the University of Oxford, to which he was a most munificent and judicious benefactor, addressed him by the titles of His Holiness, and Most Holy Father; and because he publicly declared, that in the disposal of ecclesiastical preferments, he would, when their merits were equal, prefer the single to the married men."—*Book of the Church*, 448. Laud furnishes an elaborate defence of some of the titles applied to him.—*Works*, iv. 157.

See curious entry in *Laud's Diary* of a dream he had that he was reconciled to the Church of Rome.—*Works*, iii. 201. He afterwards says (264), "I hope the reader will note my trouble at the dream, as well as the dream."

Zeal in crushing dissent, appears in a letter addressed to justices of the peace, which probably Laud procured from the High Commissioners:—"There remain in divers parts of the kingdom sundry sorts of separatists, novalists [*sic*], and sectaries, as, namely,—Brownists, Anabaptists, Arians, Traskites, Familists, and some other sorts, who, upon Sundays and other festival days, under pretence of repetition of sermons, ordinarily use to meet together in great numbers, in private houses, and other obscure places, and there keep private conventicles and exercises of religion, by law prohibited, to the corrupting of sundry his Majesty's good subjects, manifest contempt of his Highness's laws and disturbance of the Church. For reformation whereof the persons addressed are to enter any house where they shall have intelligence that such conventicles are held, and in every room thereof search for persons assembled, and for all unlicensed books, and bring all such persons and books found before the Ecclesiastical Commission as shall be thought meet."—*Cal.* 1633-4, p. 538.

At an earlier period, Laud says:—"We took another conventicle of separatists in Newington Woods upon Sunday last, in the very brake where the King's stag should have been lodged for his hunting next morning." P.S. to letter of Laud, June 13, 1632.—*State Papers*. Printed in *Laud's Works*, vii. 44.

[44] Articles for Diocese of Winchester. *Laud's Works*, v. 419-435. Numerous visitation articles, injunctions, and orders appear in this volume, highly interesting as illustrations both of the Archbishop's minute superintendence, and of the religious life of the period.

[45] Reprinted in *Laud's Works*, v. 315, 370.

[46] *Laud's Works*, v. 331.

[47] See *Cal. Dom.*, 1633-4, and Laud's Annual Accounts of his province just referred to.

[48] There is an extract of a letter in the State Paper Office (dated 1633, March 18, from the ambassador at the Hague) in the handwriting of Laud's secretary, upon the uncanonical proceedings of the English Congregation there.

[49] These points receive abundant illustration in *Mr. Bruce's Calendar*, 1633-4, and in his very interesting preface.

[50] Laud's power extended even to America. In a special commission for the colonies, "the Archbishop of Canterbury and those who were associated with him, received full power over the American plantations, to establish the government and dictate the laws, to regulate the Church, to inflict even the heaviest punishments, and to revoke any charter, which had been surreptitiously obtained, or which conceded liberties prejudicial to the Royal prerogative."—*Bancroft's United States*, i. 407.

[51] *Letter in State Paper Office*, Dec. 19, 1633. Most of Laud's letters found amongst the State records are printed in the last volume of the Oxford edition of his works.

[52] Indications of his wonderful activity are to be seen in his numerous letters, collected in the Oxford edition of his works, to which my references apply. (Vols. vi. and vii.) Laud's enemies have not done justice to his abilities. His diary reveals his mental weaknesses, but his correspondence and theological writings exhibit his mind under a different aspect. Many persons are too prejudiced against Laud to think of looking into his *Conference with Fisher the Jesuit*; but whoever will take the trouble of doing so, whatever he may think of Laud's line of argument at times, must admit the learning and ability displayed in the discussion. No book more clearly shows both the resemblance and the difference between Anglo-Catholicism and Popery.

[53] We are here reminded of what Dunstan's biographer said of him—"Nec quisquam in toto regno Anglorum esset qui absque ejus imperio manum vel pedem moveret."—*Angl. Sac.*, ii. 108. Dunstan, too, like Laud, descended to the notice and regulation of trivial matters. There can be little doubt that Laud, as an ecclesiastical and political statesman, was inferior to Dunstan. A man who grasps at such extensive influence is sure to be unpopular in England. Sir John Eliot accused Buckingham of this ambition, and in the memorable peroration to his speech in that nobleman's impeachment, when he instituted a parallel between him and the Bishop of Ely, in Richard II.'s reign, Eliot included this point—"No man's business could be done without his help."—See *Speech in Rushworth*, and *Parliamentary History*, and from his own MS. in *Forster's Life of Eliot*, i. 551.

[54] Diary, Tuesday, April 5, 1625.—*Laud's Works*, iii. 159.

[55] *Strafford's Papers*, i. 365.

[56] *Halliwell's Letters of the Kings of England*, ii. 180.

[57] Coleridge ranks Jackson with Cudworth, More, and Smith as *Plotinist* rather than *Platonist* divines.—See Note, *Literary Remains*, iii. 415.

[58] *Life of Southey*, v. 283.

[59] See remarks on this in *Bancroft's United States*, i. 284.

[60] Aylmer is supposed to be represented anagrammatically in the Morell, and Grindal in the Algrind of *Spenser's Shepherd's Calendar*.

[61] *Strype's Parker*, i. 300-345. For measures adopted to enforce conformity, see *Strype's Parker*, i. 420-447. Parker had a hard time of it when engaged in this unpopular business. He did not receive the support he wished. The Puritans

condemned him for doing too much, the Queen for doing too little. "An ox," he exclaimed, "can draw no more than he can."—*Ibid.*, 451.

[62] It appears from Foxe that some of the early Protestants were very strong believers in predestination.—See the godly letters of John Careless. *Foxe's Book of Martyrs*, viii. 187-192. Catley's edition.

[63] *Neal*, i. 451. For his statement respecting bills for reformation he gives MS. authority. *Strype's Whitgift*, i. 391, contains the letter to the Queen, dated 24th of March, 1584-5. Parry says in *Parliaments and Councils*, 1584, December 14, "three petitions are read touching 'the liberty of godly preachers to exercise and continue their ministry, and for the speedy supply of able and sufficient men into divers places now destitute of the ordinary means of salvation.'" Cobbett supplies a brief account of the debate.—*Parl. Hist.*, i. 824.

[64] Dr. Donne preached a sermon at Paul's Cross on the 14th September, 1622, in which he took occasion "for the publication of some reasons which His Sacred Majesty had been pleased to give, of those directions for preachers which he had formerly set forth."—*Works*, vi. 191. The preacher declared the King was "grieved with much bitterness, that any should so pervert his meaning as to think that these directions either restrained the exercise of preaching or abated the number of sermons."—*Ib.* 220. One is sorry to find such a man as Donne excusing James's despotic interference with preaching, and to read the absurd eulogium on his royal master's "books." "Our posterity shall have him for a father—a classic father—such a father as Ambrose, as Austin was."—*Ib.* 221. Such sycophancy on the part of Donne and others greatly tended to prejudice the people against them and their teaching.

[65] *Fuller's Church History*, iii. 362.

[66] See *Cal. Dom.*, 1633-4, p. 298.

[67] *Cal.* 1633-4, p. 345.—The cases of Samuel Ward, Anthony Lapthorne, and George Burdett, noted Puritan ministers, are largely illustrated in the *Cal. Dom.* 1634-5, 361, 263, 537. Mr. Bruce notices that Ward, who suffered so much from the High Commission Court, appears himself as a complainant against certain persons at Ipswich holding Antinomian opinions, 1635-6, *Pref.* xxxvii.

Illustrations appear amongst the State Papers of the popularity of Puritanism. Dr. John Andrewes writes to the Chancellor of Lincoln, (dated June 5, 1634, Beaconsfield) acknowledging a request to preach a visitation sermon:—"He is contented to show his obedience, howbeit he knows that any other priest in those parts would be better accepted both of laity and the generality of the clergy; and the main reason is, because he is not of the new cut, nor anywise inclining to Puritanism, wherewith the greatest number (both of priests and people) in those parts are foully tainted, insomuch that he is called the most godly who can and will be most disobedient to the orders of the Church. He enumerates things out of order in his own parish. 1. No terrier of Church lands. 2. Elections held in the church. 3. Gadding on Sundays to hear Puritanical sermons in other parishes. 4. Few come to church on holidays. 5. Many sit at service with their hats on, and some lie along in their pews. 6. Many kneel not at prayers, nor bow at the name of Jesus, &c. 7. The churchwardens do not levy the 12d. from those who absent themselves from divine service."—*Cal. Dom.*, 1634-5, *June 5*, p. 64.

Complaints were made of people forsaking the parish churches.—*Ibid.*, p. 149.

[68] *Cal. Dom.*, 1633-4, p. 450.

[69] *Heylyn's Life of Laud*, p. 367.

[70] While quite indisposed to attempt defending in the Puritans what is indefensible, I would add, they inherited many of their faults from the early Protestants. On the whole, I should say, the Puritans of the seventeenth century will bear favourable comparison with their fathers of the sixteenth, some of whose worst failings arose from the bad education received in the Church of Rome before they abjured her errors.

[71] Irreverence in worship is often regarded as an offence characteristic of Puritanism. But popish priests, at the time of the Reformation, then loudly complained of irreverence in their congregations—irreverence such as their successors were not guilty of.—*Strype's Memorials*, i. 213

[72] Neal follows Clarendon in this respect.—*History of Puritans*, ii. 362.

[73] This is Rapin's view.—*History of England*, ii. 652, adopted by Godwin, in his *Commonwealth*, i. 64.

[74] *Tanner MS.*, quoted by Sanford.—*Studies and Illustrations of the Great Rebellion*, p. 159.

[75] *Strafford's Letters*, Vol. i. 463, quoted in *Forster's Life of Vane*, p. 7, as written to the Lord Deputy. The letter is in the State Paper Office, calendared as if written to Lord Conway.—See *Calendar of Colonial Papers*, 1574-1660, p. 214. In the same Calendar, p. 211, there is notice of a letter by Vane to his father, in which he "requests his father to believe, though as the case stands he is judged a most unworthy son, that however jealous his father may be of circumventions and plots entertained and practised by him, yet he will never do anything that he may not justify or be content to suffer for. Is sure, as there is trust in God, that his innocence and integrity will be cleared to his father before he dies. Protests his father's jealousy of him would break his heart, but as he submits all other things to his good God, so does he his honesty. The intention of his heart is sincere, and hence flows the sweet peace he enjoys amidst his many heavy trials."

[76] *Forster's Statesmen of the Commonwealth*, Vol. iii. 49.

[77] Clarendon (*Hist.* 75) says of Vane's father and mother, "they were neither of them beautiful,"—a statement fully borne out by their portraits.

[78] *Clarendon (Hist.* 454).

[79] *Rushworth*, i. 647.

[80] *Hist.* 74.

[81] Compare *Nugent* and *Forster*.

[82] Hampden was reported at a Visitation for holding a muster in Beaconsfield Churchyard, and for leaving his parish church. To avoid a suit in the Ecclesiastical Court, he applied privately to Sir Nathaniel Brent, and satisfied him by explanation and concession.—*State Papers Cal.*, 1634-5, p. 250.

[83] "The Puritan would be judged by the Word of God; if he would speak clearly he means himself; but he is ashamed to say so, and he would have me believe him before a whole church, that has read the Word of God as well as he." *Table Talk*, 160.

Selden, in the same book (p. 13), while denying the divine right of bishops, maintains they "have the same right to sit in Parliament as the best Earls and Barons." Yet he signed the Covenant.

[84] *Life*, 923.

[85] *Life*, 936.

[86] In the State Paper Office is a letter by Laud, July 20, 1634, addressed to the King, in which the writer speaks of two daughters of the late Lord Falkland being reconciled to the Church of Rome, "not without the practice of their mother." He alludes to Lord Newburgh's request that she would forbear working on her daughters' consciences, and suffer them to go to their brother, or any other safe place. The archbishop appears anxious to save them from Popery. The letter is printed in *Laud's Works*, vii. 82, with illustrative notes.

[87] He tells us he was stopped in Westminster Hall, and asked by a root-and-branch man, "Art thou for us or for our adversaries?" but he does not report his answer.

[88] Mr. Bruce's interesting introduction to the volume of *Proceedings, &c.*, in connection with the Committee of Religion appointed in 1640, (printed by the Camden Society,) gives a minute history of the baronet's love adventures.

[89] It is stated on the authority of a letter in the possession of the Trevor family, that, "to escape detection the oppositionists resorted to the place of rendezvous with disguised faces." *Johnson's Life of Selden*, 30.

[90] *Clarendon's Hist.*, p. 69.

[91] The appointment of a Committee of Religion was debated and delayed in the first Parliament of this reign; One was appointed immediately after the assembling of the second—and also on the meeting of the third.—See *Journals*, June 25, 1625; Feb. 7, 10, 12, 1625-6; March 20, 1627-8.

[92] The sentence on Leighton is given by *Rushworth*, ii. 56.

Neal, ii., 218, follows *Rushworth* and states the particulars of Leighton's punishment as being recorded in *Laud's Diary*. But in the *Diary*, 4th November, *Works* iii. 212, there is nothing beyond a reference to Leighton's degradation in the High Commission Court. *Neal* adds that *Laud* pulled off his cap, and thanked God for the sentence.

For this anecdote, authority may be found in a curious book, by Leighton, entitled *An Epitome of the great troubles he has suffered*. In the course of his narration, after defending himself against the charge of being a Conventicle keeper, a libeller, a schismatic, a traitor, and a factious person, he says, in relation to his trial.—"The censure was to cut my ears, slit my nose, to brand me in the face, to whip me at a post, to stand on the pillory, ten thousand pounds fine, and perpetual imprisonment; and all these upon a dying man, by appearance

—instant morientibus ursæ.

The censure thus past, the prelate off with his cap, and holding up his hands, gave thanks to God, who had given him the victory over his enemies."—pp. 69, 70.

"I being put thereafter on the pillory an hour and a half, in frost and snow, they inflicted the rest, and would not let me have a coach of my own to carry me to the Fleet; but I was forced to be carried by water, for I was not able to go. I lay ten weeks under the canopy of heaven, in the dirt and mire of the rubbish, having nothing to shelter me from the rain and snow, in a very cold season."—p. 85.

In connection with Leighton's statement, the following passage from the Rawlinson MS. is worthy of notice:—"In the Court of High Commission, 19 April, 1632, the King's Advocate against Joseph Harrison, Clerk, Vicar of Sustorke, 'the sentence was presently read by the Archbishop of Canterbury, In Dei nomine, Amen, &c., &c., Deum præ oculis preponentes, &c.,' at which words I marked some of the Bishops to look upward, and put off their hats devoutly." From this passage it would appear to have been a practice in the Court, when sentence was passed, to pronounce it in the name of God, and for the Commissioners to take off their hats in token of reverence when these sacred words were uttered. The question arises, did Leighton mistake what was a customary act for a special expression of Laud's feeling in this particular case? or, did Laud really go out of his way to indicate his gratification at the sufferings of Leighton? I must leave the reader to judge for himself, who, however, ought to bear in mind Laud's character. Leighton gives the following account of his sufferings:—

"The aforesaid censure was executed in every particular in a most cruel manner and measure: the executioner was made drunk in the Fleet the night before, and also was hardened the very same day with very strong water, being threatened to do it with all rigour: and so he did, by knife, whip, brand, and fire, insomuch that never a lash he gave with a treble cord, but he brought away the flesh, which I shall feel to my dying day."

[93] Yet, looking at the persecution which the Puritans suffered, the same plea will avail for them that has been urged on behalf of the early Protestants. "It was, as they thought, like exhorting a Caligula and a Nero to clemency, and advising the poor subjects to compliment such tyrants, to remind them gently of their defects, and humbly to entreat that they would be so good and gracious as to condescend to alter their conduct."—*Jortin's Life of Erasmus*, i. 212.

From a *Biographical Narration*, by Burton, it appears he had been Clerk of the Closet to Prince Henry and to Prince Charles. The narration contains many curious particulars. There is an important letter about Burton, by Bishop Hall, in *Forster's Life of Eliot*, ii. 428.

[94] *Hanbury's Historical Memorials*, ii., 52.

[95] *Rushworth*, iv. 207.

[96] *Forster's Life of Eliot*, ii. 84, 562.

[97] *Forster's Life of Pym*, 96.

[98] It was a charge against Burton that he carried the sacred elements to the communicants on their seats.—Dow's *Innovations*, 186. *Lathbury's History of Convocation*, 261.

[99] *Forster's Life of Pym*, 99.

[100] *Rushworth*, iv. 24.

[101] Quoted in *Sanford's Illustrations*, 310.

[102] *Clarendon*, 69. *Sanford's Illustrations*, 310.

[103] Clarendon says Strafford did not come to the House at all that day till after his impeachment. I attach little importance to Clarendon's statements, when inconsistent with what is said by so accurate a man as D'Ewes. From his journal it appears that Strafford *did* go to the House in the morning. *Sanford's Illustrations*, 310.

[104] *D'Ewes Journal*, *Sanford's Studies and Illustrations*, 312.

[105] *Baillie's Letters and Journals*, published by the Bannatyne Club, 4to, i. 272. Other minute particulars are taken from the same source.

[106] See his *Journal*, 1640, Dec. 18. *Works*, iii. 238.

[107] Burgess and Marshall preached on the occasion from Jeremiah l. 5, and 2. Chron. xv. 2. The sermons were published, and may be found in the library of the British Museum. They relate to covenanting with God, but I do not see that the preachers make any reference to the Scotch covenant, though Nalson charges them with having had their eye on that symbol all the way through.—*Collection*, i. 530.

[108] November 20. See *Commons' Journal*.

[109] See *Journals*, February 9, 1625-6, and March 10, 1627-8.

[110] It is so regarded by Neal and those who follow him.—*History of Puritans*, ii. 362.

[111] *History of England*, ii. 653.

[112] *Journals*, November 20. A collection was made after the communion, amounting to £78. 16. 2.—*Nalson's Collections*, 1. 700.

[113] *Memorials of English Affairs*, *Whitelocke*, 38. *Journal of Commons*, Nov. 25, 1640, and pamphlets of the period.

[114] The minister complained of was John Squire, of whom Walker gives an account in his *Sufferings of the Clergy*, Part i. 68.—These illustrations are gathered from *Diurnals and other Tracts* in the Library of the Brit. Museum.

[115] *Speech of Mr. Rouse in Rushworth*, iv. 211. See also *Speeches of Sir Ed. Dering and Sir John Wray*.

[116] These particulars, and many more, are found in *A Certificate from Northamptonshire*, 1641. Brit. Mus. The "great scarcity of preaching ministers" was early noticed, and a sub-committee appointed to consider it.—See *Journals*, 19th December, 1640. Extracts from the *Register of the Archbishop of Canterbury*, shew that the number of benefices in England was 8,803, whereof 3,277 were impropriations, and that the number of livings under £10 was 4,543;

under £40, 8,659; and that only the remainder, being 144, were of the value of £40 and upwards.—*Cal. Dom.* 1634-5, p. 381.

[117] *Lathbury's Hist. of Con.*, 246.

[118] *Nalson*, i. 545.

[119] This oath "approved the doctrine and discipline of government established in the Church of England, as containing all things necessary to salvation;" and denied all "consent to alter the government of this Church by Archbishops, Bishops, Deans, Archdeacons, &c., as it stands now established."

[120] *Journals of the Commons*, Dec. 16, 1640.—The matter came before the House again on the 7th June, 1641.

[121] The letter is in *Laud's Works*, Vol. vi. 584.

[122] *Laud's Works*, vi. 589.

[123] *Lathbury's Hist. of Convocation*, 267.

[124] See *Letter to Bullinger by Sandys*, 1573.—*Zurich Letters*, 294.

[125] *Fuller*, ii. 504-5.

[126] It frequently appears in the records of that period. There is a curious example in the introduction to the will of Humphrey Fen.—*Cal. Dom.*, 1633-4, p. 468.

[127] They claimed as precedents the Protestants in Queen Mary's time, and the exiles at Geneva, that used a book framed by them there.—*Strype's Parker*, i. 480.

There is at Horningsham, in Wiltshire, an old meeting-house, with a large stone in the end wall, bearing date 1566. When the stone was put there is not known, and whence it came I cannot learn, but the Rev. H. M. Gunn, of Warminster, informs me that, according to tradition, some Scotch Presbyterians, disciples of Knox, came over from Scotland to build Longleat House for Sir John Thynne, in 1566. The building went on for thirteen years, when Sir John died. They refused to attend the parish church, and obtained a cottage in which to meet for Divine service, with a piece of land attached for a grave-yard. This house, Mr. Gunn says, turned into a chapel, has been preserved till now. Though originally a Presbyterian, it long since became an Independent place of worship.

[128] Afterwards Mrs. Hazzard.

[129] *Records of the Baptist Church*, Broadmead, Bristol, 10-18. See also *Cal. Dom.*, 1634-5, p. 416, for arguments by Dr. Stoughton, on the duty of separation.

As women were active in promoting Puritanism, so they had been a century before in promoting Protestantism.—See numerous examples in *Foxe's Book of Martyrs*.

[130] *Dugdale's Troubles in England*, 36, 62, 65.

Wood's Athenæ Oxonienses, ii. 347.

[131] *Parl. Hist.*, ii. 674.

[132] Bagshawe's own account, in *Hanbury's Memorials*, ii. 141.

[133] See *Cal. Dom.*, 1633-4, p. 33 *et seq.*; also *Preface*, viii.

[134] *Baillie's Letters and Journals*, vol. i. 211-214.

[135] *Baillie's Letters and Journals*, i. 271.

The Lords' Journals, Dec. 10, 14, 1640, shew the sensitiveness of the House upon what concerned the honour of the Scots and the English lords, who favoured them, and in reference to all which indicated popish sympathies.

[136] The first night they tarried at lodgings, "in the Common Garden." Baillie adds: "The city is desirous we should lodge with them, so to-morrow I think we must flit."

[137] Hallam says: (*Const. Hist.*, i. 527) The petition was prepared "at the instigation of the Scotch Commissioners." Baillie's letters do not support this statement. The Scots, however, were very early in the field against Laud. *Lords' Journals*, January 2, 1641.

[138] "At London we met with many ministers from most parts of the kingdom; and upon some meetings and debates, it was resolved that a committee should be chosen to draw up a remonstrance of our grievances, and to petition the Parliament for reformation, which was accordingly done."—*Clark's Lives*, page 8.

[139] Cross-grained, twisted. *Baillie's Letters, &c.*, i. 286.

[140] *Rushworth*, iv. 135.

[141] The Somersetshire churchmen expressed themselves in moderate terms.—*Hallam's Const. Hist.*, i. 527.

From Cheshire came two petitions, one signed by Episcopalians, the other by Puritans, calling prelates "mighty enemies and secret underminers" of the church and commonwealth.—*Nonconformity in Cheshire. Introduction*, xiv.

[142] Amongst the petitions of that period was one by Master William Castell, parson of Courtenhall, in the county of Northampton: "for the propagating of the gospel in America and the West Indies." While condemning the proceedings of Spaniards, and lamenting the indifference of English, Scotch, French, and Dutch, the petition expresses the desire of the petitioners, "to enlarge greatly the pale of the Church;" to make the synagogues of Satan temples of the Holy Ghost; "and millions of those silly, seduced Americans, to hear, understand, and practise the mystery of godliness." A large number of names are appended, approving the petition. The learned Edmund Castell, Robert Sanderson (afterwards Bishop of Lincoln), Joseph Caryl, and Edmund Calamy, appear in the list, and it is added that the petition had the approbation of Master Alexander Henderson, and some worthy ministers of Scotland. The union of such different men in this missionary endeavour is worthy of notice.—*Anderson's History of the Colonial Church*, ii. 11.

[143] Abridged from *Rushworth*, iv. 155.—Baillie says that, as to the part about the bishops, there "was no hum; and no applause as to the rest."—*Letters*, i. 292.

[144] No traces of Pym's speech are found in *Rushworth*, *Nelson*, or *Parliamentary Debates*. It is not mentioned in *Forster's Life of the Great*

Statesmen, or in *Sanford's Illustrations*. The extract I have given is from *A Just Vindication of the questioned part of the reading of Edward Bagshawe, Esq.*, 1660, p. 2-4. The tract states that Pym's speech was delivered when the petition was read and debated in the House. *Hanbury's Memorials*, ii. 141.

[145] *Rushworth*, iv. 170-187.

[146] 9th Feb., 1641.

[147] Quoted in *Studies and Illustrations*, by *Sanford*, 319.

[148] Mr. Godwin, in his *History of the Commonwealth*, i. 58, interprets the resolution as meaning "we are not yet decided to maintain Episcopacy." The debate, and even the words themselves, seem to me inconsistent with that view.

[149] These particulars are taken from the *Journal of Sir Ralph Verney*, a member of the Committee. Lord Nugent, in his *Life of Hampden*, gives some account of this MS.; but Mr. Bruce has published the entire notes in a volume of the Camden Society, with many valuable remarks.

[150] The following extract from the *Lords' Journals* is an illustration:

"Mr. Etheridge, minister, and Mr. Carter, the curate, and William Till, clerk of the parish, Ben Parsons, Tho. Chadwick, were examined at the bar, concerning the riot lately committed in the church of Halstead, in the county of Essex; as striking the Book of Common Prayer out of the curate's hand as he was baptizing a child at the fount, and kicking it up and down the church, and for taking the clerk by the throat, forcing him to deliver unto them the hood and surplice, which they immediately rent and tore in pieces; and other misdemeanours and outrages were committed in the said church, on Simon and Jude's day last, in divine service, by Jonathan Poole and Grace his wife." 10th December, 1640.

Certain Nonconformists of St. Saviour's parish were complained of to the House for illegally assembling for worship. The House directed they should be left to the ordinary proceedings of justice, according to the course of law. *Journals of the Lords*, January 16th. See also 19th and 21st.

[151] As the accounts of this committee given by Fuller, Neal, and Cardwell, are incomplete in consequence of the writers having neglected to consult the Journals of the House of Lords, I subjoin the following entries relating to this business:—

10 die Martii, 1640-1.

After an order that the Communion-table in every church remain where it is accustomed to be, it is ordered, "That these lords following are appointed to take into consideration all innovations in the Church concerning religion:—The Lord Treasurer, the Lord Chamberlain, Earls of Bath, South'ton, Bedford, Hartford, Essex, Dorset, Sarum, Warwick, March, Bristol, Clare, Berks, Dover, and Lord Viscount Say and Sele; Bishops of Winton, Chester, Lincoln, Sarum, Exon, Carlile, Ely, Bristol, Rochester, Chichester; and Ds. (Dominus), Strange, Willoughby de Earseby, North, Kymbolton, Howard de Charlton, Grey de Werk, Robarts, Craven, Pawlett, Howard de Escrick, Goringe, Savill, Dunsemore, and Seymor.

"6 die Martii.

"That the Committee for Innovations in Religion do meet on Wednesday next, and the committee to have power to send for such learned men as their lordships shall please, to assist them.

"10 die Martii.

"That the Committee for Religion do meet on Friday next, in the afternoon, and no other committee to sit that afternoon, and their lordships to have power to send for what learned divines their lordships shall please, for their better information: as the Lord Archbishop of Armagh, Dr. Prideaux, Dr. Warde, Dr. Twiste (Twiss) Dr. Hacket, who are to have intimation given them by the Lord Bishop of Lincoln to attend the Lords' Committees."

The following names, given by Fuller, Collier, and Neal must be taken as a list of the sub-committee. Williams, Bishop of Lincoln; Ussher, Archbishop of Armagh; Morton, Bishop of Durham; and Hall, Bishop of Exeter; Drs. Ward, Prideaux, Twiss, Sanderson, Featley, Brownrigg, Holdsworth, Hacket, Burgess, White, Marshall, Calamy, and Hill. Morton of Durham does not appear on the list of the Lords' Committee. Cardwell places in the list the name of Montague, but I find it mentioned by no one else. He is not a likely person to have had anything to do with the Committee, and he is probably confounded by Cardwell with Hall, who succeeded him in the bishopric of Norwich, being translated, on Montague's death, to that see from Exeter.

[152] Quoted in *Campbell's Lives of the Chancellors*, iii. 187.

[153] *Hacket's Memorial of Williams*, Part ii. 147.

Sir N. Brent, in a paper dated September 9, 1634, gives an account of his "metropolitical visitation" of Williams's diocese. He describes the Communion-table at Lincoln as not decent, and the rail worse; organs old and nought; copes and vestments embezzled; ale-houses, hounds, and swine kept in the churchyard; Hitchin church and churchyard out of order; curate of Stowe accustomed "to marry people with gloves and masks on."—*Cal. Dom.* In another paper, probably pertaining to 1634, Boston seeks to free itself from the suspicions of Puritanism by saying that there were 2,000 communicants at church, who, for want of room to kneel, were compelled to receive the Lord's Supper standing.—*Ibid.* p. 422.

[154] *Fuller's Church History*, iii. 415.

[155] *Laud's Works*, iii. 241.

[156] The following letter (without signature) illustrates this point: "A new Committee for Religion was appointed to have sat on Monday in the afternoon last, but there being neither meeting nor adjournment, it was left *sine die*: yet, on Thursday in the afternoon, the Bishops of Lincoln, Durham, Winchester, and Bristol met, where the assistants, attended by some threescore other divines of inferior rank, were present, and many temporal Lords; and many points of doctrine and Church service being questioned, among the rest one Lord said, that it ought to be put out of the creed '*that Christ descended into Hell*,' which he did not believe. Yesterday in the forenoon, without any intimation or notice given to the other committees, the same spiritual Lords and divines met at the Bishop of Lincoln's lodging, where, in less than two hours, they condemned, (as I am informed by the Bishop of Bristol, present), about fifty points in doctrine, what

they had met with in several treatises and sermons of late printed amongst us. They had culled out a passage of my Lord of Canterbury in his Star Chamber speech, which they say is, that *Hoc est corpus meum*, is more than *Hoc est verbum meum*: which the Bishop of Lincoln censured, for that *verbum* did make *corpus*; but would not further hear, because his grace was likely to answer it shortly elsewhere."—April 10, 1641. *State Papers, Chas. I. Dom.*

[157] I say *almost*, because the practice of sitting, while singing hymns, which was common in Nonconforming places of worship when I was young, may still linger in some quarters.

[158] The following query appears respecting marriage:—

"Whether none hereafter shall have licences to marry, nor be asked their banns of matrimony, that shall not bring with them a certificate from their Minister that they are instructed in their Catechism."

[159] The specified alterations are: "I give thee power over my body;" "knowing assuredly that the dead shall rise again;" and "I pronounce thee absolved;" instead of the well-known forms so often objected to.

I have gone fully into an account of what was proposed to this Committee, not only because it may have a particular interest for those who are active in promoting a revision of the Prayer Book, but because there are such diversified statements in relation to the subject in our historians. Compare Fuller, Collier, and Neal. Neal presents his condensation of the papers with inverted commas, as if placing before the reader the original documents. (In other cases, too, he gives his own abridgment in this fashion, so as to mislead the student.) An entire copy of the proceedings of the Committee may be found in *Cardwell's Conferences*, p. 270, taken from *Baxter's Life and Times*, Part i. 369.

[160] *Neal*, ii. 465.

[161] See *Journals* for March 9th, 10th, 11th, and 22nd. *May* says, "Doctors and parsons of parishes were made everywhere Justices of Peace, to the great grievance of the country, in civil affairs, and depriving them of their spiritual edification."—*Hist. of Long Parliament*, 24.

[162] *Rushworth*, iv. 206. This Bill was under discussion in the Lords, in October, 1641.—*Nelson*, ii. 496.

[163] *Journals*.

[164] *Clarendon's Hist.*, 94.

[165] July 1.—"The Lords, upon the reasons offered by the Commons, were satisfied to consent to pass the Bill to take away the High Commission Court both here and at York, but argued to have the Star Chamber Court not quite taken away, but bounded, limited, and reduced to what power it had in Henry VII's time."—*Rushworth*, iv. 304. Both Bills received the royal assent, July 5.

[166] The writers were: Stephen Marshall, Edmund Calamy, Thos. Young, Matt. Newcomen, and Wm. Spurstow.

[167] *The Reduction of Episcopacy*, which bears Ussher's name, was not published till after his death, in 1656. Baxter says in reference to it, "I asked him (Dr. Ussher) whether the paper be his that is called, *A reduction of Episcopacy to*

the form of Synodical Government; which he owned, and Dr. Bernard after witnessed to be his."—*Life and Times*, part ii. 206.

I may here observe that the Archbishop, according to his biographer, Elrington, appears always to have spelt his name with a double s.

[168] *Baillie*, i. 351.

[169] May 3, 1641. *Parl. Hist.*, ii. 776.

I have here and elsewhere, in giving the substance of speeches, adhered to the quaint phraseology employed by the speakers.

[170] For the protestation, see *Parl. Hist.*, ii. 777. Alterations were made which throw light on the fears of returning popery.—*Verney's Notes*, published by the Camden Society, 67-70.

[171] Instances of the taking of it are numerous. In the *Register Book of Wansted* it is found with the names of the principal inhabitants.—*Lyson's Environs of London*, iv. 243.

Whitaker, in his *History of Richmondshire*, mentions an endorsement on the Return Roll for the parishes and townships of Bentham, Ingleton, Thornton, Sedberg, Dent, and Garsdale:—"The names of those persons who refused to make protestation within Garsdale parcell of the township of Dent, viz: George Heber Gent, Abraham Nelson, chapman, who publicquely refused before the whole Dale in the Church."—vol. ii. 363.

[172] See *Journals of the Commons*, May 12th.

[173] August 2nd. *Parl. Hist.* ii, 895. Compare *Nalson*, ii. 414-417.

[174] *Baillie*, i. 351. He refers here to the Commons.

[175] *Hallam's Const. Hist.*, i. 524. The sagacious author justly remarks—"And thus we trace again the calamities of Charles to their two great sources; his want of judgment in affairs, and of good faith towards his people." The Lords passed the Bill on the 8th; the royal assent was given on the 10th.

[176] *Parl. Hist.*, ii. 778.

[177] *Parl. Hist.*, ii. 783. May 5. D'Ewes gives another amusing version of the story, (under date May 19).—*Sanford's Illustrations*, 373. *Baillie's* account is somewhat different.

[178] *Maitland's London*, i. 338.

[179] The bitter Presbyterian feeling against Strafford is plain enough in *Baillie's* letters.

It belongs not to the scope of this ecclesiastical History to enter on the details of the trial, but I cannot resist the temptation to insert in the Appendix two letters found in the State Paper Office, giving an account of the way in which the bill of attainder was introduced.

[180] See Speeches by Lane and St. John (*Rushworth's Trial of Strafford*, 671, *et seq.*); then read what follows:

"It certainly does astonish us that men, however they may have condemned the conduct of Strafford, could bring themselves to believe that he was guilty of

the crime of high treason; for they could hardly have been deceived by the wicked sophistry of St. John that an attempt to subvert the fundamental laws of the kingdom was high treason at common law, and still remains so, or by the base opinion delivered by the judges—that this amounts to high treason under the Statute of Edward III."—*Campbell's Lives of the Chancellors*, iv. 15.

[181] Ussher of Armagh, Juxon of London, Morton of Durham, Potter of Carlisle, and Williams of Lincoln.

[182] Slightly abridged from *Elrington's Life of Ussher*, 213.

[183] That such a distinction was suggested seems generally admitted. Clarendon attributes it to Williams, (*Rebellion*, 140.) This, considering the historian's prejudice respecting the Archbishop, is not perfectly conclusive against Williams, any more than the silence of Hacket (*Life of Williams*, pt. II., i. 161,)—who only speaks of the advice given in common, founded on the distinction between facts and law—is conclusively in his favour.

Clarendon is corroborated by the circumstance, that Ussher and Juxon were freed from the charge by the King himself (according to the report of Sir Edward Walker), and of the remaining prelates Williams was the most likely to give such advice as Clarendon mentions.

[184] *Fuller's Church History*, iii. 421.

The author says he copied what he gives of Hacket's speech out of his own papers. *Nalson's Report* (ii. 240) seems to be an amplification of what is contained in *Rushworth*, iv. 269. Verney entirely agrees with Fuller (*Verney Papers—Camden Society*, 75), but only in a few particulars with Nalson. Nalson is also wrong in saying Hacket answered Burgess. Hacket spoke first. Burgess answered him.

[185] *Fuller*, iii. 422. According to *Verney's Notes*, Burgess speaks of "Choristers and officers as fellows that are condemned for felons, and keep ale-houses, and so they may still," 77.

[186] *Rushworth*, iv. 276.

[187] *Parl. Hist.*, ii. 773.

[188] *Sanford's Illustrations*, 363.

[189] *Nalson*, ii. 248.

[190] *Parry's Parliaments and Councils of England*, 353.

[191] *Sanford's Studies and Illustrations*, 364.

[192] Dering published an apology in 1642.

[193] The following letter by Sydney Bere, secretary to Sir Balthazar Gerbier, afterwards to Sir H. Vane, is preserved in the State Paper Office.

"Whitehall, 17th June, 1641.

"You will surely have heard that the utter abolishing of the bishops and all titular ecclesiastics, with the dependents, hath been agreed upon in the House of Commons, and met with less noes in the debate than the business of the Earl of Strafford had. This day they voted it again, and now it is to be engrossed, a draft of the Act goes herewith.

"The business of the bishops will be of dangerous consequence, they being violent and passionate in their own defence, and having engaged, as it were, the Lords, by their late votes in their favour, to the maintenance of their cause; whereas the Commons seem as resolute to pass the Bill for their utter extirpation, and so transmitting it to the Lords, according to the custom; and then it may be justly inferred the city will prove as turbulent as they were on Strafford's cause."

Sidney Bere became under-secretary upon the appointment of Nicholas, in November, to the chief secretaryship of state.

[194] *Rushworth*, iv. 279.

[195] *Nalson*, ii. 529.

[196] *Journal*, June 7, 1641.

Verney's Notes bear evidence that the same day the feeling of the House was unfavourable to Episcopacy. Monday, 7th June:—"Sir John Griffin, the elder, said, I see it is distasteful to this House to speak for the government of the Church."—*Verney Papers*, 83.

On the same day, in the course of a debate, the subject of ecclesiastical canons came again under consideration. Mr. Maynard "transmitted the votes about the canons." According to *Verney's Notes*, (84) in which this appears, the debate touched generally on the power of the clergy to make canons. No formal resolution or vote is recorded.

[197] *Sanford's Illustrations*, 365.

[198] *Clarendon's Hist.*, 110.

[199] *Parl. Hist.*, ii. 822-826.

Sir Ralph Verney notices the debate on the 12th, but his notes are unfortunately very brief, and run thus:—

"Actions constant at all times to men of one order, 'tis a great sign of their malignity.

Oil and water may be severed, but oil and wine never.

Pledwell's arguments might have been used for the pope as well as for other bishops.

Vaughan.—Three things considerable in bishops: election, confirmation, consecration.

Os Episcopi is a chancellor.

Oculus Episcopi is the commissary.

Consilium Episcopi is the dean."—*Verney Papers*, 94.

Letters in the State Paper Office show the excitement produced by the Commons' proceedings. Slingsby says, 10th June, "The discourse of all men is they must now strike at root and branch, and not slip this occasion."

[200] *Parl. Hist.*, ii. 828. *et seq.*

[201] *Rushworth*, iv. 295.

[202] *Nalson*, ii. 245.

[203] White was grandfather of Susannah Annesly, the mother of the Wesleys.

[204] For cases which came before Dering, see "*Proceedings principally in the County of Kent, &c.*" Edited by the Rev. L. B. Barking, with preface by John Bruce, Esq. *Camden Soc.*

[205] *Rushworth*, iv. 113-123.

[206] *Rushworth*, 194, 195.

See *Laud's Journal*, March 1, p. 240.

March 1, Monday.—"I went in Mr. Maxwell's coach to the Tower. No noise till I came into Cheapside. But from thence to the Tower I was followed and railed at by the 'prentices and the rabble, in great numbers, to the very Tower gates, where I left them, and I thank God he made me patient!"—*Laud's Diary*.

[207] *Rushworth*, iv. 122-351.

Widdrington's speech on presenting the impeachment is a curiosity in its way. Amongst other odd things he says of Wren: "Without doubt he would never have been so strait-laced and severe in this particular (*i. e.*, his hatred of extempore prayer), if he had but dreamed of that strait which a minister, a friend of his, was put into by this means. The story is short. A butcher was gored in the belly by an ox; the wound was cured; the party desired public thanksgiving in the congregation; the minister, finding no form for that purpose, *read the collect for churching of women.*"—*Parl. Hist.*, ii. 888.

[208] *Fuller's Church History*, iii. 418. See also *Worthies*, ii. 359.

[209] *Hanbury's Historical Memorials*, ii. 97-100.

Thomas Wiseman, in a letter (July 1, 1641) *State Papers*, says of the Scotch, "God send us well rid of them, and then we may hope to enjoy our ancient peace both of Church and Commonwealth, for till they are gone, whatever they pretend, we find they are the only disturbers of both."

[210] *Rushworth*, iv. 368.

[211] *State Papers, Dom.*, 1641. Letter of Sidney Bere, August 18.

[212] *Idem*. Letter of Sidney Bere, August 22.

[213] *Letter of Bere*. August 30th.

In a manuscript diurnal, also preserved among the *State Papers*, it is remarked: "Mr. Henderson is in great favour with the king, and stands next to his chair in sermon time. His Majesty daily hears two sermons every Sunday, besides week-day lectures."

[214] Baillie's notices are to the same effect as Bere's: "Mr. Alexander Henderson, in the morning and evening before supper, does daily say prayers, read a chapter, sing a psalm, and say prayer again. The King hears all duly, and we hear none of his complaints for want of a liturgy or any ceremonies." *Letters*, i. 385.

[215] *Nalson*, ii. 683.

[216] *Parry's Parliaments and Councils*, 365.

[217] On the 8th September, "upon Mr. Cromwell's motion, it was ordered, that sermons should be in the afternoon in all parishes of England, at the charge of the inhabitants of those parishes where there are no sermons in the afternoon."—*D'Ewes' Journals. Sanford's Illustrations*, 371.

[218] *Commons' Journals. Parl. Hist.*, ii. 907.

[219] *Nalson*, ii. 483. *Parl. Hist.*, ii. 910.

[220] An attempt was made in the Lower House to revise the Prayer Book, but it failed.—*Rushworth*, iv. 385.

[221] London was in a very troubled state that autumn, as appears from a letter by Thomas Wiseman, dated October 7th.—*State Papers Dom.*

"The city is full of the disbanded soldiers, and such robbing in and about it that we are not safe in our own houses, yet this day there is an order come from the Committee of Parliament to send every soldier away upon pain of imprisonment, and leave granted to any of them that will to transport themselves for the low countries into the service of the States. On Tuesday last the post was robbed between this and Theobalds, and the letters to the King and other Lords in Scotland, from the Queen and the Lords of the Council, were taken away by fellows with vizors on their faces; such an insolence hath not been, however, before, and who they were, or who set them to work is suspected, but not yet discovered. We have the most pestilent libels spread abroad against the precise Lords and Commons of the Parliament, that they are fearful to be named. And the Brownists and other sectaries make such havoc in our churches by pulling down of ancient monuments, glass windows, and rails, that their madness is intolerable; and I think it will be thought blasphemy shortly to name Jesus Christ, for it is already forbidden to bow to his name, though Scripture and the practice of the Church of England doth both warrant and command it."

[222] *May's History of the Long Parliament*, 113-115.

[223] See his speeches in *Rushworth*, iv. 392-394.

[224] *Parl. Hist.*, ii. 924.

[225] *Parl. Hist.*, ii. 919, 920.

[226] *Rushworth*, iv. 438-451.

[227] Sidney Bere says in a letter dated 25th Nov., 1641 (*State Papers Dom.*): "For the business of the Houses of Parliament, they have been in great debates about a Remonstrance, which the House of Commons frames, shewing the grievances and abuses of many years past. The contestation now is, how to publish it, whether in print to the public view, or by petition to his Majesty—it was so equally carried in a division of opinion, that there were but eleven voices different. This day is a great day about it, but what the event will be I shall not be able to write you by this ordinary. It seems there are great divisions between the two Houses, and even in the Commons House, which, if not suddenly reconciled, may cause very great distractions amongst us. It is the fear of many wise and well-meaning men, who apprehend great distempers, which I pray God to direct."

[228] *Memoirs by Sir Philip Warwick*, 201.

[229] *Forster's Grand Remonstrance*, 324. I refer the reader to this valuable work for minute particulars respecting this debate.

[230] *Clarendon. Hist.*, 125. Compare *Carlyle's Cromwell*, i. 161.

[231] So Queen Henrietta Maria was then commonly called.

[232] *Nalson*, ii. 679-681.

[233] *Nicholas' Correspondence. Evelyn's Diary*, iv. 82.

[234] "I observe since my coming to town, a very great alteration of the affections of the City, to what they were when I went away. They say a great present is to be presented to the King after dinner, and a petition such as he will be glad to receive, the contents I hear not yet, only one clause for the maintenance of Episcopacy and the suppression of schism."—*Robert Slingsby, State Papers Dom.*, Nov. 25.

Respecting the King's reception, Wiseman says, "I confess it was a great one every way, and so acknowledged beyond the precedent of any made to former Kings, that history makes mention of, which well suits with the goodness, sweetness, and meritorious virtues of so gracious a King as ours is. The present mean estate of the Chamber denied the form of a gift, but this of the hearts of the citizens and those of the better sort, and at this tune so seasonably expressed, was of greater import to His Majesty than, for my part, I dare take upon me to value."—*2nd Dec., 1641. State Papers, Dom.*

[235] *Nalson*, ii. 681. *Rushworth*, iv. 432.

[236] Letter of Thomas Wiseman, addressed to "Sir John Pennington, Admiral of his Majesty's fleet for the guard of the Narrow Seas."—*State Papers Dom.*, 9th Dec., 1641.

[237] In the same letter to Sir John Pennington, Wiseman says, "His Majesty was pleased, with a return of many thanks for his entertainment, to set a mark of his favour by knighting the seven aldermen, whereof your cousin the alderman was none, whose ways, as you partly know, are rather to please himself than to strive to do any acceptable service for the king, if it stand not with the sense of the preciser sort of the House of Commons."

[238] Sir Ralph Hopton gave a report to the House of the interview.—*Parl. Hist.*, ii. 942.

[239] *Rushworth*, iv. 452.

[240] *State Papers Dom.* Letters of Robert Slingsby, dated (by mistake) 6th Dec., 1641, and properly placed under Jan. 6th, 1641-2. Slingsby is not perfectly accurate in his account of what took place in the House.

[241] The High Church Lord Mayor Gourney would not accompany them.

[242] *Nalson*, ii. 764.

[243] There were other disturbances in London.

"For the proceedings of the Parliament, you have them here enclosed until Monday, which day there happened some disorder concerning the prisoners in Newgate, who being to suffer, and understanding the priests condemned with

them were not, but in hope of reprieve, they found means to seize the jailor's keys, and so made themselves master of the prison, but the train bands coming up that same day forced them to surrender, and the next they were hanged, not without great murmuring of the common people. The saving of the priests is yet a point debated in Parliament, and, as I am told, will hardly be obtained. In the meantime, these intervenient things add much to the distractions and distempers of the time, which I pray God to give a better end unto than at present there is any great appearance for to hope it." * * *

"I am told the House did yesternight vote the printing of the Remonstrance."—*State Papers*. Letter of Sidney Bere, 16th Dec., 1641.

[244] *Bramston's Autobiography*, published by the Camden Society, 82.

[245] *Rushworth*, iv. 463.

Cutting the hair short was a Puritan reaction, occasioned by the opposite Cavalier fashion of wearing locks profusely long. It is worth notice, that the nickname given to Elisha by the boys at the town gate, as they watched the prophet passing by, was just the same as that given to the Parliamentarians. "Baldhead," is really "*roundhead*," in allusion to shortness of hair at the back of the head.—*Ewald*, iii. 512.—*Smith's Dict. of the Bible*, i. 537.

[246] The following letter by Captain Slingsby relates to this disturbance. It will be noticed that the writer says, "none were killed;" but Fuller states one man died of the injuries he received.

"I cannot say we have had a merry Christmas, but the maddest one that I ever saw. The prentices and baser sort of citizens, sailors, and watermen, in great numbers every day at Westminster, armed with swords, halberds, clubs, which hath made the King keep a strong guard about Whitehall of the trained-bands without, and of gentlemen and officers of the army within. The King had upon Christmas-eve put Colonel Lunsford in to be Lieutenant of the Tower, which was so much resented by the Commons and by the City, that the Sunday after he displaced him again and put in Sir John Biron, who is little better accepted than the other. Lunsford being on Monday last in the Hall with about a dozen other gentlemen, he was affronted by some of the citizens, whereof the Hall was full, and so they drew their swords, chasing the citizens about the Hall, and so made their way through them which were in the Palace Yard and in King's Street, till they came to Whitehall. The Archbishop of York was beaten by the prentices the same day, as he was going into the Parliament. The next day they assaulted the Abbey, to pull down the organs and altar; but it was defended by the Archbishop of York and his servants, with some other gentlemen that came to them; divers of the citizens hurt, but none killed. Amongst them that were hurt one knight, Sir Richard Wiseman, who is their chief leader. Yesterday, about fifteen or sixteen officers of the army, standing at the Court gate, took a slight occasion to fall upon them and hurt about forty or so of them. They, in all their skirmishes have avoided thrusting, because they would not kill them. I never saw the Court so full of gentlemen. Every one comes thither with their swords. This day 500 gentlemen of the Inns of Court came to offer their services to the King. The officers of the army, since these tumults, have watcht and kept a Court of guard in the presence chamber, and are entertained upon the King's charge. A company of soldiers put into the Abbey for defence of it."—*State Papers*, December 30th, 1641.

[247] "There has been great store of the scum of the people who have gone this holidays to Westminster, to have down Bishops, and against Lunsford, who is now dismissed from being Lieutenant of the Tower, the King having given him £500 pension per annum, and hath invested one Sir John Biron in that place. All things are in much distemper, and I fear that they yet will grow worse."—*State Papers*. Letter of Capt. Carterett to Sir J. Pennington, dated London, 29th Dec.

[248] I drew up this account from documents in the Record Office, dated the last few days of December, 1641, when I had no opportunity of consulting what Mr. Forster says of the disturbances, in his careful history of the *Arrest of the Five Members*.

[249] See *Rushworth*, iv. 695, for examples of exaggeration in the royalist statements. This disturbance became a subject of controversy between the King and Parliament.—*Rushworth*, iv. 710.

[250] "Here," says Mr. Forster, "and not in any dispute as to whom the powers of the militia should reside with, really began the Civil War." *Arrest of the Five Members*, 66.

[251] *Hall's Works for Hard Measure*, xiii.

[252] *Fuller's Church History*, iii. 431. He gives a copy of the protest.

[253] See his speech on the 4th of March—*Parl. Hist.*, ii. 1111.

[254] *Bishop Hall's* account in his *Hard Measure* would seem to imply that the King had not seen the paper before it was brought under the notice of the Upper House by Lord-keeper Littleton, but it is clearly stated (*Parl. Hist.*, ii. 993) that what Littleton did in this matter was by his Majesty's command. "The Jesuitical faction," says a letter of the day, "according to their wonted custom, fomenting still jealousies between the King and his people, and the bishops, continually concurring with the Popish lords against the passing any good Bills sent from the House of Commons thither; and their last plot hath been their endeavour to make this Parliament no Parliament, and so to overthrow all Acts past, and to cause a dissolution of it for the present, which hath been so strongly followed by the Popish party, that it was fain to be put to the vote, and the Protestant Lords carried it to be a free and perfect Parliament as ever any was before. This did so gall the bishops that they made their protestation against the freedom of the vote, and the Parliament; and in their protestation have inserted such speeches as have brought them within the compass of treason, and thus the Council of Achitophel is turned into foolishness. The Earl of Bristol and his son have been chief concurrents with them in this and other evil councils, for which they have been impeached and branded in the House of Commons."—*State Papers*, Letter of Thomas Smith to Sir J. Pennington, dated York House, 30th Dec., 1641.

There are allusions to these proceedings in other letters (*State Papers*) which all blame the bishops for want of wisdom.

[255] Hall says, "On January the 30th, in all the extremity of frost, at 8 o'clock in the dark evening, are we voted to the Tower. The news of this our crime and imprisonment flew over the city, and was entertained by our well-wishers with ringing of bells and bonfires." *Hard Measure*.

[256] "This day the bishops have made a protestation against the proceedings of this Parliament, declaring it no free Parliament. This makes a great stir here. The favourers of them think it done too soon, the other side do seem now to rejoice that it is done, having thereby excluded themselves from it." *Slingsby to Pennington. State Papers*, 30th Dec., 1641.

[257] *Collier's Ecclesiastical History*, ii. 819.

[258] *Parl. Hist.*, ii. 1206. The bishops were: Dr. John Williams, Archbishop of York; Dr. T. Moreton, Bishop of Durham; Dr. J. Hall, Bishop of Norwich; Dr. Robert Wright, Bishop of Coventry and Lichfield; Dr. John Owen, Bishop of St. Asaph; Dr. William Piers, Bishop of Bath and Wells; Dr. John Coke, Bishop of Hereford; Dr. M. Wren, Bishop of Ely; Dr. Robert Skinner, Bishop of Oxon; Dr. G. Goodman, Bishop of Gloucester; Dr. J. Towers, Bishop of Peterborough; Dr. M. Owen, Bishop of Llandaff.

In *Parl. Hist.*, ii. 998, Warner is mentioned as Bishop of Peterborough, but he was Bishop of Rochester. See list of the thirteen impeached in August.

[259] *Parl. Hist.*, ii. 1080.

[260] *Lords' Journals*, Feb. 16th.

[261] It is related of this eccentric person that, as master of a household, he never allowed the presence of a female servant.—See *Worthies of Sussex*, by Mark Antony Lower.

[262] *Harl. MSS.* in *Lysons*, iii. 56.

[263] There is a curious letter from Towers, then Dean of Peterborough, dated December 30, 1633, in which he seeks to make interest with Sir John Lambe, Dean of the Arches, for the succession of the bishopric. He says he should be almost as glad to see his friend Dr. Sibthorpe in the deanery as himself in the palace. *State Papers Dom.*, *Chas. I.*

[264] *Walker's Sufferings of the Clergy*, part ii. 78. The few particulars we have given respecting the bishops rest chiefly on his authority.

[265] *Hacket's Memorial*, ii. 226.

[266] The following *State Papers Dom.*, (*Chas. I.*), was written at the same time:—

"Sir—What passeth in Scotland I presume you have already understood from Mr. Bere, so that I shall only say, that I believe the great plot there may prove much ado about nothing. Howsoever I am advertised that all the distractions thereupon have suddenly composed, which gives great hope of his Majesty's return ere it be long. Our Parliament, I mean the House of Commons, were very hot in getting the Lords to pass a bill which they had voted, and sent up against the bishops; but the news of a rebellion in Ireland made them cast that by, and ever since Saturday last both Houses have bestowed their time upon this business, and at length have concluded to send away the Lord Lieutenant speedily with 1,000 men and £50,000 in money, which is to be taken up of the city, if they can get it there, for the citizens of the best rank are at this time much discontented with the Parliament about protections, whereby they are stopped from getting in their debts to their great prejudice....

"*Charing Cross, 4th Nov., 1641.*"

[267] Letter of Thos. Wiseman, dated 4th Nov., 1641. (*State Papers Dom., Chas. I.*)

This letter discloses to us facts which were the subject of many a letter, and many a conversation in the autumn of 1641. Public indignation was awakened by these atrocities in a way resembling that with which we were all sadly familiar at the period of the Indian massacre.

[268] *Mant's History of the Church of Ireland*, i. 467, 470.

[269] *Bramhall's Works*, i., *letters*, p. 79. The Lord Deputy's letter in 1634 also gives a lamentable description.—*Strafford's Letters*, i. 187. See also *Petition of Irish Convocation*.—*Collier*, ii. 763.

[270] *Mant's Church of Ireland*, i. 548.

[271] *Rushworth*, iv. 406.

[272] For the Roman Catholic view of the case, see *Lingard's History of England*, x. 41.

[273] *Lister's Autobiography*, 7. The places named are on the great highway from South Lancashire to Halifax.

[274] *Calamy's Ejected Ministers*, i. 45.

[275] *Nalson*, ii. 647-688. Cogan (servant to some one addressed by Nicholas as Rt. Honble.) in a letter dated Charing Cross, November 18, 1641, after relating the story told by the tailor of White Cross Street, continues—"he went with all speed to the House of Commons, unto whom being with great importunity admitted, he at large related all the aforesaid passages, and withal shewed in how many places of his cloak and clothes he was run through; and after long examination of him they sent him up unto the Lords, who in like manner questioned him a long time, and ever since there hath been a great coil about the finding out of this matter, by searching of Recusants' houses, as my Lord of Worcester's in the Strand, St. Basil Brooke's, and others. Now, whether this be a truth or an imposture, time will resolve."

[276] *Nalson*, ii. 673. Dering's subsequent history does not belong to our pages. It is enough to say he was expelled the House, his published speeches were burnt by the hangman, he joined the King, and served in the army; and then, after all, made his peace with the Parliament.

[277] *Clarendon*, 433.

[278] *Macaulay's Essays*, i. 160.

[279] Quoted in *Forster's Grand Remonstrance*, 172.

[280] As to Royalists of the mean and selfish class, see *Brodie*, iii. 344-354.

[281] *Parl. Hist.*, ii. 990.

[282] *Nalson*, ii. 673.

[283] *Letters* of the 13th and 14th of January, in the State Paper Office, indicate the excitement of the period, and the uncertainty felt about the King's

movements.

[284] *State Papers Dom.*, under date January 13, 1642. Parts of this letter, of which I have not transcribed the whole, are inserted by Mr. Forster in his *Arrest of the Five Members*. I had intended to introduce other interesting letters of that date, but as they are already printed by him, I refer the reader to his pages.

[285] March 28, 1642.—A conference was held respecting a petition from Kent, which prayed for a restoration of the Bishops, and the Liturgy, &c., &c. Some parts of the petition were voted scandalous, dangerous, and tending to sedition.—*Lords' Journal*.

April 21.—Both Houses made a curious order against counter-petitions—"As no man ought to petition for the Government established by law because he has already his wish; but they that desire an alteration cannot otherwise have their desires known, and therefore are to be countenanced."

April 28.—The Commons, by Mr. Oliver Cromwell, acquaint the Lords "that a great meeting is to be held next day on Blackheath, to back the rejected Kentish petition." 30—"The Men of Kent come to the House, and again present their petition formerly burnt. Several are committed to the Gate House and Fleet."—*Parry's Parliaments and Councils of England*, 385, 386.

[286] This appears from a letter by Slingsby.—*State Papers*, December 2, 1641.

[287] *Rushworth*, iv. 498.

[288] See also *Neal*, ii. chap. xii., and *May*, 247-265.

[289] July 28, 1642—The Lords give judgment against John Marston, Clerk, who had said—"The Parliament set forth flams to cozen and cheat the country and get their money, &c. He is deprived of all ecclesiastical preferments; made incapable hereafter to hold place or dignity in Church or Commonwealth; imprisoned in the Gatehouse; and ordered to give sureties."—*Parliaments and Councils of England*, 396.

[290] The Royalists sometimes appealed to Scripture.—There is amongst the *State Papers*, one containing texts of Scripture relating to royal authority:—1. Pray for the King; 2. Speak not evil of the King; 3. Exalt not thyself against the King; 4. The King's confidence in God; 5. The King loveth judgment; 6. The King ought to be feared; 7. God's care of his anointed; 8. Punishment of his adversaries; 9. Exhortation to obedience; 10. His triumph and thanksgiving.

There is also a paper of arguments in defence of taking up arms in maintenance of the true reformed religion:—From the law of nature. From Divine authority out of God's word. From human authority; Citations from fathers, &c. From reason. From practice of Reformed kirks, France, Holland, Germany, Bohemia, Switzerland, Hungary, and Sweden, which had all taken up arms for defence of religion against authority. From the custom of Kings in Reformed kirks—Elizabeth against Spain—James, in his *Basilicon*, approves reforming of Scotland—Charles sent a naval force to help French Protestants.

[291] I may add the following sentence from *Hook's Lives of the Archbishops of Canterbury*, iii. 291:—"The first lawyer whose writings we possess, Bracton, asserts, '*Lex omnium Rex*.' A king not less than a subject may be a traitor."

[292] *Parl. Hist.*, ii. 1168.

[293] These papers are given in full by *Rushworth*, iv. 624, 722. They are also to be found in *Neal*, ii. 553, 556, 563, as extracts from *Rushworth*, though much condensed.

[294] *Rushworth*, iv. 733.

[295] In the *Weekly Intelligencer*, October 18, 1642, mention is made of a woman called Moll Cutpurse, who wore both, saying she was for King and Parliament, too.

[296] "*Powers to be resisted*, or a dialogue arguing the Parliament's lawful resistance of the powers now in arms against them, and that archbishops, bishops, curates, neuters, all these are to be cut off by the law of God, therefore to be cast out by the law of the land, etc."—London, 1643. p. 13.

See also John Goodwin's *Anti-cavalierisme*.

That the people have a right to resist their rulers when they do wrong was a common opinion amongst Reformers in Mary's reign. See *Maitland's Essays on Reformation in England*, vi.

[297] All these particulars are mentioned in pamphlets of the King's collection.—British Museum, years 1642, 1643. Marvels and Monsters were rife at the time of the Reformation.—*Maitland's Essays*, 184.

[298] A list of contributors is printed in *Choice Notes, Historical*, p. 55.

[299] Such a contribution from William Bridge and his family is described in the *Yarmouth Corporation Records*.

[300] Baxter assigns a number of reasons which induced godly people to take side with the Parliament.—*Life and Times*, part i. 33. Mrs. Hutchinson, in the *Memoirs* of her husband, gives amusing sketches of some who joined that party for sinister ends, pp. 105-116. *The Life of Adam Martindale*, p. 31, indicates how Royalists sought shelter amidst Parliamentarians.

[301] It is worthy of remark that Cromwell began his military course at about forty, the same age as that at which Cæsar commenced his victories. Cæsar, however, when a young man, had served in the army, which Cromwell had not. It is a curious parallel that both should have been such successful soldiers after so long an engagement in peaceful occupations. Both died at the age of about fifty-five.

[302] *Rushworth*, v. 39.

[303] A small volume was published containing portions of Scripture, and was entitled *The Souldier's Pocket Bible*.

[304] As to the presence of Roman Catholics in the two armies, the following passages from Baxter and Hallam should be considered:—

Baxter, whose prejudices against the army must be borne in mind when he refers to the subject, only expresses suspicion. "The most among Cromwell's soldiers that ever I could *suspect* for Papists were but a few that began as strangers among the common soldiers, and by degrees rose up to some inferior offices, and were most conversant with the common soldiers; but none of the superior officers *seemed* such, though seduced by them."—*Life and Times*, part i. 78.

Hallam leans to the idea that the common reports had some foundation. He remarks: "It is probable that some foreign Catholics were in the Parliament's service. But Dodds says, with great appearance of truth, that no one English gentleman of that persuasion was in arms on their side.—*Church History of England*, iii. 28. He reports, as a matter of hearsay, that out of about 500 gentlemen who lost their lives for Charles in the civil war, 194 were Catholics. They were, doubtless, a very powerful faction in the court and army."—*Hallam's Const. Hist.* i. 587.

[305] *Hibbert's History of Manchester*, i. 210.

[306] "Some Special Passages from Warwickshire." *King's Pamphlets, Brit. Mus. Acts and Orders*, i. 124.

[307] *King's Pamphlets, Brit. Mus. Acts and Orders*, ii. 124.

[308] *Rushworth*, iv. 783.

[309] These were commenced by Mr. Case, of St. Mary Magdalen, Milk Street, and afterwards circulated from church to church for the convenience of the citizens.—*Neal*, ii. 592.

[310] Letter of Nehemiah Wharton, dated Aylesbury, August the 16th, 1642. Addressed to his much honoured friend, Mr. George Willingham, Merchant, at

the Golden Anchor, Swithin Lane.—*State Papers, Chas. I., Dom.*

[311] In a letter, dated September 7, Wharton says of Northampton, for situation, circuit, stateliness of buildings, it exceeds Coventry, but the walls are miserably ruined though the country abounds in mines of stone. He also complains of certain soldiers of his regiment who discovered their base ends by declaring they would surrender their arms unless they received five shillings a man, which they said was promised them monthly by the committee. He alludes further to dissensions between foot and horse soldiers. In another letter he mentions a soldier's winter suit made for him, "edged with gold and silver lace," which he hoped he should never stain but in the blood of a cavalier.

[312] Letter of William Harrison, Berwick, dated 7th Sept., 1642, to his good friend Mr. Thomas Davison, at London.—*State Papers, Chas. I., Dom.*

[313] *Whitelocke's Memorials*, 65.

[314] *Rushworth*, v. 35. *Baxter's Life and Times*, part i. 43.

[315] *Parl. Hist.*, ii. 1495-1504.

[316] *Whitelocke*, 65. *Sanford's Illustrations*, 535.

[317] *Rushworth*, v. 81.

[318] November 26th.—*Rushworth*, v. 69-71.

[319] *Parl. Hist.*, iii. 59.

[320] The speech is printed in the *Harleian Miscellany*, v. 224.

[321] *Calamy's Continuation*, ii. 737.

[322] Edmund Calamy, the popular clergyman of the Commonwealth, was grandfather to the historian of that name.

[323] *The Loyal Satirist*.—*Somers' Tracts*, vii. 68.

[324] August 3, 1642.—*Rushworth*, v. 388.

[325] *Parl. Hist.*, ii. 1465.

[326] On the 20th of January Maynard "spoke very earnestly that we should not abolish the jurisdiction of bishops until we had replaced another government in the Church: which he thought would not be very soon agreed upon, some being for a presbytery, some for an independent government, and others for he knew not what."—*Harl. MSS.*, clxiv. p. 1078, A. B. *Sanford's Illustrations*, 550.

[327] See *Commons' Journal* and *Lords' Journal*.

[328] *Baillie's Letters and Journals*, ii. 58.

[329] *Rushworth*, v. 399-406. The papers were presented in February, 1642-3. The petition bears date 4th of January.

[330] *Memorials*, 67. The safe conduct bears date 28th of January, 1642-3.

[331] *Rushworth*, v. 166-169.

[332] *Hist.*, 962.

[333] *Rushworth*, v. 459.

[334] *Baillie's Letters*, ii. 66, 67.

[335] *Letters and Journals*, i. 287.

[336] *Nelson*, ii. 766. Thomas Fuller advocated the calling of a synod.—*Life*, by Russell, 124.

[337] *Rushworth*, v. 337. *Husband*, 208.

"There must be some laymen in the synod, to overlook the clergy, lest they spoil the civil work; just as when the good woman puts a cat into the milk house to kill a mouse, she sends her maid to look after the cat, lest the cat should eat up the cream."—*Selden's Table Talk*, 169.

[338] Hacket, Bishop of Lichfield; Morley, Bishop of Winchester; Nicholson, Bishop of Gloucester; Prideaux, Bishop of Worcester; Reynolds, Bishop of Norwich.

[339] *Calamy's Continuation*, i. 28.—Bancroft, on the authority of Winthrop, says that the colonial Churches of America were invited to send deputies to the Westminster Assembly. But Hooker, of Hartford, "'liked not the business,' and deemed it his duty rather to stay in quiet and obscurity with his people in Connecticut, than to turn propagandist and plead for Independency in England."—*United States*, i. 417. Did Philip Nye seek to strengthen the Independents in the Assembly by inviting brethren from America?

[340] "It was almost implied in the meaning of the word. An 'Œcumenical Synod,' that is an 'Imperial gathering,' from the whole οἰκουμένη, or empire (for this was the technical meaning of the word, even in the Greek of the New Testament) could be convened only by the emperor."—*Stanley's Lectures on the Eastern Church*, 80. The first council of Arles, inferior only to a General Council, was called by the Emperor Constantine.—*Euseb. Hist.*, lib. x. c. v.

[341] The Divines were allowed by the Parliamentary ordinance four shillings a day.

[342] Perhaps some one better versed in the controversy touching powers of Convocation than I am might shew that, after all, the power of decision, and the liberty of discussion in the two Houses, do not far exceed what was allowed to the Westminster Assembly. It is admitted on all hands that Convocation cannot meet without a royal writ, nor make canons without licence, nor publish them without confirmation by the Great Seal, and some contend that Convocation may not even discuss any matters *without royal licence*.—See *Lathbury's History of Convocation*, 112.

While I am revising this book for the press, I find the following in to-day's *Times*, January 11th, 1866: "Convocation is nothing more whatever than a general commission of enquiry into the affairs of the Church empowered to report its opinions to the Crown." Change "Crown" into "Parliament," and this passage describes the Westminster Assembly, so far as its power was concerned.

[343] *Rushworth*, v. 339. It does not appear clearly whether the sermon was delivered in the abbey or the chapel. Rushworth, after mentioning the sermon and the presence of the two Houses, says of the Divines, "After which they assembled in the said chapel:" as if the "Houses" had heard the sermon in some other part of the abbey.

I do not find any notice of Twiss's sermon in the list of his works.

[344] The Upper House of Convocation met in Henry the Seventh's Chapel both in 1572 and in 1640.—*Gibson's Synodus Anglicanus*.

[345] Washington Irving.

[346] *Fuller's Church History*, iii. 448.

[347] *Neal*, iii. 60.

[348] *Journal of the Assembly. Lightfoot's Works*, xiii. 3.

[349] This was Mr. John White, of Dorchester, great grandfather of John and Charles Wesley.—See *Kirk's Mother of the Wesleys*, 18.

[350] *Lightfoot*, xiii. 7-9. *Hetherington's History of the Westminster Assembly*, p. 114.

[351] This will be inserted in the Appendix.

[352] *True and faithful Narrative of the Death of Master Hampden*, quoted in *Nugent's Life of Hampden*, 363.

[353] Scarborough church was stormed in 1644 by the Parliament soldiers, and afterwards fortified by them. It is remarkable to find church towers so constructed, as to shew they were intended for warlike purposes. Melsonby and Middleham, in Yorkshire, and Harlestone, in Northamptonshire, are examples.—*Poole's Ecclesiastical Architecture*, 358.

[354] *Joseph Lister's Narrative*, 23. Bradford was taken on the 2nd of July.

[355] *Hist.*, 416.

[356] *Rushworth*, v. 287.

[357] *Rushworth*, v. 290. *Calamy's Account*, ii. 675. *Palmer's Non. Con. Mem.* ii. 467.

[358] *Rushworth*, v. 344.

[359] *Sanford's Illustrations*, 575.

[360] *David's Annals of Nonconformity in Essex*, 535.

[361] *Vol.* ii. 103, &c.

[362] Instructions given are inserted in *Parl. Hist.*, iii. 151.

[363] *Baillie*, ii. 88, 97.

[364] *Baxter's Life and Times*, p. i. 48.—He adds that this public explication was given by Mr. Coleman, when preaching on the Covenant to the House of Lords: "That by prelacy we mean not all Episcopacy, but only the form which is here described."

On the 12th of September, the Solemn League and Covenant was proposed to the Parliament, who, on the 21st, ordered it to be printed.

On the 20th, the Lords declared that none shall have command till they have taken the Covenant.

[365] *II. Chron.* xv. 12, 14, 15.—The 15th verse is printed with two other texts on the title page of the Solemn League and Covenant, published Sept. 22nd, 1643.

[366] *Cunninghame's History of the Church of Scotland*, i. 315, ii. 81.

[367] The Solemn League and Covenant will be inserted in the Appendix.

[368] *Nye's Exhortation* was published, and a portion of it, extolling the Covenant, may be seen in *Hanbury's Memorials*, ii. 215.

[369] Gouge was a Puritan divine who died in 1653, after being minister of Blackfriars nearly forty-six years.

[370] In the State Paper Office is the following letter written by Falkland in the spring of the year.

"Sir,—If my health were not so ill as yours, with all my business to boot, I should not hope to be excused for being so slow in giving you thanks for two so great favours. I heartily wish we were in a condition of being able to make use of any good inclinations to us beyond sea, and perhaps they are the kinder, because they find it safe to be so, whilst we are as we are, that is, unable to take them at their words, and make use of their kindness. Of Mr. Wightman's commitment I never heard before I read your letter: the petition for him is in Mr. Secretary's hands, but I will assist it to my power; though I conceive it indiscreetly done of the Company to send so obnoxious a person, and yet more indiscreetly done of him to be sent, who could not but know that he was such. My desire of peace, and my opinion of the way to it, agree wholly with yours, for which I congratulate with myself, and wish the second followed (but both sides must then contribute) that the first might be obtained, and I might then have occasion to congratulate with the kingdom too. His Majesty hath commanded me to let you know that he is very sensible of your present condition, and that he is sorry for nothing more than that his friends (especially so honest and deserving a man) should be in danger for being so, and be not able to protect them, but that if retiring of yourself hither out of their power would stand with your occasions, he assures you, you shall be very welcome, but what to advise you, if you stay, I find he knows not, and I am sure I know as little. I wish, whether you stay or come, it might be in my power to serve you. I assure you, Sir, if there were any occasion of doing it by my readiness to catch at, and my diligence in pursuing it, you should find what I must now desire you to believe, that I am, Sir, your very really humble Servant,

FALKLAND.

"18th April."

(Addressed) "For the Right Honourable Sir Thomas Rowe, Knight, one of His Majesty's most honourable Privy Council."—*Dom. Car.* i., April 18, 1643.

[371] *Rushworth*, v. 486.

[372] *Perfect Diurnal*, 2nd of Sept., 1643.

[373] *Baillie's Letters*, ii. 99, 113-115.

[374] *Rushworth*, v. 358.

[375] "Horses have stood ready in several stables, and almost eaten out their heads, for those that were to go with the news to Oxford."—*Parliament Scout*.

[376] The Diurnals which supply these statements are not trustworthy.

[377] Amongst the *State Papers* is the following programme, or, as it is entituled, "The proceeding" of Mr. Pym's funeral:—

	Two Conductors.	
	Servants in Cloaks.	
	Friends in Cloaks.	
	Esquires.	
	Knights.	
	Baronets.	
	Divines.	
	The Preacher.	
	<i>The Pennon borne by Mr. Faulconer.</i>	
	Rouge Dragon <i>Helm and crest.</i>	
	Lancaster <i>Coat of arms.</i>	
	The Body.	
Supporters		to the Pall.
Mr. Anth. Rous, supporter.		Mr. Chas. Pym, supporter.
	Mr. Alex. Pym, <i>chief mourner.</i>	
	Mr. Simons and Mr. Nicholls.	
	Mr. Askew.	
	Mrs. Symons and Mrs. Katherine Pym, and other Ladies and Gentlemen.	
	Then the Lords.	
	Then the Speaker of the House of Commons.	

An endorsement shews that the three officers of arms allowed by the committee for this funeral were appointed £20 apiece, making a sum of £60. The following names also appear on the back of the document: Mr. Solicitor, Sir Arthur Haslerigge, Sir John Clotworthy, Mr. Knightley, Sir Gilbert Gerard, Sir Harry Vane, Mr. Stroud. Probably all these were present.

[378] Pym defended himself against imputations on his religious character, by saying that he had ever been a faithful son to the Protestant religion, without the least relation in his belief to the gross errors of Anabaptism or Brownism. He had sought a reformation of the Church of England—but not its overthrow. Neither envy nor private grudge against the bishops, who were personally inimical to him, made him averse to their functions, but only his zeal for religion, which he saw injured by the too extended authority of the prelates, who should have been upright and humble, "shearing their flocks and not flaying them."—*Rushworth*, v. 378.

Marshall in his *Sermon* and Baxter in his *Saint's Rest* would not have spoken of Pym as they did, had they not been satisfied that charges against his moral character were utterly untrue. Marshall includes chastity in the catalogue of his virtues. I can find no proof of anything improper in his intimacy with the Countess of Carlisle. For extracts from *Marshall's Sermons*, and the *Diurnals*, see *Forster's British Statesmen*, vol. ii. 294-302.

[379] Baillie says: "The plottings are incessant."—*Letters and Journals*, ii. 132.

[380] This is stated in a curious book, called *Magnalia Dei Anglicana; or, England's Parliamentary Chronicle*, by John Vicars, part iii., entitled *God's Ark Overtopping the World's Waves*, 135. A full account of these plots is given from the writer's own point of view. Vicars was a violent Presbyterian, and his book is full of party prejudice and curious information. Baillie notices these plots pretty fully, ii. 137.

[381] Mr. Nye and Mr. Goodwin entered into conference with Ogle only that they might entrap him. In the Journal of the House of Commons, January 26th, 1643-4, it is recorded "that Mr. Goodwin, Mr. Nye, with the privity of my Lord General and some members of the House, had conference with Ogle—Resolved, 'that it doth appear upon the whole matter, that the King and his council at Oxford do endeavour and embrace all ways to raise and ferment divisions betwixt us and our brethren of Scotland, and amongst ourselves under the fair pretences of easing tender consciences; that during these fair pretences their immediate design was the ruin of the kingdom by the destroying and burning the magazines thereof; that thanks be returned to Mr. Nye and Mr. Goodwin from both Houses.'" We learn from Baillie, ii. 137, that *John* Goodwin is the person here intended.

[382] *State Papers*, April 13, 1651. Bundle 646. Ogle is here styled "Colonel."

[383] *Vicars' Chronicle*, iii.

[384] *Vicars' Chronicle*, iii. 128, *Baillie*, ii. 134, and *Perfect Diurnal*. In the *Perfect Diurnal* of Thursday, June 19th, 1645, there is an account of another City feast. After dinner, and grace said by Mr. Marshall, both Houses of Parliament, the Assembly of Divines, the Aldermen of the City, and all the rest being assembled in the hall, they sung the 46th Psalm, and after that they departed.

[385] Mr. Bruen, of Tarvin, in the Deanery of Chester, an eminent Puritan (born 1560, died 1625) "the phoenix of his age," distinguished himself as an iconoclast. Finding in his own chapel superstitious images, and idolatrous pictures in the painted windows, and they so thick and dark that there was, as he himself says, "scarce the breadth of a groat of white glass amongst them," took orders to pull them down, indeed by the Queen's injunctions utterly to extinguish and destroy all pictures, paintings, and other monuments of idolatry and superstition, so that there might remain no memory of the same in the walls, glass windows, or elsewhere within their churches and houses. The Bible and ecclesiastical history are appealed to as further authorities. *Theodosius abscondit simulacra gentium, omnes enim cultus idolorum cultus ejus abscondit; omnes eorum ceremonias obliteravit. Ambrosii Orat. in Mort. Theo.*—See *Hinde's Life of Bruen*.

[386] *Rushworth*, v. 358.

[387] *Oct 3. P. Diurnal*. "The Commons, for the better taking away of superstitious ceremonies in churches, as in wearing the surplice and the like; which they had noticed (notwithstanding all former orders) was still used in sundry places—especially at the Abbey of Westminster—agreed in a further order, for the taking away of all copes and surplices, belonging to the said Abbey

of Westminster, and to forbid the wearing of them in that or any other church or cathedral in England."

[388] Laud was at work upon the restoration of St. Paul's in 1640, "the whole body was finished with Portland stone excellent against all smoke and weather, and the tower scaffolded up to the top with purpose to take it all down and to rebuild it more fair." After his apprehension "the scaffolds were taken away and sold, with some of the lead which covered this famous structure."—*Chamberlayne's Anglica Notitia*, part ii. 155.

In the State Paper Office there is a document by Montague, Bishop of Chichester, containing an exhortation to the clergy of his diocese, giving thirteen reasons for their contributing to the fund for repairing the Cathedral of St. Paul. He dwells upon the dignity of St. Paul's as, in a sort, the mother church of the kingdom, and stimulates the persons addressed to liberality by a consideration of what was done by their predecessors.—*Calendar*, 1633-4, 384.

[389] 1643, May 27.—Resolved, an ordinance for borrowing the plate in all cathedrals superstitiously used upon their altars.

1644, April 24.—Ordered, the mitre and crosier staff found in St. Paul's Church to be forthwith sold, and the brass and iron in Henry the Seventh's Chapel.—*Parry's Councils and Parliaments*.

Whatever was now done in St. Paul's, worse things had been done there and elsewhere at the time of the Reformation.—See *Strype's Cranmer*, i. 251. Besides spoiling, embezzling, and taking away ornaments, he says, "they used also commonly to bring horses and mules into and through churches, and shooting off hand guns." It should be recollected, that the Puritans of the seventeenth century were familiar with such memories, and that reverence for sacred places had long been on the decline.

[390] Corporation Records in the Guildhall.

[391] *Hard Measure*, prefixed to *Hall's Works*, p. xviii. The proceedings at Norwich were of an infamous description, yet more shameful acts had been perpetrated by the Roman Catholic fathers of these very citizens. In 1272, we are told "*Quam plures de familia, aliquos subdiacanos, aliquos clericos, aliquos laicos in claustris et infra septa monasterii interfecerunt; aliquos extraxerunt et in civitate morti tradiderunt, aliquos incarceraverunt. Post quæ ingressi, omnia sacra vasa, libros, aurum, et argentum, vestes et omnia alia quæ non fuerunt igne consumpta depraedati fuerunt: monachos omnes, præter duos vel tres, a monasterio fugantes.*"—*Anglia Sacra*, i. 399.

[392] The following appears in the records of the Norwich Corporation: "Ordered that the churchwardens shall demolish the stump cross at St. Saviour's, and take the stones thereof for the use of the city."

[393] *Calamy's Abridgment of Baxter*, 24.

[394] *Memoirs of Colonel Hutchinson*, p. 80.

[395] This was in spite of orders "to do no injury to the church." Before these wars the cathedral suffered through neglect, as appears from a draft letter written by Archbishop Laud to the dean and chapter, in the name of the King, complaining that the dotations and allowances were very mean, and that there

was "little left to keep so goodly a fabric in sufficient reparation."—*State Papers, Domestic*. (undated) vol. cclxxxi. 57.

[396] Mr. Britton asserts that numbers were removed when the cathedral underwent repairs in 1786. Two tons of brass were taken to the brazier's shop.—*Winkle's Cathedrals*, iii. 43.

[397] *Poole's History of Ecclesiastical Architecture*, p. 260.

All the mutilation of statues must not be put down to the Puritan account, nor the destruction of the mosaic pavement in the choir. "One half of its eastern border was entirely destroyed when the altar-piece was put up at the commencement of the last century." The rest but narrowly escaped.—*Neale's History and Antiquities of Westminster Abbey*, p. 20.

Oliver Cromwell has been charged with despoiling the tomb of Henry V., but we read in *Stowe's Annals*: "A royal image of silver and gilt was laid upon his tomb, which Queen Catherine his wife caused to be made for him; but about the latter end of King Henry VIII., the head of the king's image being of massy silver, was broken off and conveyed clean away, with the plates of silver and gilt that covered his body." p. 363.

It is a common story amongst cathedral vergers, that Cromwell turned churches into stables. Like stories are told in the East, with judgments superadded. "It was related to us by our Tartar, that about fifty years ago, Tamr Pasha turned the church into a stable, and next morning all his horses were found dead."—*Badger's Nestorians*, i. 68.

[398] It appears from the following entry that when the wars were over, the cathedral was desecrated by being made a prison. "That a letter be written to the Mayor of Salisbury, to let him know that the Council are informed that the Dutch prisoners who were lately sent to the town, to be kept there, have done much spoil upon the pillars of the cloisters, and to the windows of the library there, being committed to custody in that place, and also that by reason that due care hath not been had over them, some of them have escaped, &c." *October 10, 1653*.—*State Papers, Order Book of Council*.

[399] Again we may remark that like excesses had been committed in Roman Catholic times. In the annals of Rochester, 1264, we find: "*Portæ, siquidem, ejus circumquæ exustæ sunt, chorus ejus in luctum, et organa ejus in vocem flentium sunt concitata. Quid pluras, loca sacra, utpote oratoria, claustra, capitulum infirmaria, et oracula quæque divina, stabula equorum sunt effecta; et animalium immunditiis spurcitiisque cadaverum ubique sunt repleta.*"—*Anglia Sacra*, i. 351.

After the Reformation Ridley was prevented from giving Grindal a prebend in St. Paul's by the King's Council, who had bestowed it on the King, for the furniture of his stable.—*Blunt's History of the Reformation*, 244.

In 1561, according to Strype, the south aisle of the cathedral was used for a horse fair.

[400] *Rushworth*, v. 476.

Instructions were given for the taking of the Covenant throughout the kingdom, "the manner of the taking it to be thus:—The minister to read the

whole Covenant distinctly and audibly in the pulpit, and during the time of the reading thereof the whole congregation to be uncovered; and at the end of his reading thereof, all to take it standing, lifting up their right hands bare, and then afterwards to subscribe it severally by writing their names (or their marks, to which their names are to be added) in a parchment roll or a book, whereinto the Covenant is to be inserted, purposely provided for that end, and kept as a record in the parish."—*Husband's Collection*, 421.

[401] *Husband's Coll.*, 416.

[402] *Neal*, iii. 81.

[403] *Husband's Coll.*, 404.

[404] In the State Paper Office are additional instructions, (dated March 6th, 1643-4,) to the Earl of Rutland, Sir W. Armyn, Bart., Sir H. Vane, and others, to declare to our brethren of Scotland that the Parliament have settled a course for taking the late Solemn League and Covenant throughout this kingdom and dominion of Wales, "we do hereby give you full power and authority by yourselves, or such as you shall appoint, to cause the said League and Covenant to be taken throughout the several places and counties where you shall come."

Vane, on the scaffold, said, respecting the Covenant: "The holy ends therein contained I fully assent to, and have been as desirous to observe; but the rigid way of prosecuting it and the oppressing uniformity that hath been endeavoured by it, I never approved."

Wood states, (*Ath. Ox.*, ii. 84), that Strode made a motion to the effect, "that all those that refused the Covenant, (being certain ill-wishers to the laws and liberties of this kingdom,) might, therefore, have no benefit of those laws and liberties." He adds, "that motion being somewhat too desperate, was waived for the present, and took no effect."

[405] See *Sermon on Solemn League and Covenant*, by Saltmarsh.—*Tracts in Brit. Mus.*, vol. 253.

[406] These also are in the British Museum; I think in the same volume as the former.

[407] Bishop Hall went on ordaining Episcopal clergymen in spite of the Covenant. He says: "The synodals both in Norfolk and Suffolk, and all the spiritual profits of the diocese were also kept back, only ordinations and institutions continued awhile. But after the Covenant was appointed to be taken, and was generally swallowed of both clergy and laity, my power of ordination was with some strange violence restrained; for when I was going on in my wonted course, which no law or ordinance had inhibited, certain forward volunteers in the city, banding together, stir up the mayor, and aldermen, and sheriffs, to call me to an account for an open violation of their Covenant."—*Hard Measure*, *Hall's Works*, p. xvii.

[408] *Memoirs of the Life of Col. Hutchinson*, 143-191.

[409] *Mant's History of the Church of Ireland*, i. 580.

[410] Eusebius observes, in his Epistle respecting the Nicene Creed, that he and his friends did not refuse to adopt the word ὁμοούσιος, "*peace being the end in view*, as well as the not falling away from sound doctrine." He excused the

damnatory clause, simply on the ground that it aggrieved none by prohibiting the use of unscriptural phraseology.—*Socrates' Ecc. Hist.*, b. i. c. 8.

[411] "Epistle" by John Canne, quoted in *Hanbury's Memorials*, iii. 380-386.

The following passage occurs in a paper by the Dissenting Brethren in 1646, also quoted in *Hanbury*, iii. 62:—"This Covenant was professedly so attempered in the first framing of it, as that we of different judgments might take it, both parties being present at the framing of it in Scotland." "It is as free for us to give our interpretation of the latitude or nearness of uniformity intended, as for our brethren."

[412] The following passages illustrate the state of public feeling in reference to the Covenant:—

"Men cry shame on the Covenant. Those that took it down cast it up again, and those that refuse it have given a world of arguments that it is unreasonable, which arguments our Assembly, like dull, ignorant rascals, never answered. I know, my Lords, many of our friends never took this oath, but they refused it out of mere conscience." ... "I hold the Covenanters extremely reasonable. Though some malignants take it, yet many refuse it; and, as some who love us do hate the Covenant, so some who hate us do take it. Yet our friends who hate it do love to force others to it, for their hatred to malignants is more than to the Covenant; and, as the one takes it to save his estate, so do others give it to make him lose his estate. They both love the estate, and both hate the Covenant."—*A learned Speech spoken in the House of Peers by the Earl of Pembroke and Montgomery upon the 28th July last, taken out of Michael Ouldsworth's own Copy. State Papers, 1647.*

"All this while I did not take the National Covenant, not because I refused to do, for I would have made no bones to take, swear, and sign it, and observe it too, for I had then a principle, having not yet studied a better one, that I wronged not my conscience in doing any thing I was commanded to do by those whom I served. But the truth is, it was never offered to me, every one thinking it was impossible I could get any charge, unless I had taken the Covenant either in Scotland or England."—*Sir James Turner's Memoirs of his own Life and Times, published by the Bannatyne Club, 16.*

Turner was a Royalist.

[413] *Journals.*, Sept. 21st.—It was resolved by the Commons: That the Assembly of godly Divines, who, by Ordinance, July 1st, 1643, met in King Henry the Seventh's Chapel, shall, in respect of the coldness of the said chapel, have power to adjourn themselves to the Jerusalem Chamber, in the College of Westminster.

[414] For some of this information I am indebted to the kindness of the Dean of Westminster.

[415] *Baillie's Letters*, ii. 108, 109.

[416] This is stated on the authority of *Brook's Lives*, iii. 15. His account of Twiss's illness is confused, so is *Clark's (Lives, p. 17.)* to which Brook refers.

[417] As Erastianism is a word vaguely used, I subjoin the principal theses in the *Book on Excommunication*, by Erastus, and his own account of the occasion

of his writing it.

"Excommunication is nothing else but a public and solemn exclusion from the sacraments, especially the Lord's Supper, after an investigation by the elders."—Thesis viii.

"In the Old Testament none were debarred from the sacraments on account of immorality of conduct."—Thesis xxiii.

"Christ did not hinder Judas, who betrayed Him, from eating the paschal lamb."—Thesis xxviii.

"It is not the will of Christ that His kingdom in these lands should be circumscribed within narrower limits than He appointed for it anciently amongst the Jews."—Thesis xxxi.

"As in the account given of the celebration of the sacraments we see no mention is made of excommunication, so neither in the history of their institution can anything warranting that practice be discovered."—Thesis xxxvii.

"'Tell it to the church' means nothing else than tell it to the magistrate of thy own people."—Thesis lii.

"I see no reason why the Christian magistrate at the present day should not possess the same power which God commanded the magistrate to exercise in the Jewish commonwealth."—Thesis lxxii.

"If then the Christian magistrate possesses not only authority to settle religion according to the directions given in the Holy Scriptures, and to arrange the ministries thereof, but also, in like manner, to punish crimes, in vain do some among us now meditate the setting up of a new kind of tribunal, which would bring down the magistrate himself to the rank of a subject of other men."—Thesis lxxiv.

According to Erastus, an ignorant man, a heretic, or an apostate should be excluded from the sacraments. But sins were to be punished by the civil magistrate.

The theses were handed about in MS., and not published till 1589—six years after the death of the author—with only the fictitious name "Pesclavii," 1589. The work was reprinted at Amsterdam, in 1649. Two old English translations exist, published in 1659 and 1682. There is a modern one by Rev. R. Lee, D.D., Edinburgh, 1844.

The occasion of writing the theses, Erastus says, was a proposition that a select number of elders should sit in the name of the whole church, and judge who were fit to be admitted to the Lord's Supper, which he thought would introduce dangerous divisions.

Theodore Beza wrote a reply, published at Geneva, 1590. Selden's views of excommunication in his *Table Talk* (p. 56) are similar to those of Erastus, though not so full.

Hobbes wrote his *Leviathan* in 1651, in which he says (pt. iii., ch. 42, p. 287, London edition), "The books of the New Testament, though most perfect *rules* of Christian doctrine, could not be made *laws* by any other authority than that of kings or sovereign assemblies." His doctrine with regard to Christianity is, that

socially considered it is "good and safe advice," but not obligatory law till the government of a country shall make it so. This part of the philosopher's theory runs on the same line with Erastianism, only it is pushed further.

[418] Altogether there were ten or eleven Independents in the Assembly. Baillie mentions Goodwin, Nye, Burroughs, Bridge, Carter, Caryl, Philips, and Sterry.—*Letters, &c.*, ii. 110.

[419] His works have been recently republished. His *Commentary on the Epistle to the Ephesians* illustrates what is said here.

[420] See *The Wounded Conscience Cured, &c.*, by William Bridge, 1642.

[421] Baillie remarks: "Liberty of conscience, and toleration of all or any religion, is so prodigious an impiety, that this religious Parliament cannot but abhor the very naming of it. Whatever may be the opinions of John Goodwin, Mr. Williams, and some of that stamp, yet Mr. Burroughs, in his late *Irenicum*, upon many unanswerable arguments, explodes that abomination."—See *Tracts on Liberty of Conscience*, 270.

[422] Neal says he died of consumption (*Hist.*, iii. 377), but the following appears in the *Perfect Occurrences*, 13th November, 1646:—"This day Mr. Burrows, the minister, a godly, reverend man, died. It seems he had a bruise by a fall from a horse some fortnight since; he fell into a fever, and of that fever died, and is by many godly people much lamented."

[423] P. 190.

[424] I do not attempt to vindicate this great man against the charge of inconsistency. One side of a subject was everything to him while he gazed at it. He had no faculty for harmonizing apparently opposite truths, and was apt, as ardent men are, to fall into errors, from which his clearly expressed opinion on certain points ought to have saved him. Mr. Hallam (*Literature of Europe*, iii. 112), in whose severe judgment of Taylor's inconsistency I cannot coincide, thinks that one inconsistent chapter, (the seventeenth) was interpolated after the rest of the treatise was complete. This is possible, but it is also possible that Taylor when first writing his book might suddenly swing from one side to the other, and then come round again. It has been said that Taylor forgot his liberality when he became a bishop. His biographer, Bishop Heber, attempts to meet this charge.—*Works*, i. 30. It may be added, that the *Dissuasive from Popery*, published in 1664, proceeds on the same principles as the *Liberty of Prophesying*. See *Dissuasive*, part ii. book i.—*Works*, x. 383.

How Taylor's work was regarded by a Royalist and an Episcopalian may be seen in *Mrs. Sadleir's Letter to Roger Williams*. "I have also read Taylor's book of the *Liberty of Prophesying*, though it please not me, yet I am sure it does you, or else I know you would not have wrote to me to have read it. I say, it and you would make a good fire. But have you seen his 'Divine Institution of the Office Ministerial?'" *Life of Roger Williams*, 99. Mrs. Sadleir was daughter of Sir Edward Coke. A writer in the *Ecclesiastic*, April, 1853, p. 179, remarks: "Whatever Taylor may have been thought of since, certainly his contemporaries amongst the Church party had no very high opinion of him."

[425] Sermon preached before the House of Commons, March 31st, 1647.

[426] *Ward's Life of Henry More*, 171. I have here confined myself to those in the Church of England who advocated toleration, pointing out the grounds which they adopted as distinguished from those occupied by the Independents. Others, who proceeded in the same advocacy on the broadest principles of justice, will be hereafter noticed, *i.e.*, John Goodwin, Leonard Busher, and Sir Henry Vane. Of the last of these it may be remarked that so early as 1637 he used this memorable language, in *New England*: "Scribes and Pharisees, and such as are confirmed in any way of error, all such are not to be denied cohabitation, but are to be pitied and reformed; Ishmael shall dwell in the presence of his brethren." (*Bancroft's United States*, i. 390.) The most thorough advocate of intellectual liberty in the New World was Roger Williams, who, though in many respects an impracticable man, and wanting in catholicity of spirit, appears to have been an original and intrepid champion for the political independence of theological opinions, as well as a noble minded and disinterested leader in colonial enterprise. Milton advocates toleration in his *Areopagitica*, a speech to the Parliament of England for the liberty of unlicensed printing, 1644. Harrington's *Political Aphorisms*, in which liberty of conscience is justly placed on a political basis, was not published until 1659. Episcopius and Crellius were early advocates for toleration. See Hallam's Introduction to *Literature of Europe*, iii. 103, 104.

[427] *Const. Hist.*, i. 612.

[428] The petition is largely quoted by Waddington in his *Surrey Congregational History*, p. 32, and the pamphlet, entitled *Queries of Highest Consideration*, is quoted in *Hanbury*, ii. 246.

[429] For proofs and illustrations of this we refer to our second volume. In the meanwhile we may observe that in *An Attestation*, published by the Cheshire ministers in 1648, allusion is made to some of the Independents as "averse in a great measure to such a toleration as might truly be termed intolerable and abominable"—meaning by that universal toleration.—*Nonconformity in Cheshire*. Introduction, xxvi.

[430] *Life of Goodwin*, by Jackson, 93.

[431] *A Reply of Two of the Brethren to A. S.*, 1644. Quoted by Jackson, p. 116. Goodwin states "that the part which treats of religious liberty was the production of his own pen."—*Jackson*, 57.

[432] Baillie, writing to Mr. Spang, May 17th, 1644, (*Letters*, ii. 184,) says: "The Independents here, finding they have not the magistrate so obsequious as in New England, turn their pens, as you will see in M.S.," (which he had before identified as Goodwin's, of Coleman Street,) "to take from the magistrate all power of taking any coercive order with the vilest heretics. Not only they praise your magistrate who for policy gives some secret tolerance to diverse religions, wherein, as I conceive, your Divines preach against them as great sinners; but avows that by God's command the magistrate is discharged to put the least discourtesy on any man—Jew, Turk, Papist, Socinian, or whatever, for his religion." "The five will not say this, but M.S. is of as great authority here as any of them." Yet, though this sentiment is by Baillie confined to Goodwin, and expressly said not to be shared by the five, it has by some been put into the lips of Nye.

[433] As I have already observed, Harrington also did this. One of his political aphorisms on the subject is admirable, "When civil liberty, is entire it includes liberty of conscience. When liberty of conscience is entire, it includes civil liberty."

[434] *Letter from Grindal to Bullinger, June 11th, 1568. Zurich Letters, First Series.*

[435] This is extracted from p. 12 of a small volume entitled *Historical Papers, First Series, Congregational Martyrs*, published by Elliot Stock. The document bears internal signs of genuineness, but it is not said where the original may be found.

[436] *Ecce Homo*, 16.

[437] April 21st, 1581.

[438] *Fuller's Church Hist.*, iii. 62.

[439] *Strype's Annals*, vol. iii. part i. 22-30.

[440] *Fuller's Church Hist.*, iii. 65.

[441] *Lansdowne M.S.*, 115, art. 55. Lord Keeper Bacon had a chaplain of Puritan tendencies. See *Strype's Parker*, ii. 69. Lady Bacon shewed her learning and Protestant zeal by translating *Jewel's Apology*,—*Ibid.*, i. 354.

The Rev. Thomas Hill, late of Cheshunt, informs me:—"It is undeniable that there was a congregation of Separatists as early as the days of Elizabeth, in the neighbourhood of Theobalds. One or more of the ministers suffered persecution and imprisonment, but I do not think it improbable that the influence of Cecil, Lord Burleigh, who then resided at Theobalds, may have afforded some degree of protection to the Nonconformists of the neighbourhood."

[442] *Hanbury*, i. 38. *Harl. Miscellany*, ii. 21.

[443] *Strype's Annals*, iv. 245. *Hanbury*, i. 85.

[444] Published by Camden Society.

[445] This is the name written in the MS., no doubt intended for *Greenwood*.

[446] Letter from Thomas Phillips to William Sterrell, April 7, 1593. *State Papers, Dom.* The bracketed portions are underlined in the original, the writer desiring, in a postscript, that the passages so marked, should be "disguised with cipher."

[447] *Strype's Annals*, iv. 186. *Hanbury's Mem.*, i. 90. The Archbishop referred to was Whitgift. Rippon died in 1592.

[448] "He was a person most excellently well read in theological authors, but withal was a most zealous Puritan, or, as his son Henry used to say, the first Independent in England."—*Wood's Ath. Oxon.*, i. 464.

[449] Jacob's book, printed at Middleburgh, 1599, was entitled: *A Defence of the Churches and Ministry of England. Written in two Treatises against the Reasons and Objections of Mr. Francis Johnson and others of the Separation called Brownists*. Johnson replied in an *Answer to Master H. Jacob, his Defence*, &c. 1600.

[450] *Hanbury's Mem.*, i. 226.

[451] See *Hanbury's Mem.*, i. 227.

[452] His name is spelt in different ways.

[453] The church of which Lathrop was minister is said to have been formed in Southwark; if so, the fact of its now assembling in Blackfriars shews how, in times of persecution, the places of meeting were changed according to circumstances. As they had no chapels, and were proscribed by law, they met where they could.

[454] His name was ordinarily spelt "*ten*," although it stands "*tin*" in the MS. He was Judge of the Prerogative Court, and father of Henry Marten.

[455] Dr. Thomas Rives was the King's Advocate.

[456] In an interesting volume, just published by Dr. Waddington, entitled *Surrey Congregational History*, the following entries taken from the records of the High Commission in relation to Lathrop and Eaton, at a later date, are inserted, p. 20:—"June 12, 1634. John Lathrop, of Lambeth Marsh. Bond to be certified, and to be attached, if he appear not on the next Court-day.—June 19, 1634. Bond ordered to be certified, and he to be attached for non-appearance.—October 9. Samuel Eaton and John Lathrop to be attached for non-appearance, and bonds to be certified.—February 19, 1634-5. Samuel Eaton and John Lathrop, for contempt, in not appearing to answer articles touching their keeping conventicles. Their bonds ordered to be certified, and they attached and committed."

[457] *The Brownist's Synagogue*, 1641.

[458] Henry Jacob, probably, is the first who used the term independent in relation to a Christian Church. "Each congregation," he says, "is an entire and *Independent* body politic, and endowed with power immediately under and from Christ, as every proper Church is and ought to be."—*Declaration and Plainer Opening of Certain Points*, &c., 1611, p. 13.

[459] I am indebted for this and other extracts from the Yarmouth Corporation Records to a MS. history of the Yarmouth Church, compiled by my friend, the late Mr. Davey, of that town.

[460] The words printed in italics are underscored in the copy from which these extracts are transcribed.

[461] This Confession is described, and extracts from it are given in *Hanbury*, i. 293. It is attributed to Henry Jacob.

[462] *Hanbury's Memorials*, ii. 279-281.

[463] *Ibid.*, ii. 409.

In a pamphlet by Katherine Chidley, it is asserted the Separatists supported their own poor.—*Hanbury's Memorials*, ii. 112.

[464] The whole account of Congregationalism in Yarmouth is drawn up from the records of the Corporation, and of the Independent Church there.

[465] See *Oxoniana*, iv. 188; and copy of the woodcut in *Knight's Old England*.

The Parliamentarians made a great mistake in not planting a garrison at Oxford, as they might have easily done when the war broke out.—See *Whitelocke's Memorials*, 63. The shrewd lawyer was not destitute of military insight, and justly blames Lord Say, who was opposed to the Parliament's taking possession of the city, because of the "improbability, in his opinion, that the King would settle there."

[466] *Macaulay's Hist.*, iii. 18.

[467] *Life of Chillingworth*, by P. Des Maizeaux, 277.

[468] *Rushworth*, v. 354.

[469] A year afterwards, we find the following statement in *Perfect Occurrences* (June 17, 1644), where after describing the cruel spoliation of Abingdon and Worcester by fire by the Cavaliers, the news-writer thus continues:—"I could here insert the platform of all their projects, had I room to bring it in, set forth in a picture, intended to be sent to Seville, in Spain, and to be hanged in the great cathedral there, this day brought before the Parliament, where the Queen directs the King to present his sceptre to the Pope, and all the Cavaliers with him, and popish leaders with her, rejoicing to see it, he having a joyant, [this means perhaps, *joyan*, a jewel] to resemble his Majesty and she the Virgin Mary, and this motto upon the cases: '*Para Sancta Aña de Sevilla*.' This picture is to be hung up for public view, and is enough to convince the strongest malignant in England."

[470] *Parl. Hist.*, iii. 236.

[471] *Meditations on the Times*, xvii.

[472] *Rushworth*, v. 346.

[473] *Ussher's Life*, by Elrington, 238.

[474] *Life*, by Heber prefixed to his *Works*, i. 21, and another, by Willmott, 112.

[475] *Memorials of Fuller*, by Russell, 142, 148, 151, 153.

[476] He however maintained that Episcopacy was Apostolic. *Life*, 299, 300.

[477] There are several papers relating to Chillingworth in the Lambeth MSS. Nos. 943, 857-935.

[478] Yet Cheynell says, while some thought him uncharitable, others were of opinion he had been too indulgent in suffering Mr. Chillingworth to be buried like a Christian.—See *Life of William Chillingworth*, by P. Des Maizeaux, for the particulars we have given.

It has been stated that Cheynell was deranged, and certainly his own account of his conduct towards Chillingworth would indicate that at least he was touched. But then, after all this, we find him sent down as a visitor to Oxford, and made President of St. John's. Hoadly says he was as pious, honest, and charitable as his bigotry would permit. Eachard refers to him as a man of considerable learning and great abilities.—*Neal*, iii. 470. We have introduced this type of character, not as common, but as one without which an account of the religious phases of the time would be incomplete.

In 1658, Hartlib, writing to Pell, observes: "Cheynell is not shot as was reported, but certain that he is fallen distracted, and is sent to Bedlam."—*Letters in Vaughan's Protectorate of Cromwell*, ii. 462.

[479] *Life of the Rev. John Barwick, D.D.*, written in Latin by his brother Dr. Peter Barwick, Physician in Ordinary to King Charles II., and translated into English by the editor of the Latin life. Though a fierce royalist production, and, in some respects, untrustworthy, yet it relates several curious facts not elsewhere found.

[480] 1st April, 1643.—*Husband's Collection*, 13.

[481] May 16th, and June 10th, 1643. *Husband's Collection*. Laud gives a detailed account of this business in the History of his *Troubles and Trials*.—*Works*, iv. 16. The Vicar General was Sir Nathaniel Brent, who, when he saw the Presbyterians begin to be dominant, sided with them. *Wood's Ath. Oxon.*, ii. 161.

[482] A case of this kind is mentioned in *Blomefield's History of Norfolk*, ii. 424, in a note relating to John Peck, A.M., of Hingham.

[483] *Commons' Journals*, 27th of July, 1643. *Husband's Collection*, 311. Persons accused were to have timely notice, in order that they might make their defence.

[484] The following illustrations are from the volumes in the Record Office.—*Dom. Inter.*, 1646.

[485] In the State Paper Office I find a case submitted to Lord Chief Justice Heath, in March, 1644, relative to suing for tithes, in which his lordship gives opinion "that where the bishop, or other inferior judge, will not, dare not, or cannot do justice, the superior Court may and ought to do it." *State Papers, Dom.*, 1643, March 22nd.

[486] See *Scobell* (1644), 45; (1647), 85; (1648), 110.

[487] The Parliamentary Journals testify to various kinds of ecclesiastical affairs which came under the notice of the whole House, such as allowances to ministers, the collecting of pew-rents, contributions in churches for those who suffered in the wars, appointments to livings, &c., &c.—See Entries, August 26th, Sept. 7th, 11th, 19th, October 14th, and Dec. 16th, 1644.

[488] Parliament conferred powers on Lord Fairfax in February, 1644, whilst he was in the north, and the next month, commissioners there received the following warrant:—

"Whereas we are credibly informed that many ministers in the several counties of Nottingham, York, bishopric of Durham, Northumberland, Cumberland, and Westmoreland, the town and county of Newcastle-upon-Tyne, the city and county of the city of York, and the town of Nottingham, are not only of scandalous life and conversation, but leaving their charges and cures, have withdrawn themselves wilfully from the same, and have joined with such forces as are raised against Parliament and Kingdom, and have aided and assisted the said forces, and that many that would give evidence against such scandalous ministers are not able to travel to London, nor bear the expenses of such journeys, you have therefore hereby full power and authority to call before you, &c., &c., and to eject such as you shall judge unfit for their places, and to

sequester their livings and spiritual promotions, and to place others in their room, such as shall be approved, godly, learned, and orthodox divines, &c., &c. And further, you shall have power to dispose a fifth part of all such estates as you shall sequester for the benefit of the wives and children of any the aforesaid persons, &c., &c."—*State Papers, Dom.*, March 6th, 1643-4.

With the sword of Fairfax, a real Andrea Ferrara, and other relics of the Commonwealth, there is preserved at Farnley Hall, Yorkshire, the silver matrix of a seal for the licensing of preachers. It shews within a circlet of leaves an open Bible, inscribed "The Word of God," with the words running round the edge, "The Seal for the Approbation of Ministers." It is engraved in *Scott's Antiquarian Gleanings in the North of England*.

See Resolutions in Journals, August 29th, 1644.

[489] *Rushworth*, vi. 212.

[490] *Great Fight in the Church at Thaxted*, 1647. Quoted in *Davis's Nonconformity in Essex*.

[491] *Rushworth*, iv. 113-123.

These articles, charging him with introducing Popish innovations into Scotland, are given by Laud, together with his replies, in the *History of his Troubles. Works*, iii. 301. Laud's answers are not those of a Papist, but those of a thorough Anglo-Catholic. Another set of charges was presented against the bishops generally. *Works*, iii. 379. How the thing was talked about in Scotland appears in the *History of the Troubles in England and Scotland* (Ballatyne Club), 275.

[492] Laud, in his Diary, March 24, 1642-3, alludes to plots to send him and Wren to New England.—*Works*, iv. 19.

[493] *Neal*, iii. 176. Laud says, under date January 22, 1643-4:—"This day the Thames was so full of ice that I could not go by water. It was frost and snow, and a most bitter day. I went, therefore, with the Lieutenant in his coach, and twelve wardens, with halberts, went all along the streets." "So from the Tower-gate to Westminster I was sufficiently railed on and reviled all the way. God, of his mercy, forgive the misguided people! My answer being put in, I was for that time dismissed; and the tide serving me, I made a hard shift to return by water."—*Works*, iv. 45.

[494] It has been justly remarked that the Greek orators were careful to impress upon their audience that, in bringing a charge against any one, they were actuated by the strongest personal motives. Æschines, in his oration against Ctesiphon, expresses his intense personal spite against Demosthenes. Christianity has taught us a different lesson, and happily the authority of that lesson is acknowledged, and its spirit generally exemplified by the English bar, and in the British Senate.

With regard to Prynne, let me add that, though his prejudices might warp his judgment, he shewed himself throughout his whole life to be an honest man. Of his learning, there cannot be two opinions. His great work on Parliamentary writs, in four volumes, is pronounced by a competent judge to be so admirable, that "it is impossible to speak of it in terms of too high commendation."—

Parry's Parliaments and Councils, Preface, 21. See also *Spilsbury's Lincoln's Inn*, 283.

[495] See *Rushworth*, v. 763-780. A fuller account of the trial may be found in *Neal*, iii. 172-242.

[496] This is taken, not from *Rushworth's* report (v. 777), but from *Laud's* own copy of his speech. They differ somewhat.—*Works*, iv. 60.

[497] Quoted in *Neal*, iii. 239.

[498] *Laud* said in his defence: "The result must be of the same nature and species with the particulars from which it rises. But 'tis confessed no one of the particulars are treason, therefore, neither is the result that rises from them. And this holds in nature, in morality, and in law."—*Works*, iv. 380.

In reply to *Serjeant Wylde's* argument, that the misdemeanours together, by accumulation made up treason, *Laud's* advocate wittily observed: "I crave your mercy, good Mr. Serjeant, I never understood before this time that two hundred couple of black rabbits would make a black horse."

[499] *Walton's Lives*, 390.

[500] *Heylyn* says, in his *Life of Archbishop Laud* (527), that *Stroud* was sent up to the Lords with a message from the House of Commons, to let them know that the Londoners would shortly petition with 20,000 hands to obtain that ordinance.

The arguments of the Commons in support of the attainder, as presented to the Lords, are given in the journals of the latter, under date, *Die Sabbati, 4 die Januarii*.

Heylyn (528) states, that only seven Lords concurred in the sentence; *Clarendon* (519), that there were not above twelve peers in the House at the time. In the Journals the names of nineteen appear at the commencement of the minutes of the sitting.

[501] *Lives of the Chancellors*, iii. 204; *Const. Hist.*, i. 577; *Hist. of Commonwealth*, i. 428.

[502] *Life of Pocock*, by *Dr. Twells*, 84. See also a curious tract respecting *Laud* in *Harleian Miscel.*, iv. 450.

[503] *Rushworth*, v. 781. "Let us run with patience that race that is set before us, looking unto *Jesus* the author and finisher of our faith, who for the joy that was set before him, endured the cross, despising the shame, and is set down at the right hand of the throne of God."

[504] *Rushworth*, v. 785.

[505] A newspaper notices that:—Whereas he had been the archpatron of those who branded honest men with the name of roundheads more than hath been usual, his own head when cut off, though sawdust had been laid about the block, "did tumble once or twice about like a ball."

[506] *Henry Rogers*.

[507] See *Bruce's Account of Laud's Berkshire Benefactions*.

Mr. Bruce, who has had ample means of judging of Laud's character, observes:—"A winking at a little finesse designed to accomplish some end, supposed to be for the good of the Church, is all that may be brought home to him—his hands were never defiled by the touch of a bribe."—*Calendar of State Papers, Dom.*, 1635. *Preface*.

[508] Overstrained parallels between Laud and Wolsey were drawn in the pamphlets of the day.—See *Harl. Miscell.*, iv. 462.

I may add that Dunstan and Laud were alike *insular* men, if that term may be used to distinguish them from Becket and Wolsey, both of whom had large intercourse with the Continent. Dunstan and Laud were narrower in their feeling and character than the other two. I have before noticed the resemblance between Dunstan and Laud in point of influence.

[509] *Journals of the Lords*, January 4th, 1645.

[510] *An Anatomy of the Service Book*, by *Dwalphintramis*. *Southey's Common-place Book*, iii. 40.

[511] See *Christ on the Throne*. 1640.

[512] A letter by George Gillespie, on the Directory, being forwarded to Scotland, shews the difficulty there was in getting it passed.—*Baillie*, ii., *App.* 505. He says, May 9th, 1645: "I pray you be careful that the Act of the General Assembly, approving the Directory, be not so altered as to make it a straiter imposition." "Sure I am, the Directory had never past the Assembly of Divines, if it had not been for the qualifications in the preface. This is only for yourself, except ye hear any controversy about it in your meeting."

[513] *Baillie's Letters*, ii. 271.

[514] *Scobell*, 97.

[515] The following should be recorded to Whitelocke's credit. 1646. Oct. 26. "Indictment in Bucks for not reading the Common Prayer complained of. Ordered that an ordinance be brought in to take away the statute that enjoins it, and to disable malignant ministers from preaching. This was much opposed by me and some others, as contrary to that principle which the Parliament had avowed of liberty of conscience, and like that former way complained of against the bishops for silencing of ministers."—*Memorials*, 226. The diarist here shews that the use of the Prayer Book was not considered by the Royalists to be legally abolished.

I may here add that Whitelocke was not a party man. He sympathized with Presbyterian leaders in wishing to save the monarchy, but he co-operated with Independents in advocating religious liberty.

[516] *Mant's History of the Church of Ireland*, i. 587-594.

[517] *Lathbury's History of Convocation*, 497.

[518] *Clarendon's Hist.*, 515.

[519] While the Oxford Lords were in London on the embassy, there was, according to the Diurnal, entitled *Perfect Occurrences*, December 28, a great auditory to hear the chaplain preach and read prayers. After the sermon, it is said, the people were very merry, and a young lady and gentleman went dancing

by the river side, and fell in—"good for them to cool their courage in frosty weather."

[520] *Whitelocke*, 112. The entire propositions for peace may be seen in *Parl. Hist.*, iii. 299.

[521] *King's Cabinet opened*.—*Neal*, iii. 250.

[522] *Parl. Hist.*, iii. 339.

[523] *Memorials*, 127.

[524] All the documents during the attempts at a treaty are given by Dugdale in his *Short View of the late Troubles*.

A full account is also given by *Rushworth*, v.

[525] *Clarendon's Hist.*, 521.

Secretary Nicholas writes to the King, 5th of February, 1644: "This morning we are to observe the fast, according to your Majesty's proclamation; but it must be done here in the inn, for we cannot be permitted to have the Book of Common Prayer read in the church here, and we resolve not to go to any church where the Divine service established by law may not be celebrated." "You have done well, but they barbarously," Charles writes in the margin. But in the prayer appointed by the King the war is described as "unnatural," and the Almighty is entreated "to let the truth clearly appear, who those are which, under pretence of the public good, do pursue their own private ends." It was not likely the Parliament would allow that prayer to be used.—*Nicholas' Correspondence, Evelyn*, iv. 136.

[526] The other chief subjects were the militia and Irish affairs.

[527] *Rushworth*, v. 818.

[528] *Evelyn*, iv. 137.

[529] In the British Museum there is a petition, presented in the year 1647, complaining of many hundreds of towns and villages destitute of any preaching ministry, by occasion whereof ignorance, drunkenness, profaneness, disaffection, &c., abound.

[530] *Husband's Col.*, 645.

[531] See ordinance dated November the 8th, 1645, in *Rushworth*, vi. 212, and *Baillie's Letters*, ii. 349.

[532] *Letters and Journals*, ii. 145.

[533] *Letters and Journals*, ii. 146.

[534] *Neal*, iii. 309.

[535] *Lives*, 380.

[536] *Baillie's Letters*, ii. 157.

[537] The religious feelings of the two armies are thus stated by an eyewitness:—"Consider the height of difference of spirits; in their army the cream of all the Papists in England, and in ours, a collection out of all the

corners of England and Scotland of such as had the greatest antipathy to Popery and tyranny."—*Sanford*, 597. He gives a careful account of the battle.

For the state of feeling in general after the victory, see *Baillie*, ii. 201, *et seq.*

[538] I adopt some of the words quoted by Sanford.

[539] There was one of the Royalist soldiers at Marston Moor wounded in the shoulder by a musket ball, who afterwards became Archbishop Dolbon, of York, 1683-1686. The following incident is interesting:—"Mary, daughter of Sir Francis Trappes, married Charles Towneley, of Towneley, in Lancashire, Esquire, who was killed at the battle of Marston Moor. During the engagement she was with her father at Knaresborough, where she heard of her husband's fate, and came upon the field the next morning in order to search for his body, while the attendants of the camp were stripping and burying the dead. Here she was accosted by a general officer, to whom she told her melancholy story. He heard her with great tenderness, but earnestly desired her to leave a place where, besides the distress of witnessing such a scene, she might probably be insulted. She complied, and he called a trooper, who took her *encroup*. On her way to Knaresborough she enquired of the man the name of the officer to whose civility she had been indebted, and learned that it was Lieutenant-General Cromwell."—*Sanford*, 610.

[540] See *Lightfoot's Journal*, September 9, 1644.

[541] Here we may mention that it is probable that John Bunyan was at that time in the Royalist army, and that while he was fighting for the King the incident occurred so often related of his post being occupied by a comrade who could handle a musket better than he could do, and who, on account of his superior skill and bravery, unfortunately received a fatal carbine shot which otherwise might have killed our matchless dreamer. Nobody can say what the world lost by that poor fellow's death, but everybody knows what the world gained by John Bunyan's preservation.

[542] For a full account of the battle of Naseby see *England's Recovery*, by Joshua Sprigg, 1647. It is he who reports the complaints we have noticed. See p. 6 of his interesting narrative.

[543] There is an interesting letter by Cromwell, dated July 10, 1645, giving an account of the Naseby fight, reprinted in *Sanford*, p. 625, from pamphlets in Lincoln College, Oxford. As the letter is not in *Carlyle* (2nd edition), I give the following extract:—"Thus you see what the Lord hath wrought for us. Can any creature ascribe anything to itself? Now can we give all the glory to God, and desire all may do so, for it is all due unto Him. Thus you have *Long Sutton* mercy added to *Naseby* mercy; and to see this, is it not to see the face of God? You have heard of Naseby; it was a happy victory. As in this, so in that, God was pleased to use His servants; and if men will be malicious, and swell with envy, we know who hath said—'If they will not see, yet they shall see and be ashamed for their envy at his people.' I can say this of Naseby, that when I saw the enemy draw up, and march in gallant order towards us, and we a company of poor ignorant men, to seek how to order our battle, the general having commanded me to order all the horse. I could not (riding alone about my business) but smile out to God in praises, in assurance of victory, because God would, by things that are not, bring to nought things that are, of which I had great assurance, and God

did it. Oh, that men would therefore praise the Lord, and declare the wonders that He doth for the children of men!"

[544] Nevertheless, Royalist hopes were unquenched as late as the month of September, 1645.

"If you consider," it is said in an anonymous letter of that date, in the State Paper Office, "the strange extremities we were then in, the progress which we have made, and our wonderful success at last in the relieving of Hereford and chasing away the Scots, at a time when, in my conscience, within one week there had been a general revolt of South Wales (which is now likely to be entirely settled), you will think that it promises to us and portends to the rebels a strange revolution in the whole face of affairs; and if to this you add the miracles done by the same time by my Lord Montrose, in Scotland (who hath made himself entirely master of that kingdom), you will have reason to join with me in the confidence, that we shall have, by God's blessing, as quick a progress to happiness as we have had to the greatest extremities. I must confess, for my part, that these miracles, besides the worldly joy they give me, have made me even a better Christian, by begetting in me a stronger faith and reliance upon God Almighty, than before; having manifested that it is wholly His work, and that He will bring about His intended blessings upon this just cause, by ways the most impossible to human understanding, and consequently teach us to cast off all reliance upon our own strength."

This letter is dated September the 9th, 1645, and is addressed to Lord Byron.

[545] *Life of Dod*.—*Brooks' Lives*, iii. 4.

[546] *Brook*, iii. 80.

[547] *Wood*, ii. 89, says this was *Aulkryngton*, commonly called Okerton, near Banbury, in Oxfordshire; but I cannot find in Topographical Dictionaries any mention of such a place.

[548] *Brook's Lives*, iii. 10. See also p. 63.

[549] *Walker's Sufferings*, part ii. 183-185, 193.

I have lighted on the following scraps in newspapers of the day:—

Mr. Bullinger, of Lincolnshire (sometime chaplain to a Regent of the King), grandchild to the old bishop, being newly returned from France, where he hath lately been, is sent up by the Committee of Dover, very poor, in a gray suit, and neither cloak to his back nor money in his purse; and yet he scruples the taking of the Covenant, and desires time to consider of it. His examinations were this day taken.—*Perfect Occurrences*, 18th of December, 1646.

A story is told of a singing man from Peterborough, who went to Wisbeach, as clerk, and then read the burial service, when he was insulted in the rudest manner, and knocked down, the poor fellow crying out, "I am a Covenantant."—*Moderate Intelligence*, January, 1647.

[550] *Letters*, ii. 274.

[551] *Letters*, ii. 298, 299.

Baillie complains of the growing influence of the Erastians.—*Ibid.*, 311, 318, 320.

[552] These rules are given in *Rushworth*, vi. 210.

[553] *Baillie's Letters and Journals*, ii. 362, *et seq.*

[554] *Ibid.*, 344.

[555] *Godwin*, ii. 10.

[556] *Neal*, iii. 311.

[557] See *Letter to Parliament*, in *Rushworth*, vi. 234.

[558] *Baillie*, ii. 367. For the Parliament's notice of what the Scots had said, see *Declaration*, in *Rushworth*, vi. 257. The notice is only in the way of general allusion.

[559] *Froude's History of England*, vii. 340.

[560] *Neal*, iii. 330.

[561] *Neal*, iii. 381. *Hetherington's History of the Westminster Assembly*, 300.

[562] *Rushworth*, vii. 1035. At a conference between the Lords and Commons, on March 22nd, 1648, the latter declared their consent to the doctrinal parts, with the desire that the same be "made public, that this kingdom and all the reformed Churches of Christendom may see the Parliament of England differ not in doctrine." It is added, "particulars in discipline are recommitted." Of the confession of faith the title was altered to "*articles of faith*, agreed upon by both Houses of Parliament, as most suitable to the former title of the Thirty-nine Articles." The Covenant was legally enforced, but the Westminster Confession never was. Only part of it, under the title of *Articles*, ever became law at all.

[563] *Baillie*, iii., *Appendix*, 537, *et seq.* A full account is there given of Rouse's revised version, 1646, in connexion with the present Scotch version, published in 1650, p. 549.

[564] *Prose Works*, vol. ii., 40.

[565] *Life and Times*, part i. 73.

[566] Hallam speaks of the Assembly as "perhaps equal in learning, good sense, and other merits, to any Lower House of Convocation that ever made a figure in England."—*Const. Hist.*, i. 609.

[567] *Sprigg's England's Recovery*, 326.

[568] *Opera*, iii. 466.

[569] *Life and Times*, part i. 53-56.

[570] *Owen's Works*, edited by Russell, xv. 96.

[571] I find the following reference to Peters in the State Papers:—

"Dec. 10.—The fifteen articles and covenant of Hugh Peters, minister of the English congregation in Rotterdam, stated in an indorsement, which is in the handwriting of Sir William Boswell, to have been proposed to that congregation before their admission to the communion. The following are examples of these articles: '1. Be contented with meet trial for our fitness to be members. 2. Cleave in heart to the truth and pure worship of God, and oppose all ways of innovation

and corruption. 3. Suffer the Word to be the guider of all controversies. 10. Meditate the furthering of the Gospel at home and abroad, as well in our persons as with our purses. 11. Take nearly to heart our brethren's condition, and conform ourselves to these troublesome times in our diet and apparel, that they be without excess in necessity. 14. Put one another in mind of this covenant, and as occasion is offered, to take an account of what is done in the premises."—*Calendar of State Papers, Domestic*, 1633-4, p. 318.

[572] The imputations on Peters's moral character were no doubt malicious falsehoods.—*Brook's Lives*, iii. 350.

[573] Abridged from *Life of Colonel Hutchinson*, 151.

[574] *Ath. Oxon.*, ii. 287.

The Westminster Assembly condemned certain positions in Saltmarsh's writings, as well as in the writings of Dr. Crisp, and Mr. John Eaton, for their Antinomian tendencies.—See *Neal*, iii. 68. Neal does not say what the passages were. Edwards, in his *Gangræna*, part i., 25, 26, gives a list of their tenets, but we place little dependence on his accusations. It is very likely, however, that Saltmarsh might lay himself open to the charge of Antinomianism. We have not seen his book on *Free-grace*, in which perhaps the dangerous tenets he was charged with are to be looked for.

[575] As an example of the kind of preaching by these officers we may mention a tract entitled "*Orders given out—the word Stand fast*, as it was lately delivered in a farewell sermon, by Major Samuel Kem, to the officers and soldiers of his regiment in Bristol, November 8th, 1646." The discourse is full of military allusions.

[576] *Journal of the Swedish Embassy*, 1653-4.

[577] *Neal*, iii. 330.

[578] This is the account in *Ashburnham's Narrative*, ii. 72. Rushworth says the King came to Brentford and Harrow, and then went to St. Albans, vi. 267. Ashburnham's is, no doubt, the correct story.

Hackett tells the following story in the *Life of Archbishop Williams*: "His Majesty, unwilling to stay to the last in a city begirt, by the persuasion of Mons. Mountrevile, went privily out of Oxford, and put himself into the hands of his native countrymen and subjects at Newcastle. 'What,' says Mr. Archbishop, when he heard of it, 'be advised by a stranger, and trust the Scots; then all is lost.' It was a journey not imparted to above ten persons to know it, begun upon sudden resolution against that rule of Tacitus: '*Bona consilia morâ valescere*.'"—*Memorial of Williams*, ii. 222.

[579] There is an important memorandum for Lord Balcarras "anent the King's coming to the Scots' army," in *Baillie's Letters and Journals*, ii. 514. Appendix.

[580] *Charles I. in 1646*. Letters published by the Camden Society.

[581] *Neal*, iii. 336-347.

[582] *Rushworth*, vi. 319.

[583] *Rushworth*, vi. 309.

[\[584\]](#) *Mercurius Civicus*, Oct. 8-15, 1646.

"By letters from Scotland we were this day advertised that the Estates of Edinburgh have sent up their determination to the Commissioners at Worcester House. One, 'That Presbyterian government be established, as that which will suit best with monarchy.'"

It was commonly said at Newcastle, that his Majesty would take the Covenant.

[\[585\]](#) *Charles I. in 1646*, 63, 86.

[586] *Charles I. in 1646*, 6, 11. See also Ogle's letter, printed in this volume, p. 306.

[587] *Ibid.*, 24. In reading Charles's correspondence we observe that, whatever may be said of fanatical ideas of providence entertained by Puritans, ideas equally fanatical were entertained by the King.—See *Mr. Bruce's Introduction to the volume of Letters*.

[588] See Journals under date. Godwin, in his *Commonwealth*, ii. 66, 236, 246, after a careful examination of the Journals on the subject, explains distinctly the series of enactments with regard to the establishment of Presbyterianism.

[589] *Baillie*, ii. 357. "They have passed an ordinance, not only for appeal from the General Assembly to the Parliament, for two ruling elders, for one minister in every church-meeting, for no censure, except in such particular offences as they have enumerat; but also, which vexes us most, and against which we have been labouring this month bygone, a court of civil commissioners in every county, to whom the congregational elderships must bring all cases not enumerat, to be reported by them, with their judgment, to the Parliament or their Committee. This is a trick of the Independents' invention, of purpose to enervate and disgrace all our Government, in which they have been assisted by the lawyers and the Erastian party. This troubles us exceedingly. The whole Assembly and ministry over the kingdom, the body of the city, is much grieved with it; but how to help it, we cannot well tell. In the meantime, it mars us to set up anything; the anarchy continues, and the vilest facts do daily encrease."

[590] *Husband*, 919.

[591] *Neal*, iii. 385.

[592] *Scobell*, (1647-8,) 139, 165.

[593] 1646. October the 8th.—On the question in the Lords for passing the ordinance, "the votes were even, so nothing could be resolved on at this time." Only nine earls and five barons were present. October the 9th.—"And the question being put, 'Whether to agree to the said ordinance as it was brought up from the House of Commons?' Audit was agreed to in the affirmative." Seven earls and five barons were present.—*Lords' Journals*.

[594] *Husband's Collection*, 922.

[595] *Husband*, 934.

[596] Printed in *Harleian Miscellany*, iv. 419.

[597] This information respecting wills is drawn from Sir H. Nicholas' *Notitia Historica*, 144-205. In the month of November, 1644, an ordinance of Parliament appointed Sir Nathaniel Brent a Presbyterian master or keeper of the Prerogative Court of Canterbury, in the room of Dr. Merrick, a Royalist Episcopalian.—*Husband*, 582.

In the Windsor churchwardens' accounts an instance occurs of money paid in 1651-2 for searching the Prerogative Court for the Countess of Devonshire's will, then lately deceased.—*Annals of Windsor*, ii. 267.

[598] We shall describe this law in the next volume. It should be noticed that the ordinance of 1646, respecting bishops, said nothing about deans and chapters, or archdeacons. How they were afterwards dealt with will also be seen hereafter.

[599] *Scobell*, 129.

[600] *Ibid.*, 146.

[601] In September, 1647, the certificate of certain Cheshire justices touching a refusal to pay tithes to a Puritan, Mr. Smith, of Tattenhall, came before the committee. Some Royalist Episcopalians took encouragement, in their refusal, from two petitions of the sequestered clergy to the King and Sir Thomas Fairfax. It is certified, "from the said justices, that they conceive the ordinance of Parliament for payment of tithes cannot be put by them into execution without bloodshed." The Serjeant-at-Arms is commissioned to bring these delinquents "in safe custody to answer their said contempt."—*Nonconformity in Cheshire*, 472.

The objections to paying tithes at that period went much further than such objections as are urged by Paley.—*Moral and Political Philosophy*, book vi., iii. A corn-rent, as he suggests, or such commutation of tithes as is now adopted, would not have met the objections. A fixed and uniform stipend paid by the State was widely desired.

[602] *Scobell*, 139.

"1646, 15th December.—It is ordered that Mr. Tooley, &c., shall treat with the dean and prebends about mending the windows and repairing the cathedral church, and to consider whether it be fit to remove the pulpit to the former place where it stood or not, and to examine whether there be £100 a year appointed for the repairing of the church, and how much thereof is in arrear."

"1647.—8th November. It is ordered that the sheriffs shall give entertainment to the preachers who come to preach at the cathedral in such manner as the former sheriffs did, and that they shall give like allowance for the same as they did."—Extracted from the *Norwich Corporation Records*.

[603] *Husband*, 758. The following minutes are extracted from a MS. volume of proceedings in the library of Sion College, London.

December, 1644. At a meeting of the governors of the school and almshouses of Westminster:—

Whereas the governors of the schools and almshouses of Westminster, have, by their former order, nominated and appointed Mr. Strong to be minister of the Abbey Church, Westminster, in the room and place of Mr. Marshall, and in regard Mr. Marshall cannot well perform the service any longer, without inconveniency to him; it is ordered that the said Mr. Strong be desired to undertake the service so soon as possibly he can, and he is to have the allowance of £200 and a house; being the same allowance as the said Mr. Marshall had for his pains, to be taken therein. And the trustees are to pay him the same £200 and quarterly by even and equal portions. The first payment to commence from the time he shall begin the service, and to continue till he shall leave it.

At a committee of the Lords and Commons for the College of Westminster, sitting in the dean's house, the 3rd March, 1645-6:—

After reciting the ordinance of the 18th of November the committee "do nominate and appoint Mr. Philip Nye, minister of God's Word, to preach the term lecture in the said collegiate church, and receive the yearly stipend and allowance for the same. And the Reverend General of the said College for the time being is hereby authorized and required to pay the same unto the said Mr. Philip Nye, at such time as the same hath been heretofore usually paid, and we do further nominate and appoint the said Mr. P. Nye to preach the lecture upon every Lord's day in the morning, at seven of the clock, for which he shall receive such allowance as hereafter shall be settled and appointed by this committee."

9th July, 1646.—By an order of this date, Mr. Nye was to have £50 a year, to be paid quarterly.

Same day.—Mr. Marshall, Mr. Palmer, Mr. Herle, Dr. Staunton, Mr. Nye, Mr. Witaire (?), and Mr. Strong, were appointed to the morning lecture constantly to be performed every day of the week.

July 13th.—Mr. John Bond, preacher at the Savoy in the Strand, was appointed one of the seven morning lecturers for the Abbey on the week day.

[604] *Commons' Journals*, December 2nd, 1643.

[605] *Annals of Windsor*, ii. 205.

[606] *Hist. of the University of Cambridge*, 233. "The Colleges have already sent to the King £6,000, and are now about to send their plate to make shrines for Diane's temple. Magdalene College plate, beginning the march, was seized on by Parliament authority, and is deposited in the Mayor's custody. St. John's College conceived a better secrecy by water, and that way conveyed their plate; but having intelligence of discovery, they landed it in the night into a dung-cart, and returned it to the College. It is said now they expect a convoy of horse. King's College refused to send plate, the Master affirming that it is directly against their oath, binding them in express words, not to alienate the plate of the College. If he be not deceived in his judgment, it will be a problem for the rest of the masters."—*Tanner MSS.* 63, p. 116. *Sanford's Illustrations*, 514.

[607] *Husband's Collections*, 415, 416.

"The Masters of Queen's, Jesus, and St. John's, were sent up to London, and led through the midst of Bartholomew Fair in a leisurely manner, to the endangering of their lives, up as far as Temple Bar, and so back through the City to the Tower, on purpose that they might be hooted at and stoned by the rabble."—*Coles' MSS.*, vol. vii., quoted in *Akerman's Hist. of University*, i. 260.

The Master of Queen's, and some others, are said to have been put on board a ship at Wapping, where they suffered much, and were then sent to prison. It is impossible to determine the exact truth amidst the exaggerated statements by Walker. Hot-headed party men always overshoot the mark, and bring discredit even on the truths they tell.

[608] *Hist. of Cambridge*, 236. Sancroft did not take the Covenant. The following extract from a letter of his to Dr. Holdsworth, Master of Emmanuel, is very curious:—"Ah! Sir, I know our Emmanuel College is now an object of pity

and commiseration. They have left us like John Baptist's trunk when his head was lopped off, because of a vow or oath (or Covenant, if you will) that went before, or like Pompey's carcass upon the shore; so *stat magni nominis umbra*. For my part, *tædet me vivere hanc mortem*. A small matter would prevail with me to take up the resolution to go forth any whither where I might not hear *nec nomen, nec facta Pelopidarum*. Nor need we voluntarily give up our stations. I fear we cannot long maintain them. And what then? Shall I lift up my hand? I will cut it off first. Shall I subscribe my name? I will forget it as soon. I can at least look up through this mist and see the hand of my God holding the scourge that lashes; and with this thought I am able to silence all the mutinies of boisterous passions, and to charm them into a perfect calm. Sir, you will pardon this disjointed piece: it is the production of a disquieted mind; and no wonder if the child resembles its parent. My sorrow, as yet, breaks forth only in abrupt sighs and broken sobs."—*D'Oyley's Life of Archbishop Sancroft*, i. 32.

[609] *Strype's Life of Parker*, i. 390.

[610] *Fuller's History of Cambridge*, 205.

[611] *Thorndike's Works*, vol. vi., Oxford edition. Note by Editor, 170. *Pure Emmanuel* occurs in Corbet's satirical poem, 1615. It was commonly so styled.

[612] *Halley's Life of Goodwin*, prefixed to *Works*, vol. ii. of Nichol's edit., p. 23. But Brownrigg, in 1645, was put out of the Mastership of Trinity Hall.

[613] Cartwright, Travers, Calamy, Seaman, Doolittle, S. Clarke, and W. Jenkyns, came from Cambridge. Out of seventy-seven Puritan names in *Brook*, I find forty-seven belonging to Cambridge, and thirty to Oxford.

[614] The four were Goodwin (Catherine), Burroughs, Bridge (Emmanuel), and Sydrach Simpson. Nye was an Oxford man.

[615] Cooper, quoted in *Notes to Thorndike*, vol. vi. 177.

[616] *Calendar of State Papers, Chas. I.*, 1633-4, *Domestic*, July 22, p. 150.

[617] *Thorndike's Works*, vi. 169.

[618] Cooper gives 2,091 University residents in 1641, but says it does not include the whole.—*Thorndike*, vi. 165. Walker reports nearly 200 masters and fellows as ejected, besides inferior scholars. Some of the ejected heads of houses were men of moderate opinions.—*Neal*, iii. 116.

Newcome, in his *Autobiography*, Cheetham Society, speaks of the bitter feuds between the new and the old fellows in 1645. He judged the supporters of the Parliament to be the most religious, "religion being as little favoured" by many of their opponents as the Puritans themselves were (p. 7).

[619] They are far too numerous and varied for me to classify or indicate. See historical account of all material transactions relating to University.—*Laud's Works*, vol. v., part I.

The following scrap of a newspaper shews the care taken by the Parliament for the support of the University, and also the feeling existing at Oxford against the Parliament:—

"Ordered that the Committee for the Ordinances of regulating the University shall consider of a fitting maintenance for the masters and heads of houses in

both Universities. They also ordered that a committee should sit constantly for giving a competent maintenance to the late bishops until they had despatched that business.

"The House being informed that there were monuments standing in Christ Church, in Oxford, on which were epitaphs engraven abusive to the Parliament, and giving just cause of distaste to many good men well affected to it, as particularly on the monument of Sir Henry Gage and Sir William Penniman, it was ordered that the epitaphs on the said monuments should be razed and effaced."—*Weekly Intelligencer*, April 15th, 1647.

[620] In the autobiography of Arthur Wilson, an Oxford student, in 1631, this passage occurs relative to the moral state of the University:—

"That which was most burdensome to me in this my retirement was the debauchery of the University. For the most eminent scholars of the town, especially of St. John's College, being of my acquaintance, did work upon me by such endearments as took the name of civilities, (yet day and night could witness our madness), and I must confess, the whole time of my life besides did never so much transport me with drinking as that short time I lived at Oxford, and that with some of the gravest bachelors of divinity there."—*Peck's Desiderata Curiosa*, ii. 470.

[621] *Walker*, part i. 127; *Neal*, iii. 446-453.

[622] *Walton's Lives*, 388. Morley wrote in the following dignified manner to Whitelocke, acknowledging friendly interposition on his behalf: "Pray God he, whosoever he be that succeeds me in it, may part with it at his death as cheerfully as I do now, and that my judges may not have cause to be more sorry for their sentence than I am. It is glory enough for me that Mr. Selden and Mr. Whitelocke were of another opinion, for being absolved by you two, and mine own conscience, I shall still think myself in a capacity of a better condition."—*Whitelocke's Memorials*, 250.

[623] *Wood's Ath.*, ii. 215.

Walton, so called (though he wrote his name Wauton), married Cromwell's sister Margaret, and was one of the Commissioners of the High Court of Justice.—*Noble's Protectorate House*, ii. 224.

[624] *Neal*, iii. 456.

[625] *Scobell*, (1647), 116.

[626] *Neal*, iii. 438.

[627] The following sentence appears in a newspaper of the period:—

"There are many amongst us who are called Independents, but what some say of them, I doubt not that they will prove honest men and peaceable for ought that I can see—experience gives them a better report than rumour."—*Papers from the Scotch Quarters*.

[628] The following letter, dated September 25th, 1645, was addressed to the mayor and aldermen of Norwich:—

"Gentlemen—The Parliament being desirous above all things to establish truth and righteousness in these kingdoms, towards which the settlement of a

church government is very conducive, hath resolved to settle a presbyterial government in the kingdom. For the better effecting whereof you are required, with the advice of godly ministers and others, to consider how the county of the city of Norwich may be most conveniently divided into distinct classical Presbyteries, and what ministers and others are fit to be of each classis, and you are accordingly to make such divisions and nominations of persons for each classical Presbytery. Which divisions and persons so named for every division you are to certify to the House with all expedition. W. Lenthall, Speaker."—*Blomefield's History of Norwich*, i. 391.

[629] This appears from a petition presented by the Presbyterians to the mayor, in April, 1648, for a more thorough reformation, and complaining that faithful ministers were slighted, ejected ministers of the Church of England preferred, old ceremonies and the service book constantly used, and the directory not observed. The petitioners also prayed for a more thorough execution of the ordinances against superstition and idolatry, and specified as needing to be defaced a crucifix on the cathedral gate, another on the roof inside by the west door, and a third upon the free-school, as well as an "image of Christ upon the parish house of St. George's of Tombland."—*Blomefield's History of Norwich*, i. 393.

[630] *Vox Norwici*, or the city of Norwich vindicating their ministers, wherein the city of Norwich, viz., the court of mayoralty and common council, by their act of assembly, the rest of the well-affected citizens and inhabitants by the subscription of their names hereunto, do vindicate their ministers, Master Thornebacke, Master Carter, Master Stinnett, Master Fletcher, Master Bond, Master Stukeley, Master Test, and Master Mitchell, from the foul and false aspersions and slanders, which are unchristianly thrown upon them in a lying and scurrilous libel lately come forth, entitled "*Vox Populi*, or the People's Cry against the Clergy," or rather the voice of a schismatic, projecting the discouragement and driving away of our faithful teachers, but we hope his lies shall not so, effect it. Jer. viii. 30. London, 1646.

[631] See *Godwin's Commonwealth*, ii. 211-220, *Memoirs of Edmund Ludlow*, i. 172.

[632] *Baillie's Letters and Journals*, ii. 512, Appendix. Gillespie says, March 30th, 1647:—"In sum, the Independent party is for the present sunk under water in the Parliament, and run down."

[633] *Parl. Hist.*, iii. 475.

[634] *Journals*.

[635] *Neal*, iii. 365. The following is an extract from the Petition:—"That an ordinance be made for the exemplary punishment of heretics and schismatics, and that all godly and orthodox ministers may have a competent maintenance, many pulpits being vacant of a settled minister for want of it; and here (say they) we would lay the stress of our desires, and the urgency of our affections." They complain further of the "undue practices of Country Committees, of the threatening power of the army, and of some breaches in the Constitution, all of which they desire may be redressed, and that his Majesty's royal person and authority may be preserved and defended, together with the liberties of the kingdom, according to the Covenant."

[636] *Neal*, iii. 388.

[637] See full account, with authorities, in *Baker's Northamptonshire*, i. 201.

[638] "The kingdom shall have peace and truth, the Churches uniformity and concord, almost quite lost, Ireland hopes of speedy reduction, sectaries and blasphemers shall be bridled if not extirpated, and church government with the religion established."—*Welcome of the King to Holmby* (Holdenby).

[639] *State Papers, Dom., Chas. I.* 1647. The latter is without date.

[640] *History of Rebellion*, 610.

[641] The funeral of the Earl of Essex, on the 22nd of October, 1646, presented a grand display of military pomp. The Speaker, many Aldermen of the City, and Assembly of Divines also followed in the procession to the grave. "When they came to the Abbey Church, the effigy of the Earl was carried in and laid upon the standing hearse, where it was to remain during the pleasure of the House, or as many days as intervened between his death and burial. The effigy was roughly handled one night. The Abbey being broken into, the head of the image was broken, the buff coat was slit, the scarlet breeches were cut, the boots were slashed, the bands were torn, and the sword broken."—See *Perfect Relation of the Funeral*.

Mr. Vines, in his sermon at the interment, compared Essex to Abner, and observed: "The funeral, for the state of it, overmatches the pattern. Here are the two Houses of Parliament, the map of all England in two globes, pouring out their sorrows, and paying their kisses of honourable farewell to his tutelar sword."

[642] *History of Rebellion*, 610.

[643] After leaving Holdenby, during the three days the King tarried at Childerley, many doctors, graduates, and scholars of the University repaired thither, "to most of whom the King was pleased to give his hand to kiss; for which honour they returned their gratulatory and humble thanks with a *Vivat Rex*." He was also visited by Fairfax, Cromwell, Ireton, Skippon, Lambert, Whalley, and other officers of the Parliament army, some of whom kissed his hand.—*Wood's Ath. Oxon.*, ii., *fasti* 81.

[644] *Clarendon*, 613.

[645] *Ludlow's Memoirs*, vol. i. 240.

[646] *Ludlow*, vol. i. 207.

[647] *Clarendon*, 616.

[648] *Blomefield's Hist. of Norwich*, i. 394, 395.

[649] *Journals of Lords*, May the 19th. *Rushworth*, vii. 1119. At Bury, the cry was "For God and King Charles."

[650] 1648, 26th of April.—"It is thought fit and agreed that Tuesday next shall be set apart and kept as a solemn day of thanksgiving for God's deliverance of this city from the rebellious company of people that did rise against them upon Monday last, and that Mr. Carter be desired to preach in the forenoon, and Mr. Collings in the afternoon, both at the Cathedral, and that they shall have 20s. a piece, and that the great guns shall be shot off, and that the aldermen shall be

in scarlet and attended with the livery, and that the churchwardens and overseers of every parish do go from house to house to take the benevolence in writing of every person that will give for the relief of the poor who are in want, to be delivered unto the Court of Mayoralty, to be by them distributed."—*Corporation Records*.

[651] *Scobell*, 149.

[652] *Vindication of the Ordinance against Heresies, &c.*, 1646.—In which the example of Geneva in putting Servetus to death is cited with approval, and is adduced as an argument in defence of the ordinance.—

The *Scottish Dove* defends the *Ordinance against Heresies, &c.*, as a great work, very necessary, heresy being of the flesh, and therefore to be punished by the magistrate. A complaint is made in a pamphlet entitled, *Oaths unwarrantable*, (June, 1647,) that multitudes of men well-affected to the Parliament were indicted and punished for not coming to their parish churches, though there were no statutes to authorize punishment for such neglect, except the act of uniformity, which had been repealed. "Though I stay seven years from church," says the writer, "and constantly meet in private houses, there is by Parliament's principles neither law nor ordinance in force for any judge or justice of the peace to indict me, or any other, or any otherwise to molest or trouble me."

[653] The following prayer for the King was used at Paris, September, 1648:

—
"O Almighty and most gracious Lord God, the Ruler of princes when they are on their thrones, and their Protector when they are in peril, look down mercifully from heaven, we most humbly pray Thee, upon the low estate of thine anointed, our King. Comfort him in his troubles, defend him in his danger, strengthen him in his good resolutions, and command thine angels so to pitch their tents round about him, that he may be defended from all those that desire his hurt, and may be speedily re-established in the just rights of his throne, through Jesus Christ our Lord. Amen." Made by Dr. Steward, 1648. MS. copy in *Pamphlets*, vol. xxxv.

[654] See *Short's Sketch of the Church*, ii. 154.

[655] *Rushworth*, vii. 1302, 1321. Godwin, in his *History of the Commonwealth*, ii. 481, has exposed with unsparing justice the duplicity of Charles at this moment in the treaty which he was then forming with the Scotch.

[656] *Rushworth*, vii. 1334.

It is unnecessary to do more than indicate that the Commissioners replied to this document, (November the 20th, 1648,) still urging the three points, but explaining the Directory, as setting down the matter of prayer, only leaving words to a minister's discretion. To this Charles gave a final reply, November the 21st, adhering to Episcopacy and the inalienability of church lands. As to the Directory—having observed its latitude according to their explanation—he was willing to waive his objections. The King's final reply is not given in *Rushworth*, but it may be found in the *Parl. Hist.*, iii. 1130.

[657] *Parl. Hist.*, iii. 1077.

[658] The speech is given in *Parl. Hist.*, iii. 1152-1239; the pages are closely printed. Though so very long it is well worth reading.

[659] *Memoirs of the Two Last Years of K. Charles I.*, by Sir Thomas Herbert, 124.

[660] *Whitelocke*, 375. It has been stated that Juxon's spiritual assistance was permitted at the intercession of Hugh Peters—a thing in itself very unlikely. Godwin asserts it, and refers generally to Whitelocke and Rushworth as his authorities; I suppose p. 370 of the *Memorials* is intended. Rushworth ascribes the intercession to a member of the army.—Vol. vii. 1421. In most accounts of the last days of Charles, the references are unsatisfactory.

[661] Prefixed to *Ussher's Letters*, p. 72.

[662] *Life of Philip Henry*, by his son. There is amongst the Harleian MSS. in the British Museum an affecting letter on the subject, by Dr. Sanderson, written a few days after the King's execution.

[663] It must be remembered that Vane, St. John, and Algernon Sidney, were of opinion that to depose Charles would be better than to behead him.

[664] Bradshaw was a member of the Church under the pastoral care, first of Mr. Strong, and then of Mr. Rowe, ministers of Westminster Abbey. Miles Corbet was member of the Church at Yarmouth, under the pastoral care of William Bridge.

[665] *Neal*, iii. 537. See what he says, 547-554, respecting the authors of the King's death.

[666] The Governor's name is spelt in at least six different ways by various historians. We have adopted the spelling of Clarendon.

[667] See *Fuller's Church History*, iii. 502; Herbert, in *Wood's Ath. Oxon.*, ii. 705; *Clarendon's Hist. of Rebellion*, 692; and *Gentleman's Magazine*, vol. xlii.

Transcriber's Note:

1. Spelling errors have been silently corrected.
2. The Corrigenda for this volume have been corrected.

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